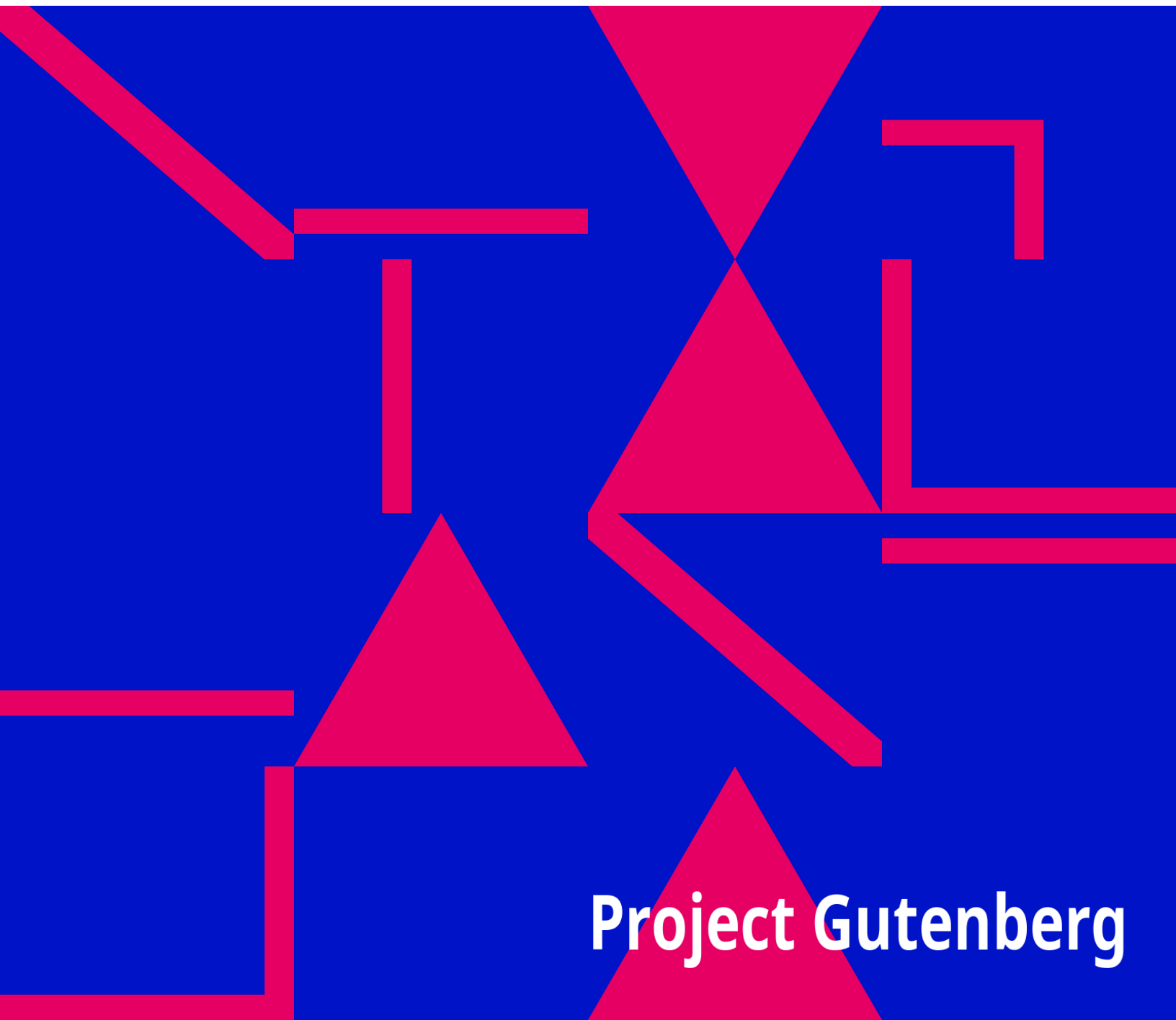


Mrs. Balfame: A Novel

Gertrude Franklin Horn Atherton



Project Gutenberg

Mrs. Balfame: A Novel

Gertrude Franklin Horn Atherton



Project Gutenberg

The Project Gutenberg eBook of Mrs. Balfame: A Novel

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project Gutenberg License included with this eBook or online at www.gutenberg.org. If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

Title: Mrs. Balfame: A Novel

Author: Gertrude Franklin Horn Atherton

Release date: April 13, 2012 [eBook #39443]

Language: English

Other information and formats: www.gutenberg.org/ebooks/39443

Credits: E-text prepared by Robert Cicconetti, Martin Pettit, and the Online Distributed Proofreading Team (<http://www.pgdp.net>) from page images generously made available by Internet Archive (<http://archive.org>)

*** START OF THE PROJECT GUTENBERG EBOOK MRS.
BALFAME: A NOVEL ***

E-text prepared by Robert Cicconetti, Martin Pettit,
and the Online Distributed Proofreading Team
(<http://www.pgdp.net>)
from page images generously made available by
Internet Archive
(<http://archive.org>)

Note: Images of the original pages are available through Internet Archive.
See <http://archive.org/details/cu31924022059962>

Transcriber's Note:

A Table of Contents has been added for the
reader's convenience.

MRS. BALFAME

A Novel

BY
GERTRUDE ATHERTON



NEW YORK
FREDERICK A. STOKES COMPANY
PUBLISHERS

Copyright, 1916, by
GERTRUDE ATHERTON

*All rights reserved, including that of translation into
foreign languages*

FOURTH PRINTING

*And woman, yea, woman, shall be terrible in story;
The tales too, meseemeth, shall be other than of yore.
For a fear there is that cometh out of woman and a glory,
And the hard hating voices shall encompass her no more.
—The Medea.*

MRS. BALFAME

CONTENTS

	PAGE
CHAPTER I	<u>1</u>
CHAPTER II	<u>16</u>
CHAPTER III	<u>29</u>
CHAPTER IV	<u>37</u>
CHAPTER V	<u>41</u>
CHAPTER VI	<u>48</u>
CHAPTER VII	<u>59</u>
CHAPTER VIII	<u>66</u>
CHAPTER IX	<u>76</u>
CHAPTER X	<u>86</u>
CHAPTER XI	<u>90</u>
CHAPTER XII	<u>97</u>
CHAPTER XIII	<u>118</u>
CHAPTER XIV	<u>126</u>
CHAPTER XV	<u>137</u>
CHAPTER XVI	<u>145</u>
CHAPTER XVII	<u>157</u>
CHAPTER XVIII	<u>165</u>
CHAPTER XIX	<u>172</u>
CHAPTER XX	<u>177</u>
CHAPTER XXI	<u>187</u>
CHAPTER XXII	<u>195</u>
CHAPTER XXIII	<u>203</u>
CHAPTER XXIV	<u>213</u>
CHAPTER XXV	<u>225</u>
CHAPTER XXVI	<u>233</u>
CHAPTER XXVII	<u>247</u>
CHAPTER XXVIII	<u>255</u>
CHAPTER XXIX	<u>261</u>

CHAPTER XXX	<u>272</u>
CHAPTER XXXI	<u>275</u>
CHAPTER XXXII	<u>280</u>
CHAPTER XXXIII	<u>292</u>
CHAPTER XXXIV	<u>298</u>
CHAPTER XXXV	<u>310</u>
CHAPTER XXXVI	<u>316</u>
CHAPTER XXXVII	<u>322</u>
CHAPTER XXXVIII	<u>332</u>

MRS. BALFAME

CHAPTER I

Mrs. Balfame had made up her mind to commit murder.

As she stared down at the rapt faces of the fifty-odd members of the Friday Club, upturned to the distinguished speaker from New York, whom she, as President, had introduced in those few words she so well knew how to choose, it occurred to her with a faint shock that this momentous resolution had been growing in her essentially refined and amiable mind for months, possibly for years; for she was not an impetuous woman.

While smiling and applauding, patting her large strong hands, freshly gloved in virgin white, at precisely the right moment, as the sound and escharotic speaker laid down the Woman's Law, she permitted herself to wonder if the idea had not burrowed in her subconscious mind—that mental antiquity shop of which she had lately read so much, that she might expound it to the progressive ladies of the Friday Club—for at least half the twenty-two years of her married life.

It was only last night that awakening suddenly she had realised with no further skirmishes and retreats of conscience or principle how she hated the heavy mass of flesh sleeping heavily beside her.

For at least eight years, ever since their fortunes had improved and she had found leisure for the novels and plays of authors well-read in life, she had longed for a room, a separate personal existence, of her own. She was no dreamer, but this exclusive and ladylike apartment often had floated before her mental vision, chastely papered and furnished in a cold pale blue (she had an uneasy instinct that pink and lavender were immoral); and by day it should look like a boudoir. She was too wise to make a verbal assault upon this or any foreign word, for she found the stage, her only guide, strangely casual or contradictory in these minor details; but although her little world found no trouble in discovering what Mrs. Balfame increasingly knew, what she did not know they suspected so little that they never even discussed her limitations. Handicapped by circumstances early and late she might be, but

she had managed to insinuate the belief that she was the superior in all things of the women around her, their born and natural leader.

Mrs. Balfame had never given expression to this desire for a deliquescent bedroom, being a woman who thought silently, spoke guardedly, and, both patient and philosophical, rarely permitted what she called her imagination to wander, or bitterness to enter her soul.

The Balfames were by no means well enough off, even now, to refurnish the old bedrooms long since denuded by a too economical parent after his children had married and moved away, but a few mornings since she had remarked casually that as the springs of the conjugal bed were sagging she thought she should send it to the auction room and buy two single beds. Last night, lying there in the dark, she had clenched her hands and held her breath as she recalled David Balfame's purple flush, the deliberate manner in which he had set down his thick coffee cup and scrubbed his bristling moustache, then rolled up the stained napkin and pushed it into the ring before replying.

His first vocative expressed all, but he was a politician and used to elaborating his mental processes for the benefit of befuddled intellects. "You'll have them springs mended," he informed his wife, who was smiling brilliantly and sweetly across the debris of ham and eggs, salt mackerel, coffee and hot breads—"that is, if they need it, which I haven't noticed, and I'm some heavier than you. But you'll introduce no more of your damned new-fangled notions into this house. It was good enough for my parents, and it's good enough for us. We lived for fifteen years without art lampshades that hurt my eyes, and rugs that trip me up; and these last eight or nine years, since you've been runnin' a club when you ain't runnin' to New York, I've had too many cold suppers to suit me; I've paid bills for 'teas' to that Club and I've put out money for fine clothes for you that I could spend a long sight better at election time. But I've stood all that, for I guess I'm as good a husband as any in God's own country; I like to see you well dressed, for you're still a looker—and it's good business, anyhow; and I've never grudged you a hired girl. But there's a limit to every man's patience. I draw the line at two beds. That's all there is to it."

He had made a part of his speech standing, that being his accustomed position when laying down the law, and he now left the room with the heavy country slouch his wife had never been able to reform. He had no authority in walk or bearing, being a man more obstinate than strong, more cunning than firm.

She was thankful that he did not bestow upon her the usual marital kiss; the smell of coffee on his moustache had sickened her faintly ever since she had ceased to love him.

Or begun to hate him? She had wondered, as she lay there inhaling deeply to draw the blood from her head, if she ever had loved him. When a man and a maid are young! He had been a tall slim youth, with red cheeks and bright eyes, the "catch" of the village; his habits were commendable and he would inherit his father's store, his only brother having died a year earlier and his sisters married and moved West. She was pretty, empty-headed, as ill-educated as all girls of her class, but she kept her father's house neatly, she was noted even at sixteen for her pies, and at twenty for the dexterity and taste with which she made her own clothes out of practically nothing. She was by no means the ordinary fool of her age class and nation. But although she was incapable of passion, she had a thin sentimental streak, a youthful desire for a romance, and a cold dislike for an impending stepmother.

David Balfame wooed her over the front gate and won her in the orchard; and the year was in its springtime. It was all as natural and inevitable as the measles and whooping-cough through which she nursed him during the first year of their marriage.

She had been happy with the happiness of youth ignorance and busy hands; although there had been the common trials and quarrels, they had been quickly forgotten, for she was a woman of a serene and philosophical temperament; moreover, no children came, for which she felt a sort of cold negative gratitude. She liked children, and even attracted them, but she preferred that other women should bear and rear them.

But all that comparative happiness was before the dawning of ambition and the heavier trials that preceded it.

A railroad expanded the sleepy village into a lively town of some three thousand inhabitants, and although that meant wider interests for Mrs. Balfame, and an occasional trip to New York, the more intimate connection with a great city nearly wrecked her husband's business. His father was dead and he had inherited the store which had supplied the village with general merchandise for a generation. But by the time the railroad came he had grown lazy and liked to sit on the sidewalk on fine days, or before the stove in winter, his chair tilted back, talking politics with other gentlemen of comparative leisure. He was popular, for he had a bluff and hospitable manner; he was an authority on politics, and possessed an eloquent if ungrammatical tongue. For a time, as his business dwindled, he merely blasphemed, but just as he was beginning to feel really uneasy, a brother-in-law who had been the chum of his youth arrived from Montana and saved him from extinction and "the old Balfame place" from mortgage.

Mr. Cummack, the brother-in-law, turned out the loafers, put Dave into politics, and himself called personally upon every housewife in the community, agreeing to keep the best of all she needed, but none of those articles which served as an excuse for a visit to New York or tempted her to delightful hours with the mail-order catalogue.

Mrs. Balfame detested this bustling common efficient brother-in-law, although at the end of two years, the twelfth of her married life, she was keeping a maid-of-all-work and manicuring her nails. She treated him with an unswerving sweetness, a natural quality which later developed into the full flower of graciousness, and even gave him a temperate measure of gratitude. She was a just woman; and it was not long after his advent that she began to realise the ambition latent in her strong character and to enter upon a well defined plan for social leadership.

She found it all astonishingly easy. Of course she never had met, probably never would meet, the really wealthy families that owned large estates in the county and haughtily entertained one another when not entertaining equally exclusive New Yorkers. But Mrs. Balfame did not waste time in envy of these people; there were old families in her own and neighbouring villages, proud of their three or four generations on the same farm, well-to-do but easy-going, democratic and, when not so old as to be "moss-backs,"

hospitable to new notions. Many, indeed, had built new homes in the expanding village, which bade fair to embrace choice bits of the farms.

Mrs. Balfame always had dominated these life-long neighbours and associates, and the gradual newcomers were quick to recognise her power and her superior mind; to realise that not to know Mrs. Balfame was to be a commuter and no more. Everything helped her. Even the substantial house, inherited from her father-in-law, and still surrounded by four acres of land, stood at the head of the original street of the village, a long wide street so thickly planted with maples as old as the farms that from spring until Christmas the soft leafy boughs interlaced overhead. She had a subtle but iron will, and a quite commonplace personality disguised by the cold, sweet, stately and gracious manner so much admired by women; and she was quite unhampered by the least of that originality or waywardness which antagonises the orthodox. Moreover, she dressed her tall slender figure with unerring taste. Of course she was obliged to wear her smart tailored suits for two years, but they always looked new and were worn with an air that quite doubled their not insignificant price. By women she was thought very beautiful, but men, for the most part, passed her by.

For eight years now, Mrs. Balfame had been the acknowledged leader of Elsinore. It was she who had founded the Friday Club, at first for general cultivation of mind, of late to study the obsessing subject of Woman. She cared not a straw for the privilege of voting; in fact, she thought it would be an extremely unladylike thing to do; but a leader must always be at the head of the procession, while discriminating betwixt fad and fashion.

It was she who had established a connection with a respectable club in New York; it was she who had inveigled the substantial well-dressed and radical personage on the rostrum beside her to come over and homilise upon the subject of "The European War vs. Woman."

The visitor had proved to her own satisfaction and that of the major part of her audience that the bomb which had precipitated the war had been made in Germany. She was proceeding complacently, despite the hisses of several members with German forbears, and the President had just exchanged a glance of amusement with a moderate neutral, who believed that Russia's desire to thaw out her icy feet in warm water was at the bottom of the

mischievous, when—spurred perhaps by a biting allusion to the atrocities engaging the press at the moment—the idea of murder took definite form in that clear unvisionary brain so justly admired by the ladies of Elsinore.

Mrs. Balfame's pure profile, the purer for the still smooth contours and white skin of the face itself, the stately setting of the head, was turned toward the audience below the platform, and one admiring young member, who attended an art class in New York, was sketching it as a study in St. Cecelia's, when those six letters of fire rose smoking from the battle fields of Europe and took Mrs. Balfame's consciousness by assault: six dark and murky letters, but with no vagueness of outline.

The first faint shock of surprise over, as well as the few moments of retrospect, she asked herself calmly: "Why not?" Over there men were being torn and shot to pieces by wholesale, joking across the trenches in their intervals of rest, to kill again when the signal was given with as little compunction as she herself had often aimed at a target, or wrung the neck of a chicken that had fed from her hand. And these were men, the makers of law, the self-elected rulers of the world.

Mrs. Balfame had respected men mightily in her youth. Even now, although she both despised and hated her husband, she responded femininely to a fine specimen of manhood with good manners and something to talk about save politics and business. But these were few and infrequent in Brabant County. The only man she had met for years who interested her in the least was Dwight Rush, also a scion of one of the old farm families.

Rush had been educated in the law at a northwestern university, but after a few years of practice in Wisconsin had accepted an offer to enter the most respectable law firm in his native township. He had been employed several times by David Balfame, who had brought him home informally to supper perhaps once a fortnight during the last six months. But, although Mrs. Balfame frankly enjoyed his society and his evident admiration for a beauty she knew had little attraction for his sex, she had all a conventional woman's dislike for irregularities, however innocent; and she had snubbed Mr. Rush's desire to "drop in of an afternoon."

He barely flitted through her mind when she asked herself what did man's civilisation amount to, anyway, and why should women respect it? And,

compared with the stupendous slaughter in Europe, a slaughter that would seem to be one of the periodicities of the world, since it is the composite expression of the individual male's desire to fight somebody just so often—what, in comparison with such a monstrous crime, would be the offence of making way with one obnoxious husband?

Something over two years ago—when liquor began to put a fiery edge upon Mr. Balfame's temper—Mrs. Balfame had considered the question of divorce; but after several weeks of cool calculation and the exercise of her foresight upon the inevitable social consequences, she had put the idea definitely aside. It was incompatible with her plan of life. Only rich women, or women that were insignificant in great cities, or who possessed conquering gifts, or who were so advanced as to be indifferent, could afford the luxury of divorce. Her world was the eastern division of Brabant County, and while it prided itself upon its progressiveness, and even—among the younger women—had a gay set, and although suppressed scandals slid about like slimy monsters in a marsh, its foundations were inherited from the old Puritan stock, and it fairly reeked with ancient prejudices.

It was a typical middle-class community with traditions, some of its blood too old, and made up of common human ingredients in varying proportions. Mrs. Balfame, enlightened by much reading and many matinées, applied the word *bourgeois* to Elsinore with secret scorn, but with a sigh: conscious that all its prejudices were hers and that not for an instant could she continue to be its leader were she a divorced woman.

Mrs. Balfame indulged in no dreams of sudden wealth. Elsinore was her world, and on the whole she was content, realising that life had not equipped her to lead the society of New York City. She liked to shop in Fifth Avenue—long since had she politely forgotten the mobs of Sixth,—to occupy an orchestra chair with a friend at a matinée, and take tea or chocolate at the fashionable retreats for such dissipations before returning to provincial Elsinore. There was a tacit agreement between herself and her husband that he should dine with his political friends in a certain restaurant behind a bar in Dobton, the county seat, on the Wednesday or Thursday evenings when she found it impossible to return to Elsinore before seven o'clock; an arrangement which he secretly approved of but invariably

entered a protest against by coming home at two in the morning extremely drunk.

He never attended the theatre with her, his preference being for vaudeville or a screaming musical comedy, for both of which abnormalities she had a profound contempt. She saw only the "best plays" herself, her choice being guided not so much by newspaper approval as by length of run. It must be confessed that in the eight or nine years of her comparative emancipation from the grinding duties of the home she had learned a good deal of life from the plays she saw. On the whole, however, she preferred sound American drama, particularly when it dealt with Society; for the advanced (or decadent?) pictures of life as presented in the imported drama, she had only a mild contempt; her first curiosity satisfied, she thanked God that she was a plain American.

Such was Mrs. Balfame when she made up her mind to remove David Balfame, superfluous husband. She was quite content to reign in Elsinore, to live out her life there, but as a dignified and irreproachable and well-to-do widow. Divorce being out of the question, there was but one way to get rid of him: his years were but forty-four, and although he "blew up" with increasing frequency, to use his own choice vernacular, he was as healthy as an ox, and the town drunkard was rising eighty.

Mrs. Balfame's friend, Dr. Anna Steuer, was now replying to the lady from New York. After reminding the Club that the President of the United States had requested his docile subjects to curb their passions and flaunt their neutrality, Dr. Steuer proceeded to demolish the anti-German attitude of the guests by reciting the long list of industrial, economic and scientific contributions to civilisation which had distinguished the German Empire since the federation of its states.

Dr. Steuer was of Dutch descent, and her gifts were not forensic, but the key-note of her character was an intense and passionate loyalty. She had spent some of the most impressionable years of her life in the German clinics, and she cherished a romantic affection for a country whose natural and historic beauties no man will deny. She had steadfastly refused to read the "other side," pinning her faith to all that was best in the country of her youthful dreams. In consequence, her discourse, while informing, was

somewhat beside the point; and had it not been for the deep love borne her by almost every one present, there would have been a polite but firm demand to give place.

Mrs. Balfame was smiling encouragement when her musings took a sudden and arbitrary twist. Being a person who never acted on impulse, her decisions, after due processes of thought, were commonly irrevocable. The moment she had made up her mind to pass her husband on, she had committed herself to the act; and, even before Dr. Anna Steuer had claimed her superficial attention, had already erected the question, How?

Mrs. Balfame was a woman who rarely bungled anything, and murder, she well knew, was the last of all acts to bungle, did the perpetrator desire to enjoy the freedom of his act. Being refined to her marrow, she shrank from all forms of brutality, and rarely, if ever, read the details of crime in the newspapers. The sight of blood disgusted her, although it did not turn her faint. She kept a pistol in her bedroom; burglars, particularly of late, had entered a large number of houses in Brabant County; but nothing would have horrified her more than to empty its contents into the worst of criminals.

Mechanically she had run through the list of all the accepted forms of removing human impedimenta and rejected them, when Dr. Anna's scientific mind, playing along the surface of hers, shot in the arrow of suggestion that she belonged naturally to the type of woman that poisoned if forced to commit murder. It was bloodless, decent, and required no vulgar expenditure of energy.

But healthy people, suddenly dead, were excavated and the quarry submitted to chemical tests; it was then—smiling brilliantly at her ardent pro-German friend—that Mrs. Balfame recalled a rainy evening some two years since. She and Dr. Anna had sat over the fire in the old Steuer cottage, and the doctor, who before the war never had been interested in anything but her friends, her science, and suffrage, had discoursed upon certain untraceable poisons, had even risen and taken down a vial from a secret cupboard above the mantel. During the same conversation, which naturally drifted to crime, Dr. Anna had discoursed upon the idiocy of doctors who poisoned with morphia, strychnine, or prussic acid, when not only were

these organic poisons known to all scientific members of the profession, but they could easily remove the barrier to their complete happiness with cholera, smallpox, or typhus germs, sealed within the noncommittal capsule.

Mrs. Balfame shuddered at the mere thought of any of these dreadful diseases, having no desire to witness human sufferings, or to run the risk of infection, but as she stared at Dr. Anna to-day, she made up her mind to procure that vial of furtive poison.

So sudden was this resolution and so grim its portent that it was accompanied by unusual physical phenomena: she brought her sound white teeth together and thrust out her strong chin; her eyes became fixed in a hard stare and the muscles of her face seemed to menace her soft white skin.

Alys Crumley, the young woman who had been sketching Mrs. Balfame instead of listening to the discussion, caught her breath and dropped her pencil. For the moment the pretty, ultra-refined, elegant leader of Elsinore society looked not like St. Cecelia but like Medea. Always determined, resolute, smilingly dominant, never before had she betrayed the secret possibilities of her nature.

Miss Crumley cast a glance of startled apprehension about her, but the debate was just finished, every one was commenting upon the splendid self-control of the high participants, and repeating the New Yorker's last phrase: that not civilisation but man was a failure. A moment later Mrs. Balfame advanced to the edge of the platform, and, with her inimitable graciousness, invited the members of the Club to come forward and meet the distinguished guest. Little Miss Alys Crumley, watching her, listening to her pleasant shallow voice, her amused quiet laugh, came to the conclusion that the fearsome expression she had seen on her model's face had been a mere effect of light.

CHAPTER II

The meeting of the Friday Club had been held in the Auditorium, a hall which accommodated moving pictures, an occasional vaudeville performance, political orators, and subscription balls of more than one social stratum. It was particularly adapted to the growing needs of the Friday Club, as it impressed visitors favorably, and there was a small room in the rear where tea could be served.

It was a crisp autumn evening when the President and her committee sped the parting guest of this fateful day and walked briskly homeward, either to cook supper themselves or to prod the languid "hired girl." Starting in groups, they parted at successive corners, and finally Mrs. Balfame and Dr. Anna were alone in the old street. The doctor's offices were in Main Street under the Auditorium, between the Elsinore Bank and the Emporium drug store, but she too had inherited a cottage in what was now known as Elsinore Avenue, and almost at the opposite end from the "Old Balfame Place."

"Come in," she said hospitably, as she opened a gate set superfluously into the low boxwood hedge. "You can 'phone to the Elks' and tell Dave to try the new hotel. It's ages since I've seen you."

"I will!" Mrs. Balfame's prompt reply was accompanied by what was known in Elsinore as her inscrutable smile. "It is kind of you," she added politely, for even with old friends she never forgot her manners. "I long for a cup of your tea—if you will make it yourself. I really could eat nothing after those sandwiches."

"I'll make it myself, all right. First because it wouldn't be fit to drink if I didn't, and second because it's Cassie's night out."

She took the key from beneath the door-mat, and pressed an electric button in the hall and another in a comfortable untidy sitting-room. In her parents' day the sitting-room had been the front parlour, with an atmosphere as rigid as the horsehair furniture, but in this era of more elastic morals it was full of

shabby comfortable furniture, a davenport was close to the radiator, the desk and tables were littered with magazines, medical reviews, and text books.

"How warm and delicious," said Mrs. Balfame brightly, removing her hat and wraps and laying them smoothly on a chair. "I'll telephone and then close my eyes and think of nothing until tea is ready—I know you won't have me in the kitchen. What a blessed relief it will be to hear you sing in your funny old voice after that woman's strident tones."

She made short work of telephoning. Mr. Balfame, having "just stepped across the street," she merely left a message for him. Dr. Anna, out in the kitchen, lighted the gas stove, rattled the aluminum ware, and sang in a booming contralto.

Mrs. Balfame went through no stage formalities; she neither tiptoed to the door nor listened intently. From the telephone, which was on the desk, she walked over to the strongest looking chair, carried it to the discarded fireplace, mounted and peered into the little cupboard the canny doctor had had built into the old chimney after the furnace was installed. There Dr. Anna kept her experimental drugs, her mother's seed pearls and diamond brooch, and a roll of what she called emergency bills.

The vial was almost in the middle of a row of bottles. Mrs. Balfame recognised it at once. She secreted it in the little bag that still hung on her arm, replaced it with another small bottle that had stood nearer the end of the row, closed the door and restored the chair to its proper place. Could anything be more simple?

She was too careful of her best tailored suit to lie down, but she arranged herself comfortably in a corner of the davenport and closed her eyes. Soothed by the warmth of the room and the organ tones in the kitchen she drifted into a happy state of somnolence, from which she was aroused by the entrance of her hostess with a tray. She sprang up guiltily.

"I had no intention of falling asleep—I meant to set the table at least—"

"Those cat naps are what has kept you young and beautiful, while the rest of us have traded complexions for hides."

Mrs. Balfame gracefully insisted upon clearing and laying a corner of the table, and the two friends sat down and chatted gaily over their tea and toast and preserves. Dr. Anna's face—a square face with a snub nose and kindly twinkling eyes—beamed as her friend complimented her upon the erudition she had displayed in her reply to the Club guest and added wistfully:

"I feel as if I didn't know a thing about this war. Everybody contradicts everybody else, and sometimes they contradict themselves. I'm going over to-morrow" ("going over" meant New York in the Elsinore tongue) "and get all the books that have been printed on the subject, and read up. I do feel so ignorant."

"That's a large order. When you've dug through them you'll know less than you could get from the headlines of the 'anti' evening papers. I'll hunt up a list that was given me by a patient who claims to be neutral, if you really want it, and leave it at your house in the morning. It's at the office."

"Oh, please do!" Mrs. Balfame leaned eagerly across the table. "You know, it is my turn to read a paper Friday week, and literally I can think of nothing else except this terrible but most interesting war. Of course, I must display some real knowledge and not deal merely in adjectives and generalities. I'll read night and day—I suppose I can get all those books from two or three New York libraries?"

"Enid Balfame, you are a wonder! When you buckle down to a thing! Who but you would take hold of a subject like that with the idea of mastering it in two weeks—Oh, bother!"

The telephone was ringing. Dr. Anna tilted back her chair and lifted the receiver from the desk to her ear. She put it down almost immediately. "Hurry call," she said briefly, an intense professional concentration banishing the pleasant relaxation of a moment before. "Baby. Sorry. Leave the key under the door mat. Don't hurry." She was putting on her wraps in the hall as she called back her last words. The front door banged simultaneously.

Mrs. Balfame piled the dishes on the tray, carried them out into the kitchen, washed and put them away. She was a very methodical woman and exquisitely neat. Although she no longer did her own kitchen work, it would

have distressed her to leave her friend's little home at "sixes and sevens"; the soiled dishes would have haunted her all night, or at least until she fell asleep.

After she had also arranged the publications on the sitting-room table in neat rows she put on her coat and hat, turned off all the lights, secreted the key as requested and walked briskly down the path. There was a street lamp directly in front of the gate. Its light fell on the face of a man emerging from the heavy shadow of the maple trees that bordered the avenue. She recognised her husband's lawyer, Dwight Rush.

"What luck!" he exclaimed boyishly. "Now I shall talk to you for at least five minutes—ten, if you will walk slowly! What are you doing out so late alone?"

Mrs. Balfame glanced apprehensively up and down the street. All the windows were alight, but it was too late in the season for loitering on verandas; even if they met any one, recognition would hardly be possible unless the encounter took place under a street lamp. Moreover, she was one of those women who while rarely terrified when alone became intensely feminine when a man appeared with his archaic right to shield and protect. She smiled graciously.

"You may see me to my gate," she said.

"I should think I might! A pistol at my head wouldn't keep me from walking these few blessed minutes with you. Seriously, it's not safe for you to be out alone like this. There were three burglaries last week, and you are just the woman to have her bag snatched."

She drew closer to him, a faint accent of alarm in her voice.

"I never thought of that. But Anna was called off in a hurry. I am so glad you happened along. Although," primly, "it wouldn't do, you know, for a woman of my age and position to be seen walking alone with a young man at night."

"What nonsense! You are like Cæsar's wife, I guess. Anything you did in this town would seem about right. You've got them all hypnotised, including

myself. It's the ambition of my life to know you better," he added in a more serious tone. "Why won't you let me call?"

"It wouldn't do. If I have a nice position it's because I've always been so particular. If I let young men call on me, people would say that I was no better than that fast bunch that tangoes every night and goes to road houses and things." Her voice trailed off vaguely; she really knew very little of the doings of "gay sets," although much in the abstract of a too temperamental world.

She made up her mind to dispose of this misguided young man once for all. She knew that she looked quite ten years younger than her age, and she was well aware that although man's passion might be business his pastime was the hunt.

"I am thankful that I have no grown daughter to keep from running with that bunch," she said playfully. "Of course I might have. I am quite old enough."

He laughed outright. Then he said the old thing which is ever new to the woman, and with a perceptible softening in his hard energetic voice: "I wonder if you really are as conventional—conventionised—as you perhaps think you are? You always give me the impression of being two women, one fast asleep deep down somewhere, the other not even suspecting her existence."

"How pretty!" She smiled with pleasure, and she felt a faint stirring of coquetry, as if the ghost of her youth were rising—that far-off period when she put on her best ribbons and made her best pies to allure the marriageable swains of Elsinore. But she recalled herself quickly and frowned. "You must not say such things to me," she said coldly.

"But I shall, and I will add that I wish you were a widow, or had never been married. I should propose to you this minute."

"That is equivalent to saying that you wish my husband were dead. And he is your friend, too!"

"Your husband is not my friend; he is my employer—upon occasion. At the moment I did not remember who was your husband. Let it go at that."

"Very well."

It was evident that he belonged to the type that found its amusement in making love to married women; but—they were within the rays of a lamp, and sauntering—she looked up at this pleasant exponent indulgently. She was quite safe, and it was by no means detestable at the age of forty-two to be coveted by the cleverest young man in Brabant County.

The smile left her lips and she experienced a faint vibration of the nerves as she met the unsmiling eyes bent close above her own.

Rush was almost drab in colour, but the bones of his face were large and his eyes were deeply set and well apart, intensely blue and brilliant. It was one of those narrow rigid faces the exigencies of his century and country have bred, the jaw long and almost as salient as that of a consumptive, the brow bold, the mouth hard set, the cheeks lean and cut with deep lines, the whole effect not only keen and clever but stronger than any man has consistently been since the world began. The curious contradiction about this type of American face is that it almost invariably looks younger than the years that have contributed to the modelling of it; such men, particularly if smoothly shaven as they usually are, look thirty at forty; even at fifty, if they retain their hair, appear but little older. When Rush's mouth was relaxed it could smile charmingly, and the eyes fill with playfulness and vivacity, just as his strident American voice could move a jury to tears by the tears that were in it.

At this moment all the intensity of which his striking features were capable was concentrated in his eyes.

"I'm not going to make love to you as matters stand," he said, his voice dry with emotion. "But I want you to divorce Dave Balfame and marry me. Sooner or later you will be driven to it—"

"Never! I'll never be a divorced woman. Never! Never!"

His steady gaze wavered and he sighed. "You said that as if you meant it. You think you are intellectual, and you haven't outgrown one of the prejudices of your Puritan grandmothers—who behaved themselves because women were scarce and even better treated than they are now, and

because they would have been too mean to spend money on a divorce suit if divorces had come into fashion elsewhere."

"You are far from complimentary!" Mrs. Balfame raised her head stiffly, not a little indignant at this natural display of sheer masculinity. She would have withdrawn her arm and hastened her steps but he held her back.

"I don't mean to be uncomplimentary. Only, you ought to be so much more advanced than you are. I repeat, I shall not make downright love to you, for I intend to marry you one of these days. But I shall say what I choose. How much longer do you think you can go on living like this?—with a man you must despise and from whom you must suffer indignities—and in this hole —"

"You live here—"

"I came back here because I had a good offer and I like the East better than the West, but I have no intention of staying here. I have reason to believe that I shall get into a New York firm next spring; and once started on that race-course I purpose to come in a winner."

"And you would saddle yourself with a wife many years your senior?" she asked wonderingly.

But she thrilled again, and unconsciously moderated her gait still further; they were but a few steps from her home.

"I am thirty-four. I am sorry that I have impressed you as looking too young to be taken seriously, but you will admit that if a man doesn't know his own mind when he is verging toward middle age, he never will. But if I were only twenty-five, it would make no difference. I would marry you like a shot. I never have given a thought to marrying before. Girls don't interest me. They show their hand too plainly. I've always had a sort of ideal and you fill it."

It was characteristic of Mrs. Balfame's well-ordered mind that her intention to murder her husband did not intrude itself into this unique and provocative hour. She had never indulged in a passing desire to marry again, and hers was not the order of mind that somersaults. But she was willing to "let herself go," for the sake of the experience; for the first time in

her twenty odd years of married life to loiter in a leafy shadowy street with a man who loved her and made no secret of it.

"I wonder?" She stared up at him, curiosity in her eyes.

"Wonder what?"

"If it *is* love?"

He laughed unmusically. "I am not surprised that you ask that question—you, who know no more of love than if you had been a castaway on a desert island since the age of ten. Never mind. I've planted a seed. It will sprout. Think and think again. You owe me that much—and yourself. I know that six months hence you will have divorced Dave Balfame, and that you will marry me as soon as the law allows."

"Never! Never!" She was laughing now, but with all the gay coquetry of youth, not merely the eidola of her own.

They had arrived at the gate of the Balfame Place, which faced the avenue and a large street lamp. She put the gate between them with a quicker movement than she commonly indulged in and held out her hand.

"No more nonsense! If I were young and free—who knows? But—but—forty-two!" She choked but brought it out. "Now go home and think over all the nice girls you know and select one quickly. I will make the wedding cake."

"Did you suppose I didn't know your age? This is Elsinore, and its inhabitants are five thousand. When you and I were born—of respectably eminent parentage—all Brabant County numbered few more."

He made no attempt to open the gate, but he raised her hand to his lips. Even in that rare moment he was conscious of a regret that it was such a large hand, and his head jerked abruptly as he flung out the recreant thought.

"I never shall change," he said. "And you are to think and think. Now go. I'll watch until you are indoors."

"Good night." She ran up the path, wondering if her tall slight figure looked as willowy as it felt. The mirror had often surprised her with the information that she looked quite different from the image in her mind. She also wondered, with some humour, why no one ever had discovered her apparently obvious charms before.

When she was in her bedroom and electricity replaced the mellow rays of street lamps shining through soft and whispering leaves, Mrs. Balfame forgot Dwight Rush and all men save her husband.

She took the vial from her bag and stared at it. In a moment a frown drew her serene brows together, her sweet, shallow, large grey eyes, so consistently admired by her own sex at least, darkened with displeasure. She was a bungler after all. How was the stuff to be administered? She racked her memory, but the casual explanation of Dr. Anna, uttered at least two years ago, had left not an echo. A drop in his eggs or coffee might be too little; more, and he might detect the foreign quantity.

She removed the cork and sniffed. It was odourless, but was it tasteless?

Obviously there was no immediate way of ascertaining save by experiment on Mr. Balfame. And even if it were tasteless, it might cook his blood, congest his face, burst his veins—she recalled snatches of Dr. Anna's dissertations upon "interesting cases." On the other hand, one drop might make him violently ill; the suspicions of any doctor might be aroused.

She must walk warily. Murder was one of the fine arts. Those that cultivated it and failed followed the victim or spent the rest of their lives within prison walls. Thousands, it was estimated, walked the earth unsuspected, unapprehensive, serene and content—contemptuous of failures and bunglers, as are the masters in any art. Mrs. Balfame was proudly aware that her rôle in life was success.

There was nothing to do but wait. She must have another cosy evening with her scientific friend and draw her on to talk of the poison. Ah! that made another precaution imperative.

She went to the cupboard in the bathroom, rinsed a small bottle, transferred the precious colorless fluid, refilled the vial with water and returned it to her bag. To-morrow or next day she would slip into Dr. Anna's house and

restore it to its hiding place. The poison she secreted on the top shelf of the bathroom cupboard.

Reluctantly, for she was a prompt and methodical woman, she resigned herself to the prospect of David Balfame's prolonged sojourn upon the planet he had graced so ill. She went to bed, shrinking into the farther corner, but falling asleep almost immediately. Then, her hands having faltered, Fate borrowed the shuttle.

CHAPTER III

A fortnight passed before Mrs. Balfame found the opportunity for a chat with Dr. Anna.

On Saturday afternoons it was the pleasant custom of the flower of Elsinore to repair to the Country Club, a building of the bungalow type, with wide verandas, a large central hall, several smaller rooms for those that preferred cards to dancing, a secluded bar, a tennis court—flooded in winter for skating—and a golf links. It was charmingly situated about four miles from the town, with the woods behind and a glimpse of the grey Atlantic from the higher knolls.

The young unmarried set that danced at the Club or in the larger of the home parlours every night would have monopolised the central hall of the bungalow on Saturdays as well had it not been for the sweet but firm resistance of Mrs. Balfame. Lacking in a proper sex vanity she might be, but she was far too proud and just to permit her own generation to be obliterated by mere youth. Having no children of her own, it shocked her fine sense of the fitness of things to watch the subservience of parents and the selfishness of offspring. One of the most notable results of her quiet determination was that she and her friends enjoyed every privilege of the Country Club when the mood was on them, and that a goodly number of the men of their own generation did not confine their attentions exclusively to the bar, but came out and danced with their neighbours' wives. The young people sniffed, but as Mrs. Balfame had founded the Country Club, and they were all helpless under her inflexible will and skilful manipulation, they never dreamed of rebellion.

During the fortnight Mrs. Balfame had cunningly replaced the vial, the indifferent Cassie leaving the sitting-room at her disposal while she wrote a note reminding Dr. Anna of the promised list of war books, adding playfully that she had no time to waste in a busy doctor's waiting-room. In truth Dr. Anna was a difficult person to see at this time. There was an epidemic of typhoid in the county, and much illness among children.

However, on the third Saturday after the interrupted supper, as Mrs. Balfame was motoring out to the Club with her friend, Mrs. Battle, wife of the President of the Bank of Elsinore, she saw Dr. Anna driving her little runabout down a branching road. With a graceful excuse she deserted her hostess, sprang into the humbler machine, and gaily ordered her friend to turn and drive to the Club.

"You take a rest this afternoon," she said peremptorily. "Otherwise you will be a wreck when your patients need you most. You look just about fagged out. And I want a little of your society. I've been thinking of taking to a sick bed to get it."

Dr. Anna looked at her brilliant friend with an expression of dumb gratitude and adoration. She was worth one hundred per cent. more than this companion of her forty years, but she never would know it. She regarded Enid Balfame as one of the superwomen of Earth, astray in the little world of Elsinore. Even when Mrs. Balfame had done her own work she had managed to look rare and lovely. Her hair was neatly arranged for the day before descent to the lower regions, and her pretty print frock was half covered by a white apron as immaculate as her round uncovered arms.

And since the leader of Elsinore had "learned things" she was of an elegance whose differences from those of women born to grace a loftier sphere were merely subtle. Her fine brown hair, waved in New York, and coiled on the nape of her long neck, displayed her profile to the best possible advantage; like all women's women she set great store by her profile. Whenever possible it was framed in a large hat with a rolling brim and drooping feathers. Her severely tailored frocks made her look aloof and stately on the streets (and in the trains between Elsinore and New York); and her trim white shirt waists and duck skirts, or "one piece suits" for colder weather, gave her a sweet feminine appeal in the house. At evening entertainments she invariably wore black, cut chastely about the neck and draped with a floating scarf.

Poor Dr. Anna, uncompromisingly plain from youth, worshipped beauty; moreover, a certain mental pressure of which she was quite unaware caused her to find in Enid Balfame her highest ideal of womanhood. She herself was never trim; she was always in a hurry; and the repose and serenity the

calm and sweet dignity of this gifted being both fascinated and rested her. That Mrs. Balfame took all her female adorers had to offer and gave nothing but enhanced her worth. She knew the priceless value of the pedestal, and although her wonderful smile descended at discreet intervals her substantial feet did not.

Dr. Anna, who had never been sought by men and had seen too many of them sick in bed to have a romantic illusion left, gave to this friend of her lifetime, whom the years touched only to improve—and who never was ill—the dog-like fidelity and love that a certain type of man offers at the shrine of the unattainable woman. Mrs. Balfame was sometimes amused, always complacent; but it must be conceded that she took no advantage of the blind devotion of either Dr. Anna or her numerous other admirers. She was far too proud to "use" people.

Mrs. Balfame seldom discussed her domestic trials even with Dr. Anna, but this most intimate of her friends guessed that her life with her husband was rapidly growing unendurable. She was, naturally, the family doctor; she had nursed David Balfame through several gastric attacks, whose cause was not far to seek.

But despite much that was highly artificial in her personality, Enid Balfame was elementally what would be called, in the vernacular of the day, a regular female; for a fortnight she had longed to talk about Dwight Rush. This was the time to gratify an innocent desire while watching sharply for an opportunity to play for higher stakes.

"Anna!" she said abruptly, as they sped along the fine road, "women like and admire me so much, and I am passably good looking—young looking, too—what do you suppose is the reason men don't fall in love with me? Dave says that half the men in town are mixed up with those telephone and telegraph girls, and they are pretty in the commonest kind of way—"

"Enid Balfame!" Dr. Anna struggled to recover her scandalised breath. "You! Do you put yourself in the class with those trollops? What's got into you? Men are men. Naturally they let your sort alone."

"But I have heard more than whispers about two or three of our good friends—women of our age, not giddy young fools—and in our own set.

Why do Mary Frew and Lottie Gifning go over to New York so often? Dave says it isn't only that women from these dull little towns go over to New York to meet their lovers, but that some of them are the up-town wives of millionaires, or the day-time wives of all sorts of men with money enough to run two establishments. It is a hideous world and I never ask for particulars, but the fact remains that Lottie and Mary and a few others have as many partners among the young men at the dances as the girls do; and I can recall hints they have thrown out that they could go farther if they chose."

"This is a busy country," remarked Dr. Anna drily. "Men don't waste time chasing the prettiest of women when convinced there is nothing in it—to borrow the classic form. Young chaps, urged on by natural law to find their mate, will pursue the indifferent girl, but men looking for a little play after business hours will not. Why, you—you look as cold and chaste as Cæsar's wife. They couldn't waste five minutes on you."

"That's what he said—that I was like Cæsar's wife—"

"Enid!" Dr. Anna stopped the little machine and turned upon her friend, her weary face compact and stern. "Enid Balfame! Have you been letting a man make love to you?"

"Well, I guess not." Mrs. Balfame tossed her head and bridled. "But the other night, when I left your house, Mr. Rush was passing and saw me home. He nearly took my breath away by asking me to get a divorce and marry him, but he respected me too much to make love to me."

"I should hope so. The young fool!" But Dr. Anna was unspeakably relieved. She had turned faint at the thought that her idol might be as many other women whose secrets she alone knew. "What did you say to him?" she asked curiously, driving very slowly.

"Why, that I would not be a divorced woman for anything in the world."

"You're not the least bit in love with him?" asked Dr. Anna jealously.

Mrs. Balfame gave her silvery shallow care-free laugh. It might have come from any of the machines passing, laden with young girls. "Well, I guess

not! That sort of foolishness never did interest me. I guess my vanity was tickled, but vanity isn't love—by a long sight."

Dr. Anna looked at the pure cold profile, the wide cool grey eyes, and laughed. "He did have courage, poor devil! It must have been—no, there was no moonlight. Must have been the suggestion of that old Lovers' Lane, Elsinore Avenue. But if you wanted men to make love to you, my dear, you could have them by the dozen. Nothing easier—for pretty women of any age who want to be made love to. As for Rush—" She hesitated, then added generously, "he has a future, I think, and could take you somewhere else."

"I should be like a fish out of water anywhere but in Elsinore. I have no delusions. Forty-two is not young—that is to say, it is long past the adaptable age, unless a woman has spent her life on the move and filling it with variety. I love Elsinore as a cat loves its hearth-rug. And I can get to New York in an hour. I think this would be the ideal life with about two thousand dollars more a year, and—and—"

"Dave Balfame somewhere else! Pity Sam Cummack didn't turn him into a travelling salesman instead of planting him here."

"He's never been interested in anything in his life but politics. But I don't really bother about him," she added lightly. "I have him well trained. After all, he never comes home to lunch, he interferes with me very little, he goes to the Elks every night soon after dinner, and he falls asleep the minute he gets into bed. Why, he doesn't even snore. And he carries his liquor pretty well. I guess you can't expect much more than that after twenty-two years of matrimony. I notice that if it isn't one thing it's another."

"Good Lord! Well, I wish he'd break his neck."

"Oh, Anna!"

"Well, of course I didn't mean it. But I see so many good people die—so many lovely children—I'm sort of callous, I guess. I make no bones of wishing that he'd died of typhoid fever last week, instead of poor Joe Morton, who had a wife and two children to support, and was the salt of the earth—"

"You might give Dave a few germs in a capsule!" Mrs. Balfame interrupted in her lightest tones, although she turned her face away. "Or that untraceable poison you once showed me. A bottle of that would finish him!"

"A drop and none the wiser." Dr. Anna's contralto tones were gloomy and morose. "Unfortunately, I am not scientific enough for cold-blooded murder. I'm a silly old Utopian who wishes that a plague would come and sweep all the undesirables from the earth and let us start fair with our modern wisdom. Then I suppose we'd bore one another to death until original sin cropped out again. Better speed up, I guess. I've a full evening ahead of me."

CHAPTER IV

The "smart set" of Elsinore was composed of the twelve women that could afford to lose most at bridge. Mrs. Balfame, who could ill afford to lose anything, but who was both a scientific and a lucky player, insisted upon moderate stakes. The other members of this inner exclusive circle were the wives of two bankers, three contractors, two prosperous merchants, one judge, one doctor, and two commuters who made their incomes in New York and slept in Elsinore. These ladies made it a point of honor to dine at seven, dress smartly and appropriately for all occasions, attend everything worth while to which they could obtain entrance in New York, pay an occasional visit to Europe, read the new novels and attend the symphony concerts. It is superfluous to add that the very foundation of the superior social status of each was a large house of the affluent type peculiar to the prosperous annexes of old communities, half brick and half wood, shallow, characterless, impersonal; and a fine car with a limousine top. The house stood in the midst of a lawn sloping to the street, unconfined by even the box hedge and undivided from the neighbouring grounds. The garage, little less pretentious than the mansion, also faced the street, for all to see. There was hardly a horse left in Elsinore; taxi cabs awaited the traveller at the station, and people that could not afford handsome cars purchased and enjoyed the inexpensive runabout.

Mrs. Balfame had segregated her smart set for strategic reasons, but that did not mean that both she and they were not kindness itself to the less favoured. Obviously, an imposing party cannot be given by twelve families alone, especially when almost half their number are childless. On all state occasions the list of invited numbered several hundred, in that town of some five thousand inhabitants.

It said much for the innate nobility of these wealthier dames of Elsinore, who read the New York society papers quite as attentively as they did the war news, that they submitted without a struggle to the dominance of a woman who never had possessed a car and whose husband's income was so often diverted from its natural course; but Mrs. Balfame not only outclassed

them in inflexibility of purpose, but her family was as old as Brabant County; the Dawbarns had never been in what might be called the cavalry regiment, consisting of those few chosen ones living in old colonial houses set in large estates and with both roots and branches in the city of New York; but no one disputed their right to be called Captains of the infantry. And Mrs. Balfame, sole survivor in the direct line, had two wealthy cousins in Brooklyn.

Once in a while Dr. Anna, a privileged character, and born at least in Brabant County, took a hand at bridge, but she was a poor player, and, upon the rare occasions when she found time to spend a Saturday afternoon at the Country Club, preferred to rest in a deep chair and watch the young folks flirt and dance until the informal supper was ready. Never had she tripped a step, but she loved youth, and it gave her an acute old maid's delight to observe the children grow up; snub-nosed, freckled-faced awkward school girls develop at a flying leap into slim American prettiness, enhanced with every late exaggeration of style. She also approved heartily, on hygienic grounds, of the friends of her own generation dancing, even in public, if their partners were not too young and their forms too cumbersome.

Mrs. Balfame and Dr. Anna arrived at the Club shortly after four o'clock. Young people swarmed everywhere, within and without; perhaps twenty older matrons were sitting on the veranda knitting those indeterminate toilette accessories for the Belgians which always seemed to be about to halt at precisely the same stage of progress.

Mrs. Balfame, who had set the fashion, had not brought her needles to-day. She went directly to the card room; but her partner for the tournament not having arrived, she entertained her impatient friends with a recent domestic episode.

"I have a German servant, you know," she said, removing her wraps and taking her seat at the table. "A good creature and a hard worker, but leaden-footed and dull beyond belief. Still, I suppose even the dullest peasant has spite in her make-up. I have been reading tomes of books on the war, as you learned from painful experience yesterday; most of them, as it happened—a good joke on Anna that, as she gave me the list—quite antagonistic to Germany. One day when Frieda should have been dusting I caught her

scowling over the chapter heads of one of them. Of course she reads English—she has been here several years. Day before yesterday, when I was knitting, she asked me whom I was knitting for, and I told her—for the Belgians, of course. She asked me in a sort of growl why I didn't knit for the homeless in East Prussia—it seems that is where she comes from and she has been having letters full of horrors. I seldom bandy words with a servant, for you can't permit the slightest familiarity in this country if you want to get any work out of them. But as she scowled as if she would like to explode a shrapnel under me, and as she is the third I have had in the last five months, I said soothingly that the newspaper correspondents had neglected the eastern theatre of war, but had harrowed our feelings so about the Belgians that we felt compelled to do what we could for them. Then I asked her—I was really curious—if she had no sympathy for those thousands of afflicted women and children, merely because they were the victims of the Germans. She has a big soft face with thick lips, little eyes, and a rudimentary nose; generally as expressionless as such a face is bound to be. But when I asked her this question it suddenly seemed to turn to wood—not actively cruel; it merely expressed the negation of all human sympathy. She turned without a word and slumped—pardon the expression—out of the room. But the breakfast was burned this morning—I had to cook another for poor David—and I know she did it on purpose. I am afraid I shall have to let her go."

"I would," said Mrs. Battle, wisely. "She is probably a spy and quite clever."

"Yes, but such a worker!" Mrs. Balfame sighed reminiscently. "And when you have but one servant—"

The tardy partner bustled in and the game began.

CHAPTER V

It was about six o'clock when Mrs. Balfame, steadily losing, contrary to all precedent, her mind concentrated, her features, like those of the rest of the players, as hard as the stone faces dug out of Egypt, her breath escaping in hissing jets, became vaguely conscious of a disturbance in the outer room. The young people were dancing, as was usual in the hour before supper, but the piano and fiddles appeared to be playing against the ribald interruptions of a man's voice. It was some time before the narrow flow of thought in Mrs. Balfame's brain was deflected by the powerful outer current, but suddenly she became aware that her partners were holding their cards suspended, and that their ears were cocked toward the door. Then she recognised her husband's voice.

For a moment she lost her breath and her blood ran chill. She had been apprehensive for some time of a scene in public, but she had assumed that it would occur in a friend's house of an evening; he attended her nowhere else. The Club he had deserted long since; it was much too slow for a man of his increasing proclivities, especially in a county liberally provided with saloons and road houses.

During the last month she had become sensible of a new hostility in his attitude toward her; it was as if he had suddenly penetrated her hidden aversion and all his masculine vanity had risen in revolt. Being a woman of an almost excessive tact, she had sprayed this vanity for twenty-two years with the delicately scented waters of flattery, but the springs had gone suddenly dry on that morning when she had uttered her simple and natural desire to bring the conjugal sleeping accommodations up to date.

And now he had come out here to disgrace her, she immediately concluded, to make her a figure of fun, to destroy her social leadership. This might also involve him in a loss, but when a man is both drunk and angry his foresight grows dim and revenge is sweet.

Only last night there had been an intensely disagreeable scene in private; that is to say, she had been dignified and slightly contemptuous, while he

had shouted that her knitting got on his nerves, and the sight of all those books on the war made him sick. When the whole business of the country was held up by this accursed war, a man would like to forget it when at home. And every man had the same story, by God; his wife was knitting when she ought to be darning stockings; trying to be intellectual by concerning herself with a subject that concerned men alone. Mr. Balfame had always resented the Woman's Club, and all talk of votes for a sex that would put him and his kind out of business. Their intelligent interest in the war was a grievous personal indignity.

Being a woman of clear thought and firm purpose, and of a really high order of moral courage, Mrs. Balfame was daunted for a moment only. She laid down her cards, opened the door and entered the main room of the club-house. There she saw, at the head of the room, a group of men surrounding her husband; with one exception, almost as excited as he. The exception was Dwight Rush who had a hand on one of Balfame's shoulders and appeared to be addressing him in a low tone. Little Maude Battle ran forward and grasped her arm.

"Oh, dear Mrs. Balfame," she gasped, "do take him home. He is so—so—queer. He snatched three girls away from their partners, and the boys are so mad. And his language—oh, it was something awful."

The women and girls were huddled in groups, all but Alys Crumley, who, Mrs. Balfame vaguely realised, was sketching. Their eyes were fixed on the group at the head of the room, where Rush was now trying to edge the burly swaying figure toward the door.

Mrs. Balfame walked directly up to her flushed and infuriated spouse.

"You are not well, David," she said peremptorily. "In all the years of our married life never have you acted like this. I am sure that you are getting typhoid fever—"

"To hell with typhoid fever!" shouted Mr. Balfame. "I'm drunk, that's what. And I'll be drunker when they let me into the bar. You get out of this."

Mrs. Balfame turned to Dr. Anna, who had marched up the room beside her. "I am sure it is fever," she said with decision, and the loyal Anna nodded sagely. "You know that liquor never affects him. We must get him home."

"Huh!" jeered Balfame, "you two get me home! I'm not so drunk I can't see the joke of that. The matter with you is you think I'm disgracin' you, and you want to go on bein' the high cock-alorum of this bunch. Well, I'm sick of it, and I'm sick of bein' told to eat out when you're at matinées or that damned Woman's Club. Home's the place for women. Knittin's all right." He laughed uproariously. "But stay at home by the fire and knit your husband's socks. Smoke a pipe too, if you like it. That's what my granny did. The whole lot of you women haven't got one good man's brain between you, and yet you'd talk the head off the President of the United States—"

He was about to launch upon his opinion of Elsinore society when a staccato cough interrupted the flow. Mrs. Balfame turned away with a gesture of superb disdain, although her face was livid.

"The sex jealousy we have so often discussed!" Her clear tones from the first had carried all over the room. "He must be taken home." She looked at Dwight Rush and said graciously: "I am sure he will go with you. And he will apologise to the Club when he is himself again. I shall go back to our game."

She held her head very high as she swept down the long room, but her jaw was set, her nostrils distended, a narrow strip of eye was fixed and glaring.

An unforeseen situation had blown to flame such fires of anger as existed in her depths, and she was unable to extinguish them as quickly as she would have wished. To the intense surprise of the bridge women who had followed her out of the card-room and in again, she sank into a chair and burst into tears. But she managed to cry quietly into her handkerchief, and in a few moments had her voice under control.

"He has disgraced me!" she exclaimed bitterly. "I must resign from the Club."

"Well, I guess not." The ladies had crowded about her sympathetically. "We'll all stand up for you," cried Mrs. Battle. "The men will give him a good talking-to, and he'll write an apology to the Club and that will end it."

These friends, old and more recent, were embarrassed in their genuine sympathy, for no one had ever seen Mrs. Balfame in tears before. Vaguely they regretted that, extreme as was the provocation, she should have

descended to the level of mere womanhood. It was as if they were present at the opening of a new chapter in the life of Mrs. Balfame of Elsinore; as, in truth, they were.

Mrs. Balfame blew her nose. "Pardon me," she said. "I never believed I should break down like this—but—but—" once more she set her teeth and her eyes flashed. "I have a violent headache. I must go home. I cannot finish the game."

"I'll take you home," Dr. Anna spoke. "Oh, that beast!"

The other women kissed Mrs. Balfame, straightened her hat, and escorted her out to the runabout which Dr. Anna brought to the rear entrance of the clubhouse. She smiled wearily at the group, touching her brow with a finger. As soon as the little car had left the grounds and was beyond the reach of peering eyes, she made no further attempt at self-control, but poured forth her inmost soul to the one person she had ever fully trusted. She told the doctor all the secret horror of her life, her hatred and loathing of David Balfame; everything, in short, but her determination to kill him, which in the novel excitement that had invaded her nervous system, she forgot.

Dr. Anna, who had heard many such confessions, but who obstinately had hoped that her friend's case was not as bad as it appeared superficially, was glad that she was not driving a horse; humane as she was, she should have forgotten herself and lashed him to relieve her own feelings.

"You must get a divorce," she said through her teeth. "You really must. I saw Rush looking at you. There is no mistaking that expression in a man's eyes. You must—you must divorce that brute."

"I'll not!" Mrs. Balfame's composure returned abruptly. "And please forget that I gave way like this and—and said things." She wondered what she really had said. "I know I need not ask you never to mention it. But divorce! Oh, no. If I continue to live with him they'll be sorry for me and stand by me, but if I divorced him—well, I'd just be one more divorced woman and nothing more. Elsinore isn't Newport. Moreover, they'd feel I'd no further need of their sympathy. In time they'd let me pretty well alone."

"I don't think much of your arguments," said Dr. Anna. "You could marry Rush and go to New York."

"But you know I mean what I say. And don't worry, Anna dear." She bent over the astonished doctor and gave her a warm kiss. "And as I'm not demonstrative, you know I mean that too. You are not to worry about me. I've got the excuse I needed, and I'm going to buy some things at second hand and refurnish one of the old bedrooms and live in it. He can't say a word after this, and he'll be humble enough, for the men will make him apologise to the Club. I'll threaten him with divorce, and that alone will make him behave himself, for it would cost him a good deal more to pay me alimony than to keep the old house going—"

"That isn't an argument that will have much effect on a man, usually in liquor. But women are queer cattle. Divorce is a great and beneficent institution, and here you elect to go on living under the same roof with a brute—Oh, well, it's your own funeral. Here we are. I've got to speed up and practise medicine. Am expecting a call from out at Houston's any minute. Baby. Good night."

CHAPTER VI

Mrs. Balfame let herself into the dark house. Saturday was Frieda's night out.

Contrary to her economical habit, she lighted up the lower floor recklessly, and opened the windows; she felt an overwhelming desire for light and air. But as she wished to think and plan with her accustomed clarity she went at once to the pantry in search of food; the blood was still in her head.

The morrow would be Sunday, and the Saturday luncheon was always composed of the remains of the Friday dinner. On Saturday she dined at the Country Club. Therefore Mrs. Balfame found nothing with which to accomplish her deliberate scientific purpose but dry bread and a box of sardines. She was opening this delectable when the front door bell rang.

Her set face relaxed into a frown, but she went briskly to the door. The poison might be transpirable after all, and her alibi must be perfect; she had changed her mind about going to bed with a headache, and at ten o'clock, when she knew that several of her childless friends would be at home, she purposed to call them up and thank them sweetly and cheerfully.

When she saw Dwight Rush on the stoop, however, she almost closed the door in his scowling face.

"Let me in!" he commanded.

"No!" She spoke with sweet severity. "I shall not. After such a scene? I must be more careful than ever. Go right away. I, at least, shall continue to be above reproach."

"Oh!" He swallowed the natural expression of masculine irritation. "If you won't let me in I'll say what I've got to say right here. Will you divorce that brute and marry me? I can get you a divorce on half a dozen grounds."

"I'll have no divorce, now or ever." Mrs. Balfame of Elsinore spoke with haughty finality. "I abominate the word." Then she added graciously: "But

don't think I am unappreciative of your kindness. Now you must go away. The Gifnings live on the corner, and they always come home early."

"A good many have left, including Balfame. He spoilt the evening." Rush stared at her and ground his teeth. "By God! I wish the old duelling days were back again. I'd call him out. If you say the word I'll pick a quarrel with him anyhow. He carries a gun, and there isn't a jury in Brabant County that wouldn't acquit me on the plea of self-defence. My conscience would trouble me no more than if I had shot a mad dog."

Mrs. Balfame gave a little gasp, which he mistook for horror. But temptation had assailed her. Why not? Her own opportunity might be long in coming. It would be like Dave Balfame to go away and stay for a month. But the temptation passed swiftly. Human nature is too complex for any mere mortal to reduce to the rule of three. While she could dispose of her husband without a qualm, her conscience revolted from turning an upright citizen like Dwight Rush into a murderer.

She closed the door abruptly, knowing that no mere verbal refusal to accept such an offer would be adequate, and he went slowly down the steps. But in a moment he ran back and a few feet down the veranda, thrusting his head through one of the open windows.

"Just one minute!"

She was passing the parlour door and paused.

"Promise me that if you are in trouble you will send for me. For no one else; no other man, that is, but me. You owe me that much."

"Yes, I promise." She spoke more softly and smiled.

"And close these windows. It is not safe to leave veranda windows open at this hour."

"I intended to close them before going up stairs. But—perhaps you will understand—the house when I came in seemed to reek with tobacco and liquor—with him!"

His reply was inarticulate, but he pulled down the windows violently, and she locked them, smiling once more before she turned out the light.

She returned to the dining-room, thinking upon food with distaste, but determined to eat until her head felt normal. She had no intention of speaking to her husband should he return, for she purposed to sleep on a sofa in the sewing-room and lock the door, but tones and brain must be lightly poised when she telephoned to her friends.

The telephone bell rang. Once more she frowned, but answered the summons as promptly as she had opened the front door. To her amazement she heard her husband's voice.

"Say," it said thickly, "I'm sorry. Promise not to take another drink for a month. Sorry, too, I've got to go to the house for a few minutes. Didn't intend to go home to-night—thought I'd give you time to get over bein' as mad as I guess you've got a right to be. But I got to go to Albany—politics—got to go to-night—must go home and get my grip. You—you—wouldn't pack it, would you? Then I needn't stay so long. Only got to sort some papers myself."

Mrs. Balfame replied in the old wifely tones that so often had caused him to grit his teeth: "I never hold a man in your condition responsible for anything. Of course I'll pack your suitcase. What is more, I'll have a glass of lemonade ready, with aromatic spirits of ammonia in it. You must sober up before you start on a journey."

"That's the ticket. You're a corker! Put in a bromide, too. I'm at Sam's, and I guess I'll walk over—need the air. You just go on bein' sweet and I'll bring you something pretty from Albany."

"I want one of those new chiffon-velvet bags, and you will please get it in New York," she said practically. "I'll write an exact description of it and put it in the suitcase."

"All right. Go ahead." His accents breathed profound relief, and although her brain was working at lightning speed, and her eyes were but a pale bar of light, she curled her lip scornfully at the childishness of man, as she hung up the receiver.

She made the glass of lemonade, added the usual allowance of aromatic spirits of ammonia and bromide—a bottle of each was kept in the sideboard

ready for instant use—then ran upstairs and returned with the colourless liquid she had purloined from Dr. Anna's cupboard.

Her scientific friend had remarked that one drop would suffice, but being a mere female herself she doubled the dose to make sure; and then set the glass conspicuously in the middle of the table. The half opened can of sardines and the plate of bread were quite forgotten, and once more she ran upstairs, this time to pack his useless clothes.

She performed this wifely office with efficiency, forgetting nothing, not even the hair tonic he was administering to a spreading bald spot, a bottle of digestive tablets, a pair of the brown kid gloves he affected when dressed up, and a volume of detective fiction. Then she wrote a minute description of the newest fashion in hand bags and pinned it to his dinner jacket. The suitcase was an alibi in itself.

When she had packed it and strapped it and carried it down to the dining-room, returned to her room and locked the door, she realised that she had prolonged these commonplace duties in behalf of her nerves. Those well-disciplined rebels of the human system were by no means driven to cover, and this annoyed her excessively.

She had no fear of not rising to precisely the proper pitch when she heard her husband fall dead in the dining-room, for she always had risen automatically to every occasion for which she was in any measure prepared, and to many that had caught her unaware. It was the ordeal of waiting for the climax that made her nerves jeer at her will, and she found that a series of pictures was marching monotonously through her mind, again, and again, and yet again: with that interior vision she saw her husband walk unsteadily up the street, swing open the gate, slam it defiantly, insert his latch-key; she saw his eye drawn to the light in the dining-room at the end of the dark hall, saw him drink the lemonade, drop to the floor with a fall that shook the house; she saw herself running down, calling out his name, shattering the glass on the floor, then running distractedly across the street to the Gifnings'—and again and still again.

She had been pacing the room. It occurred to her that she could vary the monotony by watching for him, and she put out her light and drew aside the sash curtain. In a moment she caught her breath.

Her room was on a corner of the house and commanded not only the front walk leading down to Elsinore Avenue, but the grounds on the left. In these grounds was a large grove of ancient maples, where, dressed in white, she passed many pleasant hours in summer with a book or her friends. The trees, with their low thick branches still laden with leaves, cast a heavy shade, but her gaze, moving unconsciously from the empty street, suddenly saw a black and moving shadow in that black and almost solid mass of shadows.

She watched intently. A figure undoubtedly was moving from tree to tree, as if selecting a point of vantage, or restless from one of several conceivable causes.

Could it be her husband, summoning his courage to enter and face her? She had known him in that mood. But she dismissed the suggestion. He had inferred from her voice that she was both weary and placated, and he was far more likely to come swaggering down the avenue singing one of his favourite tunes; he fancied his voice.

Frieda never returned before midnight, and then, although she entered by the rear hall door and stole quietly up the back stairs, she would be quite without shame if confronted.

Therefore, it must be a burglar.

There could not have been a more welcome distraction. Mrs. Balfame was cool and alert at once. As an antidote to rebellious nerves awaiting the consummation of an unlawful act, a burglar may be recommended to the most amateurish assassin.

Mrs. Balfame put on her heavy automobile coat, wrapped her head and face in a dark veil, transferred her pistol from the table drawer to a pocket, and went softly down the stairs. She left the house by the kitchen door, and, after edging round the corner stood still until her eyes grew accustomed to the dark. Then, once, more, she saw that moving shadow.

She dared not risk crossing the lawn directly from the house to the grove, but made a long détour at the back, keeping on the grass, however, that her footsteps should make no noise.

A moment or two and she was within the grove. She saw the shadow detach itself again, but it was impossible to determine its size or sex, although she inferred from its hard laboured breathing that the potential thief was a man.

He appeared to be making craftily for the house, no doubt with the intention of opening one of the lower windows; and she stalked him with a newly awakened instinct, her nostrils expanding. The original resolve to kill her husband had induced no excitement at all; even Dwight Rush's love-making had thrilled her but faintly; but this adventure in the night, stalking a house-breaker, presently to confront him with the command to raise his hands, cast a momentary light upon the emotional moments experienced by the highly organised.

Suddenly she heard her husband's voice. He was approaching Elsinore Avenue from one of the nearby streets, and he was singing, with physiological interruptions, "Tipperary," a song he had cultivated of late to annoy his political rival, an American of German birth and terrific German sympathies. He was walking quickly, as top-heavy men sometimes will.

She drew back and crouched. To make her presence known would be to turn over the burglar to her husband and detain the essential victim from the dining-room table.

She saw the shadow dodge behind a tree. Balfame appeared almost abruptly in the light shed by the street lamp in front of his gate; and then it seemed to her that she had held her breath for a lifetime before her ears were stunned by a sharp report, her eyes blinked at a spurt of fire, before she heard David Balfame give a curious sound, half moan, half hiccough, saw him clutch at the gate, then sink to the ground.

She was hardly conscious of running, far more conscious that some one else was running—through the orchard and toward the back fence.

Hours later, it seemed to her, she was in the kitchen closing the door behind her. Something curious had happened in her brain, so trained to orderly routine that it seldom prompted an erratic course.

She should have run at once to her husband, and here she was inside the house, and once more listening intently. It was the fancied sound that swung

her consciousness back to its balance. She went to the front of the back stairs and called sharply:

"Frieda!"

There was no answer.

"Frieda," she called again. "Did you hear anything? I thought I heard some one trying to open the back door."

Again there was no answer.

Then, her lip curling at the idea of Frieda's return on Saturday night at eight o'clock, she went rapidly into the dining-room, carried the glass containing the lemonade into the kitchen, rinsed it thoroughly, and put it away.

It was not until she reached her room that it occurred to her that she should have ascertained whether or not the key was on the inside of the rear hall door.

But this was merely a flitting thought; there were loud and excited voices down by the gate. In an instant she had hung up her automobile cloak and veil, changed her dress for a wrapper, let down her hair and thrown open the window.

"What is the matter?" Her tone was peremptory but apprehensive.

"Matter enough!" John Gifning's voice was rough and broken. "Don't come out here. Mean to say you didn't hear a shot?"

Two or three men were running about nearer the house. One paused under her window, and looked up, waving his hand vaguely.

"Shot? Shot? I heard—so many tires explode—What do you mean? What is it?—Who—"

"Here's the coroner!" cried one of the group at the gate.

"Coroner?"

She ran down stairs, threw open the front door and went as swiftly toward the gate, her hair streaming behind her.

"Who is it?" she demanded.

"Now—now." Mr. Gifning intercepted her and clasped her shoulder firmly. "You don't want to go down there—and don't take on—"

She drew herself up haughtily. "I am not an hysterical woman. Who has been shot down at my gate?"

"Well," blurted out Gifning. "I guess you'll have to know. It's poor old Dave."

Mrs. Balfame drew herself still higher and stood quite rigid for a moment; then the coroner, one of her husband's friends, came up the path and said in a low tone to Gifning, "Take her upstairs. We're goin' to bring him in. He's gone, for a fact."

Mr. Gifning pushed her gently along the path, as the others lifted the limp body and tramped slowly behind. "You go up and have a good cry," he said. "I'll 'phone for the Cumacks. I guess it was bound to come. There's been hot times in Dobton lately—"

"Do you mean that he was deliberately murdered?"

"Looks like it, seeing that he didn't do it himself. The damned hound was skulking in the grove. Of course he's made off, but we'll get him all right."

Mrs. Balfame walked slowly up the stair, her head bowed, while the heavy inert mass so lately abhorrent to his wife and several politicians was laid on the sofa in the parlour whose evolutions had annoyed him.

Mr. Gifning telephoned to the dead man's brother-in-law, then for the police and the undertaker.

Mrs. Balfame sat down and awaited the inevitable bombardment of her privacy by her more intimate friends. Already shriller voices were mingling with the heavier tones down on the lawn and out in the avenue. The news seemed to have been flashed from one end of Elsinore to the other.

CHAPTER VII

Mrs. Balfame sat with Mrs. Battle, Mrs. Gifning, Mrs. Frew, her sister-in-law, Mrs. Cummack, and several of her other friends in her quiet bed-chamber. It was an hour after the death of David Balfame and she had, for the seventh time, told the story of packing her husband's suit case, carrying it down stairs, returning to her room to undress, hearing the commotion down by the gate. Yes, she had heard a report, but Elsinore Avenue—automobiles—exploding tires—naturally, it had meant nothing to her at the moment. No, he did not cry out—or if he did—her window was closed; it was the side window she left open at night.

She had accepted a bottle of smelling salts from Mrs. Battle, but sat quite erect, looking stunned and frozen. Her voice was expressionless, wearily reiterating a few facts to gratify the curiosity of these well-meaning friends, as wearily listening to Lottie Gifning's reiteration of her own story: As the night was warmer than usual she and her husband and the two friends that had motored in with them had sat on the porch for awhile; they had heard "Dave" come singing down Dawbarn Street; two or three minutes later the shot. Of course the men ran over at once, but for at least ten minutes she was too frightened to move. One of the men ran for the coroner; if "poor Dave" wasn't dead they wanted to take him at once where he would be comfortable.

Mrs. Balfame's demeanour was all these solicitous friends could have wished; although they enjoyed tears and emotional scenes as much as any women, they were gratified to be reassured that their Mrs. Balfame was not as other women; they still regretted her breakdown at the Club, although resentfully conscious of loving her the more. And if they wanted tears, here was Polly Cummack shedding them in abundance for the brother she now reproached herself for having utterly despised.

Below there was a subdued hum of voices, within and without. The police had come tearing up in an automobile and ordered the amateur detectives out of the grounds; their angry voices had been heard demanding how the

qualified fools expected the original footsteps to be detected after such a piece of idiocy.

Mrs. Balfame had shaken her head sadly. "They'll find nothing," she said. "If only I had known, I could have called down to them to keep out of the yard."

"Now, who do you suppose that is?" Mrs. Battle, who was short and stout and corseted to her knees, toddled over to the window and leaned out as two automobiles raced each other down the avenue. They stopped at the gate, and in a moment Mrs. Battle announced: "The New York newspaper men!"

"Already?" Mrs. Balfame glanced at the clock and stifled a yawn. "Why, it's hardly an hour—"

"Oh, a year or so from now they'll be coming over in bi-planes. Well, if our poor old boobs of police don't unearth the murderer, they will. They are the prize sleuths. They'll find a scent, or spin one out of their brains as a spider spins his web out of his little tummy—"

Mrs. Cummack interrupted: "Sam is sure it is Old Dutch. He's gone with the constable to Dobton."

Dobton, the county seat, and the centre of the political activities of East Brabant, intimately connected with the various "towns" by trolley and telephone, embraced the domicile of Mr. Konrad Kraus, amiably known as "Old Dutch." His home was in the rear of his flourishing saloon, which was the headquarters of the county Republicans. David Balfame had patronised—rumour said financed—the saloon of an American sired by Erin.

Another automobile dashed up. "Sam, I think; yes, it is," cried Mrs. Battle.

A few moments later Mr. Cummack appeared upon the threshold.

"Nothin' doin'," he said gruffly. "Old Dutch's got a perfect alibi. Been behind the bar since six o'clock. It's up to us now to find out if he hired a gunman; and we're on the trail of others too. Poor Dave had his enemies all right."

He paused and looked tentatively at his weary but heroic sister-in-law. His own face was haggard, and the walrus moustache he had brought out of the

North-west was covered not only with dust but with little moist islands made by furtive tears. With that exquisite sympathy and comprehension that men have for the failings of other men, which far surpasseth that of woman, he had loved his imperfect friend, but he had a profound admiration for his sister-in-law, whom he neither loved nor pretended to understand. He knew her surfaces, however, as well as any one, and would have been deeply disappointed if she had carried herself in this trying hour contrary to her usual high standard of conduct. Enid Balfame, indeed, was almost a legend in Elsinore, and into this legend she could retire as into a fortress, practically impregnable.

"Say, Enid," he said hesitatingly. "These reporters—the New York chaps—the local men wouldn't dare ask—want an interview. What do you say?"

Mrs. Balfame merely turned her haughty head and regarded him with icy disdain. "Are they crazy? Or you?"

"Well, not the way they look at it. You see, it's up to them to fill a column or two every morning, and there's nothing touches a new crime with a mystery. So far, they haven't got much out of this but the bare fact that poor Dave was shot down at his own gate, presumably by some one hid in the grove. An interview with the bereaved widow would make what they call a corking story."

"Tell them to go away at once." She leaned back against her chair and closed her eyes. Mrs. Gifning flew to hold the salts to her nose.

"Better see them," persisted Mr. Cummack. "They'll haunt the house till you do. They're crazy about this case—hasn't been a decent murder for months, nothin' much doin' in any line, and everybody sick of the war. The Germans take a trench in the morning papers and lose it in the evening—"

"Sam Cummack! How dare you joke at a time like this?" His wife ran forward and attempted to push him out of the room, and the other ladies had risen and faced him with manifest indignation.

Suddenly Mrs. Cummack put her arms about him and patted the top of his head. He had burst into tears and was rubbing his eyes on his sleeve. "Poor old Dave!" he sobbed. "I'm all in. But I'll find that low-down cur who killed him, cut him off in his prime, if it takes the last cent I've got."

Mrs. Balfame rose and crossed to his side. She put her hand on his shoulder. "I never should have suspected that you had such depth of feeling, Sam," she said softly, "I am sure that the cowardly murderer will be caught and that yours will be the glory. Send those inconsiderate reporters away."

Mr. Cummack shook his head. "As well talk of calling off the police. They'll be round here day and night till the man is in Dobton jail—longer, for they know the public will want an interview with the widow. Better see them, Enid."

"I shall not." Mrs. Balfame put her hand to her head and reeled. "Oh, I am so tired! So tired! What a day. Oh, how I wish Anna were here."

Three of the women caught her and led her to her chair. "Anna!" she reiterated. "I must have something to make me sleep—"

"I'll call her up!" volunteered Mrs. Gifning. "I do hope she is at home—"

"She was to go out to the Houston farm," interrupted Mrs. Cummack. "She stopped at our house on the way out—Sammy has bronchitis—"; and Mrs. Gifning, who was as nervous as the widow should have been, ran down to the telephone, elated at being the one chosen to horrify poor Dr. Anna while engaged in the everlasting battle for life.

"I'll stay with Enid till Anna comes," volunteered Mrs. Cummack. "I guess she'd better be quiet. One of you might make coffee for those that are going to sit up—"

"Frieda's doin' that," said Mr. Cummack. "They're all in the dining-room—"

Mrs. Balfame had left the shelter of Mrs. Cummack's arm and was sitting very straight. "Frieda? This is her night out—"

"She was in bed with a toothache, but I routed her out. Well, I'll put the men off till to-morrow, but better make up your mind to see them then."

He left the room and when Mrs. Balfame was alone with her sister-in-law, whom she had never admitted to the sacred inner circle, but who was a kind forgiving soul, she smiled affectionately. "Don't be afraid that I shall break down," she said. "But those women had got on my nerves. It is too kind of you to have dismissed them, and to stay with me yourself till Anna comes."

It has all been so terrible—and coming so soon after what happened at the Club. Thank heaven I did not permit myself to speak severely to him, and even when he telephoned for his suit case I was not cross—I never would hold a man who had been drinking to strict account—"

"Don't you worry your head. He was my brother, but I guess I know what a trial he must have been. And if he hadn't been my brother I guess I'd say we wouldn't have blamed you much if you had given him a dose of lead yourself—"

Mrs. Balfame raised her amazed eyes. But in a moment the weary ghost of a smile flitted over her firm mouth, and she asked almost lightly: "Do you then believe in removing offensive husbands?"

"Well—of course I'd never have that much courage myself if Sam wasn't any better than he should be—he's pretty decent as men go—but I know a few husbands right here in Elsinore—well, if their wives gave them prussic acid or hot lead they wouldn't lose *my* friendship, and I guess any jury would let them off."

"I guess you're right." Mrs. Balfame was beginning to undress. "I think I'll get into bed—But it requires a lot of nerve. And the risk is pretty great, you know. Anna once told me of an untraceable and tasteless poison she had—"

"Oh, Lord!" Mrs. Cummack may have been too hopelessly without style and ambition to be one of the arc lights of the Elsinore smart set, but she possessed a sense of humour, and for the moment forgot the abrupt taking off of her brother. "Don't let that get round. The poison wouldn't be safe for an hour—nor a few husbands. I think I'll warn Anna anyhow—I'm not sure I can keep it."

The door opened softly and Mrs. Gifning's fluffy blonde head appeared. "I couldn't get Anna herself," she whispered. "The baby hasn't come. But Mr. Houston said he'd tell her as soon as it was over, and let her go. He was terribly shocked, and sent you his love."

"Thanks, dear," murmured Mrs. Balfame. "I'll try and sleep awhile, and Polly has promised to sit with me till Anna comes. Good-night."

CHAPTER VIII

There was a thin cry of life in the nursery of the Houston farm house. The mother slept and the new born was in competent hands. Mr. Houston, a farmer more prosperous and enterprising than his somewhat weedy appearance prefigured, beckoned Dr. Anna into the dining-room, where a sleepy but interested "hired girl" had brought hot coffee and sandwiches.

The battle had lasted little over three hours, but every moment had been fraught with anxiety for the doctor and the husband. Mrs. Houston's heart had revealed an unsuspected weakness and the baby had not only neglected to head itself towards the gates of life as all proper little marathons should, but had exhibited a state of suspended animation for at least twenty minutes after its arrival at the goal.

Dr. Anna dropped into a chair beside the table and covered her face with her hand.

"I'm all in, I guess," she murmured, and the farmer put down the coffee pot and ran for the demijohn.

"You drink this," he said peremptorily. His own hand was shaking, but he made no verbal attempt to release his strangled emotions until both he and the doctor had drunk of coffee as well as whiskey. Then, when half way through a thick sandwich made of slabs of bread and beef, he began to thank the doctor incoherently.

"You are just it," he sputtered. "Just about it. And your poor back must be broke. You doctors do beat me, particularly you women doctors. I'll never say nothin' against women doctors again, though I'll tell you now that although poor little Aggie was dead set on you, I opposed it for awhile—"

Dr. Anna was sitting up and smiling. She waved his apologies and protestations aside. "I can't think what came over me to collapse like that. Once or twice lately I have thought I might be getting something. I'll have

my blood taken to-morrow. Now, I'll go home and get to bed quick, although that coffee has made me feel as fine as a fiddle."

"Well, I needed it too, and for more reasons than you. Say—" Mr. Houston had risen and was pulling nervously at his short and bosky beard. "I got a 'phone from Mrs. Gifning a while ago. You're wanted at the Balfames—bad."

Dr. Anna sprang to her feet, her full cheeks pale again. "Enid! What has happened to her?"

"Oh, she's all right, I guess. It's Dave—"

"Oh, another gastric attack?"

"Worse and more of it. He was shot—two or three hours ago, I guess. I didn't ask the time—was in too big a hurry to get back to Aggie—at his own gate, though, I think she said."

"Who did it?"

"Nobody knows."

"Dead?"

"No one'll ever be deader."

"H'm!" The color had come back to Dr. Anna's tired face and she shrugged her shoulders. "I'm no hypocrite, and I guess you're not either."

"I'm no more a hypocrite than I am a Democrat. His yellow streak was gettin' wider every year. It's good riddance. Still I wish he'd died in his bed. I don't like the idea of a fellow citizen, good or bad, bein' shot down like that. It's against law and order, and if the murderer's caught and I'm drawn on the jury, and it's proved he done it, I'll vote for conviction."

"Quite right," said Dr. Anna briskly, as she went out into the hall and put on her hat. "I suppose it's Mrs. Balfame who wants me?"

"Yes, that's it. I remember. But you ought to go home and get sleep. There's enough women to sit up with her. The hull town likely."

"But I know she wants me." Dr. Anna's face glowed softly. "I'll sleep there all right—on a sofa beside her bed—if she wants me to stay on."

"Well, look out for yourself," he growled. "If you don't think about yourself a little more you'll soon have no show to think so much about other people. I'm goin' for the car."

A few moments later he had brought the little runabout to the door, lighted the lamps, and given the doctor a hard grip of the hand.

She returned the pressure in kind. "Now don't worry, Mr. Houston. She's all right, and that nurse is first rate. Don't talk to her. Aggie, I mean. See you to-morrow about ten."

She drove rapidly out of the gate and into the road. There was a full moon shining and the drive was but ten miles between the farm and Elsinore. Her face was tired and grim. She had been in daily contact with typhoid fever in the poor and dirty quarter of the town. In her arduous life she had often experienced healthy fatigue, but nothing like this. Could she be coming down?

She swung her thoughts to Enid Balfame, and forgot herself. Free at last, and while still young and lovely! Would she marry Dwight Rush? He had leaped into her mind simultaneously with the announcement of Balfame's death. But was he good enough for Enid? Was any man? Why, now that she was a real widow and in no need of a protector, should she marry at all? At any rate she could afford to wait. There were greater prizes to be captured by a beautiful and still girlish woman.

She was glad for the first time that Enid had never had a child, for there was a virgin and mystic appeal in the woman that had escaped the common lot. Spinsters lost it, curiously enough, but a chaste and lovely matron, who had ignored the book of experience so liberally offered her, and with eyes as unalloyed as a girl's (save when flashing with intellectual fires)—what more distracting anomaly could the world offer? Only Mrs. Balfame's indifference had kept the men away—Dr. Anna was convinced of that. Her future was in her own hands.

Dr. Anna's mind wandered to the scene of the murder. It was not difficult to construct, even from the meager details, and she shuddered. Murder! What

a hideous word it was! Horrid that it should even brush the name of an exquisite creature like Enid Balfame. Would that Dave Balfame could have fallen of apoplexy while disgracing himself at the Club! But Anna frowned and shook the picture out of her mind. Doctors are too long trained in death to be haunted by its phantoms in any form.

A sharp turn and the road ran beside a salt marsh, a solemn grey expanse that lost itself far away in the grey of the sea. Suddenly Dr. Anna became aware of a man walking rapidly down the road toward her. He carried his hat in his hand as if his head were hot on this cool autumn night. There was no fear of man in Dr. Anna, even on lonely country roads; nevertheless she had no mind to be detained, and was about to increase her speed, when her curiosity was excited by something pleasantly familiar in the tall loose figure, the almost stiffly upright head. A moment later and the bright moonlight revealed the white face of Dwight Rush.

She brought the car to an abrupt halt as he too paused and nodded recognition.

"What's the matter?" she asked sharply. "You looked as if you were walking to beat time itself—as if you saw a ghost to boot—"

"Plenty of ghosts in my head. It aches like the dickens—"

"Were you there when it happened?"

"When what happened?"

"What? You pretend you don't know—when all Elsinore must have known it within five minutes—"

"I don't know what you are talking about. I followed you in from the Club and then took the train for Brooklyn, where I had to see a man. When I got back to Elsinore—off the train—my head ached so I knew I couldn't sleep—so I started out to walk it off—been walking for about two hours."

"Dave Balfame was shot down at his own gate three or four hours ago."

"Good God! Who did it? Is he dead?"

"He's dead, and that's about all I can tell you. Houston went to the 'phone but he was in such a state of mind about his wife that he didn't stay for particulars. Enid wanted me—it was Lottie Gifning that 'phoned. I gathered, however, that they haven't caught the murderer yet."

"Jove!" Rush was shaking. "I feel as if I'd been hit in the pit of the stomach. And I'm not one to go to pieces, either. But I've a good enough reason."

Dr. Anna continued to stare at him. He met her gaze and wonder grew in his. Then the blood rushed into his face and he threw back his head. "What do you mean? That I did it?"

"No—I don't see you committing murder—"

"Not in that damned skulking way—"

"Exactly. But you kind of suggest that you might know something about it. You might have been in the grove, or some other part of the grounds—with some idea of protecting Enid—"

"Why should you think that?"

"She told me—I didn't think it a bad idea myself—that you asked her to divorce Dave and marry you. But she said she wouldn't and I guess she meant it. Now, get in," she added briskly. "I'll drive you home and never say I met you. Met anybody else?"

"No one."

"Unless they get the right man at once, everybody who was known to have any reason to wish Dave Balfame out of the way will come under suspicion. For all you know, somebody may have guessed your secret; I saw it in your eyes at the clubhouse when you were trying to get Dave out of the room for her sake; but of course I was 'on.' Those New York newspaper men, however—watch out for them. They'll fine-tooth-comb the county for the man in the case."

Rush had disposed his long legs in the little machine and it was once more running swiftly on the smooth road. "My brain is still too hot to theorise," he said. "May I smoke? What is your opinion?"

"He had many political enemies; besides, these last two years he's been growing more and more unbearable, so I guess he had more than one in his own party. But it isn't unlikely that some girl did it. For some reason the trollops liked him, and I've met him several times of late driving with a red-headed minx that looks as if she could shoot on sight."

"I don't mind telling you that I saw Mrs. Balfame a few minutes after you left her. I was boiling. Instead of piloting Balfame out to Sam's car I wished that I had run him behind the clubhouse and horsewhipped him. We are too civilised these days. I merely went to his house and asked his wife if she would divorce the brute and marry me. Two centuries ago—maybe one—I'd have picked her up and flung her on my horse and galloped off to the woods. We haven't improved; we've merely substituted the long-winded and indirect method and called it civilisation."

"Just so. Did she let you in?"

"Not she. You might know that without asking. Nor was she any nearer divorce than before. When I offered to pick a quarrel with him, she merely slammed the door in my face. But I went to the window and made her promise that if she were ever in trouble I should be the first person she would send for—"

"But you weren't!" Dr. Anna's voice rang with jealous triumph. "I was the first. But never mind me. I've adored her for forty years, and you haven't known her as many weeks. Tell me, you didn't conceal yourself anywhere in the grounds to watch over her? She must have been all alone. Every servant in town takes Saturday night out."

"I inferred that Sam would keep him at his house all night. Besides, I knew she had a pistol. Balfame told me the day he bought her one in New York; when those burglaries began."

"Well, don't tell any one that you offered to dispose of her husband—a few moments before he was killed! It might make unnecessary trouble for a rising young lawyer."

"I am quite able to do my own thinking and take care of myself," he said haughtily, stung by her tone. "If you choose to think me guilty, do so. And

let me tell you that if I had done it I shouldn't put my head in the ash barrel."

"No, but you might do your best to avoid the chair. Small blame to you. Well, as I said, you're safe as far as I am concerned. I wouldn't send a dog to the chair. That is—" she looked at him threateningly, "if you really do love Enid and want to marry her."

"Love her? I'd marry her if she had done it herself and I'd caught her red-handed."

"That's the real thing, I guess." She patted his hand approvingly. "I'll do what I can to help you. She's not a bit in love with you yet, but that's because she's the purest creature on earth and never would let herself even dream of a man she couldn't marry. She's one of the last grand representatives of the old Puritan stock—and when you see as much mean and secret infidelity, dose as many morbid hysterical women, as I do—Oh, Lord! No wonder I see Enid Balfame shining with cold radiance in the high heavens. I may idealise her a bit, but I don't care. It would be a sad old world if you couldn't exalt at least one human above the muck-ruck. Well, she likes you, and you have interested her. Just be on hand when she wants you, needs you. When this excitement is over and she is tired of female gabble, she'll turn to you naturally, if you manage her properly and don't butt in too soon. Quiet persistence and tact; that's your game. I'll put in a good word."

"By George, you are a good fellow!" He leaned over and kissed her impulsively. As Dr. Anna felt the pressure of those warm firm lips on her faded cheek, she astonished herself and him by bursting into tears. In an instant, however, she dashed them away and gave an odd gurgling laugh.

"Don't mind a silly old maid—who loves Enid Balfame more than life, I guess. And I'm a country doctor, Dwight, who's had a hard night bringing one more unfortunate female into the world. I feel better since I cried—first time since you boys used to tease me at school because I had cheeks like red pippins—you don't remember me over at school in your village. Renselaerville. I lived there for a spell, and I remember you. But this isn't the time for reminiscences. Where do you live? We'll be in the outskirts in three minutes."

"I have rooms at The Brabant."

"Any night clerk?"

"No; it's an apartment house."

"Good. We're somewhere in the small hours all right."

She drove swiftly through the sleeping town, slowing down on the corner of Main Street and Atlantic Avenue. Rush sprang out with a word of thanks and walked up the avenue to The Brabant. The trees here were neither old nor close, for this was the quarter of the wealthy newcomers and of the older residents that had prospered and rebuilt. But not a soul was abroad, and he let himself into the bachelor apartment house and mounted the two flights to his rooms unseen.

CHAPTER IX

As Rush closed his own door behind him, his troubled spirit shifted its load. Indubitably, if Dr. Anna had not met him he should have walked until exhausted, and then boarded a train somewhere down the line and arrived in Elsinore dishevelled, haggard, altogether an object of suspicion. None knew better than he that in a small community the lightning of suspicion plays incessantly, throwing the faces of innocent and guilty alike into distorted relief. And he had half expected to find a newspaper man awaiting him in the hall below.

Before turning on his lights he felt his way to the windows and drew the curtains close. For all he knew there might be a detective or a reporter sitting on the opposite fence. His legal mind, deeply versed in criminal law, fully appreciated his danger and warned him to arm at every point.

The district attorney, one of Balfame's men, clever, ambitious, but too ill-educated to hope to graduate from Brabant County, or even, political influence lacking, to climb into the first rank at home, hated the brilliant newcomer who had beaten him twice during his brief term of office. That Rush "hailed" originally from the county only added to the grievance. If Brabant wasn't good enough for him in the first place, why hadn't he stayed where he was wanted?

But Rush dismissed him from his mind as he remembered uneasily that Alys Crumley had been sketching out there at the Club while he had been wrestling with David Balfame. He knew her ambition to get a position on a New York newspaper as a sketch artist; but the possibility that she might have guessed the secret of his interest in putting an end to the scene, or intended to sell her drawing to one of the reporters, would have given him little uneasiness had the artist not been a young woman upon whom he had ceased to call some two months since.

He had met Alys Crumley about eighteen months after he had returned to Brabant County and some three months after he had moved from Dobton to

Elsinore, and at once had been attracted by her bright ambitious mind, combined with a real personality and an appearance both smart and artistic.

Miss Crumley prided herself upon being unique in Elsinore, at least, and although her thick well-groomed hair was dressed with classic severity, and she wore soft gowns of an indescribable cut in the house, and at the evening parties of her friends, she was far too astute to depart from the fashion of the moment in the crucial test of street dress and hat. In Park Row during her brief sojourn in the newspaper world, she had commanded attention among the critical press women as a girl who knew how to dress smartly and yet add that personal touch which, when attempted by those lacking genius in dress, ruins the effect of the most extravagant tailor. Miss Crumley by no means patronised these autocrats of Fifth Avenue; she bought her tailored suits at the ready-made establishments, but like many another American girl, she knew how to buy, and above all, how to wear her clothes.

She had taught for several years after graduating from the High School; then, her nerves rebelling, had abandoned this most monotonous of careers for newspaper work. To reporting her physique had not proved equal, and although she would have made an admirable fashion editor these enviable positions were adequately filled. On the advice of the star reporter of her paper, Mr. James Broderick, who, with other newspaper men had been entertained occasionally at tea of a Sunday afternoon in her charming little home in Elsinore, she had developed her talent for drawing during the past year; Mr. Broderick promising to "find her a job" as staff artist when she had improved her technique.

Then Dwight Rush appeared.

Miss Crumley lived with her mother in the family cottage next door to Dr. Anna's in Elsinore Avenue. Mrs. Crumley, who was the relict of a G. A. R. had eked out her pension during the schooldays of her daughter with fine sewing, finding most of her patrons among the newcomers. She also had cooked for the Woman's Exchange of Brooklyn, besides catering for public dinners and evening parties. For several years she enjoyed a complete rest; therefore, when Alys retired temporarily from the office of provider in order to study art, Mrs. Crumley willingly re-entered the industrial field. As both

the practical mother and the clever daughter were amiable women it was a harmonious little household that Dwight Rush found himself drifting toward intimacy with soon after he met the young lady at a clubhouse dance.

The living-room—Alys long since had abolished the word parlour from her vocabulary—was furnished in various shades of green as harmonious as the family temper; there was a low bookcase filled with fashionable literature, English and American; the magazines and reviews on the table were almost blatantly "highbrow," and the cool green walls were further embellished with a few delicate water colours conceived in the back-yard atelier by an individual mind if executed by a still somewhat halting brush.

For four months Rush had been a constant visitor at the cottage. Miss Crumley, who was as progressively modern as an automobile factory, was full of enthusiasm at the moment for the cult of sexless friendship between a man and a maid. She had considered James Broderick at one time as a likely partner for a philosophic romance (the adjective Platonic was out of date; moreover, it implied that the cult was not as modern as its devotees would wish it to appear); but the brilliant (and handsome) young reporter not only was very busy but of a mercurial and uncertain temperament. Nor did he appear to be a youth of lofty ideals; from certain remarks, uttered casually, to make matters worse, Alys was forced to conclude that he despised the man who "wasted his time" only less than he despised the "chaser." If pretty, interesting, and unnotional girls came his way and liked him enough, that was "all to the good"; a busy newspaper man at the beck and call of a city editor had no time for studying over the map of a girl's soul, the lord knew; but if a girl wasn't a "dead game sport," then the sooner a man left the field to some one with more time, or a yearning for matrimony, the better. These remarks had been deliberately thrown out by the canny Mr. Broderick, who liked "the kid" and didn't want her to "get in wrong" (particularly with himself as he enjoyed both her society and the artistic living-room—and Mrs. Crumley's confections) but who saw straight through Alys' shifting modernities to the makings of a fine primitive female.

But Rush was no student in sex psychology. He took Miss Crumley on her face value; delighted in finding a comfortable friend of the counter sex, and was more than amenable to her desire to cultivate in him a taste for modern

literature; since his graduation he had hardly opened anything but law books, legal reviews, and the daily newspaper. She read aloud admirably—particularly plays—and he liked to listen; and as she convinced him that he was missing a good part of life, it was not long before he was buying for leisurely midnight consumption such work of the fashionable writers as was stimulating and intellectual, and at the same time sincere.

She also took him over to several symphony concerts, and often played classic selections to him in the twilight. He had no objection to music, as it either spurred his mind into fresh activity upon problems besetting it, or soothed him into slumber. He loved the little room with the soft green shadows; it reminded him of the woods, of which he still was passionately fond; and he found it both homelike and safe. Other houses in Elsinore, larger and more luxurious, were homelike enough, but too often were graced by marriageable daughters, who "showed their hand." Rush was as little vain and conceited as a man may be, but he was well aware that eligible men in Elsinore were few, and that everybody must know that his intake, already large, must increase with the years.

But—as the wise Mr. Broderick would have predicted had he not been interested elsewhere during this period—the tension grew too strong for Alys Crumley. Nervous and high-strung, with her reservoir of human emotions undepleted by even a hard flirtation since her early youth, idealistic, romantic, and imaginative, she began to realise that with each long uninterrupted evening—Mrs. Crumley was the most tactful of parents—she was growing more femininely sensitive to this man's magnetism and charm, to his quick responsive mind, to the mobility under the surface of his lean hard face, to the suggestion of indomitable strength which was the chief characteristic of the new American race of men.

It was not long before she was exaggerating every attractive attribute he possessed until he no longer seemed what he was, a fine specimen of his type, but a glorified superbeing and the one desirable man on earth. Her sense of superiority over this "rather crude Western specimen who knew nothing but his job," and to whom she could teach so much, had protected her for a time, held her femaleness and imagination in abeyance, but insensibly his sheer masculinity swamped her, left her without a rock but pride to cling to.

It was then that she showed her hand.

For a time after her discovery she was merely furious with herself; she was twenty-six and no weakling, neither sentiment nor passion should master her. But this phase was brief. Infatuation is not cast out either by reason or pride, and very soon her mind opened to the insidious whisper: "Why not?" What was the career of staff artist, full of liberty, excitement, and good fellowship as it might be, to marriage with an ambitious man capable of inspiring the wildest love? Sooner or later had she not intended to make just such a marriage?

From this inception her deductions followed in logical feminine sequence. If she loved him with a completeness which was both preadamic and neoteric, it was of course because he was consumed with a similar passion; in other words he was her mate. He might be too comfortable and content to have realised it so far, but only one awakening was possible, and hers was the entrancing part to reveal him to himself.

She knew that while by no means a beauty, she was as far from commonplace in colouring at least as in style. Her eyes were an odd opaque olive, their tint so pronounced that it seemed to invade the pale ivory of her skin and the smooth masses of her hair. It was a far more subtle face than American women as a rule possess, and the eyes in spite of a curious inscrutability that might mean anything were capable of a play of lights directed from a battery more archaic than modern; and late one evening after she had read him an impassioned drama (ancient) and there was a dusky rose in either cheek, she turned them on.

Rush immediately took fright. She had not roused a responsive spark of passion in him. Moreover, he was now haunted continually by the image of a sweet, remote, and (to him) far more mysterious woman, whom he worshipped as the ideal of all womanhood.

There was none of the old time American suavity about Rush. He was abrupt, forthright, and impatient. But he was kind and innately chivalrous. He "let Miss Crumley down" as gently as he could; but he let her down. No doubt of that. In less than a week she faced the bewildering fact that a man could strike loose a woman's emotional torrents while his own depths awaited the magical touch of another. It was incredible, preposterous.

For a time Alys, in the privacy of her atelier, raged like a fury. She cursed Rush, particularly when engaged in a violent struggle with the pride which alone held her from grovelling at his feet.

She was further incensed that he had revealed her to herself as a mere morbid unsatisfied girl, whose quarter of a century should be crowned by a little family of three; and at last she doubted if she had ever loved him at all. That she had been a mere female principle unable to escape its impersonal destiny disgusted her with life, but it served to restore her balance and philosophy.

Being a girl of brains and character she emerged from the encounter with pride still crested in the eyes of the man; and if his image was too deeply stamped into her imagination to prevent a recurrence of wild desire whenever she was so imprudent as to let her mind wander, she remembered that all great physical upheavals are followed by many minor shocks, and waited with what patience she could command for full delivery.

Of the sanguinary condition of the battle ground in his young friend's soul Rush had a mere glimpse before she took heed and dissembled. He assumed that she either had fallen in love with him after the fashion of girls when they saw too much of a man, or that she was eager to marry and improve her condition. He reproached himself for thoughtlessness, renounced the long evenings in the pretty room with a sigh, and in his bachelor quarters read the books of her choice. He had a very kindly feeling for her, for he knew that he owed her a debt; if he had not met the other woman—who could tell? Moreover, as he conceived it to be his duty to shield her from spiteful comment, he danced with her in public and joined her on the street whenever they met.

But if he knew nothing of the intricate and interminable ramifications of sex psychology, the infinite variety of moods peculiar to a woman in love, he was well enough aware that love is easily turned to hate, particularly when vanity has been deeply wounded; and although he had conceived a high esteem for Alys Crumley's character during the weeks of their intimacy, he knew that men had been mistaken in their estimate of women before this, and that if she discovered that he loved another woman she might be capable of taking the basest revenge.

It was possible that she was the noblest of her sex, and he hoped she was, but as he considered her that night, he realised that it behooved him to walk warily nevertheless. By the time he could marry Enid Balfame, or even betray his desire to marry her, this crime would have passed into county history. Of the real danger he never thought.

The vision evoked of Alys Crumley was accompanied by that of her home, and he looked round his stark bachelor quarters with a sigh.

The untidy sitting-room was crowded with law books and legal reviews; the maid had given it up in despair long since, and only swept out the ashes daily and dusted once a week.

In the small bedroom was an iron bed like a soldier's; neckties hung from the chandelier; on the bureau and table beside the bed were more books, several by the young British authors of the moment for whom Miss Crumley had communicated some of her rather perfunctory enthusiasm.

He flung his clothes all over the room as he undressed. He hated bachelor quarters. Six months hence he would be the master of a home as exquisite as the woman he loved. Balfame! The man was dead, but as Rush thought of him his face turned almost black and his hands tingled and clenched. It would be long before he could hear that name mentioned without a hot uprush of hatred and loathing. But it subsided and he took a bath and "turned in."

CHAPTER X

As Rush walked to the Elks' Club for breakfast a few hours later he felt that suspicion was in the very air of Elsinore, the very leaves of the quiet Sunday streets rustled with it. Even on Atlantic Avenue there were knots of men discussing the murder, and in Main Street every man that passed received a hard stare.

Rush was thankful to observe that all looked as if they had gone to bed late and slept little, and when he met Sam Cummack on the steps of the clubhouse he realised the advantages of the habit of careful grooming to which the deceased's brother-in-law was quite indifferent.

"Oh, Dwight!" groaned Cummack, seizing his hand. "Where were you last night? I'd have liked to have you round."

"I was in Brooklyn and got back late. What's your opinion?"

"I've had a dozen but they don't seem to hold water. I guess it was a gunman, imported direct—though perhaps I'm just hoping it wasn't one of them trollops did it—for the sake of the family as well as poor Dave's name. I don't want a scandal like that. Murder's bad enough, the Lord knows."

"What sort of footsteps in the grounds?"

"Every kind we've got in Elsinore, I guess. About forty people were runnin' round the yard before the police came. Funny that Gifning didn't think of that. But he says the breath was knocked out of him. Jimminy! I never knew anything to upset the town like this before—the county, you might say. The telephone's been buzzin' till the girls have threatened to strike. An operator fainted this morning—wonder if Dave knew her?"

"Well, I am rather surprised to learn that Balfame was so popular—"

"'Tain't that only—though Dave still had lots of friends in spite of that ugly temper he was growin'; but we've all got enemies—every last one of us—and to be shot down at his own gate like that—Gee, it has given every man

in town the creeps. We must get the man quick and make an example of him. I hope I'm drawn."

"I hope he doesn't ask me to defend him. How is Mrs. Balfame bearing up?"

"Fine. She's as cool as they make 'em. I'd hate to be married to one of them cucumbers myself, but they're damned convenient in times of trouble. Maybe she cared a lot for Dave; who knows? At any rate we must make people think she did. I don't want suspicion pointing to her."

"What! It is incredible that you should think of such a thing." Rush, always pale, had turned as white as chalk. "You can't mean that people are saying —"

"Not yet. But we've got to be prepared for anything, especially with these New York newspapermen on the trail. Unless we catch the murderer damned quick, every last one of us that was close to Dave that can't prove an alibi will be suspected. Why, I walked with him for two blocks after he left my house—thought he might not be able to make it alone, and he wouldn't go in the car; then, I didn't go straight home, either. I went to my office to straighten out something—Oh, Lord! don't let's talk of it; I must have been there alone, not a soul to see me, when he was shot. It gives me the horrors to think of it—"

"Nonsense! It was well known that you were his best friend. No one would think of you."

"They might! They might!"

"Well—about Mrs. Balfame?"

"Oh, she's got the best alibi ever. She'd packed his suitcase and carried it downstairs, and even written a note describing some bag or other she wanted and pinned it to his coat. I was there when the police examined it. They're not saying who they're suspectin', but they're doin' a heap of thinkin'. Fact remains that she was alone in the front of the house—that mutt of a hired girl she's got was way up in the back part groanin' with a toothache when I routed her out. If she wasn't such a fright that Dave wouldn't have looked at her—Well, the police know that Dave wasn't what you might call a model husband; but Enid, so far as we all know, never

rowed him. That's the most tryin' sort, though, and generally conceals the most hate. But she had her clubs and all the rest of it. Maybe she didn't care. I'm only wonderin' what Phipps thinks. That's the reason I want her to see the newspapermen. She might throw them off the scent at least. Of course, they'd rather she'd done it than any one—"

"You won't even hint to her that she may be suspected?" interrupted Rush, sharply.

"Oh, Lord, no. I'd never dare. Just persuade her somehow. Guess Anna or Polly can manage it."

Rush turned and walked down the steps. "I'll go to the Elsinore to breakfast. The reporters are likely to show up there. I know Jim Broderick. We must be on the job all the time."

CHAPTER XI

To Dr. Anna alone Mrs. Balfame told the story of the night, although, implicit as was her trust, with certain reservations. She omitted the detail of the poisoned lemonade, but otherwise unburdened herself with freedom and relief.

"Before I knew where I was," she concluded, "there was the kitchen door closed behind me. I can't understand why I lost my presence of mind. I could easily have run through the back door and out the front, and reached him about the time Gifning did."

Dr. Anna was drinking strong coffee. It was eight o'clock, and she had gone downstairs and made breakfast for her friend and herself, Frieda having retired to her room and bolted the door. The doctor had heard the whole story as soon as she arrived, but after an interval of sleep had asked for it again.

"I think it's better as it is," she said thoughtfully. "No one could have seen you. The moon rose late; the night at that time must have been pitch dark. The trees alone would have shielded you, even had any one been watching. Suspicion never would fall on you anyhow; you are too far above it, and Dave had been insulting people right and left the last year. But you want to avoid blackmail. The only thing that disturbs me is that that girl may have been on the back stairs when you came in. I'll come in for lunch and talk to her then. You keep to your room. Rest, and sleep if you can. I don't fancy you'll have early visitors. Everybody'll sleep late. I wish I could!"

"Will you stop in and see Dr. Lequeur about yourself—"

"If I can find a minute. Don't worry about me. I'm tough, and the Lord knows I ought to be immune."

But she found no time to see a doctor in her own behalf and returned to the Balfame house between twelve and one. Reporters were sitting on the box hedge and on the doorstep. She evaded them good-naturedly, but it was

some time before she was admitted by the rebellious Frieda, who had been summoned to the front door some sixteen times during the forenoon.

When Dr. Anna finally found herself in the dark hall she saw that Frieda's face was swollen and tied up in a towel. The spectacle gave the doctor an instant opportunity.

"The worst infliction on earth, bar none!" she announced, following the maid into the kitchen. "Let me take a look at it? How long have you had it?"

"Two days," replied Frieda sullenly, unamenable to sympathy which offered no immediate surcease of pain.

"Abscess?"

"Don't know."

Frieda's mental processes were slow. Before she could follow the doctor's the bandage was ripped off and a sharp eye was examining the inflamed interior of her cavernous mouth. A moment later Dr. Anna had opened her doctor's bag and was anointing the surroundings of the tortured tooth with a brown liquid.

"That won't cure it," she said, "but no dentist could do more until the swelling is reduced. And it will save you a preliminary bill. Keep this. As soon as you feel you can stand it, go to Dr. Meyers, Main Street. Tell him I sent you. But why didn't you tell Mrs. Balfame last night? Why endure pain? Kind mistresses always keep such alleviatives in the house, and Mrs. Balfame is not the sort to mind being roused in the middle of the night if some one were suffering."

The pain had subsided under treatment, and Frieda was restored to such civility as she knew. "It only got bad when I am dancing to the hall, and I ran home. I had some drops in my room."

"Oh, I see. Did they stop the pain?"

"Nix. Ache like before, but I lie down and perhaps can sleep if those men have not make me come downstairs to make the coffee. All night I am up." And she glowered with self-pity.

"But when you found that your drops were no good, why didn't you run at once to Mrs. Balfame? You were braver than I should have been. It was about eight o'clock, was it not, when Mr. Balfame was shot? Mrs. Balfame was probably awake when you came in, even if she had gone to bed. Or perhaps you didn't know that she came home early?"

"On Saturday nights she come home after I do. How I am to know she is here?"

"But you might have gone to her medicine closet—in her bathroom."

"When you have the pain like hot iron you think of all the good things for it the next day." Frieda relapsed into sullen silence; Dr. Anna hastily disposed of the lunch prepared for her and went upstairs.

Mrs. Balfame was lying on the sofa. She had not dressed, but looked as trim as usual in a blue and white bathrobe; never having been a woman to "let herself go," she did not possess a wrapper. Her long hair hung in two loose braids, and she looked very pale and lovely.

"Put Frieda out of your head," said Dr. Anna hurriedly; familiar voices ascended from the path below. "She heard nothing. You don't when you have a jumping toothache."

"Thank heaven!"

A soft knock announced several of her friends. They were dressed for motoring; this being Sunday, not even death must interfere with the cross-country refreshment of the Elsinore husband. They kissed Mrs. Balfame and congratulated her upon her appearance and her nerves.

"But one thing must be settled right here," announced Mrs. Gifning, "and that is the question of your mourning. I'll go over on the eight-ten in the morning and see to it. But you never wear ready-made things and it would be a pity to waste money that way. Are you going to wear a veil at the inquest?"

"Of course I am. Do you suppose I shall submit to being stared at by a curious mob and snapshotted by reporters?"

"That's just what I thought. I'll bring back a smart hat and a long crêpe veil with me, and order your widow's outfit from one of the big shops; they'll have it over in time for the funeral. And you can wear your tailor suit to the inquest; it will be half covered by the veil."

"What a good idea!" said Mrs. Balfame gratefully. "You are too kind."

"Kind? Nothing! I just love to shop for other people. How lucky that you hadn't bought your new winter suit. It might have been blue."

"It was to have been blue." There was a note of regret in Mrs. Balfame's voice. "Don't forget to buy me two black chiffon blouses. One very simple for every day; the other, really good. And something white for the neck. Of course I wouldn't wear it on the street; but in the house—black is too trying!"

"Rather. Trust me. Have you black gloves—undressed kid, I mean? You don't want to look like an undertaker." Mrs. Balfame nodded. "That's all, I think. Send me a line if you think of something else. I must run and take Giffy for his ride. He's all broken up, poor darling. Wasn't he just splendid last night?" She blew a kiss along the widow's forehead and ran out with a light step that caused her more substantial friends to sigh with envy. She, too, was in the manœuvring forties, but she had gone into training at thirty.

"I guess we'd all better go." Mrs. Battle, with a sudden dexterous heave of her armoured bulk, was out of the chair and on her feet. "Now, try to sleep, dearie. You are just the bravest thing! But to-morrow will be trying. Sam Cummack says the coroner won't hold the inquest before afternoon, but if they do and your veil isn't here, I've got one of Ma's packed away in camphor that I'll get out for you. I'll get it out to-night and have it airing—we won't take any chances; and you sha'n't be annoyed by the vulgar curious."

"Oh, thank you! But that is not the only ordeal. It's even more trying to stay in the house all these days—in this room! If I could walk in the grounds. But I suppose those reporters are everywhere."

"They are swarming, simply swarming. And the avenue is so packed with automobiles you can't navigate. People have come from all over the country—some from New York and Brooklyn."

Mrs. Balfame curled her lip with disgust. Morbid curiosity, like other vulgarities, was incomprehensible to her. Death, no matter how desired or how accomplished, should inspire hush and respect, not provide excitement for a Sunday afternoon.

"Let us hope they will find the wretch to-day," she said impatiently. "That will end it, for, of course, it is the element of mystery that has made the case so notorious. Is there no clue?"

"Not the ghost of one." Mrs. Cummack, too, was adjusting her automobile veil. "Sam's on the job,—I'm only taking him out for an hour or two; and so, of course, are the police—hot. But he's covered his tracks so far."

"If it is a he," whispered Mrs. Battle to Mrs. Frew, as they stole softly down the stairs. "What about that red-head, or that telephone girl who fainted? They say she had to go home—"

"Can you imagine caring enough for Dave Balfame—Let's get out of this, for heaven's sake, or I'll faint right here."

The atmosphere was as depressing as the dark interior of the house, for it was heavy laden with the scent of flowers and death. The parlour doors, behind which lay David Balfame, embalmed and serene in his casket, were closed, but hushed whisperings came forth like the rustling of funeral wreaths disturbed by the vapours of decay. The devoted friends of the widow burst out into the sunshine almost with a cry of relief.

Here all was as animated as a county fair. The grounds were void, save by patrolling police, but the avenue and adjoining streets were packed with every type of car from limousine to farmer's runabout, and many more people were afoot, staring at the house, venturing as near the hedge as they dared, to inspect the grove. They asked questions, answered them, offered theories, all in a breath, and without the slightest respect for any opinion save their own. A few children, sucking peppermint sticks, sat on the hedge.

"Did you ever?" murmured Mrs. Frew to Mrs. Battle. "*Did* you ever?" She shuddered with refined disgust, but felt thrilled to her marrow. "Just Enid's luck!" was her auxiliary but silent reflection.

CHAPTER XII

At the inquest on the following day, Mrs. Balfame, circumvested in crêpe, sat between Mr. and Mrs. Cummack, gracefully erect, and without even a nervous flutter of the hands.

When called upon to testify, she told in a clear low voice the meagre story already known to her friends and by this time the common property of Elsinore and all that read the newspapers of the State.

The coroner released her as quickly as possible, and called her servant to the stand. Although the swelling in Frieda's face had subsided somewhat under Dr. Anna's repeated ministrations, the tooth still throbbed; and she also was released after announcing resentfully that she'd seen "notings," heard "notings," and "didn't know notings" about the murder except having to get up and make coffee when she was like to die with the ache in her tooth.

There was no one else to testify, except Cummack, who gave the hour, about a quarter or ten minutes to eight, when the deceased had left his house, and Mr. Gifning and his two guests, who testified to hearing the sound of Balfame's voice raised in song, followed a moment later by the report of a pistol. They also described minutely the position of the body when found. Indubitably the shot had been fired from the grove.

The staff artists were forced to be content with a black sketch of a very long widow, who held her head high and emanated an air of chill repose. One reporter, camera set, forced his way to her side as she was about to enter Mrs. Battle's limousine and begged her plaintively to raise her veil; but he might as well as have addressed a somnambulist; Mrs. Balfame did not even snub him.

"Why should they want a picture of me?" she asked Mrs. Battle, wonderingly. "It's poor Dave that is dead. Whoever heard of me outside of Elsinore?"

"I guess you haven't amused yourself reading the papers. You've been written up as a beauty and the intellectual and social leader of Elsinore. Some distinction, that! The public is mighty interested in you all over the State and will be for several days yet, no doubt. Then we'll find the man and they'll forget all about the whole affair until the trial comes up."

Mrs. Balfame, clad in full weeds, more dignified, stately and unapproachable than ever, ran the gauntlet of staring eyes at the church funeral, apparently unconscious of the immense crowd of women that had driven over from every township in Brabant County. That the women did not approve of her haughty head and tearless eyes, brilliant even behind the heavy crêpe, would have concerned her little if she had known it. Her mind was concentrated upon the future moment when this series of hideous ordeals would be over and she could re-enter the decent seclusion of private life.

Mrs. Balfame may have had her faults, but a vulgar complaisance to publicity was not among them.

She had also made up her mind sternly not to feel happy, not to rejoice in her freedom, not to make a plan for the future until her husband was in his grave. But all during that long service, while the new parson discoursed unctuously upon the virtues and eminence of the slain, she had the sensation of holding her breath.

It was four days from the night of the murder before she consented to see the reporters. Meanwhile every suspected person had proved an alibi, including the red-haired Miss Foxie Bell, and the indignant and highly respectable Miss Mamie Russ, who officiated at the telephone. She had known the deceased, yes, and once or twice she had driven out to one of the roadhouses with him, where a number of her friends were indulging in a quiet Sunday afternoon tango, but she had merely looked upon him as a kind fatherly sort of person; and at the hour of his death she was asleep, as her landlady could testify.

Old Dutch had indignantly repudiated the charge of employing gunmen, and had even attended the funeral and shed tears. Whatever the faults of the deceased, they were not of a nature to antagonise permanently the erring members of his own sex. Moreover, he had been an able politician,

respected of his enemies, and was now glorified by his cowardly and untimely taking off.

The local police had an uneasy suspicion that the assassin was one of their "pals"—in that small and democratic community, where every man was an Elk from the banker to the undertaker. They were quite ready to drop the case, loudly ascribing the deed to an ordinary housebreaker, or to some unknown enemy from out the impenetrable rabbit warrens of New York City.

The newspaper men were chagrined and desperate. The Balfame Case had proved uncommonly magnetic to the New York public. They had done their best to create this interest, and now were on their mettle to "make good." But they were beginning to wish they had waited for at least a lantern's ray at the end of the dark perspective before exciting the public with descriptions of the winding picturesque old street of the ancient village of Elsinore; the stately old-time residence at its head which had housed (in more or less discomfort) three generations of Balfames, the sinister grove of trees that had sheltered the dastardly assassin, the prominence and political importance of David Balfame who had inherited this ancestral estate, and played among those trees in childhood; his unsuspecting and vocal return at an early hour to be shot down at his own gate.

All this appealed acutely to a public which makes the fortune of the sentimental play, the "crook" play, and the "play with a punch and a mystery." Here was the real thing, as rural as the childhood of many of the Greater New York public—weary of black-hand murders and anarchist bombs—with a mystery as deep as any ever invented by their favourite authors, and in no remote district but at their very gates.

If anything more were necessary to rivet their interest, there was the handsome and elegant (if provincial) Mrs. Balfame, as austere as a Roman matron, as chaste as Diana, as decently invisible in public during this harrowing ordeal as imported crêpe could make her. The men reporters had dismissed the widow with a paragraph of personal description, but the newspaper women had filled half a page in each of the evening journals.

The press had given the public at least two columns a day of the Balfame murder; there had been a biography of every suspect in turn, and there had

been the thrilling episode of the bloodhounds turned loose upon that trampled enclosure. But no road led anywhere, and the public, baffled for the moment, but still hopeful, demanded an interview with the interesting widow.

Of course, her alibi was perfect, but all felt sure that she "knew something about it." Her unhappy married life was now common property, and if it only could be proved that she had had a lover—but the newspapers as has been said were discouraging upon this point. Mrs. Balfame (quoting the young men this time), while amiable and kind to all, was cold and indifferent. Men were afraid of her. The New York detectives had "fine-tooth-combed" Brabant County and reported disgustedly to their chief that she was "just one of those club women; no use for men at all."

The reporters, however, had made up their minds to fix the crime, if possible, upon her. They would have compromised upon the young servant, but Frieda, especially with her face framed in a towel stained brown, and her eyes swollen above the wrenching agonies of an ulcerated tooth, was hopeless material. Moreover, they were convinced, after thorough investigation, that the deceased's gallantries, while sufficiently catholic, had not run to serving maids, and that of late particularly he had loudly hated all things German.

Regarding Mrs. Balfame they held their judgment in reserve until they met and talked with her; but Broderick had extracted the miserable details of her life from his friend, Alys Crumley, as well as a lively description of the scene at the Country Club; they believed they could bring to light enough to base a sensational trial upon, whatever the verdict of the jury.

It must not be inferred for a moment that these brilliant and industrious young men were bloodthirsty. They knew that if Mrs. Balfame had committed the crime and could be induced to make a defiant confession, it was more than probable that she would go scot free; that in no case was there more than a bare possibility of a woman of her age, position and appearance being sent to the chair. But it is these alert, resourceful, ruthless young men who make the newspapers we read with such interest twice a day; it is they who write the columns of "news" that we skip if dull (with a mental reservation to change our newspaper), or devour without a thought

of the tireless individual activities that re-supply us daily with our strongest impersonal interests. Sometimes a trifle more sparkle or vitality, or a deeper note, will wring from us that facile comment, "How well written!" without a pause to reflect that mere good writing never made a newspaper, or to hazard a guess that behind the column that thrilled us were hours, perhaps weeks, of incessant unravelling of clues, of following a scent in the dark, with death at every turn. It is the business of reporters to furnish news of vital interest to a pampered public, and as so large a part of it is furnished to them by the weaknesses and misdeeds of mankind, what wonder that the reporters grow cynical and make no bones about providing clues that will lead, at the least, to many columns charged with suspense and sensational human interest!

These young men knew the moment the Balfame case "broke" that it was big with possibilities; they scented a mystery that would be cleared by the arrest of no local politician; and they knew the interlocking social relationships of these loyal old communities. It was "up to them" to solve the mystery, and by a process of elimination, spurred by their own desire to give the public the best the market afforded, they arrived at Mrs. Balfame.

Within forty-eight hours they were hot on her trail. Among other things, they discovered that she was an expert shot at a target; but did she keep a pistol in the house? She had used one, kept for target purpose, out at the Country Club, and it was impossible to verify the rumor that in common with many another, she had one in the house as a protection against burglars and tramps.

At their instigation, Phipps, the local chief of police, had reluctantly consented to interrogate her on this point (a mere matter of form, he assured her), and she had replied blandly that she never had possessed a pistol. The chief apologised and withdrew. He was of a respectable Brabant family himself, and was horrified that a member of the good old order should even be brushed by the wing of suspicion. Being a quiet family man and a Republican to boot, he had never approved of Dave Balfame, and had only refrained from arresting him upon more than one occasion—notably a week or two since when he had publicly blacked the eye of Miss Billy Gump—out of deference to the good name of Elsinore; and after all, they were both Elks and had spun many a yarn in the comfortable clubrooms. Inheritance,

circumstances, and a fine common contempt for the inferior brands of whiskey, had made them "stand in together, whatever happened." The chief had no love for Mrs. Balfame, for she had frozen him too often, but she was the pride of Elsinore and he was alert to defend her.

It had never occurred to Mrs. Balfame that she would incur even a passing suspicion, and she had left the pistol in the pocket of her automobile coat. Immediately after the visit of the chief of police she took the pistol into the sewing-room, locked the door, covered the keyhole, and buried the weapon in the depths of an old sofa. As her large strong fingers had mended furniture many times, no one would suspect that this ancient piece (dating back to the first Balfame) had been tampered with. She performed the operation with haughty reluctance, but the instinct of self-preservation abides in the proudest souls, and Mrs. Balfame had the wit to realise that it was by far the better part of valour.

The shooting occurred on Saturday night. By Wednesday all the horrors of the criminal episode were over and she felt as young as she looked, and at liberty to begin life again, a free and happy woman. Her mourning was perfect.

She made up her mind to see the newspaper men and have done with it. They had haunted the grounds—no patrols could keep them out—sat on the doorstep, forced their way into the kitchen, and rung the front door-bell so frequently that hourly she expected the scowling Frieda to give notice. Mr. Cummack told her repeatedly that she might as well give in first as last and she finally agreed with him.

It was five o'clock in the afternoon when they were admitted to the spacious old-fashioned parlour with its incongruous modern notes.

Like many women, Mrs. Balfame had an admirable taste in dress, so long as she marched with the conventions, but neither the imagination nor the training to create the notable room. Long since she had banished the old "body brussels" carpet and substituted rugs subdued in colour if commonplace in design. The plush "set" had not gone to the auction room, however, but had been reupholstered with a serviceable "tapestry covering." A what-not still stood in one corner, and both centre-table and mantel were covered with marble, although the wax works that once embellished them

were now in the garret. The wall paper, which had been put on the year before, was a neutral pale brown. Nevertheless, it was a homelike room, for there were two rocking-chairs and three easy chairs; and on a small side-table was Mrs. Balfame's workbasket. On the marble centre-table was a most artistic lamp. The curtains matched the furniture.

There were ten reporters from New York, two from Brooklyn, three from Brabant County, and four correspondents. Word had been passed during the morning that Mrs. Balfame would see the newspaper men, and they were there in force; those that were not "on the job all the time" having loyally been notified by those that were. But they had stolen a march on the women. Not a "sob-sister" was in that intent file, led by James Broderick of *The New York Morning News*, that entered the Balfame house and parlour on Wednesday at five o'clock.

Frieda had announced that her mistress would be "down soon," and Mr. Broderick immediately drew the curtains back from the four long windows, and placed a comfortable chair for Mrs. Balfame in a position where she would face both the light and her visitors. It was not the first stage that the astute Mr. Broderick had set; and whenever he was on a case he fell naturally into the position of leader; not only had he the most alert and driving, the most resourceful and penetrative mind, but his good looks and suave manner inspired confidence in the victim, and led him insensibly into damaging admissions. He was a tall slim young man, a graduate of Princeton, not yet thirty, with a regular face and warm colouring, and an expression so pleasant that the keenness of his eyes passed unnoted. In general equipment and dress he was typical of his kind, unless they took to drink and grew slovenly; but his more emphatic endowment enabled him to take the lead among a class of men whom he respected too thoroughly to antagonise with arrogance.

"Late—to make an impression!" he growled, but young Ryder Bruce of the evening edition of his paper nudged him. Mrs. Balfame was on the staircase opposite the parlour doors.

The young men stood up and watched her as she slowly descended, her black dress clinging to her tall rather rigid figure, her head high, her profile

as calm as marble, her eye as devoid of expression as if awaiting the click of the camera.

The reporters were prejudiced on the spot, so impatient are newspaper men of any sort of pose or attempt to impress them. As she entered the room she greeted them pleasantly, looking straight at them with her large cold eyes, and allowed herself to be conducted to a chair by the polite Mr. Broderick.

She knew that in her high unrelieved black she looked older than common, but this was a deliberately calculated effect. She was not as adroit as she would have been after recurrent experiences with the press, but instinct warned her to look the dignified middle-aged widow, quite above the coquetry of the bare throat of fashion, or of tempering her weeds with soft white lawn.

As Mr. Broderick made a little speech of gratitude for her gracious reception of the press, she appraised her guests. The greater number were well-groomed, well-dressed, well-bred in effect, very sure of themselves; altogether a striking contrast to the local reporters that had come in on their heels.

She answered Mr. Broderick diffidently: "I have never been interviewed. I am afraid you will hardly find—what do you call it?—a story?—in me."

"We don't wish to be too personal," he said gently, "but the public is tremendously interested in this case, and more particularly in you. It isn't always that it takes an interest in the wife of a murdered man—but—well, you see, you are such a personality in this community. We really must have an interesting interview." He smiled at her with a charming expression of masculine indulgence that made her own eyes soften. "You see—don't you—we hate to intrude—but—we understand that you had a serious quarrel with your husband on the last day of his life. Would you mind telling us what you did after leaving the Country Club?"

She gave him a frozen stare, but recalled Mr. Cummack's warning not to take offence—"for remember that these men have their living to get, and if they fall down on their job they don't get it. Blame their paper, not them."

"That is a surprising question," she said sweetly. "Do you expect me to answer it?"

"Why not? Of course you read the newspapers. You know we have told the public of the scene at the clubhouse already—and with no detriment to you! It was a very dramatic scene, and every moment that you passed from that time until Mr. Balfame fell at his gate will be of the most absorbing interest to the public. In fact, they will eat it up."

Mrs. Balfame shrugged her shoulders. "As a matter of fact I have not read a newspaper since the—" She set her lips and her eyes grew hard—"the crime. I know you have written a great deal about it, but it hasn't interested me. Well—Dr. Anna Steuer drove me home, and shortly after I went up to my room—"

"Pardon me; let us take things in their turn. You took a box of sardines and some bread from the pantry, did you not?"

"I did." Mrs. Balfame's tones were both puzzled and bored.

"And then you were interrupted." As she raised her eyebrows, he continued. "The appearance of the sardine can indicated that."

She gave him a brilliant smile, her substitute for the average woman's merry laugh. "You are teaching me how they write those intricate detective tales my husband was so fond of. It is true that I was interrupted, but it is equally true that I should probably have left the can as you found it in any case, for I soon realised that I was not hungry. I had had sandwiches at the club, and although I always think it best to eat something before retiring, I was hardly hungry enough for sardines—"

"You ate sandwiches at the club? I have been out there once or twice and never saw—I was under the impression that during the afternoon the young people danced and the matrons played bridge before an early dinner."

"Did you?" Mrs. Balfame's eyes and tones abashed even Mr. Broderick, and he tacked hastily: "Oh, well, that is immaterial, as the lawyers say. And of course you ladies may have sandwiches served in the bridge rooms. May I ask what interrupted you?"

"My husband telephoned from Mr. Cummack's house that he was obliged to go to Albany at once and asked me to pack his suitcase."

"Yes, we have seen the suitcase. You suggested, did you not—over the telephone—making him a glass of lemonade with aromatic and bromide in it?"

Mrs. Balfame experienced an obscure thrill of alarm, but her haughty stare betrayed nothing. One of the reporters whose "job" it was to watch her hands, noted that they curved rigidly. "And may I ask how you found *that* out? Really, I think I feel even more curiosity than you do."

"He told it to Cummack and the other men present as a good joke, adding that you knew your business."

"I did. The matter had passed entirely out of my mind. More momentous things have happened since! Well—I made the glass of lemonade and left it on the dining-room table; then I went upstairs and packed his suitcase—"

"One moment. What became of that glass of lemonade? No one remembers having seen it, although I have made very particular inquiries."

Mrs. Balfame by this time was quite cold, but her brain was working almost as quickly as Mr. Broderick's. She uncurved her fingers and smiled. But her keen brain-sword had one edge only; the other was dull with inexperience. She knew nothing of the vast practice of newspaper men in detecting the lie.

"Oh—I drank it myself." She had drawn her brows for a moment as if in an effort of memory. "When I heard the noise outside—when I heard them say 'coroner'—and realised that something dreadful had happened, I ran downstairs. Then I suddenly felt faint and remembered the lemonade with the aromatic spirits of ammonia and bromide in it. I ran into the dining-room and drank it—fortunately!"

"And what became of the glass?"

"Oh!" Mrs. Balfame was now righteously indignant. "How do I know? Or any one else? Frieda, soon after, began to make coffee by the quart—and I don't doubt whisky was brought round from the Elks. Who could have noticed a glass more or less?"

"Frieda swears she never saw it."

"She has the worst memory of any servant I ever had, and that is saying a good deal."

Mr. Broderick regarded her with admiration. He distrusted her more every moment, but he had realised at once that he had no ordinary woman to deal with, and he rejoiced in the clash of wits.

The other young men were sitting forward, almost breathless, and Mrs. Balfame was now fully alive to the danger of her position. But all sensation of fear had left her. All the iron in her nature fused in the crucible of those terrible moments and came forth finely tempered steel.

"Anything more?"

"Oh—ah—yes. Would you mind telling us what you did after you had packed the suitcase and brought it downstairs?"

"I went up to my room and began to undress for bed."

"But that must have been quite fifteen minutes before Mr. Balfame's return. He walked from Cummack's house, which is about a mile from here. It was noticed that you merely had taken your dress off. Would you not have had time to get into bed?"

"If I were a man. But I had my hair to brush—with fifty strokes; and—a little nightly massage, if you will have it. Besides, I had intended to go down and lock the front door after my husband had left."

"Ah!" The admiration of the young men mounted higher. They disliked her coldly, if only for that lack of sex-magnetism, which men, particularly young men, naïve in their extensive surface psychology, take as a personal affront. They did not believe a word she said, and they did not give her and her possible fate a throb of sympathy, but they generously pronounced her "a wonder."

Mr. Broderick took a chance shot. "And did you not during that time look out of the window—toward the grove?"

Mrs. Balfame hesitated the fraction of a minute, then wisely returned to her know-nothing policy. "Why should I? Certainly not. I heard no sound out

there. I am not in the habit of examining the grounds from my window at night. It is enough to go through the lower rooms before I lock up."

"But your window was dark when the men ran over from Gifning's after hearing the shot. They remember that. Do you brush your hair—and—and massage in the dark?"

Mrs. Balfame sat back in her chair with the resigned air of the victim who expects an interview with inquisitive newspaper men to last all night. "No. But I sometimes sit in the dark. I told you that I intended to sit up—partly dressed—until my husband had gone. I did not feel like reading, and my eyes were tired. As you know so much, you may have guessed that I cried a little after that trying afternoon. I do not often cry, and my eyes stung."

"But you had forgiven your husband?"

"I had forgiven him many times before. I infer that you know that also."

"Mrs. Balfame, is it not true that about two years ago you contemplated obtaining a divorce?"

This time her eyes flashed with anger. "I see that my kind friends have been gossiping. You would seem to have interviewed everybody in town."

"Pretty nearly. But you don't seem to realise that Elsinore—Brabant County, for that matter—has talked of nothing else but this case for the last four days."

"I did think of a divorce for a short time, but I never mentioned it to him, and as soon as I thought it all out I dismissed the idea. In the first place, divorce is against the principles of the school in which I was brought up, and in the second Mr. Balfame was a good husband in his way. Every woman has some sort of a heavy cross to bear, and I guess mine was lighter than most. The trouble is, we American women expect too much. I dismissed the subject so completely from my mind that I had practically forgotten it."

"Ah—yes—we thought you might have seen some one lurking in the grove and gone down to investigate." This was another chance shot. He was hoping for a "lead."

Mrs. Balfame thought him inspired.

For the moment the cold brilliant eyes of the woman and the keen contracted eyes of the reporter met and clashed. Then Mrs. Balfame displayed her teeth in her sweet and charming smile. "What a truly masculine inference. You don't know me. If I had seen anything I should have flown to the telephone and called the police."

"You look indomitable," murmured Mr. Broderick. "But will you tell us how it happened that you did not hear the shot? The men down at Gifning's did."

"They were standing on the porch, and I think now that I did hear the shot. But my windows were closed. I hear tires burst constantly. And that was Saturday night. The machines turn off just below our gate into Dawbarn Street, especially if they are bound for Beryl Myrtle's road house."

"True." Broderick leaned forward, staring at the carpet. He permitted the silence to last quite a minute. Even Mrs. Balfame, who had congratulated herself that the inquisition must be nearly over, stirred uneasily, so sinister was that silence.

The other men knew the Broderick method too well to spoil one of his designs; they sat in expectant stillness and turned upon Mrs. Balfame a battery of eyes.

Suddenly Broderick raised his head and his sharp boring gaze darted into hers. "I had not fully intended to tell you of a discovery made by one of us yesterday. We have told no one as yet—waiting for just the right moment to publish it. But I think I'll tell you. There is evidence that two revolvers were fired that night. One killed David Balfame, and a bullet from the other penetrated the tree before the house and slightly to the right of where he must have stood for a moment. Bruce here dug it out. Now, not only did the men at Gifning's not hear two shots—indicating that they were fired simultaneously—but one bullet came from a .38 and the other from a .41."

Mrs. Balfame stood up. "Really, gentlemen, I did not consent to see you in order to help you solve riddles. But possibly you know better than I that gunmen generally travel in pairs. I am convinced that my husband—" (they applauded her for not saying "my poor husband") "was killed by one of

those creatures, hired by his political enemies. Unless I can tell you something more of interest—if, indeed, you have found anything to interest the great New York public in this interview—I will ask you to excuse me."

The young men were politely on their feet. "And you have no pistol—nor ever had?"

She laughed outright. "Are you trying to fasten the crime on me?"

"Oh, no, indeed. Only, in a case like this, one leaves no stone unturned—I hope you do not think we are rude."

"I only just realise that quite the most polite young men I have ever met have been hoping to make me incriminate myself. If I had not been so dense I should have dismissed you long since. Good night."

And, once more looking human in her just indignation, she lifted her proud head and swept out of the room.

The young men left the house and adjourned to a private room in the rear of their favourite saloon. For twenty minutes they rehearsed the interview carefully, those that had taken notes correcting any lapses of memory on the part of those that had elected to watch as well as listen.

Broderick and many of the men were firmly of the opinion that Mrs. Balfame had committed the crime; others believed that she was shielding some one else; the less experienced were equally positive that no guilty woman taken off her guard repeatedly, as she had been, could "put it over" like that. She had "talked and acted like an innocent woman."

"She acted, all right," said Broderick. "I for one am convinced that she did it. But whether she did or didn't, she's got to be indicted and tried. This case, boys, is too big to throw away—too damned big; and she's already a personality to the public. She's the only one we have the ghost of a chance with; the only one whose arrest and trial would keep the interest going—"

"But say!" It was the youngest reporter that interrupted. "I call it lowdown to fasten a crime on a possibly innocent woman—a lady—keep her in jail for months; try her for murder! Why, even if she were acquitted, she would carry the stigma through life."

"Don't get sentimental, sonny," said Broderick patiently. "Sentiment is to the vanquished in this game. When you've been it as long as the rest of us you'll know that in nine cases out of ten the real solution of any mystery is the simplest. Balfame drank. He had a violent temper when drunk. He was a dog at best. She must have hated him. Look at her. We have reason to believe that she did hate him and that her friends knew it. She thought of divorce two years ago. Gave it up because she was afraid of losing her leadership in this provincial hole. Look at her. She is as proud as Lucifer. And as hard as nails. There had been an ugly scene at the club that afternoon. He mortified her publicly. She was so overcome she had to leave. I've a hunch she poisoned that lemonade and got it out of the way in time. She's the sort that would think of nearly everything. Not quite, of course. Otherwise she would never have invented on the spur of the moment that story about drinking it herself; she'd have had the assumption on tap that one of the neighbours had drunk it. That complication, however, is yet to prove. It merely points a finger at her—straight; what we've got to prove and prove quick is that she was out of doors when that shot was fired—"

"Would you like to see her in the chair?" gasped young Loring.

"Good Lord, no. Not the least danger. Women of that sort don't go to the chair. If she even got a term, I'd head a petition to let her out, for she's a dead game sport, and I'm only after good front page stuff." He turned to Ryder Bruce of the evening edition of his newspaper. "You make love to that German hired girl. She hates us all, for we represent the real American press—that hasn't a hyphen in it. I sensed that. And I don't believe she's all the fool she looks. I believe she can tell something—few servants that can't—and that she only pretended at the inquest that she knew nothing because she was nearly dead with pain and wanted it over. Well, she had the tooth out this morning, and at least she isn't quite as hideous as she was; so go to it, old boy. Get 'round her and do it quick. Use money if necessary. There's not a day to lose. Find out what she wants most—probably it's to send her sweetheart at the front something more substantial than mitts and bands. Got me?"

"I get you," said young Bruce gloomily. "You've picked me out because I'm blond and round faced and can pass myself off as a German. I wish I'd been born an Italian. Nice job, making love to *that*. But I'll do it."

"Good boy. Well, s'long. I'm off on a trail of my own. I'll report later. May be nothing in it."

CHAPTER XIII

Broderick walked slowly toward Elsinore Avenue, sounding his memory for certain fugitive impressions, his active mind at the same time casting about for the current which would connect them.

He looked at his watch. He was to dine with the Crumleys at seven and it lacked but ten minutes of the hour; nevertheless he walked more slowly still, his eyes staring at the ground, his brow channeled.

On Sunday afternoon he had spent two hours with Alys Crumley. At first she had been reluctant to talk of any but the salient phases of the murder, but being appealed to as a "good old pal" and reminded that real newspaper people stood together, she finally had described the scene at the Country Club on the afternoon preceding Balfame's death, and shown him the drawing she had had the superior presence of mind to make. Broderick had examined every detail of that rapid but demonstrative sketch: the burly form at the head of the room, his condition indicated by an angle of the shoulders and a deft exaggeration of feature which recalled the facile art of the cartoonist; the strained forms of the men surrounding him; Mrs. Balfame heading down the room, her face set and terrible; the groups of women and girls in attitudes expressive of alarm or disgust.

But when he made as if to put the sketch in his pocket she had snatched it from him, and he merely had shrugged his shoulders, confident that he could induce her to give it up should he really need it.

He had questioned her regarding the scene until its outlines were as firm in his mind as in her own. But there had been something else—some impression, not obviously linked with the case: It was for that impression that he sounded his admirable memory; and in a moment he found it and stopped with a smothered exclamation.

He had complimented her on the excellent likeness of Dwight Rush, whom he knew and liked, and remarked quite naturally that he might have sat for

her a number of times. The dusky pink had mounted to her hair, but she had replied carelessly that Rush was "a common enough type."

Possibly Broderick would have forgotten the blush had it not have been for the swift change of expression in her eyes: a certain fear followed by a concentrated renitence; and at the same moment he had remembered that he had met Rush once or twice at the Crumleys' during the summer and thought him quite the favoured guest.

Driven only by a mild personal curiosity, he had asked her how she liked Rush and if she saw much of him; he recalled that she had answered with an elaboration of indifference that she hadn't seen him for ages and took no interest in him whatever.

Then Broderick had drawn her on to talk of Mrs. Balfame. Yes, in common with all Elsinore that counted, she admired Mrs. Balfame, although she believed that no one really knew her, that she unconsciously lived among the surfaces of her nature. Her face as she marched down the clubroom that day, and its curious sudden transformation on that other day at the Friday Club when her thoughts so plainly had drifted far from the platitudinous speakers, indicated to Miss Crumley's temperamental mind "depths and possibly tragic possibilities."

It was patent to Mr. Broderick's own mind that her suspicions had not lighted for a moment on the dead man's widow, but it also transpired in the course of the conversation that the young artist who had so "loved to sketch" the Star of Elsinore had suffered a long drop in personal enthusiasm. Pressed astutely, she had remarked that she guessed she was as broad-minded as anybody, especially since her year on the New York press, but she did not approve of married women claiming a right to share in the Great Game designed by Nature for the young of both sexes.

Then the story came out: Miss Crumley, afflicted with a headache something over a fortnight since, and enjoying the cool night air just behind her front gate, had seen Mrs. Balfame come out of Dr. Steuer's garden next door and meet Dwight Rush face to face. He had begged to be allowed to see her home.

Mrs. Balfame had lovely manners, she couldn't help being sweet unless she disliked a person, and no woman will elect to walk up a long dark avenue alone if a man offer to escort her.

Alys would have thought nothing of it—merely assumed that Rush, being a comparative newcomer, had caught at the chance to make a favourable impression on the leader of Elsinore society—(no, he was no snob, but that idea just came to her), if they had not crawled, yes, *crawled* all the way up the avenue.

Both were vigorous people with long legs; they could have covered the distance to the Balfame place in three minutes. They had been more than ten, and as they passed under the successive lamp posts she had noted the man's bent head, the woman's tilted back—as she gazed up into his eyes, no doubt.

"In this town," Miss Crumley had announced, "a woman is fast or she isn't. You know just where you are. There's a class that's sly about it, but somehow you get 'on' in time. Mrs. Balfame has stood for the highest and best. Mind you, I'm not saying that she ever saw Rush alone again, or cared a snap of her finger for him—or he for her. No doubt she felt, when the rare chance offered of taking a little flyer, that it was too good to miss. But she shouldn't have done it; that's the point. I don't like my idols to have feet of clay."

Broderick had felt both sympathetic and amused. He knew that Alys Crumley was not only sweet of temper and frank, if not candid, but that in spite of all her desperate modernism she cherished high ideals of conduct; and here she was turning loose the cat that skulks somewhere in every commonplace female's nature.

But the whole conversation had left his mind promptly. He had attached no significance whatever to a ten minutes' walk between a polite man and a woman returning alone from a friend's house on a dark night.

Now every word of the conversation came back to him. Rush, he gathered, had gone to the Crumley house several times a week for a while, and then, for reasons known only to himself and Alys, had ceased his visits abruptly. Had she fallen in love with him? Or was it only her vanity that was

wounded? And if Rush had dropped a girl as pretty and bright and winning as Alys Crumley—who improved upon acquaintance, moreover—what was the reason? Why had he not fallen in love with her? Had he loved some one else?

Broderick swung his mind to the morning following the murder, when he had met Rush in the hall of the Elsinore Hotel. The lawyer professed himself as delighted to "run up against him" and invited him to breakfast. All this had been natural enough, and it was equally natural that the conversation should have but one theme.

Once more Broderick sought a fugitive impression and found it. Rush, who was a master of words when verbal exactness was imperative, had created an impression in his companion's mind of the impeccability of the murdered man's widow.

Broderick had wondered once or twice since whence came that mental picture of Mrs. Balfame that rose clear-cut in his memory, in spite of his deliberate conviction of her guilt. Other people had raved about her and made no impression upon the young reporter's selective and somewhat cynical mind; but Rush had almost accomplished his purpose!

Why had he sought to accomplish it?

Broderick had known Rush in and out of court for nearly two years. Whenever he had been on an assignment in that part of Brabant County he had made a point of seeking him out, and even of spending an evening with him if he could afford the time. He liked the unique blend of East and West in the man; to Broderick's keen appraising mind Rush reflected the very best of the two great rival bisections of the nation. He liked the mixture of frankness and subtlety, of simple unquestioning patriotism—of assumption that no country but the United States of America mattered in the very least—and the intense concentrated individualism. Of hard-headed American determination to "get there" at any honourable cost, of jealously hidden romanticism.

Broderick was almost at the Crumley gate. He halted for a moment under the dark maples and glanced up the long shadowy avenue, his own narrower and still more jealously guarded "romantic streak" appreciating the

possibilities on a dusky evening with a girl whose face floated for a moment before him. But he banished her promptly, searching his memory for some salient trait in Rush that he instinctively knew would establish the current he desired.

He found it after a moment of intense concentration. Rush was the sort of man that loves not woman but a woman. His very friendship for Alys Crumley was evidence that he cared nothing for girls as girls. Only the exceptional drew him, and mere youth left him unmoved.

Knowing Rush as he did, he felt his way rapidly toward the facts. Alys, woman-like, had succumbed to propinquity, and betrayed herself; Rush, finding his mere masculine loneliness misinterpreted, and being honourable to boot, had promptly withdrawn.

But why? Alys would have made him a delightful and useful wife. She was one of those too clever girls whom celibacy made neurotic and uncertain, but out of whom matrimony and maternity knocked all the nonsense at once and finally. She would make a splendid woman.

He should have thought her just the girl to allure Rush, whom he also knew to be fastidious and to set a high value on the good old Brabant blood. Moreover, it was time that Rush would be wanting the permanent companionship of a woman, a bright, progressive, but feminine woman. He had observed certain signs.

Alys, apparently, had not measured up to Rush's secret ideal of the wholly desirable woman, nor appealed to that throbbing vein of romanticism which he had striven to bury beneath the dusty tomes of the law. What sort of woman, then, could satisfy all he desired? And had he found her?

Broderick recalled a certain knightly exaltation in Rush's blue eyes which had come and gone as they discussed Mrs. Balfame, although not a word of the adroit concept he had built remained in the reporter's memory. But those eyes came back to Broderick there in the dark—the eyes of a man young and ardent like himself—he almost fancied he had seen the woman's image in them.

He revived his impression of Mrs. Balfame, seen for the first time to-day, and contemplated it impersonally: A beautiful, a fascinating woman—to a

man of Rush's limited experience and idealism; fastidious, proud, gracious, supremely poised.

Nor did she look a day over thirty, although she must be a good bit more—he recalled the obituaries of the dead man: they had alluded to his marital accomplishment as covering a term of some twenty years. Perhaps she was his second wife—but no—nor did it matter. Rush was just the sort of chap to fall in love with a woman older than himself, if she were still young in appearance and as chastely lovely, as unapproachable, as Mrs. Balfame. He would idealise her very years, contrast them with that vague suggestion of virginity that Broderick recalled, of deep untroubled tides.

All romantic men believe in women's unfathomed depths when in love, reflected the star reporter cynically, and Mrs. Balfame was just the sort to go until forty before having the smashing love affair of her life; and to inspire a similar passion in a hard-working idealist like Dwight Rush.

Mrs. Balfame and Dwight Rush! Broderick, who now stood quite still, a few paces from the Crumley gate, whistled.

Could Rush have fired that shot? Broderick recalled that the lawyer had mentioned having spent Saturday evening in Brooklyn—on business.

Broderick shook his head vigorously. So far as he was concerned, Rush never should be asked to produce his alibi. He did not believe that Rush had done it, did not propose to harbour the suggestion for a moment. Rush was not the man to commit a cowardly murder, not even for a woman. If he had wanted to kill the man he would have involved himself in an election row, forced the bully to draw his gun, and then got in his own fire double quick. Standards were standards.

Broderick was more convinced than ever that Mrs. Balfame had committed the deed, and he had established the current. His work was "cut out" for the evening; and without further delay he presented himself at the Widow Crumley's door.

CHAPTER XIV

Supper was over and Broderick and Miss Crumley sat in the back yard studio; Mrs. Crumley had company of her own, and as Alys decried the vulgarity of the legendary American daughter's attitude to the poor-spirited American mother, she invariably retired to the background whenever it would enhance Mrs. Crumley's self-respect to occupy not only the foreground but (if her daughter had an interesting visitor) the entire stage. Alys, since her humiliating failure with Dwight Rush, clung the more passionately to her rules of conduct. They were not red with the blood of life, but at least they served as an anchored buoy.

The atelier was hung with olive green burlap and covered with an artistic litter of sketches. Broderick, before settling himself into a comfortable chair by the stove, examined the more recent and encouraged her with a few words of discriminating praise.

"Keep it up, Alicia. The *News* for you next month if you are ready for a job. You've improved marvellously in figures, which was where you were weak. Miss Loys, our fashion artist, is marrying next month. You might as well begin with that. You'll be on the paper and can jump into something better when it offers."

Alys nodded emphatically. "Give me work, and as soon as possible. I don't care much what it is. But I want work and plenty of it. It isn't only that I want to use my energies, but I've spent all I can afford on lessons and the rest of it."

"I'll see to it. Your sort doesn't go begging."

Broderick clipped his cigar and watched her thin profile for a moment without speaking.

He noticed for the first time that she had lost the little flesh that formerly had covered her small bones, and that the pink stained the pale ivory of her cheeks only when conversation excited her. But if anything she was prettier

—no, more attractive—than ever, for there was more depth in her face, which in spite of its subtle suggestions, had seemed to his critical masculine taste to be too eager, too prone to pour out her personality without reserve when the brain lighted up. Now there was a slight droop of the eyelids which might mean fatigue, but gave length and mystery to the strange olive eyes. Her pink mouth, with its short upper lip, was too small for his taste, but the modelling of her features in general seemed to him more cleanly defined, and the sweep of jaw, almost as keen as a blade, must have delighted her own artist soul. She was rather diminutive (to her sorrow), but the long lines she cultivated in her house gowns made her figure very alluring, and the limp and awkward grace of fashion singularly became her. She wore to-night a "butterfly" gown of georgette (finding, as ever, admirable effects in cotton since she could not afford the costly fabrics), the colour of the American beauty rose, and a narrow band of olive velvet around her thin ivory-white neck. For the moment of her absorption, as she stared into the coals, her attitude would have been one of complete repose had it not been for her restless hands. Broderick noticed, too, that there were darkened hollows under her eyes. "Poor kid," he thought. "She's been through it, all right, and put up a stiff fight. But what a pity."

As he struck a match she rose, and, opening a drawer in the table, took out a box of Russian cigarettes. "I keep these here," she announced, "because I don't want to shock mother; and I seldom indulge these days in expensive habits. But I shall celebrate and smoke all evening. It is jolly to have you like this again, Jimmy. I heard you were engaged. Is it true? You would seem to have deserted every one else."

Mr. Broderick coloured and looked as sheepish as a highly sophisticated star reporter may. "Well, not quite," he admitted. "It's been heavy running, and I don't have all the time there is on my hands. But—I hope—well, I think now it'll be pretty plain sailing—"

"Good, Jimmy, good!"

For a moment he, too, gazed into the coals, his eyes softening; then once more he banished the dainty image evoked; no nonsense for him in Elsinore, with the Balfame tangle to unravel to the glory of the *New York News*.

"Alys," he said, stretching out his long legs and looking innocent and comfortable, "I want to have a confidential talk with you about Mrs. Balfame." He paused and then looked her straight in the eyes as he launched his bolt. "I have come to the conclusion that she shot him—"

"Jim Broderick!" Alys sprang to her feet, her eyes wide and full of angry light. "Oh, you newspaper men!—How utterly abominable!"

"Why? Sit down, my dear. Somebody did it—not? as our friends the Germans say. And undoubtedly that some one is the person most interested in getting him out of the way."

"But not Mrs. Balfame! Why—I've been brought up on Mrs. Balfame. I'd as soon suspect my own mother."

"No, my friend, you would not. Mrs. Crumley is adorable in her own way, but she is frankly and comfortably in her fifties. She is not a beautiful woman who looks fully ten years younger than she has any right to look. See?"

"Oh—but—"

"Think it over. You said the other day that you believed Mrs. Balfame to have unplumbed depths, or something equally popular with your sex. And you were horrified at her singular facial transformations no less than twice within a fortnight. Certainly the picture you drew of her stalking down the Country Club room was that of a woman in a mood for anything—"

"Of a lovely well-bred woman outraged by the conduct of a drunken brute of a husband. But do you imagine that any woman goes through life without being turned into a fury now and then by her husband?"

"No doubt. But, you see, the death of the brute occurred so soon after the transformation scene enacted behind the expressive face of the lady you have immortalised on paper—and no new-made devil is so complete as that which rises out of the debris of an angel. When your placid sternly-controlled women do explode, they may patch themselves together as swiftly as a cyclone passes, but one of the sinister faces of their hidden collection has been flashed momentarily before the public eye—"

"Oh! Oh!"

"I have tracked down every suspect, several upon whom no suspicion has alighted—as yet. To my mind there are only two people to whom the crime could be brought home."

"Who is the other?"

"Dwight Rush."

This time Alys did not sit up with flaming eyes. To the astute gaze of the reporter she took herself visibly in hand. But she bit through the long tube between her lips. "What makes you think that?" she asked, as she tossed the bits into the fire and lighted another cigarette. "You roam too far afield for me."

"He is in love with her."

"With whom?"

"The lady who was so opportunely, if somewhat sensationally, made a widow last Saturday night."

"He is not! Why—how absurd you are to-night, Jim. She is a thousand years older than he."

"How old is she—"

"Forty-two. Mother sent her a birthday cake last month."

"Rush is thirty-four. Who cares for eight years on the wrong side these days? She looks younger than he does, to say nothing of her own inconsiderable age; and when a woman is as lovely as Mrs. Balfame, as interesting as she must be with that astute mind, that subtle suggestion of mystery—"

"You are mad, simply mad. In the first place, he has had no chance to find out whether she is interesting or not—if he had, all Elsinore would have rung with it. And—ah—"

"What?"

"Nothing."

"Come out with it. It's up to you to prove him innocent if you can."

"He was in Brooklyn that evening. I met him at the Cumacks' the next day, and heard him say so."

"Yes, that is what he is at pains to tell every one. Perhaps he can prove it, perhaps not. But that's not what was in your mind."

"I was afraid of being misunderstood. But it is all right, for of course he can prove that he was in Brooklyn. I happen to know that he went to the Balfame house on his way back from the club Saturday evening, and only stayed a few minutes. I left the club just after Mrs. Balfame did, as I had been out there all afternoon and had promised mother to help her during the evening. I came in on the trolley and got off at the corner of Balfame and Dawbarn Streets, to finish an argument I was having with Harriet Bell over the possibility of Mrs. Balfame losing her social power through the scene out at the club—few of the members would care to go through such a scene a second time. Moreover, some of these newer rich women resent her supremacy and would like to force her to take a back seat.

"I only talked for a few minutes after I got off the car and then walked quickly over to the avenue. Just as I turned the corner I saw Dwight Rush slam the Balfame gate and almost run up the walk. He seemed in a tearing hurry about something. I was standing on our porch only a few minutes later when he strode past—no doubt hoping to catch the seven-ten for Brooklyn. Now!"

"Nobody would be happier than I to prove a first-class alibi for Rush—"

"Who else suspects him?"

"No one; and so far as I am concerned no one shall. If you want the whole truth, what I'm as intent on just now as big news itself is complete exoneration for my friend. But if he didn't do it, she did. And if he butted in upon her at a time like that it was because he was beside himself—no doubt he asked her to elope with him—get a divorce—"

"What utter nonsense!"

"Perhaps. But if she saw her chance, I'm thinking she wouldn't have hesitated a minute to put a bullet in Balfame. People don't turn as sick at the mere thought of committing murder, when there's a good chance of putting it over, as you may imagine. Most of us experience the impulse some time or other. Cowardice or circumstances safeguard us. She did it, take my word for it. She deliberately poisoned a glass of lemonade first, for Balfame to drink when he came home on his way to take the train for Albany. Then, something or other interfering—what, I can only guess at as yet—she found her chance to shoot, and shot."

"Why, if all that were true, she would be a fiend."

"Not necessarily. Merely a highly exasperated woman. One, moreover, who had locked herself up too long. Marital squabbles are safety valves, and I understand she let him do the rowing. But I don't care about her impulses. The act is enough for me. Psychology later, when I write a page of Sunday stuff. But you can see for yourself that if she isn't indicted, and pretty quick, Dwight Rush will be?"

"But no one else suspects him."

"Not yet. But the whole town thinks of nothing else. And as they've about given up all hope of the political crowd, as well as gunmen and tango girls, they'll veer presently toward the truth. But before they settle down on their idol's lofty head, they'll root about for some man who might easily be in love with her—although hopelessly, as a matter of course. Then they'll recall a thousand trifles that no doubt you too recall without effort."

"It's true she turned to him out there, ignoring men she had known for years—she saw him at the house that night, if only for a few moments—Oh, it's too horrible! Mrs. Balfame. An Elsinore lady! And she has been so good to us all these hard years, helped us over and over again. Oh, I don't mind telling you, Jim, that I was a little bit jealous of her—I rather liked Rush—he was interesting and a nice male creature, and I was so lonely—and he stopped coming so suddenly—and then seeing him so delighted to meet her that night—and both of them dragging up the avenue as if each moment were a jewel—I've always thought it hateful for married women to try to cut girls out—it's so unnatural—but I can't hear her accused of murder—to go—Oh, it's too awful to talk about!"

"She'd get off. Don't let that worry you. Innocent or guilty. There's no other way of saving Rush. Be more jealous, if that will help matters. He'll marry her the moment he decently can."

"I don't believe he cares a bit for her. And I don't believe she will marry him or any one."

"Oh, yes, she will. He's the sort to get what he wants—and, take it from me, he is mad about her. And she's at the age to be carried off her feet by an ardent determined lover. Make no mistake about that. Besides, her's is a name that she'll want to drop as soon as possible."

"Jim Broderick, you know that you are deliberately playing on my female nature, on all the baseness you feel sure is in it. I'd always thought you rather subtle, diplomatic. I don't thank you for the compliment of frankness."

"My dear girl, it is a compliment—my utter lack of diplomacy with you. I want to pull this big thing off for my paper, for your paper. And I want to save the friend of both of us. I have merely tried to prove to you that Mrs. Balfame is a mere human being, not a goddess, and deserves to pay some of the penalty of her crime, at least. Certainly, she isn't worth the sacrifice of Dwight Rush—"

"But if he can prove his alibi—"

"Suppose he couldn't. It was Saturday night. What more likely than that he failed to find the man he wanted? I have a dark suspicion that he never went near Brooklyn that night, was in no mood to think of business; although I don't for a moment believe he was near the Balfame place, or knows who did it—unless Mrs. Balfame has confessed to him. She is a very clever woman, not likely to linger on smugly in any fool's paradise. She must know that suspicion will work round to her, and knowing his infatuation, no doubt has consulted him."

Broderick really thought nothing of the sort, but calculated his words; and they produced their effect. The blood rose to the girl's hair, then ebbed, leaving her ghastly. "He would hate her then," she whispered.

"Not Rush. Another man, perhaps; but not only do things go too deep with a man like that for anything but time to cure, but he's chock full of romantic chivalry. And he's madly in love, remember; by that I mean in the first flush. He'd look upon her as a martyr, and immediately set to work to ward suspicion from her; if an alibi could not be proved for him he'd take the crime on his own shoulders, if the worst came to worst."

"Oh! Are men really so Quixotic in these days?"

"Haven't changed fundamentally since they evolved from protoplasm."

"But why should all that chivalry—that magnificent passion—the first love of a man like that—be called out by a woman of Mrs. Balfame's age? Why, it's some girl's right! I don't say mine. Don't think I'm a dog in the manger. I'm trying not to be. But the world is full of girls—not foolish young things only good enough for boys, but girls in their twenties, bright, companionable, helpful, real mates for men—Why, it is unnatural, damnable!"

"Yes, it is," said Broderick sympathetically. "But if human nature weren't a tangled wire fence electrified full of contradictions, life wouldn't be interesting at all. Perhaps it's a mere case of affinity, destiny—don't ever betray me. But there it is. As well try to explain the abrupt taking off of useful men in their prime, of lovely children, of needed mothers, of aged women who have lived exemplary lives, mainly for others, spending their last years with the horrors of cancer. Don't try to explain human passion. And she *is* beautiful, and fresher to look at than girls of eighteen that tango day and night. But he must be saved from her as well as from arrest. Will you help me?"

"What do you want me to do?"

"Get further evidence about Mrs. Balfame."

"I cannot, and would not if I could. Do you think I would be the means of fastening the crime of murder on any woman?"

"You would if you were a hardened—and good—newspaper woman."

"Well, I'm not. And I won't. Do your own sleuthing."

"More than I are on the job, but I want your help. I don't say you can pick up fragments of her dress in the grove, or that you can—or would—worm yourself into her confidence and extract a confession. But you can set your wits to work and think up ways to put me on the track of more evidence than I've got now. Can you think of anything off-hand?"

"No."

"Ah? What does that intonation mean?"

"Your ears are off the key."

"Not mine. Tell me at once—No,"—He rose and took up his hat—"never mind now. Think it over. You will tell me in a day or two. Just remember while watching all my little seeds sprout that you can help me save a fine fellow and put my heel on a snake—a murderess! Paugh! There's nothing so obscene. Good night."

She did not rise as he let himself out, but sat beside her cold stove thinking and crying until her mother called her to come in and go to bed.

CHAPTER XV

Mrs. Balfame, after she dismissed the newspaper men, went up to her bedroom and sat very still for a long while. She was apprehensive rather than frightened, but she felt very sober.

She had accepted the assurance of the chief of the local police that his inquiry regarding the pistol was a mere matter of routine, and had merely obeyed a normal instinct in concealing it. But she knew the intense interest of her community in the untimely and mysterious exit of one of its most notorious members, an interest raised to the superlative degree by the attentions of the metropolitan press; and she knew also that when a community is excited suspicions are rapidly translated into proofs, and every clue feeds the appetite for a victim.

The European war was a dazzling example on the grand scale of the complete breakdown of intellect before the primitive passions of hatred, greed, envy, and the recurrent desire of man to kill, combined with that monstrous dilation of the ego which consoles him with a childish belief in his own impeccability.

The newspapers of course pandered to the taste of their patrons for morbid vicarious excitement; she had glanced contemptuously at the headlines of her own "Case," and had accepted her temporary notoriety as a matter of course, schooled herself to patience; the ordeal was scarifying but of necessity brief.

But these young men. They had insinuated—what had they not insinuated? Either they had extraordinary powers of divination, or they were a highly specialised branch of the detective force. They had asked questions and forced answers from her that made her start and shiver in the retrospect.

Was it possible they believed she had murdered David Balfame, or were they merely seeking material for a few more columns before the case died a natural death? She had never been interviewed before, save once superficially as President of the Friday Club, but she knew one or two of the

county editors, and Alys Crumley had sometimes amused her with stories of her experiences as a New York reporter.

These young men, so well-groomed, so urbane, so charming even, all of them no doubt generously equipped to love and marry and protect with their lives the girl of their choice, were they too but the soldiers of an everlasting battlefield, often at bay and desperate in the trenches? No matter how good their work, how great their "killing," the struggle must be renewed daily to maintain their own footing, to advance, or at least to uphold, the power of their little autocracy. To them journalism was the most important thing in the world, and mere persons like herself, suddenly lifted from obscurity to the brassy peaks of notoriety were so much material for first page columns of the newspapers they served with all the loyalty of those deluded soldiers on the European battlefields. She understood them with an abrupt and complete clarity, but she hated them. They might like and even admire her, but they would show her no mercy if they discovered that she had been in the yard that night. She felt as if a pack of wolves were at her heels.

But finally her brow relaxed. She shrugged her shoulders and began to unbutton the dense black gown that had expressed the mood the world demands of a four-days' widow. Let them suspect, divine what they chose. Not a soul on earth but Anna Steuer knew that she had been out that night after her return home. Even had those lynx-eyed young men sat on the box hedge they could not have seen her, for the avenue was well lighted, and the grove, the entire yard in fact, had been as black as a mine. Even the person skulking among those trees could not have guessed who she was.

For a moment she had been tempted to tell them a little; that she had looked out and seen a moving shadow in the grove. But she had remembered in time that they would ask why she had reserved this testimony at the coroner's inquest. Her rôle was to know nothing. Indubitably the shot had been fired from the trees; nobody questioned that; why involve herself? They would discharge still another set of questions at her, among others why she had not telephoned for the police.

As she hung up her gown she recognised the heavy footfalls of her maid of all work, and when Frieda knocked, bade her enter, employing those cool

impersonal tones so resented by the European servant after a brief sojourn on the dedicated American soil.

As the girl closed the door behind her without speaking, Mrs. Balfame turned sharply. She felt at a disadvantage. As her figure was reasonably slim, she wore a cheap corset which she washed once a month in the bath tub with her nailbrush; and her linen, although fresh, as ever, was of stout longcloth, and unrelieved by the coquetry of ribbons. She wore a serviceable tight petticoat of black jersey, beyond which her well-shod feet seemed to loom larger than her head. She was vaguely grateful that she had not been caught by Alys Crumley, so fond of sketching her, and was about to order Frieda to untie her tongue and be gone, when she noticed that the girl's face was no longer bound, and asked kindly:

"Has the toothache gone? I hope you do not suffer any longer."

Frieda lifted her small and crafty eyes and shot a suspicious glance at the mistress who had been so indifferent to what she believed to be the worst of all pains.

"It's out."

"Too bad you didn't have it out at once." Mrs. Balfame hastily encased herself in her bath robe and sat down. "I'll take my dinner upstairs—why—what is it?"

"I want to go home."

"Home?"

"To Germany."

"But, of course you can't. There are a lot of German reservists in the country who would like to go home and fight, but they can't get past the British."

"Some have. I could."

"How? That is quite interesting."

"I not tell. But I want to go."

"Then go, by all means. But please wait a day or two until I get another girl."

"Plenty girls out of job. I want to go to-morrow."

"Oh, very well. But you can't expect a full month's wages, as it is you that is serving notice, not I."

"I do not want a full month wage. I want five hundred dollar."

Mrs. Balfame turned her amazed eyes upon the girl. Her first thought was that the creature had been driven insane by her letters from home, and wondered if she could overcome her if attacked. Then as she met those small, sharp, crafty eyes, set high in the big stolid face like little deadly guns in a fort, her heart missed a beat. But her own gaze, large and cold, did not waver, and she said satirically:

"Well, I am sure I hope you will get it."

"I get it—from you."

Mrs. Balfame lifted her shoulders. "What next? I have contributed what little I can afford to the war funds. I am sorry, but I cannot accommodate you."

"You give me five hundred dollar," reiterated the thick even voice, "or I tell the police you come in the back door two minutes after Mr. Balfame he was kilt at the front gate."

Obvious danger once more turned Mrs. Balfame into pure steel. "Oh, no; you will tell them nothing of the sort, for it is not true. I thought I heard some one on the back stairs when I went down to the kitchen. As you know I always drink a glass of filtered water before going to bed. I had forgotten the episode utterly, but I remember now, I heard a noise outside, even imagined that some one turned the knob of the door, and called up to ask you if you also had heard. I did not know that anything had happened out in front until I returned to my room."

"I see you come in the kitchen door." But the voice was not quite so even, the shifty glance wavered. Frieda felt suddenly the European peasant in the

presence of the superior by divine right. Mrs. Balfame followed up her advantage.

"You are lying—for purposes of blackmail. You did not see me come in the door, because I had not been outside of it. I do not even remember opening it to listen, although I may have done so. You saw nothing and cannot blackmail me. Nor would any one believe your word against mine."

"I hear you come in just after me—"

"Heard? Just now you said you saw."

"Ach—"

Mrs. Balfame had an inspiration. "My God!" she exclaimed, springing to her feet, "the murderer took refuge in the house, was hidden in the cellar or attic all night, all the next day! He may be here yet! You may be feeding him!"

She advanced upon the staring girl whose mouth stood open. "Of course. Of course. You are a friend of Old Dutch. It was one of his gunmen who did it, and you are his accomplice. Or perhaps you killed him yourself. Perhaps he treated you as he treated so many girls, and you killed him and are trying to blackmail me for money to get out of the country."

"It is a lie!" Frieda's voice was strangled with outraged virtue. "My man, he fight for the fatherland. Old Dutch, he will not hurt a fly. I would not have touch your pig of a husband. You know that, for you hate him yourself. I have see in the eye, in the hand. I know notings of who kill him, but—no, I have not see you come in the kitchen door, but I hear some one come in, the door shut, you call out in so strange voice—I believe before that you have kill him—now—now I do not know—"

"It would be wise to know nothing,"—Mrs. Balfame's voice was charged with meaning—"unless you wish to be arrested as the criminal, or as an accomplice—after confessing that you entered the house within a moment or two of the shooting. Who is to say exactly when you did come in? Well, better keep your mouth shut. It is wise for innocent people to know as little about a crime as possible. Why did you testify before the coroner's jury that

your tooth ached so you heard nothing? Why didn't you tell your story then?"

"I was frightened, and my tooth—I can tink of notings else."

"And now you think it quite safe to blackmail me?"

"I want to go back to Germany—to my man—and I hate this country what hates Germany."

"This country is neutral," said Mrs. Balfame severely. "It regards all the belligerents as barbarians tarred with the same brush. You Germans are so excitable that you imagine we hate when we merely don't care." This was intended to be soothing, but Frieda's brow darkened and she thrust out her pugnacious lips.

"Germany, she is the greatest country in the whole world," she announced. "All the world—it muss know that."

"How familiar that sounds! Just a slight variation on the old American brag that is quite a relief." Mrs. Balfame spoke as lightly as if she merely had let down the bars of her dignity out of sympathy with a lacerated Teuton. "Well, go back to your Germany, Frieda, if you can get there, but don't try to blackmail me again. I have no five hundred dollars to give you if I would. If you choose, you may stay your month out, and spend your evenings taking up a collection among your German friends. You are excused."

She had achieved her purpose. The girl's practical mind was puzzled by the simple explanation of her mistress' presence in the kitchen, deeply impressed by the contemptuous refusal to be blackmailed. Her shoulders drooped and she slunk out of the room.

For a moment Mrs. Balfame clung, reeling, to the back of a chair. Then she went downstairs and telephoned to Dwight Rush.

CHAPTER XVI

The young lawyer was to call at eight o'clock. Mrs. Balfame put on her best black blouse in his honour; it was cut low about the throat and softened with a rolling collar of hemstitched white lawn. This was as far in the art of sex allurements as she was prepared to go; the bare idea of a negligée of white lace and silk, warmed by rose-colored shades, would have filled her with cold disgust. She was not a religious woman, but she had her standards.

At a quarter of eight she made a careful inspection of the lower rooms; sleuths, professional and amateur, would not hesitate to sneak into her house and listen at keyholes. She inferred that the house was under surveillance, for she had looked from her window several times and seen the same man sauntering up and down that end of the avenue. No doubt some one watched the back doors also.

Convinced that her home was still sacrosanct, she placed two chairs at a point in the parlour farthest from the doors leading into the hall, and into a room beyond which Mr. Balfame had used as an office. The doors, of course, would be open throughout the interview. No one should be able to say that she had shut herself up with a young man; on the other hand, it was the duty of the deceased husband's lawyer to call on the widow. Even if those young devils discovered that she had telephoned for him, what more regular than that she should wish to consult her lawyer after such insinuations?

Rush arrived as the town clock struck eight. Frieda, who answered the door in her own good time, surveyed him suspiciously through a narrow aperture to which she applied one eye.

"What you want?" she growled. "Mrs. Balfame she have seen all the reporters already yet."

"Let the gentleman in," called Mrs. Balfame from the parlour. "This is a friend of my late husband."

Rush was permitted to enter. He was a full minute disposing of his hat and overcoat in the hall, while Frieda dragged her heelless slippers back to the kitchen and slammed the door. His own step was not brisk as he left the hall for the parlour, and his face, always colourless, looked thin and haggard. Mrs. Balfame, as she rose and gave him her hand, asked solicitously:

"Are you under the weather? How seedy you look. I wondered why you had not called—"

"A touch of the grippe. Felt all in for a day or two, but am all right now. And although I have been very anxious to see you, I had made up my mind not to call unless you sent for me."

"Well, I sent for you professionally," she retorted coolly. "You don't suppose I took your love making seriously."

He flushed dully, after the manner of men with thick fair skins, and his hard blue eyes lost their fire as he stared at her. It was incomprehensible that she could misunderstand him.

"It was serious enough to me. I merely stayed away, because, having spoken as I did, I—well, I cannot very well explain. You will remember that I made you promise to send for me if you were in trouble—"

"I remembered!" She felt his rebuke obscurely. "It never occurred to me to send for any one else."

"Thank you for that."

"Did you mean anything but politeness when you said that you had been anxious to see me?"

He hesitated, but he had already made up his mind that the time had come to put her on her guard. Besides, he inferred that she had begun herself to appreciate her danger.

"You have read the newspapers. You saw the reporters this afternoon. Of course you must have guessed that they hope for a sensational trial with you as the heroine."

"How can men—*men*—be such heartless brutes?"

"Ask the public. Even that element that believes itself to be select and would not touch a yellow paper devours a really interesting crime in high life. Never mind that now. Let us get down to brass tacks. They want to fix the crime on you. How are they going to manage it? That is the question for us. Tell me exactly what they said, what they made you say."

Mrs. Balfame gave him so circumstantial an account of the interview that he looked at her in admiration, although his rigid American face, that looked so strong, turned paler still.

"What a splendid witness you would make!" He stared at the carpet for a moment, then flashed his eyes upward much as Broderick had done. "Tell me," he said softly, "is there anything you withheld from them? You know how safe you are with me. But I must be in a position to advise you what to say and to leave unsaid—if the worst comes."

"You mean if I am arrested?" She had a moment of complete naturalness, and stared at him wildly. He leaned forward and patted her hand.

"Anything is possible in a case like this. But you have nothing to fear. Now, will you tell me—"

"Do you think I did it?"

"I know that you did not. But I think you know something about it."

"It would cast no light on the mystery. He was shot from that grove on a pitch dark night, and that is all there is to it."

"Let me be the judge of that."

"Very well. I had put out my light—upstairs—and, as I was nervous, I looked out of the window to see if Dave was coming. I so longed to have him come—and go! Then I happened to glance in the direction of the grove, and I saw some one sneaking about there—"

"Yes!" He half rose, his eyes expanding, his nostrils dilating. "Go on. Go on."

"I told you I was nervous—wrought up from that dreadful scene at the club. I just felt like an adventure! I slipped down stairs and out of the house by

the kitchen door—Frieda takes the key of the back hall door on Saturday nights—thinking I would watch the burglar; of course that was what I thought he must be; and I knew that Dave would be along in a minute—"

"How long was this after he telephoned? It would take him some time to walk from Cummack's; and he didn't leave at once—"

"Oh, quite a while after. I was sure then that he would be along in a minute or two. Well—it may seem incredible to you, but I really felt as if excitement of that dangerous sort would be a relief."

"I understand perfectly." Rush spoke with the fatuousness of man who believes that love and complete comprehension of the object beloved are natural corollaries. "But—but that is not the sort of story that goes down with a jury of small farmers and trades-people. They don't know much about your sort of nerves. But go on."

"Well, I managed to get into the grove without being either seen or heard by that man. I am sure of that. He moved round a good deal, and I thought he was feeling about for some point from which he could make a dart for the house. Then I heard Dave in Dawbarn Street, singing. Then I saw him under the lamp-post. After that it all happened so quickly I can hardly recall it clearly enough to describe. The man near me crouched. I can't tell you what I thought then—if I knew he was going to shoot—or why I didn't cry out. Almost before I had time to think at all, he fired, and Dave went down."

"But what about that other bullet? Are you sure there was no one else in the grove?"

"There may have been a dozen. I heard some one running afterwards; there may have been more than one."

"Did you have a pistol?" He spoke very softly. "Don't be afraid to tell me. It might easily have gone off accidentally—or something deeper than your consciousness may have telegraphed an imperious message to your hand."

But Mrs. Balfame, like all artificial people, was intensely secretive, and only delivered herself of the unvarnished truth when it served her purpose best. She gave a little feminine shudder. "I never kept a pistol in the house. If I had, it would have been empty—just something to flourish at a burglar."

"Ah—yes. I was going to say that I was glad of that, but I don't know that it matters. If you had taken a revolver out that night, loaded or otherwise, and confessed to it, you hardly could have escaped arrest by this time, even if it were a .38. And if you confessed to going out into the dark to stalk a man without one—that would make your adventure look foolhardy and purposeless—"

It was evident that he was thinking aloud. She interrupted him sharply:

"But you believe me?"

"I believe every word you say. The more differently you act from other women, the more natural you seem to me. But I think you were dead right in suppressing the episode. It leads nowhere and would incriminate you."

"It may come out yet. That is why I sent for you, not because I was afraid of those reporters. Frieda was on the backstairs that night when I came in. I thought I heard a sound and called out. I told Anna that night and she questioned Frieda indirectly and was satisfied that she had heard nothing, for although she had come home early with a toothache, she was suffering so intensely that she wouldn't have heard if the shot had been fired under her window. So I dismissed such misgivings as I had from my mind. But just after those reporters left she came up to my room and told me that she saw me come in, and tried to blackmail me for five hundred dollars. I soon made her admit that she had not seen me; but she heard me, no doubt of that. I explained logically why I was there—after a drink of water, and that I called out to her because I thought I heard some one try the door—but if those reporters get hold of her—"

His face looked very grim. "That is bad, bad. By the way, why didn't you run to Balfame? That would seem the natural thing—"

"I was suddenly horribly afraid. I think I knew he was dead and I didn't want to go near *that*. I ran like a dog back to its kennel."

"It was a feminine enough thing to do." For the first time he smiled, and his voice, which had insensibly grown inquisitorial, softened once more. "It was a dreadful position to find oneself in and no mistake. Your instinct was right. If you had been found bending over him—still, as you had no weapon—"

"I think on the whole it would have been better to have gone to him. Of course that is what I should have done if I had loved him. As it was, I ran as far from him as I could get—"

"Well, don't let us waste time discussing the ought to have beens. Unless some one can prove that you were out that night, the whole incident must be suppressed. If you are arrested on any trumped up charge—and the district attorney is keener than the reporters—you must stick to your story. By the way, why didn't you tell the reporters that Frieda was in the house about the time the shot was fired?"

"I had forgotten. The house has been full of people; the neighbourhood has lived here; I have noticed her no more than if she were as wooden as she looks."

"Do you think she did it?"

"I wish I could. But she would not have had time to get into the house before I did. And the footsteps were running toward the lane at the back of the grounds."

"She is one of the swiftest dancers down in that hall where she goes with her crowd every Saturday night. I have been doing a little sleuthing on my own account, but I can't connect her up with Balfame."

"He wouldn't have looked at her."

"You never can tell. A man will often look quite hard at whatever happens to be handy. But she doesn't appear to have any sweetheart, although she's been in the country for four years. She is intimate in the home of Old Dutch and goes about with young Conrad, but he is engaged to some one else. All the boys like to dance with her. She left the hall suddenly and ran home—ostensibly wild with a toothache. If she hid in the grove to kill Balfame she could have got into the house before you did. What was she doing on the stair, anyway?"

"I didn't ask her."

"She may have been too out of breath to answer you. Or too wary. Those other footsteps—they may have been those of an accomplice; the man who

fired the other pistol."

"But I would have seen her running ahead of me."

"Not necessarily. It was very dark. Your mind was stunned. You may have hesitated longer than you know before making for the house. One is liable to powerful inhibitions in great crises. Where is the girl? I think I'll have her in."

He walked the floor nervously while Mrs. Balfame went out to the kitchen. Frieda was sitting by the stove knitting. Commanded to come to the parlour, her little eyes almost closed, but she followed Mrs. Balfame and confronted Rush, who stood in the middle of the room looking tall and formidable.

"I am Mrs. Balfame's lawyer," he said without preamble. "She sent for me because you tried to blackmail her. What were you doing on the stairs when you heard Mrs. Balfame in the kitchen? You left the dance hall sometime before eight, and that could not have been more than five minutes past."

Frieda pressed her big lips together in a hard line.

"Oh, you won't speak. Well, if you don't explain to me, you will to the Grand Jury to-morrow. Or I shall get out a warrant to-night for your arrest as the murderer of David Balfame."

"Gott!" The girl's face was almost purple. She raised her knitting needles with a threatening gesture that was almost dramatic. "I did not do it. She has done it."

"What were you doing on the stairs?"

"I would heat water for my tooth."

"Cold water is the thing for an ulcerated tooth."

"I never have the toothache like that already. I am in my room many minutes before I think I go down. Then, when I am on the stairs I hear Mrs. Balfame come in."

"She has explained what you heard."

"No, she have not. I think so when we have talked this evening, but not now. She is—was, I mean, all out of her breath."

"I was terrified." Mrs. Balfame retorted so promptly that Rush flashed her a glance of admiration. Here was a woman who could take care of herself on the witness stand. "First I thought I heard some one trying to get into the door, and then some one sneaking up the stairs."

"Oh—yes." Frieda's tones expressed no conviction. "The educated lady can think very quick. But I say that she have come in by the door, the kitchen door. Always I take the key to the hall door. She know that, and as she not know that I am in, she go out by the kitchen door. Always in the daytime when she goes to the yard she go by the hall door."

"What a pity you did not slam the door when you came in. It would have been quite natural as you were in such agony." Rush spoke sarcastically, but he was deeply perturbed. It was impossible to tell whether the girl was telling the truth or a carefully rehearsed story.

"Of course you know that if you tell that story to the police you will get yourself into serious trouble."

"I get her into trouble."

"Mrs. Balfame is above suspicion. It is not my business to warn you, or to defeat the ends of the law, of which apparently you know nothing—"

"I know someting. Last night I have tell Herr Kraus; and he say that since I have told the coroner I know notings, much better I touch the lady for five hundert and go home."

"O-h-h! That is the advice Old Dutch gave you! Splendid! I think the best thing I can do is to have you arrested bright and early to-morrow morning. Mrs. Balfame is cleared already. You may go."

She stared at him for a moment out of eyes that spat fire like two little guns in the top of a fort; then she swung herself about and retreated to the kitchen.

"That ought to make her disappear to-night. Her friends will hide her. The mere fact of her disappearance will convince the police, as well as the

reporters, that she is guilty. You are all right." He spoke boyishly, and his face, no longer rigid, was full of light.

"But if she is innocent?"

"No harm done. She'll be smuggled out of the country and suspicion permanently diverted from you. That is all I care about." He caught her hands impulsively in his. "I am glad, so glad! Oh!—It is too soon now, but wait—" He was out of the house before she grasped the fact that he had arrested himself on the brim of another declaration.

Mrs. Balfame went up to bed, serene once more in the belief that her future was her own, unclouded, full of attractive possibilities for a woman of her position and intellectual attainments.

She made up her mind to take a really deep course of reading, so that the most spiteful should not call her superficial; moreover, she had been conscious more than once of certain mental dissatisfactions, of uneasy vacancies in a mind sufficiently awake to begin to realise the cheapness of its furnishings. Perhaps she would take a course in history at Columbia, another in psychology.

As she put herself into a sturdy cotton night-gown and then brushed back her hair from a rather large forehead before braiding it severely for the night, she realised dimly that that way happiness might lie, that the pleasures of the intellectual life might be very great indeed. She wished regretfully that she could have been brilliantly educated in her youth. In that case she would not have married a man who would incite any spirited woman to seek the summary release, but would be to-day the wife of a judge, perhaps—some fine fellow who had showed the early promise that Dwight Rush must have done. If she could attract one man like that, at the age of forty-two, she could have had a dozen in her train when young if she had had the sense to appreciate them.

But she was philosophical, and it was not her way to quarrel very deeply with herself or with life. Her long braids were as evenly plaited as ever.

She sank into sleep, thinking of the disagreeable necessity of making the kitchen fire in the morning and cooking her own breakfast. Frieda of course would be gone.

CHAPTER XVII

The next morning, when Mrs. Balfame, running lightly down the back stairs, entered the kitchen half an hour earlier than her usual appearance in the dining-room, the front of her housefrock covered with a large apron and her sleeves pinned to the elbow, she beheld Frieda slicing potatoes.

"Why!" The exclamation was impetuous, but her quick mind adapted itself. "I woke up early and thought I would come down and help," she continued evenly. "You have had so much to do of late."

Frieda was regarding her with intense suspicion. "Never you have done that before," she growled. "You will see if I have the dishes by the dinner washed."

"Nonsense. And everything is so different these days. I am hungry, too. I thought it would be nice to hurry breakfast."

"Breakfast always is by eight. You have told me that when I come. I get up by half past six. First I air the house, and sweep the hall. Then I make the fire and put the water to boil. Then I peel the potatoes. Then I make the biscuit. Then I boil the eggs. Then I make the coffee—"

"I know. You are marvellously systematic. But I thought you might make the coffee at once."

"Always the coffee come last." Frieda resumed her task.

"But I don't eat potatoes for breakfast."

"I eat the potatoes. When they fry in the pan, then I put the biscuit in the oven. Then I boil the eggs and then I make the coffee. Breakfast is by eight o'clock."

Mrs. Balfame, with a good-humoured laugh, turned to leave the kitchen. But her mind, alert with apprehension, cast up a memory, vague but far

from soothing. "By the way, I seem to remember that I woke up suddenly in the night and heard voices down here. Did you have visitors?"

Frieda flushed the deep and angry red of her infrequent moments of embarrassment. "I have not visitors in the night." She turned on the water tap, which made noise enough to discourage further attempts at conversation; and Mrs. Balfame, to distract her mind, dusted the parlour. She dared not go out into the yard and walk off her restlessness, for there were now two sentinels preserving what they believed to be a casual attitude before her gate. She would have given much to know whether those men were watching her movements or those of her servant.

Immediately after breakfast, the systematic Frieda was persuaded to go to the railway station and buy the New York papers when the train came in. Frieda might be a finished product of the greatest machine shop the world has ever known, but she was young and she liked the bustle of life at the station, and the long walk down Main Street, so different from the aristocratic repose of Elsinore Avenue. Mrs. Balfame, watching behind the curtain, saw that one of the sentinels followed her. The other continued to lean against the lamp-post whittling a stick. Both she and Frieda were watched!

But the disquiet induced by the not unnatural surveillance of premises identified with a recent crime was soon forgotten in the superior powers of the New York press to excite both disquiet and indignation.

She had missed a photograph of herself while dusting the parlour and had forgiven the loyal thief as it was a remarkably pretty picture and portrayed a woman sweet, fashionable, and lofty. To her horror the picture which graced the first page of the great dailies was that of a hard defiant female, quite certain, without a line of letter press, to prejudice a public anxious to believe the worst.

Tears of outraged vanity blurred her vision for a few moments before the full menace of that silent witness took possession of her. She knew that most people deteriorated under the mysterious but always fatal encounter of their photographs with the "staff artist," but she felt all the sensations of the outraged novice.

A moment after she had dashed her tears away she turned pale; and when she finished reading the interviews the beautiful whiteness of her skin was disfigured by a greenish pallor.

The interviews were written with a devilish cunning that protected the newspapers from danger of libel suit but subtly gave the public to understand that its appetite for a towering figure in the Balfame case was about to be gratified.

There was no doubt that two shots had been fired from the grove simultaneously, and from revolvers of different calibre (picture of tree and gate).

Was one of them—the smaller—fired by a woman? And if so, by what woman?

Not one of the females whose names had been linked at one time or another with the versatile Mr. Balfame but had proved her alibi, and so far as was known—although of course some one as yet unsuspected may have climbed the back fence and hid in the grove—the only two women on the premises were the widow and her extraordinarily plain servant.

Balfame was shot with a .41 revolver. In one of the newspapers it was casually and not too politely remarked that Mrs. Balfame had larger hands and feet than one would expect from her general elegance of figure and aristocratic features, and in the same rambling sentence (this was written by the deeply calculating Mr. Broderick) the public was informed that certain footprints might have been those of a large woman or of a medium sized man. In the next paragraph but one Mrs. Balfame's stately height was again commented upon, but as the public had already been informed that she was an expert at target practice, reiteration of this fact was astutely avoided.

A great deal was said here and there of her composure, her large studiously expressionless grey eyes, her nimble mind that so often routed her inquisitors, but was allied to a temperament of ice and a manifest power of cool and deliberate calculation.

The dullest reader was quickened into the belief that he was the real detective and that his unerring sense had carried him straight to the woman

who had hated the murdered man and had quarrelled with him in public a few hours before his death.

The episode of Mrs. Balfame's offer to make her husband a glass of doctored lemonade and the disappearance of both beverage and glass was not mentioned; presumably these bright young men did not believe in digressions or in rousing a curiosity they might not be able to appease. The interview concluded with a maddening hint at immediate developments.

Mrs. Balfame let the papers drop to the floor one by one; when she had finished the last she drew her breath painfully for several moments. The room turned black, and it was cut by rows of bared and menacing teeth, infinitely multiplied.

But she was not the woman to give way to fear for long, or even to bewilderment. There could be no real danger, and all that should concern her was the outrageous, the intolerably vulgar publicity. A woman whose good taste was both natural and cultivated, she felt this ruthless tossing of her sacred person into the public maw much as the more refined octroons may have felt when they stood on the auction block in the good old days down South. She shuddered and gritted her teeth; she wished that she were a hysterical woman that she might find relief in shrieking at the top of her voice and smashing the furniture.

Why, oh why, could not David Balfame have been permitted by the fate which had decreed his end on that particular night to enter the house and drink the lemonade; to die decently, painlessly, bloodlessly (she shrank aside when compelled to pass those blood stains on the brick path), as any man might die when his overtaxed heart simply stopped? She would have run down the moment she heard the fall, she would have managed to get the glass out of the way if Frieda had condescended to visit the scene, which was quite unlikely. She would have run over to Doctor Lequer, who lived next door to the Gifnings, and he would have sent for the coroner. Both inevitably would have pronounced the death due to heart failure. It was fate that had bungled, not she.

She mused, however, that she should have had a duplicate glass of lemonade to leave half consumed on the table, as it would be recalled that he had expected to imbibe a soothing draught immediately upon his return;

and adjacent liquids invariably induce suspicion in cases of sudden death. But that did not matter now.

She set her wits to work upon the identity of her companion in the grove. Was it Frieda? Or an accomplice of the girl, who was already in the house or on the alert to direct him out by the rear pathway? But why Frieda? She knew the raging hate that had filled her husband since the declaration of war, and she knew that his rivals in politics hated him with increasing virulency; as they were beginning to hate everybody that presumed to question the right and might of Germany.

But she was a woman just and sensible. Nor for a moment could she visualise Old Dutch or any of his tribe shooting David Balfame because he cursed the Kaiser and sang Tipperary. The supposition was too shallow to be entertained.

The person in the grove had been either a bitter political rival too intimate with the local police to be in danger of arrest, or some woman who for a time may have believed herself to be his wife in the larger village of New York.

She could have sworn that that stealthy figure so close to her was a man, but women's skirts were very narrow and silent these days, and after all she herself was as tall as the average man.

Before noon the house was filled with sympathising and indignant friends. Cummack came up town to assure her that it was a shame; and he would ask Rush if those New York papers couldn't be had up for libel. He'd take the eleven-thirty for Dobton and consult with him.

The ladies were knitting, no one more impersonally than Mrs. Balfame, although she was wondering if these kind friends expected to stay to lunch, when an automobile drove honking up to the door, and Mrs. Battle teetered over to the window.

"For the land's sake," she exclaimed. "If it isn't the deputy sheriff from Dobton. Now, what do you suppose?"

Mrs. Balfame stood up suddenly, and the other women sat with their needles suspended as if suddenly overcome by a noxious gas, with the

exception of Mrs. Cummack, who ran over to her sister-in-law and put her plump arm about that easily compassed waist. Mrs. Balfame drew away haughtily.

"I am not frightened," she said in her sweet cool voice. "I am prepared for anything after those newspapers—that is all."

The bell pealed, and Mrs. Gifning, too curious to wait upon the hand-maiden, ran out and opened the front door. She returned a moment later with her little blue eyes snapping with excitement.

"What do you think?" she gasped. "It is Frieda they want. She is being subpoenaed to Dobton to testify before the Grand Jury. The deputy sheriff is going to take her with him."

Mrs. Balfame returned to her chair with such composure that no one suspected the sudden weakening of her knees. Instantly she realised the meaning of the voices she had heard in the night. Frieda had been "interviewed," either by the press or the police, and induced, probably bribed, to talk. No wonder she had not run away.

But she too resumed her knitting.

CHAPTER XVIII

Young Bruce had had no appetite for his part in the Balfame drama. He had presented himself at the back door, however, at eight o'clock on the night of the interview with the heroine, assuming that Frieda would be moving at her usual snail's pace from the day of work toward the evening of leisure. She slammed the door in his face.

When he persisted, thrusting his cherubic countenance through the window, she threatened him with the hose. Neither failure daunted him, and he was convinced that she knew more of the case than she was willing to admit; but it was obvious that he was not the man to appeal to the fragment of heart she had brought from East Prussia. The mere fact that he looked rather German and yet was straight American—employed, moreover, by a newspaper that made no secret of its hostility to her country—satisfied him that he would not be permitted to approach her closely enough to attempt any form of persuasion. He drew the long breath of deliverance as he reached this conclusion; the bare idea that he might have to bestow a kiss upon Frieda in the heroic pursuit of duty had induced a sensation of nausea. He was an extremely fastidious young man. But even as he accepted defeat with mingled relief and chagrin, the brilliant alternative occurred to him.

He had ascertained that Frieda was intimate in the home of Conrad Kraus, otherwise "Old Dutch," of Dobton, the County seat. Conrad, Jr., treated her as a brother should, and it was his habit to escort her home from the popular dance-hall of Elsinore on Saturday nights. Bruce had no difficulty in learning that the young German-American had been dancing with his favourite partner when her dead nerve seemed to threaten explosion and had fraternally run home with her. The energetic reporter did not wait upon the next trolley for Dobton, but hired an automobile and descended in front of Old Dutch's saloon fifteen minutes later.

Young Kraus was busy; and Bruce, after ordering beer and cheese and taking it to an occupied table, drew the information from a neighbour that Conrad, Jr., would be on duty behind the bar until midnight. It was the habit

of Papa Kraus to retire promptly on the stroke of nine and take his entire family, save Conrad, with him. The eldest of the united family continued to assuage the thirst of the neighbourhood until twelve o'clock, when he shut up the front of the house and went to bed in the rear as quickly as possible; he must rise betimes and clerk in the leading grocery-store of the town. He was only twenty-two, but thrifty and hard-working and anxious to marry.

Bruce caught the next train for New York, had a brief talk with his city editor, and returned to Dobton a few moments before the closing hour of the saloon. He hung about the bar until the opportunity came to speak to Conrad unheard.

"I want a word with you as soon as you have shut up," he said without preamble.

The young German scowled at the reporter. Although a native son of Dobton, he resented the attitude of the American press as deeply as his irascible old father, and he still more deeply resented the suspicion that had hovered for a moment over the house of Kraus.

"Don't get mad till you hear what I've got to say," whispered Bruce. "There may be a cool five hundred in it for you."

Conrad glanced at the clock. It was five minutes to twelve. He stood as immobile as his duties would permit until the stroke of midnight, when he turned out the last reluctant patron, locked the door and followed the reporter down the still-illuminated street to a dark avenue in the residence quarter. Then the two fell into step.

"Now, what is it?" growled Conrad, who did not like to have his habits disturbed. "I get up—"

"That's all right. I won't keep you fifteen minutes. I want you to tell me all you know about the night of the Balfame murder."

He had taken the young German's arm and felt it stiffen. "I know nothing," was the reply.

"Oh, yes, you do. You took Frieda home and got there some little time before the shooting. You went in the side entrance to the back yard, but you

could see the grove all right."

"It was a black-dark night. I could see nothing in the grove."

"Ah! You saw something else! You have been afraid to speak out, as there had been talk of your father having employed gun-men—"

"Such lies!" shrieked young Kraus.

"Of course! I know that. So does the press. That was a wild dream of the police. But all the same you thought it wouldn't be a bad idea to keep clear of the whole business. That is true. Don't attempt to deny it. You saw something that would put the law on the right track. Now, what was it? There are five hundred dollars waiting for you if you will tell the truth. I don't want anything but the truth, mind you. I don't represent a paper that pays for lies, so your honour is quite safe. So also are you."

Conrad ruminated for a few moments. He was literal and honest and wanted to be quite positive that he was not asked to do something which would make him feel uncomfortable while investing those desirable five hundred dollars in West Elsinore town lots, and could reassure himself that the truth was always right whether commercially valuable or not. He balanced the pro's and con's so long that Bruce was about to break out impatiently just as he made up his mind.

"Yes, I saw something. But I wished to say nothing. They might say that I was in it, or that I lied to protect Frieda—"

"That's all right. There was no possible connection between her and Balfame—"

Conrad went on exactly as if the reporter had not interrupted. "I had seen Frieda through the back door. She was crying with the toothache, and I heard her run upstairs. I thought I would wait a few moments. The drops she said she had might not cure her, and she might want me to go to a dentist's house with her. She had gone in the back-hall door. Suddenly I saw the kitchen door open, and as I was starting forward, I saw that it was not Frieda who came out. It was Mrs. Balfame. She closed the door behind her, and then crept past me to the back of the kitchen yard. I watched her and

saw her turn suddenly and walk toward the grove. She did not make a particle of noise—"

"How do you know it was not Frieda?"

"Frieda is five-feet-three, and this was a tall woman, taller than I, and I am five-eight. I have seen Mrs. Balfame many times, and though I couldn't see her face,—she had a dark veil or scarf round it,—I knew her height and walk. Of course I watched to see what she was up to. A few moments later I heard Balfame turn in from Dawbarn Street, singing, like the fool he was, 'Tipperary,' and then I heard a shot. I guessed that Balfame had got what was coming to him, and I didn't wait to see. I tiptoed for a minute or two and then ran through the next four places at the back, and then out toward Balfame Street, for the trolley. But Frieda heard Mrs. Balfame when she came in. She was all out of breath, and, when she heard a sound on the stairs, called out before she thought, I guess, and asked Frieda if she had heard anything. But Frieda is very cautious. She had heard the shot, but she froze stiff against the wall when she heard Mrs. Balfame's voice, and said nothing. We told her afterwards that she had better keep quiet for the present."

"And you think Mrs. Balfame did it?"

"Who else? I shall not be so sorry if she goes to the chair, for a woman should always be punished the limit for killing a man, even such a man as Balfame."

"No fear of that, but we'll have a dandy case. You tell that story to the Grand Jury to-morrow, and you get your five hundred before night. Now you must come and get me a word with Frieda. She won't look at me, and of course she is in bed anyhow. But I must tell her there are a couple of hundred in this for her if she comes through—"

"But she'll be arrested for perjury. She testified at the coroner's inquest that she knew nothing."

"An abscessed tooth will explain her reticence on any other subject."

"Perhaps I should tell you that she came to see us to-night—last night it is now, not?—and told my papa that Lawyer Rush had frightened her, told her

that she might be accused of the killing, that she had better get out. But Papa advised her to go home and fear nothing, where there was nothing to fear. He knew that if she ran away, he would be suspected again, the girl being intimate in the family; and of course the police would be hot on her trail at once. So, like the good sensible girl she is, she took the advice and went home."

"All right. Come along. I'm not on the morning paper, but I promised the story to the boys if I could get it in time."

He hired another automobile, and they left it at the corner of Dawbarn and Orchard Streets, entering the Balfame place by the tradesmen's gate on the left, and creeping to the rear of the house. The lane behind the four acres of the little estate was full of ruts and too far away from the house for adventuring on a dark night. They had been halted by the detective on watch, but when their errand was hastily explained, he joined forces with them and even climbed a lean-to in the endeavour to rouse Miss Appel from her young and virtuous slumbers. Their combined efforts covered three hours; and that explains why the tremendous news-story appeared in the early edition of the afternoon papers instead of whetting several million morning appetites.

The interview with Frieda, who became very wide awake when the unseemly intrusion was elucidated by the trustworthy Conrad, and bargained for five hundred dollars, explains why Mrs. Balfame spent Thursday night in the County Jail behind Dobton Courthouse.

CHAPTER XIX

When the Dobton sheriff and his deputies came to arrest Mrs. Balfame, the wife of their old comrade in arms, all they were able to tell her was that the District Attorney had applied for the warrant immediately after the testimony before the Grand Jury of Frieda Appel and of the Krauses, father and son. What that testimony had been they could not have told her if they would, but that it had been strong and corroborative enough to insure her indictment by the Grand Jury was as manifest as it was ominous.

They arrived just as Mrs. Balfame was about to leave the house to lunch with Mrs. Cummack; Frieda had left long before it was time to prepare the midday meal. Mr. Cramb, the sheriff, shut the door behind him and in the faces of the indignant women reporters, who, less ruthless but equally loyal to their journals, wanted a "human interest" story for the stimulated public. Mrs. Balfame and her friends retreated before the posse into the parlour. Mrs. Battle wept loudly; Alys Crumley, who had come in with her mother a few moments since, fell suddenly on a chair in the corner and pressed her hands against her mouth, her horrified eyes staring at Mrs. Balfame. The other women shed tears as the equally doleful sheriff explained his errand and read the warrant. Mrs. Balfame alone was calm. She exerted herself supremely and sent so peremptory a message along her quaking nerves that it benumbed them for the moment. She had only a faint sense of drama, but a very keen one of her own peculiar position in her little world, and she knew that in this grisly crisis of her destiny she was expected to behave as a brave and dignified woman should—a woman of whom her friends could continue to exult as head and shoulders above the common mass. She rose to the occasion.

"Don't you worry—just!" said Mr. Cramb, patting her shoulder, although he never had had the temerity to offer her his hand before, and had often "pitied Dave." "They lied, them Duytchers, for some reason or other, but they can't really have nothin' on you, and we'll find out what they're up to, double quick."

"I do not worry," said Mrs. Balfame coldly, "—although quite naturally I object to the humiliation of arrest, and of spending even a night in jail. Exactly what is the charge against me?"

The sheriff crumpled his features and cleared his throat. "Well, it's murder, I guess. It's an ugly word, but words don't mean nothin' when there's nothin' in them."

"In the first degree?" shrieked Mrs. Gifning.

Cramb nodded.

"And it don't admit of bail?" Mrs. Frew's eyes rolled wildly.

"Nothin' doin'."

Mrs. Balfame rose hurriedly. There was a horrid possibility of contagion in this room surcharged with emotion. She kissed each of her friends in turn. "It will be all right, of course," she reminded them gently. "Only men could be taken in by such a plot, and of course there are a lot of Germans on the Grand Jury—there are so many in this county. I shall have an excellent lawyer, Dave's friend, Mr. Rush. And I am sure that I shall be quite comfortable in the County Jail—it is so nice and new." But she shuddered at the vision, in spite of her fine self-control.

"You'll be treated like a queen," interposed the sheriff hastily. He was proud of her, and immensely relieved that he was not to escort an hysterical prisoner five miles to the County Seat. "You'll have the Warden's own suite, and I guess you'll be able to see your friends right along. Guess we'd better be gettin' on."

As Mrs. Balfame was leaving the room, her eyes met the horrified and puzzled gaze of Alys Crumley, and one of those obscure instincts that dart out of the subconscious mind like memories of old experiences released under high mental pressure, made her put out her hand impulsively and draw the girl to her.

"I can always be sure of your trust," she whispered. "Won't you come up and help me pack?"

Alys followed unresisting: the blow had been so sudden; she had believed so little in the power of the law to touch a woman like Mrs. Balfame, and even less that she committed the crime; for the moment she forgot her jealous hostility, remembered only that the best friend of her mother and of her own childhood was in dire straits.

Mrs. Cummack had run up ahead and was carrying two suitcases from the large closet to the bed as they entered. Her face was burning and tear-stained, but she was one of those highly efficient women of the home that rise automatically to every emergency and act while others consider. "Glad you've come too," she said to Alys. "Open those drawers in the bureau, and I'll pick out what's needed. Of course the ridiculous charge will be dismissed in a day or two—but still! Well, if they're all idiots down there at Dobton, we can come over here and pack a trunk later. To take it now would be nonsense, and Sam'll move heaven and earth to get them to accept bail. You just put on your best black, Enid, and wear your veil so they can't snapshot you."

While she was gasping on, Mrs. Balfame, whose brain had never worked more clearly, went into the bathroom and emptied the contents of an innocent looking medicine bottle into the drain of the wash-stand. She feared young Broderick more than she feared the district attorney, who, after all, had been her husband's friend—had, in fact, eaten all of his political crumbs out of that lavish but discriminating hand. She recalled that she had always been gracious to him (at her husband's request, for she regarded him as a mere worm) when he had dined at her table, and felt sure that he would favour her secretly, whatever his obvious duty. Moreover, he was of those that spat at the very mention of the powerful Kraus, and would gladly, especially since the outbreak of the war, have run him out of the community.

Mrs. Balfame, being a brilliant exponent of that type which enjoys the unwavering admiration and loyalty of its own sex, had a corresponding belief in her friends, and rarely if ever had used the word *cat* denotatively. She called out the best in women as they of a certainty called out the best in her. Therefore, it did not occur to her either to close the bathroom door or to glance behind her. Alys Crumley, standing before the bureau and happening to look into the mirror, saw her empty and rinse the bottle. The suspicions

of Broderick regarding the glass of lemonade flashed into the young artist's mind; and from that moment she believed in the guilt of Mrs. Balfame.

Although her hands were shaking Alys lifted from the lavender-scented drawers the severely chaste underwear of the leader of Elsinore society, and as soon as the suitcases were packed, she made haste to adjust Mrs. Balfame's veil and pin it so firmly that no more kisses could be exchanged. Of her ultimate purpose Alys had not the ghost of an idea, but kiss a woman whom she believed to be guilty of murder and whom she might possibly be driven to betray, she would not. Suddenly grown as secretive as if she had a crime of her own to conceal, she even walked out to the car with Mrs. Balfame and helped to drive away the crowding newspaper women, several of whom she recognised. They in turn bore her off, determined to get some sort of a story for the issues of the morrow.

CHAPTER XX

Mrs. Balfame was whirled to Dobton in ten minutes—herself, she fancied, the very centre of a whirlwind. The automobile was pursued by three cars containing members of the press, which shot past just before they reached Dobton Courthouse, that the occupants might leap out and fix their cameras. Other men and women of the press stood before the locked gate of the jail yard, several holding cameras. But once more the reading public was forced to be content with an appetising news-story illustrated by a tall black mummy.

Mrs. Balfame walked past them holding her clenched hands under her veil, but to all appearance composed and indifferent. The sob-sisters were enthusiastic, and the men admired and disliked her more than ever. Your true woman always weeps when in trouble, just as she blushes and trembles when a man selects her to be his comforter through life.

The Warden and his wife, who but a few weeks since had moved into their new quarters, had moved out again without a murmur and with an unaccustomed thrill. What a blessed prospect after screaming drunks, drug-fiends and tame commercial sinners!

The doors clanged shut; Mrs. Balfame mounted the stairs hastily, and was still composed enough to exclaim with pleasure and to thank the Warden's wife, Mrs. Larks, when she saw that flowers were on the table and even on the window-sills.

"I guess you'll stand it all right," said Mrs. Larks proudly. "Just make yourself at home and I'll have your lunch up in a jiffy."

Mrs. Cummack and Mrs. Gifning had come in the car with Mrs. Balfame, and Cummack and several other men of standing arrived almost immediately to assure her, with pale disturbed faces, that they were doing their best to get her out on bail. While she was trying to eat her lunch, the telephone bell rang, and her set face became more animated as she recognised Rush's strong confident voice. He had read the news in the early

edition of the afternoon papers, in New York, telephoned to Dobton and found that his immediate fear was realised and that she was in the County Jail. He commanded her to keep up her spirits and promised to be with her at four o'clock.

Then she begged her friends to go and let her rest and sleep if possible; they knew just how serious that consultation with her lawyer must be. When she was alone, however, she picked up the telephone, which stood on a side table, and called up the office of Dr. Anna Steuer. Ever since her arrest she had been dully conscious of her need of this oldest and truest of her friends. It came to her with something of a shock as she sat waiting for Central to connect, that she had leaned upon this strong and unpretentious woman far more than her calm self-satisfied mind had ever admitted.

Dr. Anna's assistant answered the call, and when she heard Mrs. Balfame's voice broke down and wept loudly.

"Oh, do be quiet," said Mrs. Balfame impatiently. "I am in no danger whatever. Connect me with the Doctor."

"Oh, it ain't only that. Poor—poor Doctor! She's been all in for days, and this morning she just collapsed, and I sent for Dr. Lequeur, and he pronounced it typhoid and sent for the ambulance and had her taken out to Brabant Hospital. The last thing she said—whispered—was to be sure not to bother you, that you would hear it soon enough—"

Mrs. Balfame hung up the receiver, which had almost fallen from her shaking hand. She turned cold with terror. Anna ill! And when she most wanted her! A little window in her brain opened reluctantly, and superstition crept in. Beyond that open window she seemed to hear the surge of a furious and irresistible tide. Had it been waiting all these years to overleap the barriers about her well ordered life and sweep her into chaos? She frowned and put her thoughts more colloquially. Had her luck changed? Was Fate against her? When she thought of Dwight Rush, it was only to shrink again. If anything happened to him—and why not? Men were killed every day by automobiles, and he had an absentminded way of walking—

She sprang to her feet and paced up and down the two rooms of the suite, determined upon composure, and angry with herself. She recovered her

mental balance (so rarely disturbed by imaginative flights), but her spirits were at zero; and she was sitting with her elbows on her knees, her hands pressed to her face when Rush entered promptly at four o'clock. He was startled at the face she lifted. It looked older but indefinably more attractive. Her inviolable serenity had irritated even him at times, although she was his innocent ideal of a great lady.

The Warden, who had unlocked the door, left them alone, and Rush sat down and took both her hands in his warm reassuring grasp.

"You are not to be the least bit frightened," he said. "The great thing for you to remember is that your husband's political crowd rules, and simply laughs at your arrest. They are more positive than ever that some political enemy did it. Balfame's temper was growing shorter and shorter, and he had many enemies, even in his own party. But the crowd will pull every wire to get you off, and they can pull wires, all right—"

"But on what evidence am I arrested? What did those abominable people say to the Grand Jury? Am I never to know?"

"Well, rather. It's all in the afternoon papers, for one of the reporters got the evidence before the Grand Jury did."

He had taken off his overcoat, and he crossed the room and took from a pocket a copy of *The Evening News*. She glanced over it with her lips drawn back from her teeth. It contained not only the story the enterprising Mr. Bruce had managed to obtain from Frieda and Conrad Jr., but a corroboration of the maid's assertion that, warned by the family friend and lawyer, Mr. Dwight Rush, to disappear, she had gone to Papa Kraus for advice. Not a word, however, of blackmail.

"So the public believes already that I am a murderess! No doubt I should be convinced as readily myself. It is all so adroit!" Mrs. Balfame spoke quietly but with intense bitterness. "I suppose I must be tried—more and still more publicity. No one will ever forget it. Do you suppose it is true young Kraus saw me that night?"

"God knows!"

He got up again and moved nervously about the room. "I wish I could be sure. That is the point to which I must give the deepest consideration—whether you are to admit or not that you went out. The Grand Jury and Gore believe it. Young Kraus has a very good name. Frieda has always been well behaved. There are six Germans on the Grand Jury, moreover. We must see that none get on the trial jury. Gore wants to believe—"

"But he was a friend of Dave's."

"Exactly. He is making much of that point. Affects to be filled with righteous wrath because you killed his dear old friend. Trust a district attorney. All they care for is to win out, and he has his spurs to win, in the bargain. I met him a few moments ago; he was about equally full of gin fizzes and the 'indisputable fact' that you are the only person in sight with a motive. Oh, don't! Don't!"

Mrs. Balfame had broken down. She flung her arms over the table and her head upon them. More than once in her life she had shed tears both diplomatic and spontaneous, but for the first time since she was a child she sobbed heavily. She felt forlorn, deserted, in awful straits.

"Anna is ill," she articulated. "Anna! My one real friend—the only one that has meant anything to me. Life has gone pretty well with me. Now everything is changed. I know that terrible things are about to happen to me."

"Not while I am alive. I heard of Dr. Anna's illness on my way to New York. Lequeur was on the train. You—you must let me take her place. I am devoted to you heart and soul. You surely know that."

"But you are not a woman. It's a woman friend I want now, a strong one like Anna. Those other women—oh, yes, they're devoted to me—have been, but they've suddenly ceased to count, somehow. Besides, they'll soon believe me guilty. I hate them all. Only Anna would have understood—and believed."

Rush had been administering awkward little pats to the soft masses of her hair. Suddenly he realised that his faith in her complete innocence was by no means as stable as it had been; she had confessed to him that she had been in the grove that night stalking the intruder. How absurd to believe that

she had gone out unarmed. He had read the circumstantial details of the reporter's interviews with Frieda and young Kraus. While the writers were careful not to make the downright assertion that Mrs. Balfame had fired the fatal shot, the public saw her in the act of levelling one of the pistols—so mighty is the power of the trained and ruthless pen.

As he stood looking down upon his unexpected surrender to emotional excitement, he asked himself deliberately: What more natural, if she had a pistol in her hand and that low-lived creature presented himself abruptly and alone, than that it should go off of its own accord, so to speak, whether hers had been the bullet to penetrate that loathsome target or not? If so, what had she done with the pistol?

He sat down and laid his hand firmly on her arm.

"There is something I must tell you. It is something Frieda forgot to tell the reporter, but she gave it to the Grand Jury. With the help of a couple of extra gin fizzes, I extracted it from Gore. It is this: she told the Grand Jury that several times when she did her weekly cleaning upstairs she saw a pistol in the drawer of a table beside your bed. Will—won't you tell me?"

He felt the arm in his clasp grow rigid, but Mrs. Balfame answered without a trace of her recent agitation: "I told you before that I never had a pistol. It would be like her to be spying about among my things, but I wonder she would admit it."

"She is delighted with her new importance, and, I fancy, has been bribed to tell all she knows."

"In that case she wouldn't mind telling more. And no doubt she will think of other sensational items before the trial. She will have awakened in the night after the crime and heard me drop the pistol between the walls, or she will have seen me loading it on the afternoon of the shooting."

"Yes, there is no knowing when those low-grade imaginations, once started, will stop. Memory ceases to function in brains of that sort, and its place is taken by a confused jumble of induced or auto suggestions, which are carefully straightened out by the practised lawyer in rehearsals. But I almost wish that you had taken a pistol out that night and would tell me where to find it. I'd lose it somewhere out in the marsh."

"I had no pistol." Not yet could she take him into her confidence to that extent, although she knew that he was about to stake his professional reputation on her acquittal.

He dismissed the subject abruptly. "By the way, I gave the story of Frieda's attempt to blackmail you to Broderick and two other men just before I left town—laying emphasis on the fact that you always drank a glass of filtered water before going to bed. They made a wry face over that, but it is news and they must publish it. There are many things in your favour—particularly Frieda's assertion before the coroner that she knew nothing of the case. She is a confessed perjurer. Also, why didn't she answer when you called up to her, if she was on the back stairs? There are things that satisfy a grand jury that will not go down with a trial jury. Now you must, you must trust me."

She looked up at him dully. But in a moment her eyes warmed and she smiled faintly. All the female in her responded to the traditional strength and power of the male. She also knew the sensitiveness of man's vanity and the danger either of starving it or dealing it a sudden blow. She sometimes felt sorry for men. It was their self-appointed task to run the planet, and they must be reminded just so often how wonderful they were, lest they lose courage; one of the several obliging weaknesses of which women rarely scrupled to take advantage.

As she put out her hand and took his, she looked very feminine and sweet. Her face was flushed and tears had softened her large blue-grey eyes that could look so virginal and cold.

"I know you will get me off. Don't imagine for a moment I doubt that; it is a sustaining faith that will carry me through the trial itself. But it is this terrible ordeal in prison that I dread—and the publicity—my good name dragged in the dust."

"You can change that name for mine the day you are acquitted."

It suddenly occurred to her that this might be a very sensible thing to do, and simultaneously she appreciated the fact that he possessed what was called charm and magnetism. Moreover, the complete devotion of even a passably attractive member of the over-sex in alarming predicaments was a

very precious thing. Possibly for the first time in her life she experienced a sensation of gratitude, and she smiled at him so radiantly that he caught his breath.

"No one but you could have consoled me for the loss of Anna, but you are not to say one word of that sort to me until I am out of this dreadful place. I couldn't stand the contrast! Will you promise?"

"Very well."

"Now will you really do something for me—get me a sleeping powder from the druggist? To-morrow I shall be myself again, but I *must* sleep to-night."

"I'll get it." His voice was matter of fact, for love made certain of his instincts keen if it blunted others. "That is, if you will promise to go to bed early and see none of these reporters, men or women. They are camped all over the Courthouse yard."

She gave an exclamation of disgust. "I'll never see another newspaper person as long as I live. They are responsible for this, and I hate them."

"Good! You shall have the powder in ten minutes. Oh, by the way, will you give me a written permit to pass the night in your house? I want to go through your husband's papers and see if I can find any clue to unknown enemies. He may have received threatening letters. I can obtain the official permission without any difficulty."

She wrote the permit unsuspectingly. At nine o'clock that night he let himself into the Balfame house determined to find the pistol before morning. He knew the police would get round to the inevitable search some time on the following day.

CHAPTER XXI

Alys Crumley entertained four of the newspaper women at a picnic lunch in her studio. She was grateful for the distraction from her own thoughts and diverted by their theories. None had seen Mrs. Balfame save through the medium of the staff artist, and they were inclined to accept the *primâ facie* evidence of her guilt. When Alys fetched a photograph from the house, however, they immediately reversed their opinion, for the pictured face was that of a lovely cold and well-bred woman without a trace of hardness or predisposition to crime. They fell in love with it and vowed to defend her to the best of their ability, Miss Crumley promising to exert her influence with the accused to obtain an interview for the new devotees.

Before wrapping the photograph for its inevitable journey to New York, Alys gave it a moment of study herself, wondering if she may not have misinterpreted what she saw that morning. No one had worshipped at that shrine more devoutly than she, even during these later years of metropolitan concordance.

"What is your theory?" asked Miss Austin of *The Evening News*. "They say that a lot of those men at the Elks know, but never will come through. Do you think it was any of those girls? It might have been some woman he knew in New York who followed him here for the first time—who would not have been recognised if seen, and got away in a waiting automobile."

"As likely as not," said Miss Crumley indifferently. "I have heard so many theories advanced and rejected that I am almost as confused as the police. Jim Broderick says that the simplest explanation is generally the correct one, but while he believes Mrs. Balfame to be the natural solution, I happen to know her better than he does, and a good deal more of this community. Three or four men and one or two women would be still simpler explanations. Possibly—" She turned cold and almost lost her breath, but the impulse to put a maddening possibility into verbal form was irresistible. "Perhaps some man that is in love with Mrs. Balfame did it." And then she hated herself, for she felt as if she had thrown Dwight Rush to the lions.

"But who? Who?" the girls were demanding, more excited over this picturesque solution than they had been since "the story broke." Even Miss Austin, who disdained to write "sob stuff" and was a graduate of the Columbia School of Journalism, was almost on her feet, while Miss Lauretta Lea, who wept vicariously for fifty thousand women three times a week, shrieked without shame.

"Oh, fine!" "How truly enchanting!" "Dear Miss Crumley—Alys—who, who is the man?"

"Oh, as to that, I've not an idea. Mrs. Balfame always has rather disdained men, and even if she were susceptible is far too straight-laced to permit any man to pay her compromising attentions, or to meet him secretly. But of course she is very pretty, still young to look at, so there is the possibility—"

"But just run over all the marriageable men in the community—"

"Oh, he might be married, you know." Alys struggled to keep the alarm out of her voice.

"But in that case there would still be the wife to dispose of, and now, at least, he'd never dare kill her, or even divorce her. No, I don't hold to that theory. It's more like the reckless act of the unchastened bachelor still young enough for illusions. You must have a theory, Alys. Stand and deliver." Miss Austin spoke with quick insistence. She had detected her hostess' suppressed excitement and was convinced that the hint had not been thrown out at random. She also had been conscious of an indefinable change in her old associate, and now she noticed it in detail. She might be too self-respecting to dip her pen in bathos, but she was nevertheless young, and her imagination began playing about possibilities like lightning over a wire fence.

The heat which confused Alys Crumley's brain was expressed by a dull glow in her strange olive-colored eyes, but she made a desperate effort to look impersonal and rather bored.

"No, I have no theory: certainly it could not be any of the men hereabouts. Mrs. Balfame has known all of them from infancy up. Perhaps she met some one in New York; I don't know that she ever went to any of the tea-tango places—she doesn't dance; but she might have gone with Mrs.

Gifning or Mrs. Frew, and just met some one that fell in love with her—Oh, you mustn't take a mere idea of mine too seriously."

"Hm!" said Miss Austin. "It doesn't sound plausible. A man she met now and then at a tea-room! She's not the sort to drive men to distraction in the casual meeting—not the type. And I can't see the men that frequent afternoon tea-rooms working themselves up to the point of murder. No, if there is a man in the case, he is here; if not in Elsinore, then in the county; and it is some man who has known her long enough and seen her often enough to descend from mere admiration for her rather chilling type of beauty into the most desperate desire for possession—"

Alys burst into a ringing peal of laughter. "Really, Sarah, I wonder you are not already famous as a fiction-story writer. How much longer do you propose to stick to prosaic journalism?"

"I've had two stories accepted by leading magazines this month, I'd have you know; but your memory is short if you think journalism prosaic. It germinates pretty nearly all the fiction microbes that later ravage the popular magazines. That was what was the matter with the old magazines—no modern symptoms, let alone fevers—only antidotes that somehow didn't work. But if you won't tell, Alys, I'll find out for myself. If I don't find out, Jim Broderick will, and I'd give my eyes to get ahead of him. But we've got to catch our train, girls."

They took the short cut through the hall of the dwelling, and as they passed the open door of the living-room, Miss Lauretta Lea exclaimed with pleasure at its conceit of a cool green wood. Alys could do no less than invite them in. While the three other reporters were walking about observing the charming room in detail and envying its owner, Miss Sarah Austin walked directly over to a framed photograph of Dwight Rush that stood on a side-table. He had given it to Mrs. Crumley; and Alys, who spared her mother all unnecessary anxiety, had not yet conceived a logical excuse for its removal.

"Whom have we here?" demanded the searching young realist. "Don't tell me, Alys, that here is the secret of your desertion of the New York press. I'd forgive you, though, for he is precisely the type I most admire. The modern

Samson before Delilah cuts off what little hair his barber leaves. But the same old Samson looking round for the same old Delilah—"

"Really, Sarah, are you insinuating that I am a Delilah? That is too much!" Alys put her arm round Miss Austin's waist and smiled teasingly. "No wonder your newspaper stories are so bitingly realistic; the restraints you force upon your imagination must put it quite out of commission for the time being. That is Mr. Dwight Rush, quite a well known lawyer in Brabant already, although he has only been here about two years."

"I thought you said all your young men had grown up in the community."

"I had quite forgotten him."

"Ha! Is he married?"

"Oh, no. And he was born and brought up over in Rennselaerville, by the way, but went West to some college or university and practised out there for several years."

"How old is he?"

"Oh, about thirty-three or thirty-four."

"Must have been away a good many years. Would return quite fresh—must have had a lot made over him here—looks clever and built for success—that concentrated driving type that always gets there—"

"He goes very little into society and no one possibly could lionise him."

"Is he interesting to talk to or just another specialist?"

"That's about it. But he was more a friend of mother's than mine. That is her picture."

"Oh! He likes older women, then? Looks as if he might. Never would take the trouble, that type, to adapt himself to girls, try to understand them. Could it be—Alys, you must know if he knows Mrs. Balfame!"

Alys was cold again but laid violent hands on her nerves. "No better than he knew any one else, if as well, for Mrs. Balfame never talked to the younger

men. She doesn't attract them, anyhow. Do you realise, dear, that you are asking if Mr. Rush committed murder?"

"With that jaw and those nostrils, he could—oh, rather! And it is one of those cast-iron, passionate faces; when those men do let go—"

"Oh, really!" Alys dropped her arm, and her subtle face expressed disdain. "Mr. Rush is quite too steel clad to be carried away even if he were capable of committing a low and cowardly murder. He happens to be a gentleman and about as astute and poised as they are made. Do please send your romantic imagination off on another flight."

"Not I. I'm going to account for every moment he spent that night."

"Would you like to see Mr. Rush go to the chair?" asked Miss Crumley sternly.

"Oh, good Lord no." Miss Austin turned pale. "I don't believe in capital punishment, anyhow. No, I'll not tell a thing if I find him out. But how interesting to know! I'd write a corking story—fiction—about it. Those deep glimpses into life—into those terrible abysses of the human heart—no writer can become great without them."

"Well, don't waste your time trying to find the criminal in this excellent citizen. You might set some of the newspaper men on his trail and blacken his name while you discovered nothing. Better get on the track of the potential woman in New York."

"Not half so interesting. Just one of those apartment-house misalliances. No, I'm out for Mr. Rush, and when I have the proof, I'll extract a confession; but I'll dig a little grave in my brain and bury his secret—then when it has ripened, exhume and toss it into that crucible through which facts pass and come out—fiction. Get me, dear?"

"You talk like a literary ghoul. But I know you don't mean a word of it. Good-bye, girls. Do drop in whenever you are over on the case." She kissed them all, and Miss Laretta Lea exclaimed innocently:

"You've lost that lovely dusky colour you had awhile ago, dear. You look more like old ivory than ever—old ivory and olive. I wonder all the artists

don't paint you. I suppose every young man in Elsinore is in love with you. Marry, my dear, marry. I've been in this game twelve years. Show me a willing would-be husband and I'd take him so quick he'd never know what struck him. Give my hopes of being a man in the next incarnation for ten babies to weep over when they had croup or got lost in the woods of New York City. Hate sob stuff. Cut it out, kid, before you begin it."

She talked all the way to the gate and for several yards down the avenue, waving a final farewell with a somewhat tragic smile.

"Why doesn't that girl marry?" she asked as they walked rapidly to the station. "Still fresh, if she is twenty-six. I'm only thirty-four and I look like a hag beside her."

"Maybe she can't get the man she wants," replied the potential novelist, who was thinking deeply.

CHAPTER XXII

Alys borrowed a horse and cart from her cousin Mr. Phipps, Chief of Police in Elsinore, who kept a livery stable, and took the shortest cut into the country. She wanted to think out many things and think them out alone. She drove rapidly until she came within sight and sound of the sea. Then she let the lines lie loosely on the back of her old friend Colonel Roosevelt, who had been named in his fiery colt-hood, but in these days, save under compulsion, was as slow as American law. He ambled along, and Alys, in the booming stillness and the fresh salt air, felt the humid waves roll out of her brain. She saw clearly, but she was aghast and depressed.

Presented by nature with an odd and arresting exterior, in color and feature as well as in subtlety of expression, sketched and flattered by such artists as she met, she had, ever since old enough for introspection, striven for uncommon personal developments that should justify her obverse and set her still farther apart from mere woman. If not born with an intense aversion from the commonplace (and it is safe to say that no one is), she had conceived it early enough to train a rarely plastic mind to striking viewpoints, while a natural tact saved her from isolation. If she had been as original as she thought herself, she would have antagonised many people.

Assuredly a certain nobility of nature and a revulsion from all that was base were innate; although, soon learning of the many pitfalls yawning for humanity, she had assiduously cultivated these her higher inclinations, an enterprise measurably assisted by the equable temper, the feminine charm, the bright intelligence and the quick sympathies that made her many friends. Moreover, her freedom from the usual yearnings of her sex in the matter of riches and subservience to the race, which wreck the lives of so many women, and her love of the arts and delight in her own little talent, all served to deponderate the burden of life.

She had liked many men as friends, and was proud of the fact that only the more intelligent were attracted to her, but she had arrived at the age of twenty-six without even imagining herself seriously in love, so intense was

her idealism. This was another of her deliberate cultivations, for here also was she resolute that as nature had done so much for her, marking her as a girl apart, so should she insist upon having an uncommon mate. It was to this end even more than for the barren satisfaction of pleasing Mother Nature that she had tilled the garden of her mind with both science and imagination. When she loved, it should be like a woman, of course; she had no delusions about making over human nature to suit passing fashions in woman; but while she never ignored the vital passions that formed the basis of her unique personality and strong will, she was determined that they should be quickened only by a man who would make equal demands upon all that was fine in her character and aspiring in her mind.

The awful collapse of this cherished structure, her spiritual house, under her hopeless and violent passion for Dwight Rush had almost demoralised her. After she had won herself to reason once more, she still had sat, stunned, among the ruins. It was true that Rush was all that she had demanded of man and that he emanated a promise of happiness along strictly modern lines—which was all she asked, being no romantic fool; but not only had she loved him unasked, sacrificing the first and perhaps the dearest of her dreams, to be wooed and awakened and surprised, but, accepting the inevitable (the man being overburdened, like most busy young Americans, and unselfconscious), she deliberately had set herself to awaken *him*—and for nought. For worse than nought: he had instantly taken fright and withdrawn.

Of the terrific upheaval of that time, like some graveyard of the sea flung putrid and phosphorescent to the surface by submarine vulcanism, she had ceased to think as soon as her will was reinstated in command. Immediately she had striven to rebuild her house lest she be swamped in mere femaleness, so permanently demoralised that life would be quite unendurable. She had cultivated the heights too long. She might tumble off occasionally, but in no other atmosphere could she breathe deeply and realise herself, find any measure of content. It had occurred to her that if she had been born in the gutter and grown to adolescence with no ennobling influence, she would have developed into a notable force for evil. At all events, she liked to think so; many women of stainless lives do.

She guessed this, having a saving sense of humour, but did not expand upon it, not being inclined to humour at the moment. Accompanying her resolution to be finer and better than ever, to fortify herself against life with some degree of satisfaction in herself, was the hope of complete deliverance from what she called the Dwight Rush Idea. In due course she had conquered the obsession, for pride and self-disgust served her like first-aid surgeons on the battlefield; and although she felt amputated and scarred, she had lost her sense of humiliation. But her heart still accelerated its beats when she met Rush, and no will is strong enough to prevent the recurrence of the mental image; only time can dim it. But it was not until Broderick had left her alone in her studio with the poisons of fear and jealousy implanted that she had admitted she still loved him, probably must continue to love him for years to come.

In that hour she had hated Mrs. Balfame, although she neither believed her guilty nor was tempted to the dastardly course of helping to force the appearance of guilt upon her. And for a time that night she had hoped she hated Dwight Rush also, so utterly disgusted and indignant was she that he could prefer a faded woman of forty-odd to a unique and beautiful girl like herself.

But once more Miss Crumley's sense of proportion enforced itself, and she reflected sternly that men had fallen in love with women older than themselves since the world began, and that some of those transcendent—and lasting—passions had made history. She was no green village girl to be astounded at the least common phase of the sexual adventure. It was then she had given way to tears, for although she might be intelligent enough to admit this most unpardonable of nature's informalities, she could regret it with bitterness and despair.

Later had come her fear for Rush's safety. Not for a moment did she suspect him of the crime, but if accused of it during the process of elimination, there was the appalling doubt that he could prove an alibi. As likely as not he had missed his man in Brooklyn—she knew that he had expected to dine and spend the evening at the Country Club—or had not gone there; knowing Balfame's ugly temper when drunk, what more natural than that he should hide in the grounds to be near at hand in case the man were disposed

to wreak vengeance on his wife for his own humiliation. It was Alys's theory that the murder was political.

Until to-day! From the moment that she saw Mrs. Balfame empty and rinse the vial, she was convinced that Broderick was right in his deductions and that for some reason the terrible woman had changed her mind and used the revolver. It was a stupider act than she would have expected of Mrs. Balfame, for Dave was a man whose sudden death would excite little suspicion, nor would Mrs. Balfame be the woman to use a common poison. Her intimacy with Dr. Anna would put her on the track of one of those organic potions that were too subtle for chemical analysis. She had heard doctors talk of them herself.

Then abruptly she recalled the sinister change in Mrs. Balfame's smiling countenance on that day she sketched her at the Friday Club; her mind opened and closed on the conviction that in that moment Mrs. Balfame had conceived the purpose of murder.

But why the change of method? She dismissed the riddle. It was not for her to unravel. Nor did she care. The fact was enough. This good friend of her family was an abominable creature from whom in even mental contact she shuddered away with a spasm of spiritual nausea.

But that was not her own problem. No doubt Mrs. Balfame would be acquitted; Alys hoped so, at all events, for she wanted no such a stain on Elsinore, where, she thanked God, she lived, although she sought knowledge and income in the City of New York. For the same reason, she had no desire that the guilty woman should pay her debt by even a brief term in Auburn; but all that was beside the point. What Alys felt she would give her soul to ravish from this thrice accursed woman, so formidable in her peril, were the services of Dwight Rush. If he were Mrs. Balfame's chief counsel he would see her constantly, and alone—for hours on end, perhaps, for he must consult with her, rehearse her, instruct her, keep up her spirits, console her. This might not be the whole duty of counsel, but in the circumstances no doubt she had underestimated, if anything. And even if he believed her guilty, he might in that intimacy love her the more; not only would he pity her profoundly and see himself her natural protector, but he

would be heart and soul in the great case, and it would not be long before the case and the woman were one.

If, however, Rush could be made to believe now that the woman was a murderess, would he not decline to take the case? He was hardly the man to defend man or woman whom from the outset he knew to be guilty, although when immersed in the case he would keep on, whatever the revelations. Alys believed that it was possible for her to convince him. She could inform him of the needle-witted Mr. Broderick's suspicions and of her own confirmations; and she could tell him of her certain knowledge that Mrs. Balfame had a revolver; she had seen it eight months ago, when Balfame brought it home from New York and told his wife to discharge it in the air if, when alone, she heard a man breaking in.

It had signified little to her at the moment that Mrs. Balfame had denied to police and reporters that she possessed a revolver, for it might by chance be a .41, and it was not to be expected that even an innocent woman would challenge public doubt and possible arrest. But her denial and probable concealment of the weapon were significant to Alys now. She remembered that Dr. Anna had spent the early hours of Sunday alone with Mrs. Balfame. No doubt the wicked woman had found both relief and counsel in confessing to a friend like Anna Steuer, a creature so strong and staunch that the secret would be as safe as in her own guilty soul. Anna, of course, had taken the pistol and dropped it in the marsh when she visited Farmer Houston's wife later in the day. If she could but get Dr. Anna to speak.

Alys raised her eyes under their bent and frowning brows and looked up to where the Brabant Hospital stood on rising ground beside the sea. She gave a gasp as she found herself turning the horse's head in that direction. What did she intend to do? Denounce Mrs. Balfame to Dwight Rush? She fancied she heard an inner crash. Could she do this and escape final demoralisation? Heretofore she had at least committed no act involving moral degradation; her upheavals had affected herself alone and were her inviolate secret; but if she made a last desperate throw to win Dwight Rush by first filling him with loathing of her rival, she would be committed to a course of conduct from which there would be no escape for months, perhaps years to come. For if she won him,—toward which end she must plan with every female art she knew,—she never could ease her soul with confession. Her only

chance of keeping a man like that, after the first effulgence had merged into the healthy temperateness of practical married life, was to avoid the major disillusion.

And if she by her own deliberate act went to pieces morally, could she play up? Should she even want to play up? Could one deliberately knock the foundations from under one's cherished spiritual structure, reared with infinite pains upon natural inclinations, and continue to be even a pale reflection of one's higher self? She might, after the first excitement of striving to achieve her immediate object was over, hate herself too deeply to love or even to live.

She drew her brows more closely and expelled her breath through her teeth. For the moment, at least, she felt all female, ready to defy the future and her own soul to obtain possession of her mate. That he was her mate she obstinately believed, temporarily deflected from his natural progress toward herself by one of those powerful delusions that afflict every man in the course of his life. And if she did not open his eyes at once, the temporary deflection would merge into the straight course toward marriage with a she-demon....

She drove into the hospital yard, threw the reins over Colonel Roosevelt's back and asked for the superintendent, Mrs. Dissosway, who happened to be her aunt.

CHAPTER XXIII

An hour later, Alys was driving through Elsinore, her mind a trifle less personal, as it dwelt upon her brief interview with the superintendent of the hospital. Mrs. Dissosway, who was devoted to her niece and believed her to be as exceptional as Miss Crumley in her most aspiring moments could have wished, had confided that she was sure poor dear Anna knew something about that awful crime, for in her delirious moments she kept uttering Enid Balfame's name in very odd tones indeed. She had assured and reassured the patient that there was no clue to the murderer; and if she kept on and asked to see Mrs. Balfame,—which, significantly, she had not done,—they of course would tell her that the friend who should have hastened to her bedside had suffered a nervous breakdown or sprained her ankle. It was a blessing that she was in no condition to testify against her idol, for it would kill her, just as it might be fatal now if she knew that Enid was in the County Jail.

After some delicate insistence, Mrs. Dissosway had admitted that Dr. Anna must convince any one who listened attentively to her mutterings that her belief in her friend's guilt was positive, whether she had exact knowledge or not.

"'Oh, Enid! Oh, *Enid!*' she kept repeating in such a tone of anguish and reproach, and then muttered: 'Poor child! What a life!' She also once said something about a pistol in a tone of dismay, but the other words I couldn't make out.

"The nurses on her case," Mrs. Dissosway had concluded, "will pay no attention. They are too accustomed to fever patients to listen to ravings, and the two she will have are from other parts of the State, anyhow. They never heard of Mrs. Balfame before. But I have been in and out all day, and I know she is worrying in her poor hot mind both over her friend's crime and her danger—"

"Then you believe Mrs. Balfame did it?" Miss Crumley had interrupted.

"Yes, I do—now, anyhow; and I never was daffy about her. She barely remembers I am alive, living out here for the last fifteen years as I have done, and I am your mother's sister. I don't call her a snob; it's just that she don't seem to take any interest in people that ain't in her own set. But the Lord knows I'd never tell on her if I had the proof in my hand, for I don't want any of our grand old families disgraced, and she's been good to your mother. No, she can go free, and welcome, but I wish poor Anna could have been spared the knowledge of her crime, for it's going to be all the harder to nurse her well, and she has a bad case. If she has to go, she shall go in peace. I'll see to that. But when Enid Balfame is out, I'll take good care to let her know that she has another crime to carry on her conscience—if she's got one."

Alys had not asked to see the patient, knowing that it would be useless, but Mrs. Dissosway had walked out to the cart with her, and pointing to a window on the first floor of the wing devoted to paying patients, remarked: "That's where she is, poor dear." Alys had wondered if she should fall low enough before this accursed case were finished to describe the position of that room to Broderick and insinuate what he might find there if he chose to hide in the little balcony and enter the room when the night nurse had gone out for the midnight supper. He was quite capable of it.

But not if she could win Rush from the case, nor unless, Mrs. Balfame discharged, he were arrested and committed for the crime. She wished now that he had been arrested instead of Mrs. Balfame, for then she could have saved him from both punishment and the other woman without this awful sense of sliding slowly down-hill to choke in a poisonous slime. She might have been obliged to exercise a certain amount of sophistry even then, but she could have stood it.

She was driving slowly down Atlantic Avenue when she heard her name called in accents of mystery and excitement. Her modest rig was passing the imposing mansion of Elisha Battle, bank president, and like all the newer homes of Elsinore the grounds were unconfined and the shallow lawn ended at the pavement. From one of the drawing-room windows Lottie Gifning slanted, and as she met Miss Crumley's eye, she beckoned peremptorily. The desire for solitude was still strong upon Alys, but as she had no excuse

to advance, she wound the lines round the whip and went slowly up the brick walk.

Mrs. Gifning opened the front door and swept her into the drawing-room, where six or seven other women with tense excited faces sat on the expensive furniture. Mrs. Battle, herself upholstered in shining black-and-white satin, and further clad in invisible armour, occupied a stately and upright chair. This throne had been made to order; consequently her small feet in their high-heeled pumps touched the floor. The large room, upon which much money had been spent, was not tasteless; it merely had no individuality whatever. Like many another in Elsinore, it set Miss Crumley's teeth on edge, but compensated her to-day as ever by inspiring her with a sense of remote superiority.

"Dear Alys—so glad to see you!" Mrs. Battle did not rise. She was fond of Alys, but thought her of no consequence whatever. "Lottie saw you and called you in as you have always been such a friend of poor dear Enid's, and you know those horrid reporters, and we want to impress upon you the necessity of putting them off the track. We are talking the whole dreadful business over and trying to decide what to do."

"Do?" Alys, more interested, disposed her limber uncorseted young figure into a low chair and for a moment diverted envious attention from the momentous subject in hand. "What can we do? Has bail been accepted?"

"No, nor likely to be. Isn't it too awful?"

"Yes, it's awful." Alys stared at the floor, but although her words might have been uttered by any of the ladies present, her tone was almost conventional. No one noticed this defection, however, and Mrs. Battle—after Mrs. Gifning had tiptoed to all the doors, opened them suddenly and closed them again,—proceeded in so low a tone that there was an immediate hitching of chairs over the Persian rug:

"What we were debating when you came in, Alys, was whether—oh, it's too awful!—she did it or not. Did she or didn't she? She has a perfectly beautiful character—but the provocation! Few women have been tried more severely. And we all know what human nature is under the influence of sudden tremendous passion." Mrs. Battle, who never had been ruffled by

any sort of passion, leaned against the high back of her chair, and elevated her eyebrows and one corner of her mouth.

"Could such a crime have been unpremeditated?" asked Alys. "You forget that whoever did it was waiting in the grove for Balfame to come home from Sam's, and evidently timed to shoot as he reached the gate."

"Passion, my dear child," said Mrs. Bascom, wife of the Justice for Brabant, speaking softly and with some diffidence, for she disliked the word, "can endure for quite a while once the blood is up and pounding in the head. It would take a good deal to work up dear Enid, but when a woman like that does rise to the pitch under many and abominable provocations, well, I guess she could stay at that pitch a good bit longer than all of us put together. I've thought of nothing else for three days and nights,—the Judge won't discuss it with me,—and I feel convinced that she did it."

"So have and so am I," contributed Mrs. Battle, sepulchrally.

"I'm afraid she did!" Mrs. Gifning heaved an abysmal sigh. "I suspected it when I consulted her about her mourning. She was much too cool. A woman who could think of two kinds of blouses she wanted the very morning after the tragedy, and be not out of the house, must have been exercising a suspicious restraint or else have reverted to the cold-bloodedness with which she planned the deed."

"Dear Lottie, you are so psychological," murmured Mrs. Frew admiringly; but Mrs. Battle interrupted sharply:

"I maintain that she did it in a moment of overwhelming passion. She would be inexcusable if she had done it in cold blood."

"Well, of course I didn't mean that!" said Mrs. Gifning with asperity. "I guess I'm as fond of Enid Balfame as anybody in this room, and I guess I know what she must have gone through. What I really meant was that she has more courage than most folks."

"Oh, that indeed!" exclaimed Mrs. Lequer, who was quite happy with her husband, the fashionable doctor of Brabant. "Matrimony is a terrible trial at best, and it's a wonder more women don't—well, it's too horrible to say. But I'm afraid—well, you know."

There was no dissenting voice. Alys raised her eyes and glanced about the room. Mrs. Cummack was not present. No doubt she had been carefully omitted from the conference. So had four members of the inner twelve who were comparative newcomers in Elsinore. All of these women had known Enid Balfame from childhood, consistently admired her; when she was in a position to make her social ambitions felt, had quite naturally fallen into line.

"Isn't it rather a hasty conclusion?" Alys asked. "There are a good many others who might have done it, you know."

"Everybody suspected has one grand alibi." Mrs. Gifning's sigh was rather hypocritical this time. "We'd be only too glad to think there was any one else likely to be arrested. No hope! No hope!"

"I suppose"—Miss Crumley's tones were tentative, although the irresistible words almost cost her her breath—"that there was no man in love with Mrs. Balfame?"

"Alys Crumley!" All the women had shrieked the name, and Mrs. Battle swung herself to her pointed toes. "I'm most mad enough to put you right out. The idea of insinuating—"

"Dear me, Mrs. Battle, it never occurred to me that it was worse for a married woman to have a man in love with her than to commit murder. I did not insinuate or even imagine she cared for any man, or even encouraged one. But such things have happened."

"Not to her. And while I could forgive her for shooting a perfectly loathsome husband under the influence of sudden passion, I'd never forgive her—Enid Balfame!—if she had stooped to anything so paltry and common and *sinful* as philandering; for believe me, a man doesn't commit murder for a woman's sake unless he is reasonably certain that he will have his due rewards. That is life. And how *can* he be certain, if there has been no philandering. No!" Mrs. Battle was once more magisterial in her chair, and in command of her best Friday Club vocabulary. "But there is this much to be said: Enid did not necessarily shoot to kill,—merely to wound perhaps,—for nothing would have punished Dave Balfame more than a month or two in bed on gruel and custard. Or maybe she just didn't know what she

was doing—just fired to relieve her feelings. I am sure it would have relieved mine after that scene at the Club."

"Oh—I apologise. Let us assume then that Mrs. Balfame did it. How do you propose to act in the matter? Of course you will not accuse her, but shall you cut her?"

"Neither the one nor the other!" Mrs. Battle brought her plump little hands down on the arms of the chair with a muffled but emphatic smack. "Never outside of this room shall we breathe our convictions, or our certain knowledge that she kept a revolver in her room—may I not speak for all?" There was a hissing murmur caused by the letter s. "And it will be no negative defence, either. We'll stand by her publicly, visit her constantly, keep up her spirits, never give her a hint of our suspicions, and attend the trial in a body. Our attitude cannot fail to impress the world. We are the representative women of Elsinore; we have known her all our lives; it is our duty to flaunt our faith in the eyes of the public. The moral effect will be enormous—also on the jury."

"It is very splendid of you." Alys sighed. Their motives were mixed, of course, poor dears; brains were not their strong point, and they were all feeling young again with their sense of participation in the great local drama, but there was no questioning their loyalty, even that of Mrs. Battle, who would inherit the reins of leadership were Mrs. Balfame forced to retire. Alys wished she could be swept along with them, but her indorsement of their programme was from the head alone.

"What do the men think?" she asked.

"I guess they don't know what to think," said Mrs. Battle complacently. "They're not as clever as we are, and besides, they never could understand that type of woman. Whatever they think, though,—that is to say, if they do suspect her,—they'll never let on. They weren't any too fond of Dave these last years, and they're no more anxious than we are to have Elsinore disgraced—especially with all those lots on the edge of the West End unsold. They're hoping for a boom every minute. The trial will be bad enough. And those terrible reporters! They've been here a dozen times."

"That reminds me," interrupted Alys. "I promised four of the best of the women reporters I would try to get them an interview with Mrs. Balfame. Do you think you could manage it? She might not listen to me. And—and—if she is a murderess, I don't think I can see her just yet."

"Youth is so hard!" Mrs. Battle sighed. "But I suppose it is as well that you, an unmarried young woman, and with your way to make, should keep in the background. But why should she see those women? Answer me that. It would be more dignified for her to ignore the press hereafter."

"Perhaps. But they are predisposed in her favour, being women, and would write her up in such a way as to make friends for her among the public. It is important, if she is to be tried for her life, that she should not be thought a monster, that she should make all the friends possible. The jury might convict her, and it would then be necessary, appeals also failing, to get up a petition."

"You always did have brains, Alys!" It was Mrs. Frew who expressed herself with emphasis. "I'll persuade her myself. Don't you really think it would be wise, Letitia?"

"I guess you're both right." Mrs. Battle stood up. "Now let's go out and have tea. I ordered it for five-thirty. New York's got nothing on us."

But Alys, protesting that her mother was old-fashioned and still prepared supper for half past six, excused herself and left the house. She found that Colonel Roosevelt had gone home and was not sorry to cover the half-mile to her own, briskly, on foot. What course she eventually should take was still unformulated, but she was glad that she had not parted with any of her deeper knowledge to those kindly women who, perhaps, would have found it the straw too many. Let Enid Balfame keep her friends if she could. Let her have the whole State on her side if she could, so long as she lost Dwight Rush!

CHAPTER XXIV

The police, nettled by the sensational coup of the press, made a real effort to discover the identity of the man or woman who had fired the second pistol. For a time they devoted their efforts to implicating Frieda and young Kraus, but the pair emerged triumphantly from a grilling almost as severe as the third degree; furthermore, there was an absolute lack of motive. Conrad had never evinced the least interest in politics; and that Old Dutch should have commissioned the son of whom he was so proud to commit murder when gun-men could be hired for twenty-five dollars apiece was unthinkable to any one familiar with the thoroughly decent home life of the family of Kraus.

Old Dutch's establishment was more of a beer garden than a common saloon, and responsible for a very small proportion of the inebriety of the County Seat. He and his sons drank their beer at the family board, but nothing whatever behind the bar. As for Conrad, Jr., industrious, ambitious, persistent, but without a spark of initiative, obstinate and quick-tempered but amiable and rather dull, his tastes and domestic ideals as cautious as his expenditures, it was as easy to trump up a charge of murder against him because he happened to have seen Mrs. Balfame leave her house by the kitchen door a few moments before he heard the shot that killed her husband, as it was to fasten the crime upon the unlovely Frieda because she ran home untimely with a toothache.

Frieda confessed imperturbably to her attempt to blackmail Mrs. Balfame, adding (in free translation) that while she had no desire to see her arrested and punished, she saw no reason why she should not turn the situation to her own advantage. When Papa Kraus was asked if he had counselled the girl to demand five hundred dollars as the price of her silence, he repudiated the charge with indignation, but admitted that he did remark in the course of conversation that no doubt a woman who had killed her husband would be pleased to rid herself of a witness on such easy terms, and that it was Frieda's pious intention—and his own—that the blood-money should justify itself in the coffers of the German Red Cross.

All this was very reprehensible, of course; but an imperfect sense of the minor social and legal immoralities was no argument that such blundering tactics were the natural corollary of a specific murder. To be sure, there were those that asserted with firm lips and pragmatical eyes that "anybody who will blackmail will do anything," but the police were accustomed to this line of ratiocination from the layman and knew better.

Their efforts in every direction were equally futile. Behind the Balfame Place was a lane; Elsinore Avenue was practically the eastern boundary of the town, which had grown to the south and west. There were two or three lowly dwellers in this lane, and in due course the memory of one old man was refreshed, and he guessed he remembered hearing somebody crank up a machine that night, but at what time he couldn't say. It was after seven-thirty, anyhow, for he turned in about then, and he had heard the noise just before dropping off. That might have been any time up to eight or nine, he couldn't say, as he slept with his windows shut and couldn't hear the town clock. His cottage was directly across from a point where the second assailant, running out of the grove and grounds, would have climbed the fence to the lane if he had kept in a reasonably straight line. But there had been heavy rains between the night of the shooting and the awakening of the old man's memory, and not a track nor a footstep was visible.

The police also searched the Balfame house from top to bottom for the pistol the prisoner indubitably had carried from the house to the grove; nor did they neglect the garden, yard and orchard, or any of the old wells in the neighbourhood. They even dragged a pond. Their zeal was but a further waste of time. It was then they concluded that Mrs. Balfame had gone out deliberately to meet a confederate and that he had carried off both pistols. But who was the confederate and how did he know at what hour Balfame would reach his front gate? It was as easily ascertained that Mrs. Balfame had telephoned no message—from her own house—that night as that she had received one from her husband which would give her just the opportunity she wanted. But how had she advised the other guilty one? The poor police felt as if they were lashed to a hoop driven up and down hill by a mischievous little girl. All the men who had been at Cummack's when Balfame called up his wife had left the house before he did, and proved their alibis. Even Cummack, who had "sweat blood" during the elimination process, had finally discovered that the janitor of his office-building had

seen him go in and come out on that fatal night. Did Mrs. Balfame go forth some time after Dr. Anna brought her home from the Country Club, find her partner in crime and secrete him in the grove? If so, why did she not remain in the grove with him instead of returning to the house to leave it again by the devious route that delivered her almost into the arms of young Kraus? Above all, who was the man?

It was at this point that the police gave up, although they still maintained a pretence of activity. Not so the press. Almost daily there were interviews with public men, authors, dramatists, detectives, headed: "Did Mrs. Balfame Do It?" "What Did She Do With the Pistol?" "Was She Perchance Ambidexterous? Could She Have Fired Both Pistols at Once?" "Will She Be Acquitted?" "Was It a German Plot?" "If Guilty, Would She Be Wise to Confess And Plead Brain Storm?" The interviews and symposiums that illuminated the Sunday issues were conducted by men, but the evening papers had at least one interview or symposium a week on the subject between a sister reporter and some woman of local or national fame. Nothing could have been more intellectual than the questions asked save, possibly, the answers given.

Upon the subject of the defendant's guilt public opinion fluctuated, and was not infrequently influenced by news from the seat of war: when it looked as if the Germans were primed for a smashing victory, the doubting centred firmly upon the family of Kraus and Miss Frieda Appel; but when once more convinced that the Germans were fighting the long and losing game, the hyphenated were banished in favour of that far more interesting suspect, Mrs. Balfame. Certainly there was nothing more amusing than trying and condemning a prisoner long before she had time to reach judge and jury, and tearing her to shreds psychologically. In Spain the people high and low still have the bull-fight; other countries have the prize-ring, these being the sole objective outlets in times of peace for that lust of blood and prey which held the spectators in a Roman arena spellbound when youths and maidens were flung to the lions. But in the vast majority of Earth's peoples this ancestral craving is forced by Civilisation to gratify itself imaginatively, and it is this cormorant in the human mind that the press feeds conscientiously and often.

In Elsinore the subject raged day and night, and the opinion of the man in the street may be summed up in the words of one of them to Mr. James Broderick of the *New York News*:

"Brain storm, nothin'. She ain't that sort. She done it and done it as deliberately as hell. I ain't sayin' that she didn't have some excuse, for I despised Dave Balfame, and I guess most of us would let her off if we served on the jury, if only because we don't want this county disgraced, especially Elsinore. But that ain't got nothin' to do with it. And there's an awful lot of men who think more of their consciences than they do even of Brabant, let alone of Elsinore, where like as not all of 'em won't have been born—the jurors, I mean. I'm just wonderin'!"

Mr. Broderick met Mrs. Phipps one afternoon at Alys Crumley's. She was not a member of the inner twelve, but a staunch admirer of Mrs. Balfame, although by no means sure of her innocence.

"Maybe she did," she admitted, "since you are not interviewing me for print. But it's yet to be proved, and if she does get off, I don't fancy she'll lose many of her friends—she wouldn't anyhow, but then if she went up, they'd have so much further to call! As for wars," she continued with apparent irrelevance, "there's this much to be said: a lot of good men may get killed, but when you think of the thousands of detestable, tyrannical, stingy, boresome husbands—well, it is to be imagined that a few widows will manage to bear up. If women all over the world refuse to come forward in one grand concerted peace movement, perhaps we can guess the reason why."

None of these seditious arguments reached Mrs. Balfame's ears, but as her friends' protestations waxed, she inferred that their doubts kept pace with those of the public. But she was more deeply touched at this unshaken loyalty than she once would have believed possible. She had assumed they would drop off, as soon as the novelty of the affair had worn thin; but not a day passed without a visit from one of them, or offerings of flowers, fruit, books and bonbons. She knew that whatever their private beliefs, the best return she could make for their passionate loyalty was to maintain the calm and lofty attitude of a Mary Stuart or Marie Antoinette awaiting decapitation. She shed not a tear in their presence. Nor did she utter a

protest. If she looked tired and worn, what more natural in an active woman suddenly deprived of physical exercise (save in the jail yard at night), of sunlight, of freedom—to say nothing of mortification: she, Mrs. Balfame of Elsinore, shut up in a common jail on the vulgar charge of murder?

But in spite of the amiable devotion of her friends and their assurances that no jury alive would convict her, and in spite of her complete faith in Dwight Rush, the prospect of several months in jail was almost insupportable to Mrs. Balfame, and haunted by horrid fears. She made up her mind again and again not to read the newspapers, and she read them morning and night. She knew what this terrible interest in her meant. Not a talesman in the length and breadth of Brabant County who could swear truthfully that he had formed no opinion on the case. Other murder cases had been tossed aside after a few days' tepid sensation, unnoticed thereafter save perfunctorily. It was her unhappy fate to prove an irresistible magnet to that monster the Public and its keeper the Press. Her hatred of both took form at times in a manner that surprised herself. She sprang out of bed at night muttering curses and pulling at her long braids of hair to relieve the congestion in her brain. She tore up the newspapers and stamped on them. She beat the bars before her windows and shook them, the while aware that if the doors of the jail were left open and the guards slept, she would do nothing so foolish as to attempt an escape.

Sometimes she wondered, dull with reaction or quick with fear, if she were losing her reason; or if she was, after all, a mere female whose starved nerves were springing up in every part of her like poisonous weeds after a long drought. Well, if that were the case, her admiring friends should never be the wiser.

But there were other moods. As time wore on, she grew to be humbly grateful to these friends, a phenomenon more puzzling than her attacks of furious rebellion. Even Sam Cummack, possibly the only person who had sincerely loved the dead man and still stricken and indignant, but carefully manipulated by his wife, maintained a loud faith in her, and announced his intention to spend his last penny in bringing the real culprit to justice. Left to himself, he would in time no doubt have shared the opinion of the community, but his wife was a member of the grand army of diplomatists of the home. She was by no means sure of her sister-in-law's innocence, but

she was determined that the family scandal should go no further than a trial, if Mr. Cummack's considerable influence on his fellow citizens could prevent it; and long practice upon the non-complex instrument in Mr. Cummack's head enabled her to strike whatever notes her will dictated. Mr. Cummack believed; and he not only convinced many of his wavering friends, but talked "both ways" to notable politicians in the late Mr. Balfame's party. Most of these gentlemen were convinced that "Mrs. B. done it," and were inclined to throw the weight of their influence against her if only to divert suspicion from themselves, several having experienced acute discomfort; but they agreed to "fix the jury" if Mr. Cummack and several other eminent citizens whom they inferred were "with him" would "come through in good shape." There the matter rested for the present.

Above all was Mrs. Balfame deeply, almost—but not quite—humbly grateful to Dwight Rush. Her interviews with him so far had been brief; later he would have to coach her, but at present his time was taken up with a thousand other aspects of the case, which promised to be a cause célèbre. He made love to her no more, but not for an instant did she doubt his intense personal devotion. He had, after consultation with two eminent criminal lawyers whom he could trust, decided that she should deny in toto the Kraus-Appel testimony, and stick to her original story. After all, it was her word, the word of a lady of established position in her community and of stainless character, against that of a surly German servant and her friends, all of them seething with hatred for those that were openly opposed to the cause of the Fatherland. He knew that he could make them ridiculous on the witness stand and was determined to secure a wholly American jury.

It was some three weeks after Mrs. Balfame's arrest that another blow fell. Dr. Anna's Cassie suddenly remembered that a fortnight or so before the murder Mrs. Balfame had called at the cottage one morning and asked permission to go into the living-room and write a note to the doctor. A moment or two after she had shut herself in, Cassie had gone out to the porch with her broom, and as she wore felt slippers and the front door stood open, she had made no noise. It was quite by accident that she had glanced through the window, and there she had seen Mrs. Balfame standing on a chair before a little cupboard in the chimney placing a bottle carefully between two other bottles. She had fully intended to tell her mistress of this strange performance, but as the doctor those days came home for but a few

hours' sleep and too tired to be spoken to, not even taking her meals there, Cassie had postponed her little sensation and finally forgotten it.

When she did recall the incident under the pressure of the general obsession, she told it to a friend, who told it to another, who again imparted it, so that in due course it reached the ears of the alert Mr. Broderick. It was then he informed the public of the lost glass of lemonade and all the incidents pertaining thereto that had come to his knowledge. Mrs. Balfame's slightly "absurd explanation" was emphasised.

Once more the police were "on the job." The restored bottle was analysed and, ominously, found to contain plain water. Every bottle in the house of Mrs. Balfame was carried to the chemist. Mrs. Balfame laughed grimly at these sturdy efforts, but she knew that the story diminished her chance of acquittal. The public now condemned her almost to a man. The evidence would not be allowed in court,—Rush would see to that,—but every juror would have read it and formed his own opinion. Somewhat to her surprise Rush asked her for no explanation of this episode, and she thought it best not to volunteer one. To her other friends she dismissed the whole thing casually as a lie, no doubt inspired.

As the skies grew blacker, however, her courage mounted higher. Knitting calmed her nerves, and she had many long and lonely hours for meditation. Her friends kept her supplied with all the new novels, but her mind was more inclined to the war books, which she read seriously for the first time. On the whole, however, she preferred to knit for the wretched victims, and to think.

No one can suffer such a sudden and extreme change in his daily habits as a long sojourn in jail on the charge of murder without forming a new and possibly an astonished acquaintance with his inner self, and without undergoing what, superficially, appear to be strange changes, but are merely developments along new-laid tracks in sections of the brain hitherto regarded as waste lands.

Mrs. Balfame of Brabant County Jail was surprised to discover that she looked back upon Mrs. Balfame of Elsinore as a person of small aims, and rather too smugly bourgeoisie. The world of Elsinore!

And all those artificial interests and occupations! How bored she really must have been, playing with subjects that either should have interested her profoundly or not at all. And for what purpose? Merely to keep a step ahead of other women of greater wealth or possible ambitions. Her astonishment at not finding herself all-sufficient, as well as her new sense of gratitude, bred humility which in turn shed a warm rain upon a frozen and discouraged sense of humour. While giving her friends all credit for their noble loyalty, she was quite aware that they were enjoying themselves solemnly and that no small proportion of their loyalty was inspired by gratitude. She recalled their composite expression in the hour of her arrest. They had fancied themselves deeply agitated, but as a matter of fact they were dilated with pride.

Why had she cared so much to lead these women in all things, to be Mrs. Balfame of Elsinore? To return to such an existence was unthinkable.

In spite of the fact that her own tragedy dwarfed somewhat her interest in the great war, she saw life in something like its true proportions; she knew that if acquitted she would be capable for the first time of a broad impersonal outlook and of really developing her intellect. With more than a remnant of the cold-blooded and inexorable will which had condemned David Balfame to death by the medium of Dr. Anna's secret poison, she seriously considered taking advantage of young Rush's infatuation, changing her notorious name for his and receiving the protection that her awakened femininity craved. At other times she was equally convinced that she would marry no man again. She could live in Europe on her small income, travel, improve her mind. Europe would be vastly interesting after the war, if one avoided beggars and impromptu graveyards.

But although she was deeply interested in herself, and gratified that she possessed real courage, and that it had come through the fire tempered and hardened, there were moments, particularly in the night, and if the profound stillness were rent with the shrieks of drunken maniacs, when she was terribly frightened; and in spite of the American tradition which has set at liberty so many guilty women, she would stare at the awful vision of the electric chair and herself strapped in it.

CHAPTER XXV

Rush wheeled and looked sharply behind him. For several weeks he had experienced the recurrent sensation of being followed, but until to-night he had been too absorbed to give a vague suspicion definite form. He stood still, and was immediately aware that somebody else had halted, after withdrawing into the shade of one of the trees that lined Atlantic Avenue. He approached this figure swiftly, but almost at his first step it detached itself and strolled forward. Rush saw that it was a woman, and then recognised Miss Sarah Austin of the *New York Evening News*. He recalled that she had approached him several times with the request for an interview with Mrs. Balfame; and that she had taxed his politeness by trying to draw him into a discussion of the case.

"Oh, good evening," he said grimly. "I turned back because it occurred to me that I was being followed."

"I was following you," Miss Austin retorted coolly. "I saw you turn into the Avenue two blocks up, and tried to overtake you—I don't like to be out so late alone, especially in this haunted village. The knowledge that everybody in it is thinking of that murder nearly all the time has a curious psychological effect. Won't you walk as far as Alys Crumley's with me?"

"Certainly!" Rush, wondering if all women were liars, fell into step.

"I've been given a roving commission in the Balfame case," continued Miss Austin in her impersonal businesslike manner, which, combined with her youth and good looks, had surprised guarded facts from men as wary as Rush. "Not to hunt for additional evidence, of course, but stuff for good stories. I've had a number of dandy interviews with prominent Elsinore women, as you may have seen if you condescend to glance at the *Woman's Page*. Isn't it wonderful how they stand by her?"

"Why not? They believe her to be innocent, as of course she is."

"How automatically you said that! I wonder if you really believe it—unless, of course, you know who did do it. But in that case you would produce the real culprit. What a tangle it is! A lawyer has to believe in his client's innocence, I suppose, unless he's quite an uncommon jury actor. I don't know what to believe, myself. But of one thing I am convinced: Alys Crumley knows something—something positive."

Rush, who had paid little attention to her chatter, which he rightly assumed to be a mere verbal process of "leading up," turned to her sharply.

"What do you mean by that?"

"That she knows something. She's over on the *News* now, understudying the fashion editor before taking charge, and we lunch together nearly every day. She's so changed from what she was a year ago, when she was the life of the crowd—so naïve in her eagerness to become a real metropolitan, and yet so quick and keen she had us all on our mettle. Great girl, Alys! At first, when I met her here again, I attributed the change to the same old reason—a man. I still believe she has had some heart-racking experience, but there's something else—I didn't notice it so much that first day—but since—well, she's carrying a mental burden of some sort. Alys has a damask cheek, as you may have noticed, but nowadays there's a worm in the bud. And those olive eyes of hers have a way of leaving you suddenly and travelling a thousand miles with an expression that isn't just blank. They will look as grimly determined as if she were about to turn her conscience loose, and in a moment this will relax into an expression of curious irresolution—for her: Alys always knows pretty well what she wants. So, as this mystery must be in her consciousness pretty well all the time, when she is at home, at least, I feel sure she knows something but is of two minds about telling it to the police."

"Have you any object in telling me this? I thought you modern women who have deserted the mere home for the working world of men prided yourselves upon a new code of loyalty to one another."

"That's a nasty one! I'm not disloyal to Alys. Others have noticed that there's something big and grim on her mind, as well as I. Jim Broderick is always after her to open up. I have a very distinct reason for telling you. In fact, I have tried to get a word with you for some time."

"Have you been following me? Were—were—you in Brooklyn yesterday?"

"Yes, to both questions." Her voice shook, but her eyes challenged him imperiously; they were under the bright lights of Main Street. "I'll tell you what I believe Alys knows: that you killed David Balfame; and she can't make up her mind to betray you even to liberate an innocent woman."

He was taken unawares, but she could detect no relaxation in his strong face; on the contrary, it set more grimly.

"And what are you up to?" he asked.

"To find the proof for myself, and get ahead of Jim Broderick."

"I know of no one so convinced of Mrs. Balfame's guilt as Broderick."

"That's all right, but a man with as keen a scent as that is likely to find the real trail any minute."

"And you believe I did it?"

"I think there are reasons for believing it."

"I won't ask you for them. It doesn't matter, particularly. What interests me is to know whether you believe that if I had committed the crime of murder I would let a woman suffer in my stead."

Miss Austin cerebrated.

"No," she admitted unwillingly, "you don't strike one as that sort. But then you might argue that she is reasonably sure of acquittal and you would have scant hope of escaping the chair."

Rush laughed aloud. It was a harsh sound, but there was no nervousness in it, and he continued to look interrogatively at Miss Austin. He had barely noticed her before, but he observed that she was a handsome girl with a clean-cut honest face, a bright detecting eye, and the slim well-set-up figure of an athletic boy. Her peculiar type of good looks was displayed to its best advantage by the smartly tailored suit.

"You hardly look the sort to run a man down," he murmured, and this time he smiled.

"One gets mighty keen on the chase in this business." They turned into the deep shade of Elsinore Avenue, and she stood still and lowered her voice. "If you would tell me," she said, "I'd swear never to betray you."

"Then why ask me to confess?"

"Oh—it sounds rather banal—but I want to write fiction, big fiction, and I want to come up against the big tragedies and secrets of the human soul. If you would tell me the whole story, exactly how you have felt at every stage and phase before and since, I feel almost sure that I could write as big a book as Dostoiewsky's "Crime and Punishment"—not half so long, of course. If we learn from other nations, we can teach them a thing or two in return. You may ask what you are to expect in return for a dangerous confidence. I not only never would betray you, but I'd make it my study to divert suspicion from pointing your way. I could do it, too. You are safe as far as Alys is concerned. The secret is oppressing her terribly, and she's driven by the fear that her conscience will suddenly revolt and force her to speak out—particularly if Mrs. Balfame broke down in jail, to say nothing of a possible conviction—not that I believe anything short of conviction would open her lips. You are the last person on earth she would hand over to the law; it seems odd to me you can't realise that for yourself."

"Realise what?"

"Oh, I've no patience with men! I never did share the platitudinous belief in propinquity. Why, Alys has turned half the heads in Park Row. Even the austere city editor is beginning to hover. How any man could pass a live wire like Alys Crumley by—and distractingly pretty—for a woman old enough to be her mother!"

He caught his breath.

"What do you mean by that?"

"Mrs. Balfame."

"And yet you accuse me of letting her lie in prison bearing the burden of my crime?"

"As the only way to possess her ultimately."

"And how many, may I ask, are saying that I am in love with my client?"

"Not a soul—save, possibly, Alys to herself. She doesn't seem to have much enthusiasm for the Star of Elsinore. Provincial people are too funny for words. Maybe we New Yorkers are also provincial in our tendency to forget there is any other America. I intend to cultivate the open mind; a writer must, I think. So you see just how in earnest I am. Don't you believe you could trust me? All the world knows that a newspaper person is the safest depository on earth for a secret."

"Oh, I have the most touching confidence in your honour, and the most profound admiration for your candour, and the deepest sympathy for ambitions so natural to one afflicted with genius. I am only wondering whether if I gave you the information you seem to need you would permit Mrs. Balfame to remain in jail and stand trial for her life."

"You are not to laugh at me! Yes, I should. Because I know that she has ninety-nine chances out of a hundred to get off, and that if she were condemned you would come forward at once and tell the truth."

"And you really believe I did it?" His hands were in his pockets, and he was balancing himself on his heels. There was certainly nothing tense about his tall loose figure, but the light of the street lamp, filtered through a low branch, threw shadows on his face that made it look pallid and as darkly hollowed as the face of an elderly actress in a moving picture. To Miss Sarah Austin he looked like a guilty man engaged in the honourable art of bluffing, but her mounting irritation precluded pity.

"Yes, Mr. Rush, I do. It is to my mind the one logical explanation—"

"You mean the logical fictional—"

"I'm no writer of detective stories—"

"Just like a novel then?"

"Ah! That I admit. The great novel is a logical transcript of life. The incidents rise out of the characters, react upon them, are as inevitable as the personal endowments, peculiarities, and contradictions. Understand your characters, and you can't go wrong."

"You are the cleverest young woman I ever met. For that reason I feel convinced you need no such adventitious aid as confession from a murderer. You will work it out—your premises being dead right—far better by yourself. It's the contradictions you mentioned I am thinking of, both in life and character."

"You are laughing at me. It's no laughing matter!"

"By God, it isn't. But you couldn't expect me to plump out a confession like that without taking a night to think it over."

"If you don't tell me, I warn you I'll find out for myself. And then I'll give it to my newspaper. To begin with, I'll find out if you really did see any one in Brooklyn that Saturday night. I'll discover the name of everybody you know in Brooklyn."

"That's a large order. I fear the case will be over."

"I'll set the whole swarm on the case. But if you will tell me the truth, you will be quite safe."

"The cause of literature might influence me were it not that I fear to be thought a coward—by my fair blackmailer."

"Oh! How dare you? Why, I don't want your secret to use against you. I thought I explained—how dare you!"

"I humbly beg pardon. Perhaps as it is such a new and flattering variety, it deserves a new name. I suppose the legal mind becomes hopelessly automatic in its deductions—"

"Oh, good night!"

They were at the Crumley gate. Rush opened it and passed in behind her. "I think I too will call on Miss Crumley," he said. "I have been too busy to call on any one for weeks, but to-night I must take a rest, and I can imagine no rest so complete as an evening in Miss Crumley's studio. I see a light in there—let us go round and not disturb Mrs. Crumley."

CHAPTER XXVI

Miss Austin remained but a few moments in the studio. She was embarrassed and angry, and Rush was not the sole object of her wrath: she anathematised herself not only for permitting her literary enthusiasm to carry her to the point of attempting coercion and running the risk of being called bad names by an expert in crime, but for speaking out impulsively in the first place and throwing her cards on the table. It had been her intention to cultivate the wretch's acquaintance and lead him on with excessive subtlety; but he had proved impervious to her maidenly hints that she would like to know him better; equally so to her boyish invitation to come over some evening and meet a number of the newspaper girls who were all fighting for his client. Fifteen minutes alone with him in the quiet streets of Elsinore at night was an opportunity that might never come again, and she had surrendered to impulse.

She was now more deeply convinced than ever that he had killed David Balfame, but although she had no intention of denouncing him even if she found her proofs in the course of persistent sleuthing, she thought it wise to "keep him guessing," as the uneasiness of mind caused by this constant pressure from without might eventually drive him to her for counsel and aid. Like all healthy young American writers of fiction, she was an incurable optimist, and as yet untempered in the least by the practical experiences of a New York reporter.

After a few moments' desultory conversation, she announced that she "must run," and as Alys opened the door, Miss Austin turned to the lawyer, who had risen and stood by the stove.

"Good night, Mr. Rush," she said sweetly. "So glad you are defending poor Mrs. Balfame, but you know I never did believe she did it, and I have good reason to hope that we shall all know the truth in about a fortnight."

Rush bowed politely, as she did not offer her hand. "You would save me much trouble and Mrs. Balfame much expense. I wish you all good luck."

Her brows met and her dark grey eyes turned black, but she swung on her heel and marched out with her head in the air. Rush remained behind, as it was evident the two girls wanted a last mysterious word together.

Alys returned in a few moments, and with a swift step. Her face was radiant. She too held her head high, but as if she lifted her face to drink in some magic elixir of the night. This was the first time she had seen Rush since he had immersed himself in the case, and now he had come to her unasked, and as naturally as in the old days when weary with work and the sordid revelations of the courts. Her mercurial spirits, which had hung low in the scale for weeks, had gone up with a rush that filled her with a reckless unreasoning happiness. Perhaps intimacy with Mrs. Balfame had disillusioned him in little ways. Perhaps he had discovered the truth for himself and despised her for a cold-blooded liar where he might have forgiven her honest admission of the actual crime. It would be just like his exaggerated idealism. There never was any love that could not be killed by transgression of some pet prejudice, some violation of secret fastidiousness. At all events, he was here and with every appearance of spending a long evening. What did the rest matter?

He was still standing as she entered, staring at a water colour of a bit of the woods west of Elsinore. The trees were stately and old, the shadows green and shot with the gold of some stray beam of the sun dancing down through that heavy canopy with Puckish triumph. A rocky brook crossed the glade, and behind was a subtle suggestion of the uninterrupted forest, deserted and absolutely still. Rush had recognised the spot.

"My village, Rennselaerville, is on the other side," he said, turning a boyish face to Alys. "I have been fourteen again for a few moments. Last summer I only got a day off now and again to loaf in those woods. I wish I had been with you when you painted this."

She unhooked the picture and handed it to him. "Please let me give it to you. I'd like so much if you would hang it in one of your rooms,—say behind your desk,—so that when you are tired or puzzled you can wheel about and lose yourself for a moment. I am sure it wouldn't be a bad substitute for the real thing."

She spoke with a shy eagerness and an entire absence of coquetry. He put out both hands for the picture.

"I should think it wouldn't. It is just like you to think of it. Indeed I will accept it." And he remembered how many cases he had forgotten under her kindly tact, both in this cool green studio and that other room of woodland shades in the cottage. He was wondering if he had not been a conceited ass and misconstrued an increasing warmth of friendship in this fine impulsive creature, when he remembered Miss Austin's insinuations and sat down abruptly, recalled to the object of his visit.

Alys had invited him to smoke but had not produced her box of Russian cigarettes. Miss Austin, who was determined to keep her nerves in order and her efficiency at high-water mark, did not smoke, and Rush had his prejudices. While he puffed away at his cigar and stretched his long legs out to the fire, she leaned back against a mass of pillows on the divan and congratulated herself that she had put on a charming primrose-yellow gown in honour of her Aunt Dissosway and two other guests entertained by her mother at supper. It was rhythmical in its harmony with the olives of the room and of her own rare colouring.

Rush, who had been studying his picture, looked up and smiled at the other picture on the divan. In the soft lamplight Alys' smooth dark hair looked as olive as her eyes, and there was a faint stain of pink on the ivory of her cheeks. Beneath the lace that covered her slender bust was a delicate note of ribbons and fine lawn, and the little feet in pointed bronze slippers showed through transparent stockings. More by instinct than calculated effect Alys on such occasions managed to create an aura of fastidious and dainty femininity while stopping short of invitation.

Rush scowled as his mind leaped to the substantial and sensibly clad feet of his beautiful client, and to a pile of stout unribboned underwear that had been brought into the jail sitting-room one day when he awaited her tardy appearance. For the first time he wondered if such things really counted in human happiness—not so much, perhaps, for the artistic delight in them that a plain man like himself might be able to feel as for all that they stood: the elusive but auspicious signal.

He shook himself angrily and sat up.

"Your young friend thinks I murdered Balfame," he announced.

Alys started under this frontal attack, but smiled ironically. "I knew she had conceived some such nonsensical theory, mainly because she wanted to have it so. Sarah intends to be a novelist."

"So she did me the honour to confide. She even promised me all the immunity that lay within her jurisdiction if I would reward her with a full confession."

"Really, she is too absurd. Don't let it worry you. You have nothing to fear."

"I'm not so sure."

Alys sat up as rigidly as if armoured like Mrs. Battle. "What do you mean?" she breathed.

"Miss Austin has arrived at the conclusion that I am in love with Mrs. Balfame. She is an outsider with no data whatever to work on; it is reasonable to suppose that sooner or later our good fellow citizens will work round to the same theory."

"That is just the one theory they never will conceive or accept. They know better. That sort of thing never was in Mrs. Balfame's line. The women know that if she doesn't exactly hate men, she has a quiet but profound contempt for them. I wish you could have seen them—her particular crowd—at Mrs. Battle's the day of the arrest. Just to draw them out, I suggested that some man who was in love with her might have fired the shot. They nearly annihilated me. Mrs. Balfame, guilty of the crime of murder or not, is fairly screwed on her pedestal so far as the women are concerned. As for the men, such a theory will never occur to them for the simple reason that not one has ever been attracted by her; she's the very last woman they would expect any man to commit murder for."

Rush, wondering if these observations were dictated by venom or a mere regard for facts, shot a veiled glance at the divan; Miss Crumley's soft carefully de-Americanised voice had not sharpened, but her face was very mobile for all its reserve. She was looking almost aggressively impersonal and had sunk back against the high pillows in a limp indolent line. Facts, of course!

"It is very like a political campaign," said he. "Nobody is quite sane in this town just now, and the wildest conclusions are bound to be jumped at. It is not only embryo novelists that have romantic imaginations. Just reflect that I am Mrs. Balfame's counsel, that I am still a young man and unmarried, and that she is a beautiful woman and looks many years younger than her age. There you are."

Alys made an abrupt change of position which in one less graceful would have suggested a wriggle. However, her voice remained impersonal. "But this community, including her friends, believe that she did it. They want her to get off, but they have settled the question in their own minds and are not looking around for any one else."

"Cummack and several of the other men are, besides Balfame's old political pals—and his enemies, for that matter. Old Dutch, who is far shrewder than his son, is by no means certain of Mrs. Balfame's guilt and has put a detective on the job—against her acquittal, having no desire to see suspicion pointing at his house again. He is just the old sentimentalist to settle on me."

He saw the pink fade out of her cheeks, leaving her face like cold ivory, but she answered steadily: "You have your alibi. You went to Brooklyn that evening to keep an appointment."

"I don't mind telling you that although I went to Brooklyn that night I did not see the man I was after. I went on the spur of the moment, more because I wanted to get out of Elsinore than anything else; I didn't have time to telephone before catching the train, but when I left it in Brooklyn, I telephoned and found that he had gone to New York. I gave no name; it was a matter of no importance. Then as there was no one else I cared to talk to I took the next train back, and as my head ached and I felt as nervous as a cat—from overwork and other things—tramped for hours until I met Dr. Anna out by the marsh and she drove me in—"

"Dr. Anna?"

"Yes, and I have reason to believe she thinks I shot Balfame, but she would never denounce any one if she could help it."

"Oh, you are all wrong. She believes—like everybody else—that Mrs. Balfame did it. My Aunt Dissosway is superintendent out there and has been listening to her delirious mutterings; she's never mentioned you. I drove out there for the second time on Sunday. I haven't told Mother, as she is one of the few that believe Mrs. Balfame innocent—but when Dr. Anna is coherent at all, that is the impression my aunt gets—but—Oh—of course she's only guessing like everybody else. She couldn't know—she was out at the Houston farm—"

Rush was sitting up very straight.

"Has any one been permitted to see her?"

"Of course not."

"Not that it would matter. Delirious people all have insane fancies. But I don't believe she had any such idea before she came down, and besides it is not true. Mrs. Balfame is innocent."

"Of course as her lawyer you must persuade yourself that she is."

"If I had not believed in her, I would not have taken the case, great as my desire would be to help her. I am no good at pleading against my convictions; I'd fail with the jury. If I had believed her guilty, I should have got her the best counsel possible and helped him all I could."

Alys had a curious sense of physical paralysis, or of spiritual dissociation from her body, she made no attempt to decide which; but that the cause was an intense nervous excitement she was well aware. As she stared at him with dilated eyes, he was suddenly convinced that Miss Austin was right in assuming that Alys had some secret and important knowledge bearing upon the crime. Was her reticence due to the common Elsinore loyalty? If so, why her reserve with him who would have parted with his life rather than with any facts that still further would incriminate Mrs. Balfame.

Then in a flash he understood, for his keen faculties were on edge, concentrated to one point, and as sensitive as magnets. He recalled his high estimate of this girl during the weeks of their intimacy, and the instinctive doubts that had assailed him in his rooms on the night of the murder. And as he realised the fierce battle that was raging in that passionate but disciplined

soul, he knew that she loved him, and he scorned himself for attributing her former tentative advances to calculation or that compound of nerves and imagination which so many women call love. She had given him her heart, and it had betrayed her. But while the knowledge gave him an unexpected thrill, he ruthlessly determined to try and to test her to the utmost.

He stood up and walked about the room for a moment, and then halted directly in front of her.

"Do you know anything?" he asked abruptly.

"About what? Do you think I suspect you?"

"No, I don't. I mean Mrs. Balfame."

"I told you we all believe she did it. We can't help ourselves."

"I don't understand the attitude of any of you women who were her friends, her intimates. You—they, rather—have let her lead this community for years, believed her to be little short of perfection. And now with one accord they accept her guilt as a matter of course."

"I think they came to with a sort of shock and realised they never had understood her at all. She had them hypnotised. I think she's one of those Occidentals with terrible latent powers for whom new laws will have to be made when they awake to consciousness of them and begin to develop them with the power and skill of the Orientals—"

"Beg pardon, but let's keep to the present."

"Well, I mean it rather excites them to be able to believe, not so much that she did it, as that she was capable of it, that while uniformly sweet and serene, she had those terrible secreted depths. She reminds one of Lucrezia Borgia, or Catherine de Medici—"

"Why poisoners? You don't mean to say they take any stock in that story of the poisoned lemonade?"

And before Alys could collect her startled faculties she had stammered: "Oh, of course, not. They laugh at that. Balfame was shot—what's the use of—the water in the vial no doubt was put there to rinse it, and Dr. Anna

absently put it back in place. I merely mentioned the names of the first wicked women that occurred to me. Somehow Mrs. Balfame suggests that historic tribe to our friends. No doubt this crime in their midst has irritated what little imagination they have."

Her chest was rising under quick heartbeats, stirring the soft nest of ribbon and lawn under the lace of her gown, a part of the picture that he did not appreciate until later; at the moment he was observing her dilated eyes, the strained muscles of her nostrils and mouth. He found himself interested in feminine psychology for the first time in his life; and as he hated a liar above all transgressors, he wondered why he inconsistently delighted in not being able to comprehend this complex little creature, and at the same time hoped, his own breathing almost as irregular as hers, that she would continue to lie. But he pushed on. He had a dim sense that far more tremendous issues were at stake than further proof of his client's guilt, and deep in his soul was an ache to feel reassured that staggering old ideals might yet be reinforced with vitality.

"Have you told Jim Broderick that Dr. Anna accuses Mrs. Balfame?"

"Of course not. He would be climbing the porch the first dark night."

"Have you been tempted to tell him?"

She shrank farther back and looked up at him under lowered lids. "Tempted? What—why should I? Well, I haven't told him, or any one. That is all that matters."

"Exactly. I only meant, of course, that I have a reprehensible masculine disbelief in the ability of a woman to keep a secret. I might have known you would be the exception, as you are to so many rules. And I mean that. But Broderick is an old friend of yours and preternaturally keen on the case."

"Oh!"

"You haven't told me why you in particular believe so firmly in my client's guilt. You are the last person to be influenced by either the ravings of a typhoid patient—hallucinations, generally—or any of the sentimental and romantic theories of these half-baked women that spend their leisure taking

on flesh, playing bridge, and running over to New York. If you believe Mrs. Balfame is guilty you must have some fairly good reason—perhaps proof."

She could not guess that he was trying her; she imagined his insistence due to apprehension, a desire to know the worst. The hour she had dreaded and desired had come—and she had almost let its opportunities escape! These last weeks in New York filled with work and novel distraction had repoised her, unconsciously. She had begun to doubt, some time since, if she would be able to violate her old standards when the test came; but not for a moment had she ceased with all the concentrated forces of her being to long for his desertion of Mrs. Balfame. And if she had rejoiced sometimes that she was incapable of a demoralising act, she had at others been equally disgusted with her failure in inexorable purpose. She told herself that the big brains were ruthless, able to hold down and out of sight one side of the character they governed while giving the hidden forces for evil full play; never in wantonness, of course, but in sternly calculated necessity. She had a suspicion that this was just the form of greatness Mrs. Balfame possessed, and it increased her disesteem of self and inspired her with a second form of jealousy.

The bitter tides were welling to the surface once more. She asked abruptly: "Is Sarah Austin's theory true? Are you in love with Mrs. Balfame?"

"What has that to do with it?"

"It has its bearings."

"I don't think I should be expected to answer that question. I can say this, however: that as long as she is my client and in jail, I shall have no time to think of personal matters—of love, above all. My job is to get her off, and it occupies about sixteen hours out of the twenty-four. I oughtn't to be here, but relief—distraction—is imperative, now and again—"

"It would be too delightful if you would come here when you wanted both." Her tones were polite without being eager, but she found it impossible to smile.

"Yes, I will; but I shall ignore the subject we are discussing—rest doesn't lie precisely that way! For that reason we'll finish up now. Why do you believe Mrs. Balfame guilty?"

"If I could prove to you that she was, would you throw over the case?"

He hesitated and regarded her fixedly for a moment through narrowed lids. "Yes," he said finally. "I would get one of the men whose firm I expect to join the first of the year to take the case."

She sat erect once more and twisted her hands together, but tried to smile impersonally as she returned his gaze. "Would you then have time to love her?"

Again he hesitated, although he was beginning to hate himself; he felt as if he had some beautiful wild thing of his woods in a trap, but an imperious inner necessity urged him on. "Probably not. Now will you tell me?"

"Now?"

She slipped to the floor and confronted him, holding her small head very high. No doubt the upward movement was unconscious in its expression, but he thought her very lovely and proud as she stood there, and for the first time he took note of the subtlety in that delicate mobile face.

"I really know nothing," she said lightly. "It is just this: if you or any other innocent person were in danger, I should feel called upon to unravel certain clues. Naturally I should make no move otherwise. Mrs. Balfame is an old friend of ours—and then—well, our local pride may be absurd, but there it is. We must watch Jim Broderick. He has discovered the intimacy between Dr. Anna and Mrs. Balfame, and also—what all know here—that they were alone together during those last morning hours following the murder. I'll warn my aunt. He really couldn't get at her—not now, at all events; what he is after, of course, is not so much corroboration, but a new and sensational story to keep the case going. And, of course, as it was the press that ran Mrs. Balfame to earth, a statement from a woman of Dr. Anna's standing justifying it would be an immense triumph."

She had moved over to a table against the farther wall, and she struck a match and applied it to the wick of an alcohol lamp. "I am going to make you a cup of tea. It will rest without overstimulating you, and you must go right from here to bed. I'm sorry Mother doesn't keep whisky in the house —"

"I don't drink when I'm on a case. That's one advantage I generally have over the other side. It will be delightful to drink tea with you once more, although I'm free to say that outside of this house I never drank a cup of tea in my life."

The atmosphere was as agreeably light as if ponderable clouds had suddenly rolled out of the room. Two young people drew up to a smaller table and drank several cups of tea that had stood three minutes, nibbled excellent biscuit, and talked about the War.

CHAPTER XXVII

Three days before the date set for the opening of the trial, Mrs. Balfame deferred to the advice of her counsel and friends and received the women reporters—not only the four depending upon Miss Crumley, but a representative of every Woman's Page in New York and Brooklyn.

They presented themselves in a body at three o'clock in the afternoon and were conducted upstairs by the fluttered Mrs. Larks, who had anticipated them with all the chairs in the jail. They crowded into the little sitting-room, and were given time to dispose themselves before the door leading into the bedroom opened and Mrs. Balfame entered.

She bowed composedly and, with a slight diffident smile, walked to the chair reserved for her. Her weeds were relieved by white crêpe at the neck and wrists, but to two of the newspaper women who had interviewed her a year since as the founder of the Friday and the Country clubs, she had lost her haunting air of girlhood; there was not a line in her beautiful skin nor a gleam of silver in her abundant brown hair, but she had suddenly entered upon the full maturity of her years, and what she may have lost in charm they decided she had gained in subtle force. The other women agreed that she looked as cold and chaste as Diana, quite incapable of any of those mortal passions that drive fallible Earthians into crime.

It was an ordeal, and she drew a long breath.

"You—you wish to interview me?"

Miss Sarah Austin, whose brilliant parts were generally recognised and whose creative fervour was suspected by few, had been elected to the office of spokeswoman and replied promptly:

"Indeed we do, Mrs. Balfame, and before asking you any of the tiresome questions without which there could be no interview, we should be glad to know if you read the woman's pages in our newspapers and realise that we are all friends and shout our belief in your innocence from the housetops?"

"Yes, oh yes," murmured Mrs. Balfame stiffly, but with a more spontaneous smile. "That is the reason I finally consented to see you. I do not like being interviewed. But you have been very kind, and I am grateful."

There was a deep murmur, and after Miss Austin had thanked her prettily for her appreciation of their modest efforts, she continued in a brisk and businesslike manner: "Now, Mrs. Balfame, what we should like is your story. We have been warned by Mr. Rush that we cannot ask you whom you suspect, much less the reasons upon which you found your suspicions—ah!"

Her final vocative was expressed in an angry gurgle. Rush had entered. He was so close to panic at the prospect of facing a roomful of women unsupported by a single male that his face was almost terrifying in its strength, but it had suddenly occurred to him that although these girls had agreed to write their interviews at the Dobton Inn and submit them to his censorship, it was possible one or more would slip over to New York, bent upon sheer sensationalism.

"You must excuse me," he said with a valiant assault upon the lighter mood, "but my client is in the witness box, you see, and must be protected by counsel."

Miss Austin swung about and faced him with a faint satiric smile. "Oh, very well," she said. "You may stay; but I for one shall not adjust my hat."

It is a curious fact that newspaper women are seldom, if ever, of the masculine type; their sheer femininity, indeed, is almost as invariable as their air of physical weariness. Not one of the little company laughed with a more than perfunctory appreciation of their captain's wit, and several stared at Rush, fascinated by his harsh masculinity, the peculiar atmosphere of tense-alertness in which he seemed to have his being, the magnetism which was more an emanation from an almost perpetual concentration of his mental forces than from any of the lighter physical attributes. He folded his arms and leaned against the door, and it is only fair to the cause of woman to state that hardly one of these, whose ages ranged from twenty to thirty-six, was unwomanly enough, despite the fact that she earned her bread in daily competition with man, to give Mrs. Balfame her whole attention

thereafter. While keeping their business heads, they uncovered a corner of their hearts to the sun, and quickened, however faintly, in its glow.

"Now," Miss Austin resumed, "we will, counsel permitting, ask you to give us your story of that night. As you have been misquoted and there has been so much speculative stuff published about you, there surely can be no objection to that." And she squared her shoulders upon Mr. Rush.

Mrs. Balfame looked at her counsel with a gracious deference, and he nodded.

"No harm in that," he said curtly. "Tell them practically the story you would tell if you took the stand. There's only one story to tell, and it is as well the public should bear it in mind while reading the reports of the witnesses for the prosecution."

"That means he's rehearsed her," whispered Miss Laretta Lea, who had reported many trials, to Miss Tracy, who was a novice. "But that's all right."

"Well, I suppose I should begin with the scene at the Club—that is to say, I do not care to speak of it in detail,—quite aside from a natural regard for good taste,—but it seems to have been given a unique importance."

"Just so," said Miss Austin encouragingly. "Do let us have your version. The public simply longs for it."

"Well—I should tell you first that, although my husband was sometimes irritable, he really was a good husband and we never had any vulgar quarrels. It was only when he was not quite himself that he sometimes said more than he meant, and he never quite forgot himself as he did that day out at the Country Club.

"I was playing bridge in one of the smaller rooms when I heard his voice pitched in a very excited key. I knew that something unusual had occurred, and went out into the large central room at once. There I saw him at the upper end of the room surrounded by several of the men, who were apparently trying to induce him to leave. He was shouting and saying such extraordinary things that my first impression was that he was ill or had lost his mind.

"I reasoned with him, and as it did no good and as I was deeply hurt and mortified, I left him to the men and returned to the bridge-room. There, in spite of the kindness of my friends, I found I was too overcome to play, and Dr. Anna Steuer offered to drive me home. That is all, as far as the scene at the clubhouse is concerned, except that I cannot sufficiently emphasise that he never had acted in a similar manner before. If he had, I should not have continued to live with him—not that I should have obtained a divorce, for I do not approve of the institution; but I should have moved out. I have a little money of my own, left me by my father."

"Ah—yes. Thanks. And after you were in your own house? Do you mind? Of course, we have read the story you told the men, but we should like our own story. Perhaps you may have thought of some other points since."

"Yes, there are one or two. I had entirely forgotten in the agitation of that time that I went below, after packing my husband's suitcase, to get a drink of filtered water and thought I heard some one try the kitchen door. I also thought I heard some one upstairs, and called the name of my maid. Of course, a good deal will be made of this omission, but considering the terrible circumstances and the fact that I never had been interviewed before, I do not find it in the least remarkable.

"But, of course, you want me to begin at the beginning." And in her pleasant shallow voice, she told the story she had immediately concocted for her friends.

As Miss Austin asked a few questions in the endeavour to inject some essence of personality into the bald story, Rush permitted the sensation of dismay with which he had listened to take implacable form. He never had heard a less convincing story on the witness stand. Mrs. Balfame had talked glibly, far too glibly. It was evident to the least initiated that she had been rehearsed. Was her mind really as colourless as her voice? Had she no sense of drama? He had hoped that the excitement of this interview, coming after weeks of supreme monotony, would kindle her to animation and a natural enrichment of vocabulary; and, witnessing its effect upon these friendly women, she would be encouraged to simulate both on the witness-stand. It was a pity, he reflected bitterly, that a woman who could lie to her counsel

with such a fine front of innocence could not "put over" the large dramatic lie that would help him so materially in his difficult task.

Miss Austin, despairing of colour, made a shift with psychology. "Would you mind telling us, Mrs. Balfame, if you feel a very great dread of the trial? We realise that it must loom a terrible ordeal."

"Oh, of course, the mere thought of all that publicity horrifies me whenever I permit myself to think of it, but it has to be, and that is the end of it, since the real culprit will not come forward. But I feel confident I shall not break down under the strain. I might have done so if the trial had followed immediately upon my arrest, but all these weeks in jail have prepared me for anything."

"But you are not terrified—of—of the outcome? We know and rejoice that the chances are all in your favour, but men are so queer."

"I am not in the least terrified. It is impossible to convict an innocent woman in this country; and then"—inclining her head graciously to the watchful Rush,— "I have the first criminal lawyer in Brabant County to defend me. It is a detestable thought,—to be stared at in the courtroom as if I were an object in a museum,—but I shall keep thinking that in a few days at most it will be over and that I shall then return to the private life I love."

"Yes. And would you mind telling us something of your plans? Shall you continue to live in Elsinore?"

"I shall go far away, to Europe, if possible. I suppose I shall return in time. Of course" (in hasty afterthought) "I should not be contented for very long without my friends; they have grown to be doubly valuable—and valued—during this long term of incarceration. But I must travel for a while."

"That is quite natural. How normal you are, dear Mrs. Balfame!" It was Miss Laretta Lea who spoke up with enthusiasm. "You are just a sweet, serene, normal woman who couldn't commit a violent act if you tried. Be sure the public shall see you as you are. I don't wonder your friends adore you. Don't mind being stared at. The more people that see you, the more friends you will have."

Her eyes moved to Rush, and she was rewarded by a smile that expressed relief. She was a very experienced reporter and knew exactly how he felt.

"And believe me," she said as they trooped down the stairs, having passed before the Balfame throne and received a limp handshake of dismissal, "that poor man's worried half to death. He'll get about as much help from her on the stand as he would from a tired codfish. But she really is a divinely sweet woman and lovely to look at, and so I'll sob over her for all I'm worth and seclude from the cynical and the sentimental that she has distilled crystal in her veins."

"Did you ever know such a perfectly rotten interview!" Miss Austin was scowling fiercely. "The men did a thousand times better because they took her by surprise, but even they cursed her. I figure out she has made up her Friday Club mind to look the marble goddess minus every female instinct, including a natural desire to shoot a brute of a husband. But I wish she had brain enough to put it over with some pep. She was afraid to be dramatic,—or couldn't be,—and so she was trying to be literary—"

"I don't agree with you!" And arguing and scolding, they wended their disapproving way over to the Dobton Inn and sat them down at tables to make the most of their bare material.

"No censorship needed here," growled Miss Austin. "She froze my very imagination."

CHAPTER XXVIII

Rush walked up and down the room for a few moments in silence. Mrs. Balfame sat back and folded her hands. She was haunted by a vague sense of inefficiency, of having not quite risen to the occasion, but she felt there could be no doubt that she not only had impressed the reporters as an innocent woman but as a perfect lady. The rest didn't matter.

"Are you really not a bit nervous?" demanded Rush, swinging on his heel and confronting her.

"I will not permit myself to be. And except that I hate publicity, I really do not dread the trial. It means the beginning of the end of this detestable prison life. I want to be out and free. A week in a courtroom is not too heavy a price to pay."

"Have you ever been to a murder trial?"

"Of course not. Such a thing would never have occurred to me."

Rush sighed. She had no imagination. But as her counsel he reminded himself that he should be grateful for the lack; he wanted no scenes, either in the courtroom or here in the imminent hours. But he would have welcomed a little more feminine shrinking, appeal to his superior strength. Even when he had worshipped her from afar, she had never moved him so powerfully as on the day of her arrest when she had flung herself over the table in an abandonment to despair as complete as the most exacting male could wish. That incident had long since taken on the shifting outlines of a dream. If she had felt any tremors since then she had concealed them from him.

"Tell me," he asked almost wistfully, "are you not terribly frightened at times? You are alone here so much. And it has been an experience to try even a strong man's nerves."

"Women nowadays really have better nerves than men. We not only lead a far fuller and more varied life than our predecessors, but you men work at

such a terrific strain that it is a wonder you retain any control of your nerves at all. I will admit that I did have attacks of fear at first. It was all so strange and odd. But I got over them. You can get used to anything, I guess. And I have a strong will. I just made myself think about something else. This war has been a godsend. Have you noticed my new maps? I've really read about twenty war books, besides all the editorials, and they have given me a distaste for lighter reading, and really developed my—my—intellect. That seems such a big word. And then I've knitted dozens of things for the children and soldiers, and felt as if I were of some use for the first time in my life."

She glanced at him shyly, as he stared through the bars of one of the windows. The suppressions of a lifetime made it impossible to betray any depth of feeling save under terrible stress. She was ashamed of her breakdown before him on the day of her arrest, but she was conscious of the wish that she were able to infuse her cool even tones with warmth, to make them tremulous at the right moment; but if she attempted to betray something of her newer self even in her eyes, self-consciousness overcame her and she dropped the lids almost in a panic.

She wondered if love broke down those cliffs of ice that seemed to encompass a new-born soul. Or was it merely that the other members of her personal company, mature, jealous, self-sufficient, resented the intrusion of this shrinking alien? They had got on quite well without it; they felt no yearning for possible complications, readjustments. With all their quiet force they discouraged the stranger. Before any of the supreme experiences, including love, they might be routed, the new force might spring up in an instant like a flower from the magic soils of India—but not while the conventions bulwarked them. Their sum was Mrs. Balfame of Elsinore, and not for a moment did they permit themselves to forget it.

Moreover, it was quite true that she had conquered her first apprehensions and welcomed the trial as the initial step toward freedom. Her poise had always been remarkable, the result in part of a self-centred life and a will driven relentlessly in a narrow groove. More than ever was she determined to sit through those long days in the courtroom with the cold aloofness of the unfortunate women of history. The very ascents she had made of secret and solitary heights alone would have restored her poise, for she felt on far

more friendly terms with herself than when living with a wretch she loathed, and dreaming of no higher altitudes than complete success in Elsinore. But she wished for the first time that she were a younger woman, or had made those ascents many years ago; she would have liked to reveal herself spontaneously to this interesting young man who was so deeply in love with her.

Suddenly she wondered if he were as ardently in love with her as in that brief period when they had talked of themselves. Not loving him in return, she had been content with lip-service, the sure knowledge that all his fine abilities were at work upon the obstacles to her freedom; and she would have been deeply annoyed if he had broken the pact made on the day of her arrest and reiterated his devotion and his hopes.

But significant happenings—omissions—a certain flatness.... She turned her head sharply and looked at him. He was still staring moodily through the bars.

If far too diffident to show the best that was in her, she found it comparatively simple to practice the feminine art of angling, albeit with a somewhat heavy hand.

She asked softly: "Don't you think I did the wise thing to tell them I intended to travel as soon as I was acquitted? It surely would be in better taste than to settle down here—in that house!"

"Did you mean it? The intention would make a good impression on the public, certainly."

"Why, of course I meant it. I am not a good hand at saying things merely for effect."

"Where shall you go? Europe is rather impossible."

"Oh, not altogether. There is always Italy. And there is no danger from Zeppelins in the interior of Great Britain. And there is Spain—"

"I think Europe a very good place for women to keep away from until the war is over. Any of the nations may become involved at any minute—"

ourselves, for that matter. Better follow the advice of advertisers and see America first."

"Yes, I could visit the Expositions in California, and camp for a while in Glacier Park, and there are the Yellowstone and Grand Cañon—but all that would only consume a few months—and then there is this winter to think of. What I feel I should do is to stay away for a year, at least—"

"You could live very pleasantly in Southern California."

"I should be very conspicuous in those small fashionable settlements. The case has been telegraphed all over the country, and I have seen dreadful pictures of myself in several Western papers."

"Well, you might live quietly in New York until the war is over. There is no better place to hide—if you avoid the restaurants and theatres. And after all, even a *cause célèbre* is quickly forgotten if there is no aftermath. But I certainly advise against even sailing for Europe until peace is declared. There is always the danger of mines and too enthusiastic submarines."

She turned quite cold and stared at her hands. They were well-shaped but large, and they looked like blocks of white marble on her black gown. He was still at the window, and his tone was listless. She had a curious sense of panic in the region of her heart. But instantly she curled her lip with defiant scorn. Was she the woman to fancy herself in love with a man the moment she seemed to be in danger of losing him? Besides, no doubt, the poor man was tired, and too absorbed in the case to have any room in him for the moods of the lover. Only a foolish impulsive woman would in conditions like the present try to rouse a dormant passion. When she was free, and he as well, his heart would automatically take precedence once more and he would plead ardently for the privilege of marrying her. That was quite in order.

She rose briskly. "Let me show you this map," she said. "It is the very latest—Letitia Battle brought it to me two days ago. And do smoke."

"Thanks, but I must go over and watch those girls. Yes, it is a fine map. This war certainly is a godsend! Good luck. Keep up those splendid spirits. You're all right."

CHAPTER XXIX

"Oyez, oyez, oyez! The Supreme Court of the State of New York County of Brabant trial term is now in session all people having business with this court may draw near and give their attention *and they shall be heard.*"

The court crier delivered his morning oration in one breathless sentence, the last five words of which only have ever been captured by mortal ears. The roll of the jury was called. The first witness stood on the step of the witness-stand and swore by the everlasting God that the testimony he would give in the trial of the People of the State of New York against the defendant would be the truth, the whole truth and nothing but the truth, and then he seated himself in the chair. The trial of Mrs. Balfame began.

It had taken three days to select a jury. If Rush was determined to keep out Germans, Mr. Gore, the district attorney, was equally reluctant to admit to the box any man whom he suspected of being under commands from his wife to get on that jury and acquit Mrs. Balfame, if he had to imperil his immortal soul. He also harboured suspicions of felonious activities on the part of Mr. Sam Cummack and certain other patriotic citizens less devoted to the cause of justice than to Elsinore. In consequence the questions were not only uncommonly searching, but both the district attorney and the defendant's counsel exhausted their peremptory challenges.

The talesmen that had crowded the courtroom beyond the railing were for the most part farmers and tradesmen, but there were not a few "prominent residents," including rooted Brabantites and busy commuters. The last answered without hesitation that they had followed the case closely from the first and formed an unalterable opinion; then, dismissed, rushed off and caught a late train for New York. Those of Mrs. Balfame's own class would have been passed cheerfully by Mr. Rush, but in spite of their careless avowals that they had been too busy to follow the case, or had found it impossible to reach any conclusion, they were peremptorily challenged by the district attorney. They, too, went to New York, not on business, and returned to their hearthstones as late as possible.

Finally a jury of almost excessively "plain men" were chosen after long and weary hours of wrangling. They were all married; their ages ranged from forty-five to fifty; not one looked as if he had an illusion left in regard to the sex that had shared his burdens for a quarter of a century, or, German or no German, he had any leniency in him for a woman who had presumed to abbreviate the career of a man. But at least they were real Americans, with reputations for straight dealing, and good old-fashioned ideals of justice, irrespective of sex. Rush doubted if any of them could be "fixed" by Mr. Cummack or the able politicians whose services he had bespoken, although the sternest visages often hid unsuspected weak spots; but after all his best chance was with honest men whose soft spots were of another sort.

So naïve had been the eagerness of the German-American talesmen to get on the jury that Rush had had little difficulty in demonstrating their unfitness for duty. These were too thrifty to go to New York and stood in no fear of their wives, but they avoided the *gemütlich* resort of Old Dutch until the trial was over.

Throughout this ordeal Mrs. Balfame sat immovable, impassive, her face a white bas-relief against the heavy black crêpe of her veil, which hung like a black panel between her profile and the western light. Her chair was at the foot of the long table which stood beneath the two tiers of the jury-box and was reserved for counsel, the district attorney, the assistants and clerks. Her calm grey eyes looked straight ahead, interested apparently in nothing but the empty witness-stand, on the right of the jury and the left of the judge. She knew that the reporters, and the few outsiders that had managed to crowd in with the talesmen, scarcely took their eyes from her face, and that the staff artists were sketching her. All her complacency had fled before certain phases of this preliminary ordeal for which no one had thought to prepare her. The constant reiteration of that question of horrid significance: "Have you any objection to capital punishment as practised in this State?" struck at the roots of her courage, enhanced her prison pallor; and that immovable battery of eyes, hostile, or coldly observant, critical, appraising, made her long to grind her teeth, to rise in her chair and tell those men and women, insolent in their freedom, what she thought of their vulgar insensibility. But not for nothing had she schooled herself, and not for a moment did her nerves really threaten revolt. She had taken her second sleeping powder on the night preceding the opening of the trial, but on the

third morning she awakened with the momentary wish that she had preserved Dr. Anna's poison, or could summon death in any form rather than go over to that courthouse and be tried for her life. For the first time she understood the full significance of her condition.

But Mrs. Battle, Mrs. Cummack and Mrs. Gifning, when they bustled in to "buck her up," congratulated her upon "not having a nerve in her body"; and although she had felt she must surely faint at the end of the underground tunnel between the jail and the rear of the courthouse, she had walked into that room of dread import upstairs with her head erect, her eyes level, and her hands steady. She may have built a fool's paradise for herself, assisted by her well-meaning friends, during the past ten weeks, and dwelt in it smugly; but as it fell about her ears she stood erect with a real courage that strengthened her soul for any further shocks and surprises this terrible immediate future of hers might hold.

On the first day, although she never glanced at a talesman, she had listened eagerly to every question, every answer, every challenge. As the third day wore on, she felt only weariness of mind, and gratitude that she had a strong back. She was determined to sit erect and immobile if the trial lasted a month. And not only was her personal pride involved. Circumstances had delivered her to the public eye, therefore should it receive an indelible impression of a worthy representative of the middle-class American of the smaller town, so little unlike the women of the wealthier class, and capable of gracing any position to which fate might call her—a type the United States of America alone has bred; also of a woman whose courage and dignity had never been surpassed by any man brought to the bar of justice on the awful charge of murder.

She knew that this attitude, as well as her statuesque appearance, would antagonise the men reporters but enchant her loyal friends, the women. Her estimate was very shrewd. The poor sob sisters, squeezed in wherever they could find a vacant chair, or even a half of one (all the tables being reserved for the men), surrendered in a body to her cold beauty, her superb indifference, soul and pen. A unanimous verdict of guilty brought in by that gum-chewing small-headed jury merely would petrify these women's belief in her innocence. She was vicarious romance; for women that write too

much have little time to live and no impulse to murder any one in the world but the city editor.

On the morning of the fourth day, the space between the enclosure and the walls of the courtroom was filled with spectators from all over the county, many of them personal friends of Mrs. Balfame; but New York City would not become vitally interested until the business of examining the minor witnesses was concluded. Behind and at the left of Mrs. Balfame were the members of her intimate circle. Occasionally they whispered to her, and she smiled so sweetly and with such serene composure that even the men reporters admitted she looked younger and more feminine—and more handsome—than on that day of the interview which had proved her undoing.

"But she did it all right," they assured one another. They must believe in her guilt or suffer twinges in that highly civilised and possibly artificial section of the brain tabulated as conscience. Their fixed theory was that she had mixed the poison for Balfame and then, being in a highly nervous state, and apprehensive that he would capriciously refuse to drink it, had snatched her pistol as she heard his voice in the distance, dashed downstairs and out into the grove, and fired with her established accuracy.

She had had plenty of time between the crime and her arrest to pass the pistol to one of her friends, or even to slip out at night and drop it in the marsh.

As to the shot that had missed Balfame and entered the tree: it was either by one of those coincidences more frequent in fact than in fiction that another enemy of Balfame's had been lurking in the grove, intent upon murder; or the bullet hole was older than they had inferred. The idea of a lover they scoffed at openly. And it was one of the established facts, as they reminded their sisters of the press, that the worst women in history had looked like angels, statues or babies; they had also possessed powerful sex magnetism, and this the handsome defendant wholly lacked.

The theory of the women reporters was far simpler. She hadn't done it and that was the end of it.

The judge, a tall imposing man with inherited features and accumulated flesh, very stately and remote in his flowing silk gown, looked unspeakably bored for three days, but was visibly hopeful as he swept up to his seat on the rostrum on Thursday morning. As the justice for Brabant, Mr. Bascom, had not been on speaking terms with the deceased, and as his wife was one of the defendant's closest friends, an eminent Supreme Court justice from one of the large neighbouring cities had been assigned to the case.

The reporters of the evening newspapers, were packed closely about a long table parallel with the one just below the jury-box, and behind were four or five smaller tables dedicated to the morning stars. A large number of favoured spectators had found seats within the railings, but a passage was kept open for the boys who came up at regular intervals to get copy from the "evening table" for the telegraph operator below stairs.

Broderick's seat beneath the rostrum commanded both the witness-box and Mrs. Balfame. He had used his influence to have Alys Crumley assigned to the position of artist for the *Woman's Page of the News*, and she and Sarah Austin shared a chair.

The trial began. Dr. Lequer established the fact of the death, described the course of the bullet, demonstrating that it had been fired by some one concealed in the grove. A surveyor followed and exhibited to the jury a map of the house and grounds. Three of the younger members of the Country Club, Mr. John Bradshaw Battle, cashier of the Elsinore Bank; Mr. Lemuel Cummack, son of Elsinore's esteemed citizen, Mr. Sam Cummack; and Mr. Leonard Corfine, a commuter, had been subpœnaed after a matching of wits. Overawed by the solemnity of the oath, they gave a circumstantial account of the quarrel which had preceded the murder but a few hours—all, in spite of constant interruptions from the defendant's counsel, conveying the impression, however unwillingly, that Mrs. Balfame had been livid with wrath and the man who had been her husband insufferable. It was a master-stroke of the district attorney to open his case with the damaging testimony of two members of the loyal Elsinore families. As for Mr. Corfine, although born and brought up without the pale, he had been graciously received upon electing to build his nest in Elsinore and his young wife was one of Mrs. Balfame's meekest admirers.

Mr. Broderick muttered, "H'm! H'm!" and Mr. Bruce squirmed round from the "evening table" and jerked his eyebrows at his senior. "Bad! Bad!" muttered Mr. Broderick's neighbour. "But watch her nerve. Can you beat it? She hasn't batted an eyelash."

Two former servants that had preceded Frieda in the Balfame menage testified that the household consisted of three people only, the master and mistress and the one in help. A gardener came three times a week in the morning. No, none of the old spare rooms was now furnished, and the Balfames never had had visitors overnight.

The prosecution rested, and Mr. Rush approached the bar according to usage and asked that the case be dismissed. The judge ruled that it should proceed; and immediately after the noon recess the first witness for the defence was called. This was Mr. Cummack, and he testified vigorously to the harmonious relations of the deceased and his amiable wife; that Mrs. Balfame—who was always pale—had treated the episode out at the Club in the casual manner observed by all seasoned and intelligent wives, the conversation over the telephone in his house proving that the domestic heavens were swept clean of storm-clouds; and that the deceased had departed for his home quite happy and singing at the top of his lungs. He had often remarked jocularly (his was a cheery and jocular temperament) that he expected to die with his boots on, especially since he had taken to bawling Tipperary in the face of American Germany.

It is not to be imagined that Mr. Cummack was able to deliver himself of this valuable testimony without frequent and indignant interruptions from the district attorney, whose "irrelevant, incompetent and immaterial" rang through the courtroom like the chorus of a Gilbert and Sullivan opera. Mr. Gore, a wasp of a man with snapping black eyes and a rasping voice emitted through his higher nasal passages, succeeded in having much of this testimony stricken out, but not before the wily Mr. Rush, who stood on tiptoe, as alert and nervous as a race horse at the grandstand, had by his adroit swift questions fairly flung it into the jury-box. It was of the utmost importance with an obstinate provincial jury to establish at once a favourable general impression of the prisoner.

When, in the theatre, a trial scene is depicted, it is necessary to interpose dramatic episodes, but no one misses these adventitious incidents in a real trial for murder, so dramatic is the bare fact that a human being is battling for his life. When the prisoner at the bar is a woman reasonably young and good looking, the interest is so intense and complete that the sudden intrusion of one of the incidents which have become the staples of the theatre, such as the real culprit rushing into the courtroom and confessing himself, a suicide in the witness-box, or dramatic conduct on the part of the defendant, would be resented by the spectators, as an anti-climax. Real drama is too logical and grimly progressive to tolerate the extrinsic.

The three other men who had been at Mr. Cummack's house that night were called, and corroborated his story. They all wore an expression of gentle amusement as if the bare idea of the stately and elegant Mrs. Balfame descending to play even a passive rôle in a domestic row was as unthinkable as that any woman could find aught in David Balfame to rouse her to ire.

"By Jove!" whispered Mr. Broderick to Mr. Wagstaff of the *Morning Flag*, "just figure to yourself what the line would be if she had been caught red-handed and was putting up a defence of temporary insanity caused by the well-known proclivities of that beast. A good subject for a cartoon would be Dave Balfame in heaven with a tin halo on, whitewashing Mrs. B., weeds and all. The human mind is nothing but a sewer."

The afternoon session was also enlivened by the testimony of several of the ladies who had been members of the bridge party on the day of Mr. Balfame's unseemly conduct at the Club. They testified that although Mrs. Balfame naturally dissolved upon her return to the card-room, there had been nothing whatever in her demeanour to suggest seething passion. Mrs. Battle, who was an imposing figure in the witness chair, her greater bulk being above the waist, tossed her head and asseverated with refined emphasis that Mrs. Balfame was one of those rare and exquisite beings that are temperamentally incapable of passion of any sort. Her immediate return to her home was prompted more by delicacy than even by pain. Miss Crumley's pencil faltered as she listened. She could not give a jeering public even a faithful outline of a woman as devoted to the sacred cause of friendship and Elsinore as Mrs. Battle.

The testimony of none of these ladies was more emphatic than that of Mrs. Bascom, wife of the supplanted justice, and she added unexpectedly that she had been so upset herself that she too had left the clubhouse immediately, and, her swift car passing Dr. Anna Steuer's little runabout, she had seen Mrs. Balfame chatting pleasantly and without a trace of recent emotion.

Mrs. Balfame almost relaxed the set curves of her mouth at this surprising statement. She recalled that a car had passed and that she had wondered at the time if any one had noticed her extreme agitation. She kept her muscles in order, but unconsciously her eyes followed Mrs. Bascom, as she left the witness-chair, with an expression of puzzled gratitude.

The District Attorney turned to the reporters with a short sardonic laugh, and Mr. Broderick shook his head as he murmured to Mr. Wagstaff:

"Can you beat that? And yet they say women don't stand by one another."

"Good for the whole game, I guess," replied the young *Flag* star, who was enamoured of a very pretty suffragette.

The Judge rose, and the afternoon session was over. The great case of *The People vs. Mrs. Balfame* rested until the following morning.

CHAPTER XXX

Mrs. Balfame walked back through the now familiar tunnel more hopeful and elated than any one in the courtroom would have inferred from her chiselled manner.

"I almost feel that I have the courage to look at the sketches of myself in the papers," she said lightly to Rush, who escorted her. "I haven't dared open a paper since Monday morning."

"Better not." Rush also was in high spirits. "Keep your mental mercury as high as possible. It doesn't matter, anyhow. You'll be clear in less than a week. The impression all those splendid friends of yours created knocked the prosecution silly."

"I have not once glanced at the jury," said Mrs. Balfame proudly, "and I never shall. All I was conscious of was that they were chewing gum, and that the man above me snorts constantly."

"That's Houston. He's likely to be predisposed in your favour on account of your intimacy with Dr. Anna. And he's a just man, of some intelligence. I fancy none of them is in the mood to be too hard on any one, for they are having a fine vacation in the Paradise City Hotel. Each has a big room with a soft bed and rich and delicate food three times a day. If they don't get indigestion they will be inclined to mercy on general principles. I engineered the housing of them. Gore was all for putting them up at the Dobton Inn, where they would have grown as vicious as starved dogs. I won my point by reminding him that certain men of that sort try to get on a jury for the sake of having a rest and a soft time, and if they aren't coddled, they are equal to falling ill and forcing the court to begin the trial over again. You're all right."

They were in the jail sitting-room, and she stood with her head thrown back and her eyes shining. The moment they had entered she had removed her heavy hat and veil and run her hands through her crushed hair. Rush, who was very nervous and excited, made a swift motion forward as if to seize

her hands. But it was only later, when alone, that she realised that possibly she had brushed aside an opportunity to rekindle a flame which she alternately feared and doubted was burning low; she was not thinking of him and exclaimed happily:

"It is quite a wonderful sensation to feel that you have made friends like that. My! how they did lie! And so convincingly! For a moment I was quite the outsider and deeply impressed with the weakness of the case against the accused. Here they come. I feel as if I never really loved them before." And she ran to the door to admit the elated trio who that day had made their noblest sacrifice to the cause of friendship. Mrs. Balfame kissed them and embraced them, and dried their excited tears, while Rush, his contemptible part in the day's drama forgotten, slunk down the stairs and out of the jail.

He met Alys Crumley as she was about to board the trolley for Elsinore, and she stepped back and congratulated him warmly.

"Your brain worked like blades of chain lightning," she said with real enthusiasm. "I know you have only begun, but I can well imagine—wasn't Mrs. Balfame delighted?"

"With her friends' testimony," he replied gloomily. "I don't seem to come in."

There are some impulses, born of sudden opportunity, too strong for mortal powers of resistance. "Come home to supper," said Miss Crumley, with the same spontaneous warmth. "You look so tired, and Mother promised me Maryland chicken and waffles. Besides, I want to show you my drawings. I am so proud of being a staff artist."

"I'll come," said Rush promptly.

CHAPTER XXXI

The following day was also taken by the examination of witnesses for the defence. Dr. Lequer, who had been called in occasionally by the Balfames when Dr. Anna was unavailable, and who was also an old friend of the family, asserted that so far as he knew there never had been a quarrel between husband and wife. Mrs. Balfame, in fact, was unique in his experience, inasmuch as she never looked depressed nor shed tears.

He was followed by a woman who had been general housemaid in the Balfame home for three years. She had left it to reward the devotion of a plumber, and between her and Frieda there had been a long line of the usual incompetents. Mrs. Figg testified with an enthusiasm which triumphed over nerves and grammar that although she guessed Mr. Balfame was about like other husbands, especially at breakfast, Mrs. Balfame was too easy-going to mind. She'd never seen her mad. Yes, she was an exacting mistress, all right, terrible particular, and she never sat with the hired girl in the kitchen and gossiped, and you couldn't take a liberty with her like you could with some; but that was just her way, naturally proud and silent-like. She was terrible economical but a kind mistress, as she didn't scold and follow up, once she was sure the girl would suit, and not a bit mean about evenings and afternoons off. She did up her own room and dusted the downstairs rooms, except for the weekly cleaning. No, she never'd seen no pistol. It wasn't her way to look in bureau drawers. No, she'd never seen or heard any jealousy, tempers, and so forth, and had always taken it for granted that Mrs. Balfame wasn't on to Mr. Balfame's doings—or if she was, she didn't care. There was lots like that.

The district attorney snarled and trumpeted throughout this placid recital, but Mrs. Figg took no notice of him whatever. She had been thoroughly drilled, and looked straight into the sparkling blue eyes of Mr. Rush as if hypnotised.

Other minor witnesses consumed the afternoon, and once more Mrs. Balfame returned to the jail with glowing eyes. The women reporters were

elated. The men made no comment as they filed out of the courtroom, but their whole bearing expressed a lofty and quiet scorn.

"It's fine! fine!" exclaimed Cummack, sitting down beside Rush at the table below the empty jury-box. "But I do wish Dr. Anna was available. She stands head and shoulders above every one else in the estimation of these jurymen; she doctored the children and confined the wives of pretty near all of them. There's no stone she wouldn't leave unturned."

"She's pretty bad, isn't she?" asked Rush. "Would there be any chance at all of getting a deposition—in case things went wrong?"

"Things ain't goin' wrong; but as for Anna, she's out of it, and everything else, I guess. I was out to the hospital yesterday, for I've had her in mind; but although she was better for a time, she's worse again. But say—what do you think I discovered? Those damned newspaper men have been hangin' round out there. That young devil Broderick—"

Rush was sitting up very straight, his eyes glittering. "But he surely hasn't been able to see her? I don't believe any sort of graft would get by Mrs. Dissosway—"

"You bet he hasn't been able to see Anna, and just now they're not leaving her for a moment alone, like they did at first. But Broderick seems to have the idea wedged in his brain that Mrs. Balfame confessed to Anna and that poor old Doc lost the pistol somewhere out in the marsh—"

Rush made an exclamation of disgust. "I can't understand Broderick. He's got his trial all right, and it isn't like him to hound a woman—"

"I said as much to him, and though he wouldn't talk much, I just gathered from something he let fall that he was afraid if the crime wasn't well fixed onto Enid some innocent person he thought a lot more of might come under suspicion. Can you guess who he had in mind?"

Rush pushed back his chair and sprang to his feet. "Good Lord, no. One case at a time is all my brain is equal to." He was almost out of the empty courtroom when Cummack caught him firmly by the shoulder.

"Say, Dwight," he said with evident embarrassment, "hold on a minute. I've just got to tell you that somehow or other I sensed *you* when Broderick was trying to put me off. There are a good many things; they've been comin' back—"

Rush turned the hard glittering blue of his eyes full upon Mr. Cummack, whose shrewd but kindly gaze faltered for a moment. "Do you believe I did it?" demanded Rush.

"Well, no, not exactly—that is, I'd know that if you had done it, it would have been because you'd got the idea into your head that Enid was having an awful row to hoe, or because he'd attacked her that night. It wouldn't have been for no mean personal reason, and no one knows better than I that the blood goes to the head terrible easy at your age and when a beautiful woman is in question. If I'd guessed it before, I'm free to say I'd have rushed your arrest in order to spare Enid, if for no other reason. But as it's gone so far and she's sure to get off,—and you wouldn't stand much show,—the matter had best stay where it is; particularly—well, I may as well tell you Enid sort of confided to Polly that you had offered to cover her name with yours as soon as she got out; and if you've been in love with her all this time, as I guess you have been—well, Dave can't be brought back. And—well, I've lived out West and it isn't so uncommon there for a man to shoot on sight when he's mad about a woman and a few other things at the same time. Dave was my friend, but I guess I understand."

Rush had withdrawn stiffly from the friendly hand laid on his shoulder. "I have asked Mrs. Balfame to marry me," he said. "But she has by no means consented."

"But she means to. Don't let it worry you. Women are queer cattle. Nail her the next time she's in the melting mood. She gets 'em oftener than she ever did before, and I guess you see her alone often enough."

"Oh, yes, I've seen her alone nearly every day for ten weeks."

Cummack narrowed his eyes, and his face, generally relaxed and amiable, grew stern and menacing. "You don't love her!" he exclaimed. "You don't! Like many another damned fool, you've compromised your very life for a

woman, only to be disenchanted by seeing too much of her. But by God you've got to marry her—"

They were standing at the head of the winding stair in the rotunda, and several of the reporters were still in front of the telephone booth below.

"Hush!" said the lawyer peremptorily. "I mean to marry Mrs. Balfame if she accepts the proposal I made to her the day she was arrested. I have said nothing to warrant your jumping to the conclusion that I no longer wish to marry her. But by God! if you ever dare to threaten me again—" And he raised his fist so menacingly, his set face was so tense and white, his eyes bore such a painful resemblance to hot coals, that Cummack retreated hastily.

"All right! All right!" he called up from the first turning. "Don't fancy I think I could. And what's passed between us is sacred. S'long."

CHAPTER XXXII

On the morrow the first witness called by the prosecution in rebuttal was old Kraus, and now it was Mr. Rush's turn to shout "Immaterial, Irrelevant and Incompetent," so that it was well-nigh impossible for the jury to do more than guess what the choleric person with a strong German accent was talking about. The district attorney fought valiantly to draw forth the story of Frieda's nocturnal visit to the Kraus home in search of advice after hearing Mrs. Balfame enter the kitchen from the yard, but his efforts ended in a shouting contest between the prosecution and the defence, both deserting their positions before the jury-box and wrangling before the Judge like two angry school-boys. Alys Crumley longed to laugh aloud, but not so the Judge. He asked them curtly how he was to know what was their point of dispute if they both talked at once. He then commanded Mr. Rush to state in as few words as possible what he was objecting to; and when the counsel for the defence had stated his purely legal reasons for blocking this purely hearsay testimony, the Judge abruptly threw Mr. Kraus out of court. Rush, flushed and triumphant, returned to his chair below the jury-box, and Mr. Gore sulkily called the name of Miss Frieda Appel.

There was no question of poor Frieda's making a good personal impression upon spectators or jury, no matter how worthy her motives. She had saved almost every penny of her wages since coming to America; it had been her lover's intention to emigrate to Brabant County as soon as his term of service was over, and her housewifely intention to greet him with a furnished cottage. Since the war began, she had sent all her savings to East Prussia lest her people starve.

Dress in any circumstances would never tempt her. Economy was her religion, and she cherished no illusions about her face and form. To-day she wore a skirt of an old voluminous cut and a jacket with high puckered sleeves. The colour had once been brown. Her coarse blonde hair met her eyebrows in a thick bang, and its high knob was surmounted by a sailor hat a size too small. Her thick-set body was uncorseted, and her indeterminate

features were lost in the width and flatness of her face. Only the little eyes beneath the heavy thatch of hair alternately glowed dully and spat fire.

The Judge sternly suppressed the titter that ran over the court-room as this caricature mounted the witness-stand, and the district attorney, in spite of frequent interruptions, elicited a remarkably clear and coherent statement. The Judge sustained him, for here was a real witness, and Miss Appel not only had been as thoroughly rehearsed as Mrs. Figg, but she had a neat precise little mind set with rows of pigeonholes that ejected their contents in routine when her coach pressed the cognate button.

She had come home abruptly from the dance-hall as she had an insupportable toothache—had run all the way, as she had some toothache-drops in her room. She was in such agony she hardly had noticed that her friend Conrad Kraus was behind her. When she reached her room she had applied the drops, and to her horror they made the pain worse. After walking the floor for perhaps ten minutes—she didn't know or care whether it was ten or fifteen minutes—she was just starting to go down-stairs and heat some water for her bag when she heard the kitchen door open and shut. She held her breath and did not answer when Mrs. Balfame called, as she feared she was wanted and was determined to do nothing for anybody while her tooth ached like that.

Mrs. Balfame's voice had sounded quite breathless, as if she had been running. In a moment Frieda heard her go into the dining-room then back to the kitchen, and turn on the tap,—not the filter, which made no noise,—and then she heard one glass clink against another on the pantry shelf. After that, Mrs. Balfame went upstairs from the front hall and the witness returned to her room and threw herself on the bed, where she remained until Mr. Cummack came and asked her to go downstairs and make coffee. By this time her tooth ached so she didn't care what she did.

Cross-questioned, she admitted that Mrs. Balfame was in the habit of drinking a glass of filtered water the last thing at night. No, she had not heard her go out, but only come in. But why, if Mrs. Balfame saw nothing outside to frighten her, or if she hadn't been out, was she so short of breath? As may be imagined, mere speculation on Miss Appel's part was cut short by Mr. Rush, who interrupted her constantly. Yes, she had heard what she

now knew had been a shot but she had paid no attention. Who would, with a red-hot iron forcing one's tooth down through one's jaw?

Even the scornful questions of counsel which forced her to admit that she had lied to the coroner neither perturbed her nor made any impression on jury, press, or spectators. Every one present had suffered from toothache, and two farmers in the box showed their tusks in an appreciative grin when she replied tartly that she didn't know or care anything that day but tooth, tooth, tooth. It was manifest that she was far too conservative to have had it out at once, to say nothing of the cost.

The only question she was not prepared for was the abrupt challenge of Mr. Rush as to how she could prove that young Kraus had followed her if she had neither seen nor spoken to him during that short run from Main Street. But although she was visibly perturbed at being confronted with a set of words to which no neat little pigeon-hole responded, it was so evident she was firmly convinced her friend had accompanied her, that for Rush to make too much of his solitary point would prejudice his case, and he let her go.

Conrad Jr. followed, and his story was equally straightforward. He also made a good impression. True, he had a very small closely cropped head, with eyes too small and ears too large, but he held himself with arrogance, and he was well dressed in a new grey suit and pink shirt. Born in the United States, it was manifest that he was proud not only of being an American citizen but of the country's choicest vintage. He had been sent to the public school until he was sixteen, had studied conscientiously, and his grammar was quite as good as that of the District Attorney, who in emotional moments confused his negatives. But, even Rush, whose advantages had been as superior as his natural equipment, became a good nasal American when excited, opened into vowels, and freely translated *you* into *yer*. It is these persistent characteristics, so racy of the soil, which cheer us when apprehending that our original Americanism may in time be obliterated by the foreign influx.

No, said young Kraus, he had no sentimental interest in Frieda. (He smiled.) And he was engaged to a young lady to whom he had been attentive for three years. But he felt like a brother to Frieda; she had come to his father's

house direct from Germany, their families having been friends for generations. It was not only his duty but his pleasure to dance with her, she being "the best of the bunch down at the hall."

As he was dancing with her when her toothache became unendurable, it was natural that he should see her home; in fact, he always saw her home when it was convenient. Of course if he had to catch the last trolley for Dobton in a hurry, that was another matter.

When she had entered the house, he had waited, thinking she might want some other drops or possibly a dentist. Once when he had had a toothache, he had been obliged to go to a dentist's house at night. His papa had sent him, and naturally he thought of it as a possibility in Frieda's case.

Then the kitchen door opened and a woman came out.

At this point the interest in the court-room became intense. Even the blasé young reporters sat forward, their pencils poised. The Judge wheeled his chair to the right and stared down fixedly at the back of young Kraus' head. The district attorney balanced himself on his heels, his thumbs hooked in the sleeves of his vest, and Rush stood with his back curved as if to spring down the witness' throat with a wild yell of "Immaterial, irrelevant and incompetent." Only Mrs. Balfame sat like a statue that had neither eyes to see nor ears to hear.

Yes, Mr. Kraus recognised Mrs. Balfame's figure and walk. She was one in a thousand for looks, and taller than many men. She had on a long dark ulster and a black scarf round her head. The kitchen light was behind her—

Here there was another furious contest between the chief counsel and the district attorney, but the Judge ordered the young man (who had consumed a toothpick imperturbably) to proceed with his story. Mrs. Balfame had slipped round the corner of the house, listened intently, walked for a minute toward the back of the grounds,—he could just see the moving shadow in the darkness,—turned abruptly and entered the grove. Naturally interested, he waited to see what she was up to; and then—possibly three or four minutes later—he heard Balfame singing "Tipperary," and a moment or two after that the shot,—one shot, not two; he took no stock in the theory that

there had been two shots,—followed by loud voices from the other side of the avenue.

Then he "beat it," that being his natural instinct at the moment. His papa had taught him to be cautious and to keep clear of other people's fights. He had never been close up against a crime, and he hoped he never should be. He walked through the adjoining grounds at the back and then into Balfame Street and took the next trolley home. He didn't feel like dancing after what he guessed had happened.

No, he had heard no sound of running footsteps, but he stood for a moment near the back fence of the Lequer place; there were people in the library until some man ran in calling for the doctor to come at once—and he did see a car leave the lane behind the Balfame place. He had thought nothing of it, however, as automobiles were everywhere all the time. No, he hadn't tried to see whether the car was driven by a man or woman or how many occupants it had. Not only was the night very dark (as far as he remembered, the car had no lamps), but his one idea was to get out of the neighbourhood.

Rush put him through a grilling cross-examination, and although he could not shake his testimony, he made use of all his practised arts to exhibit the youth as a sorry coward who ran away when he heard a revolver-shot instead of rushing with the common instinct of American manhood to ascertain if it were the woman herself who had been the victim. How much had he been paid to give this testimony withheld at the coroner's inquest? Young Kraus' ruddy hues had deepened to purple some time since, and he shouted back that he had come forward only when that woman's lying friends were trying to fasten the crime upon his innocent papa. Here he was sternly admonished by the Judge to confine his answers to "Yes" and "No" unless he could control his temper. Rush forced him to reiterate that he had not had a glimpse of Mrs. Balfame's face that night, that he never had spoken to her at any time; and the lawyer remarked crushingly that the young man's brain must have been in a hopelessly confused state if he saw a car leave the lane so soon after the shooting—a car, moreover, without lights—and failed to connect this phenomenon with the immediately previous sound of a pistol-shot. It was evident that his brain moved so slowly that it had taken him almost a week to put a good story together.

Young Kraus left the stand with his inborn sense of superiority over mere Americans severely shaken, but although his small angry eyes encountered more than one sneer, and many of those hostile spectators looked as if they would laugh outright were it not for their awe of the Judge, he had injured Mrs. Balfame far more than himself. Few believed him to be lying or that he had seen a vision, not a real woman, leave the Balfame house by the kitchen door. He was known to have been as sober as usual on the night of the dance, and as the evidence against his father had been regarded as fantastic from the first, there was no conceivable cause for him to lie.

Mr. Gifning, Mr. Battle and Mr. Carden, who were the first to reach Balfame, after he fell, were forced by the district attorney to give damning evidence against Mrs. Balfame. Her room was in the front of the house; if in it, she could have heard the shot as plainly as they on Mr. Gifning's veranda. But she did not come downstairs or manifest herself in any way until they had had time to summon the coroner (who to be sure lived round the corner) and Dr. Lequeur. It must have been quite six minutes before she opened her window and demanded the reason for the disturbance at her gate. At least, it had seemed that long. No, they never confused a revolver-shot with a bursting tire. They had when cars first came into use, but they had learned to differentiate long since.

When Mr. Rush asked them sarcastically why one at least of the party had not searched the grove and attempted to capture the murderer, they replied they had by no means been sure that the shot had come from the grove. It might have come from anywhere. It was only after the doctor's examination that the direction of the bullet had been agreed upon. Later they did search the grove with a dark-lantern brought from Mrs. Gifning's house; in fact, they searched every inch of the grounds, and their only reward was abuse from the police.

These three witnesses, examined after the noon recess, occupied very little time. It was at ten minutes to four that the district attorney electrified every one in the courtroom by calling to the stand a man whose name up to that moment had not been mentioned in the case. The reporters looked deeply annoyed; even Mrs. Balfame raised her head a trifle higher as if listening; Rush's pale face was paler, the lines in it seemed deeper, as he sprang to his feet, alert at once, his nostrils expanding. The district attorney balanced

himself on his heels, his thumbs in his waistcoat armholes, a grin of triumph on his sharp little face.

The name called was James Mott, and it was borne by a highly reputable drummer who had made sales for many years to houses carrying general merchandise, including that of Balfame & Cummack. Mr. Mott was as well known in Brabant County as any of its inhabitants; in fact, he was engaged to an estimable young lady of Elsinore, and hence, so it soon transpired, had happened to be in town on the fatal night. For once the acumen of the district attorney had proved more penetrating than that of the brilliant counsel for the defence.

Mr. Mott took the stand. He was a clean-shaven upstanding American with the keen eye and grim mouth of the travelling salesman who knows that he must do or die. He looked as honest as urbane, and for the first time Mrs. Balfame's heart sank; and her hands, so the women reporters noted for the benefit of the public, clenched for a full minute.

Although Rush stood with his head stretched forward, he thought it wise to let the man tell his story in his own way. Interruptions would have been of little avail; the Judge would sustain the district attorney if it were patent the witness were telling the truth; and as he was completely in the dark himself it were better to wait until he got a promising lead. He knew that no man's brain could work more quickly than his.

Mr. Mott being solemnly sworn, deposed that on the night of the shooting he had been taking supper with his friend Miss Lacke, who lived at Number 3 Dawbarn Street, just round the corner from Elsinore Avenue. He left her house at a little before eight, as he was obliged to catch the eight-ten for New York. As he closed the gate behind him, he saw David Balfame walk unsteadily past, shouting "Tipperary"; and being a friend of many years' standing, had concluded to follow and see Balfame safely inside the house. He would lose but a minute or two, and it seemed to him a decent act, for it was possible the man might fall and hurt himself before he reached his home. Mott was so close behind him that he must have just escaped the shot or shots himself, and although he jumped backward he saw distinctly somebody run out of the grove and toward the back of the house. Whether it was a man or a woman he had no idea, but the figure was tall—yes far taller

than either young Kraus or Frieda. Then, he said, he doubled on his tracks and got back into Dawbarn Street as quickly as he could. He blushed as he admitted this, but added that he knew from the shouts on Gifning's veranda that men were hastening to Balfame's aid, and he had to catch the eight-ten or lose his night train to the West and a big piece of business. Moreover, he didn't like the idea of giving testimony against anybody; he abhorred the institution of capital punishment. For the same reason he did not come forward until the District Attorney ferreted him out, as he was afraid the running figure might have been Mrs. Balfame and she was the last person he wished to harm, innocent or guilty.

No one could doubt that he told the truth and hated to tell it. Nor could any one jump to the conclusion that he was the assassin; he had as little motive for killing Balfame as any of the other men of Brabant County with whom he had been for years on the same cordial terms.

All that Rush could do was to make him admit that perhaps he was naturally confused by the flash, the report almost in his ear, the man sinking at his feet, and only fancied he saw a running form; the delusion would be natural in the circumstances, particularly as his thoughts seemed to have been concentrated upon getting out of the way. Mr. Mott admitted almost too eagerly that this might be true, but added that when the district attorney, who was a cousin of Miss Lacke, as well as an old friend of his own, had squeezed the story out of him bit by bit (the form of extraction was supplied by Mr. Rush), that had been his impression; he seemed to have that tall running figure imprinted upon his retina, as it were. Of course it might be just imagination. He wished to God he could swear it was. When asked sharply if even one of his parents was German, he recovered his poise and replied haughtily that he was straight American and as pro-Allies as the best man in the country. He had never entered Old Dutch's beer garden; his choice was a hotel bar, anyhow; he avoided saloons.

Rush had a diabolical power of making a witness look ridiculous, but the American mind is essentially a just mind, normally unemotional, and a very magnet for facts. As the Judge adjourned the court until Monday the sob-sisters trailed out dejectedly, after a vain endeavour to get close to Mrs. Balfame; the young men sauntered forth with their heads in the air, and

Rush's lips were so closely pressed together that his face looked pure granite. As a matter of fact, his heart felt like water.

Mrs. Balfame, who had not permitted herself to show a flicker of interest while Mott was on the stand, rose as the Judge left the room. She smiled upon each of her friends separately and kissed the prominent ladies of Elsinore who had sat beside her throughout that trying day.

"Please don't come over to the jail," she said. "I know you are worn out, and I have a bad headache. I must lie down. But do please come to-morrow. You are all too good. Thank you so much."

Then with a faint smile and a light step she followed the sheriff through the long tunnel, a horrible vision dancing before her eyes.

CHAPTER XXXIII

When Rush arrived at the sitting-room of the jail's private suite he found Mrs. Balfame, not in tears as he had nervously anticipated, but distraught, pacing the room, her hands in her disordered hair.

"I am done for! done for!" she cried as Rush hastily closed the door. "It would have been better if I had told the truth in the beginning—that I *had* gone out that night. It was not such a bad excuse,—that I thought I saw a burglar down there,—and it was God's truth. Or I could have said I was walking about the grounds because I had a headache—"

"It never would have gone down. If I could have discovered who the other person in the grove was—found him and his forty-one-calibre revolver, well and good. Failing that, our line of defence is the best possible. I will admit, though," he too was pacing the room,— "it looks bad to-day, pretty bad. There isn't the ghost of a chance to prove Mott was the man. Gore has the time to the minute he left Susie Lacke's; you must have gone out some time before—"

"Oh, he didn't do it. I've not thought it for a moment. No such luck. It was some enemy who went straight to New York—in that car. But I—I—Auburn—the electric chair—they all believed—Oh, my God! God!"

She had tossed her arms above her head then flung herself down before the table, her face upon them, rocking her body back and forth. Her voice was deep with horror and despair, her abandonment far more complete than on the day of her arrest; and wrought up himself, Rush was stirred with the echo of all he had felt that day. In the semi-intimacy of these past ten weeks, when he had talked with her for hours at a time, she had disillusioned him in many ways, bored him, forced him to admit that her lovely shell concealed an uninteresting mind, and that the only depths in her personality that he was permitted to glimpse were such as to make him shrink, by no means to excite that fascination even in repulsion peculiar to the faults of a more passionate nature. He still thought her the most beautiful woman he had ever seen, however, and if it was beauty which now

left him cold, his admiration of her had been renewed these last three days when her manner and appearance in court had been beyond all praise. He had excoriated himself for his fickleness, his contemptible failure as a lover; and the more he hated himself the more grimly determined he was to behave precisely as if he still loved and revered her as he had when ready to sacrifice life itself for her sake. He was in such an *impasse* that he cared little what became of himself.

He leaned over the table and pressed his hands hard on her arms.

"Listen!" he said peremptorily. "You never will go to Auburn. You will leave this jail not later than the middle of next week, a free woman. If I cannot get you off by my address to the jury,—and it will be the supreme effort of my life,—I'll take the stand and swear that I committed the murder myself."

"What?" She lifted her head and stared up at him. His face was set, but his eyes glowed like blue coals.

"Yes. I can put it over, all right. You remember I went to your house from the Club that day. Nobody saw me go; no one saw me leave. From the moment I left you, until the following morning, no one—no one that I know of—saw me that night, except Dr. Anna. We met out on the road leading to Houston's farm, and she drove me in. She believes I did it. So does Cummack, and if necessary he will manage to get an affidavit from her—"

Mrs. Balfame had sprung to her feet. "Did you do it? Did you?"

"Aha! I can make even you believe it. No, I did not, but I couldn't prove an alibi if my life depended upon it. I can make the Judge and the jury believe —"

"And do you think I would permit—"

"They will believe me. And Dr. Anna—who would doubt her testimony that my appearance and conduct were highly suspicious that night on the marsh road? And what could you disprove? There was a man in that grove, was there not?"

"Yes, but not you; I don't know why, but I could swear to that. I shall—if you do anything so mad—tell the whole truth about myself."

"What good would that do? Balfame was killed with a forty-one revolver. Yours was a thirty-eight."

"How do you know that?"

"I found it the night I spent in your house—the night of your arrest. I knew that you never would have gone out to head off a burglar without a revolver—any more than the jury would have believed it. I found the pistol. Never mind the long and many details of the search. It is in my safe. I kept it on the off chance that it might be necessary to produce it after all."

"But I fired at him. I hardly knew that I was firing, until I felt the revolver in my hand go off. Perhaps it was a suggestion from that tense figure so close to me, intent upon murder. Perhaps I merely felt I must—must—I have never been able to analyse what I did feel in those terrible seconds. It doesn't matter. I did. And you? You know I fired with intent to kill. Did you guess at once?"

"Oh, yes. But it doesn't matter. You were not yourself, of course. You had what is called an inhibition—as maddened people have when fighting their way out of a burning theatre. I only wish you had told me. I—that is to say, it is never fair to keep your counsel in the dark."

"You mean you wish I had not lied!" She caught him up with swift intuition. "Well, to-day I would not, but then—well, I was full of pettiness, it seems to me now. But although I am far even yet from being a fine woman,—I know that!—I am not a poor enough creature to let you die for me. Oh, you are far too good for me. I never dreamed that a man would go as far as that for a woman in these days. I thought it was only in books—"

"The veriest trash is inspired by the actual occurrences of life—which is pretty much the same in books as out. And I guess men haven't changed much since the world began, so far as making fools of themselves about a woman is concerned."

As she stood with one hand pressed hard against the table she was far more deeply moved than a few moments since by fear, although outwardly calm.

She had climbed far out of her old self within these prison walls, but she saw steeper heights before her, and she welcomed them.

"Then," she said deliberately, "I must cure you. Before I went out, I had prepared that glass of lemonade and put poison in it. I had planned for several weeks to kill him when a favourable opportunity arrived. I had stolen a secret poison from Anna—out of that chimney cupboard Cassie described. You see that I am a potential murderer,—and a cold-blooded one,—even if by a curious irony of fate some one else committed the deed. Now do you think I am worth giving up your life for—going to the electric chair —"

"Suppose we postpone further argument until the necessity arises—if it ever does. I fully expect you to be triumphantly acquitted. Tell me"—he looked at her curiously, for he divined something of her inner revolutions and hated himself the more that he was interested only as every good lawyer must be in human nature,— "could you do that in cold blood again?"

"No—not that way—never. I might let a pistol go off under the same provocation—that is bad enough."

"Oh, no. Remove the restraints of a lifetime—or perhaps it is merely a matter of vibration and striking the right key."

"And do you mean that—you still want to marry me?"

"Yes," he answered steadily. "Certainly I do."

"Ah!" Once more she wondered if he still loved her. But she had been too sure of him and of herself to harbour doubt for more than a passing moment. She had come to the conclusion that he had merely taken her at her word, and she knew the specialising instinct of the busy American. She had, indeed, wondered if it were not the strongest instinct he possessed. And in spite of her new humility, she had suffered no loss of confidence in herself as a woman. She vaguely felt that she had lost something of this man's esteem, but trusted to time and her own charm to dim the impression. For she had made up her mind to marry him. Not only would it be the wisest possible move after acquittal,—a decent time after,—but during sleepless hours she had come to the conclusion that she loved this brilliant knightly young man as deeply as it was in her power to love any one. And

after this terrible experience and the many changes it had wrought within her, she wanted to be happy.

He had taken up his hat. She crossed the room swiftly and laid her hand on his arm. "I could not stand one word of love-making in jail," she said, smiling up at him graciously, although her eyes were serious. "But it is only fair to tell you now that if I am acquitted I will marry you."

And stabbed with a pang of bitter regret that he felt not the least impulse to scout her authority and seize her in his arms, he bent over her hand and kissed it with cold lips, but with an air of complete gallantry.

"Thank you," he said, and went out.

CHAPTER XXXIV

Rush slept until two o'clock the next day, after a night passed at the Paradise City Hotel in consultation with two of his future partners; they had spent Saturday in the courtroom at Dobton. He had also discovered that the jury enjoyed themselves in the winter garden after dinner, and by no means in close formation. Although nominally under guard, it would have been a simple matter to pass a note to any one of them. Two, he further discovered, had been allowed to telephone and to enter the booth alone. He had been told nothing further of the intention of Cummack and other friends of his client to "fix" the jury—had, indeed, discouraged such confidences promptly; but he saw that if the enemy desired to employ the methods of corruption they need be no more intricate than those of the men that had so much more to lose if detected.

The night had been devoted to discussion of the case; he even enjoyed a friendly hour with the district attorney, who notably relaxed on Saturdays after five o'clock; and when Rush awoke on the following afternoon he immediately resolved to dismiss the whole affair from his own mind until Monday morning. He would go into the woods and think his own thoughts. They would be dreary thoughts and imbued no doubt with cynicism, himself the target; and they had passed that problematical stage in which the mind, no matter how harrowed, sips lingeringly at the varied banquet of the ego; in fact, Rush's personal problems were almost invariably settled in his subconsciousness, and rose automatically to confront the reasoning faculties without an instant's warning. He was too impatient for self-analysis; and he was the sum of his acts and of the clear mental processes of his conscious life.

The bright winter sun struck down through the close tree-tops and upon the brilliant surfaces of a recent fall of snow. The ground was hard and white; the branches of the trees were heavy laden. Not a sound broke the winter stillness but his footsteps on the winter snow. He had put on a heavy white sweater and cap, as he intended to walk for hours, and his nervous hands were in his pockets. He believed he should have the woods to himself, for

in winter it was the Country Club and the roadhouses that were patronised on Sundays; and the trolley-car which passed the wood on the line about a quarter of a mile away had, save for himself, been empty.

His face remained grim and set until he was deep in the woods, and then it relaxed to a wave of fury and disgust, finally settled into an expression of profound despair. He was but thirty-two, and the prizes of life were for such as he, and a week later he would either be in Sing Sing or bound without hope to a woman for whom his brief sentimentalised passion was dust.

It was not execution he feared, for any clever lawyer could persuade a jury into a certain degree of leniency, but long years in prison for the sake of a dead ideal. In spite of his hard common sense and severely practical life he would almost have welcomed the exaltation of soul which must accompany a great sacrifice impelled by perfect love. But to turn one's back on life for ever and walk deliberately into a dungeon, change one's name for a number and become a thing, for the sake of barren honour, to drag out his years with a dead soul, to despise himself for a fool, too old and too tired to console himself with a memory of a duty well done,—he felt such a sudden disgust for life and for that ill-regulated product, human nature, that he struck a heavy blow at a tree and brought a shower of snow about his head.

If he could but have continued to love the woman and accept the grim and bitter fate with joy in his soul! And if only that were the worst! If he could turn his back on life with no regret save for its lost opportunities for power and fame.

He paused in his rapid irregular walk and pushed his cap up from his ear. He half swung on his heel; then, his face settling into its familiar lines, he walked slowly toward a faint crackling that had arrested his attention.

He came presently upon the glade Alys Crumley had painted in its summer mood; the little picture hung facing his bed. The scene was white to-day; all the lovely shades of green and gold had been rubbed out and replaced with the bright sparkle of snow, and the brook was frozen. But although Rush loved the winter woods and responded to their white appeal as keenly as to their yearly renewal of verdant youth and gorgeous maturity, they left him quite unmoved at this moment. Alys Crumley, as he had half expected, stood in the little dell.

Her face was more like old ivory than ever against the dazzling whiteness of the snow and under her low fur turban. It looked both pinched and nervous, but she kept her hands in her muff. Nor did Rush remove his from his pockets, although his determination not to betray himself was subconscious. At the moment, his mind, conquering a tendency to race, informed itself merely that even in heavy winter clothes, with but a deep pink rose in her stole for colour, she managed to look dainty and alluring. It recalled visions of her on summer nights clad in the soft transparencies of lawn, with ribbons somewhere that always brought out the strange olive tints of her eyes and hair....

"I followed you," she said.

"Did you?"

"When I saw you pass in the trolley, I guessed. The Gifnings had invited me to go out to the Club with them. I asked them to put me down at a path near here."

He made no reply but continued to stare at her, recalling other pictures,—in the studio, in the green living-room,—marvelling at her endless variety, and not only of effect. Yet she was always the same, surcharged with the magnetism of youth and young womanhood.

"I—that is—I had made up my mind I must have a talk with you about certain things. You said you might go out to the Club to-day for an hour or two of hand-ball, and I had hoped to induce you to come home with me for supper. But Jack Battle told me that you had telephoned off—and when I saw you in the trolley, and caught a glimpse of your face, I guessed—"

"Yes?"

"You make it rather hard."

"What does it all matter? You are here, and I am glad that you are."

"Are you? But you intended to avoid me to-day!"

"I never intended to see you alone again if I could help it."

"I guessed that too. I met Polly Cummack this morning, and she told me she spent last evening at the jail and Mrs. Balfame confided to her that she had just definitely promised to marry you ... that you had proposed to her on the day of her arrest, and although you had faithfully obeyed her orders and not alluded to the subject since, she had thought it only kind to put you out of suspense yesterday. She naïvely added that the subject had not interested her when you first brought it up; but that you had been so wonderful and devoted since.... She means to settle quietly in New York, instead of travelling, so that she can be quite near you, and she will marry you as soon as the case has been forgotten by the public. Of course, Polly could not keep anything so interesting, and no doubt it is all over town by now."

Alys spoke steadily, with a faint ironic inflection, and she held her head very high. But her face grew more pinched, and the delicate pink of her lips faded.

"Yes?" He had turned as white as chalk, but there was neither dismay nor sarcasm in the hard stare of his eyes. His lips were folded so closely that the word barely escaped.

"I am going to say everything I have to say, if you never speak to me again. I feel as if I were standing on the point of a high rock and every side led sheer down into an abyss. It doesn't matter in the least down which side I fall. There is a certain satisfaction in that. But you shall listen."

"There is nothing you cannot say to me."

"And you'll not run away."

"Oh, no, I'll not run away! I shall never see you again if I can help it, but now that you are here I shall look at you and listen to the sound of your voice."

"And to what I have to say. You hate Mrs. Balfame. You are bored to death with her. You are appalled. You have found her out for what she is. You are going to marry her out of pity and because you are too honourable to desert a woman who will always be under a cloud, even if you had it in you to break your word; and because you have a twisted romantic notion about being true to an old if mistaken ideal—one of a set that has flourished like hardy old-fashioned annuals under the dry soil of hustle and ambition and

devotion to your profession. You had fallen in love—or thought you had, which amounts to the same thing for the moment—after so many years of dry spiritual celibacy, and it had been a wonderful revelation—and an inner revolution that made you immensely interested in yourself for the first time. You were exalted; you lived for several months at a pitch above the normal, automatically registering other impressions but only half cognisant of them. And now—you feel that to the love born in delusion and slain by truth you owe the greatest sacrifice a man can make."

He had stared at the ground during the first part of her speech, and then raised his eyes sharply, his glance changing to amazement and a flush mounting to his hair.

"Oh!" he exclaimed. But he would make no other answer, and once more he dropped his glance to the snow.

"Are you going to marry her?"

"If she is acquitted."

"And if not?" Her voice broke out of its even register.

He made an abrupt movement, and she cried out:

"I know! I know! Polly told me—Sam tells her everything. He suspects you. He knows that Broderick does. But you don't intend to wait for his denunciation. Mrs. Balfame told that to Polly too. You intend to say you did it. She said she wouldn't let you—oh, wouldn't she!—but you had told her that you would make up a plausible story and stick to it. And I know that you can't prove an alibi. Tell me,"—she came closer and her voice was almost threatening,— "do you really intend to take that crime on your shoulders if she is convicted."

"Yes."

"Oh! Oh! Men will be sentimental fools until—well, so long as they are born of fools and women. We are made all wrong!" She threw her muff on the ground and beat her hands together. Her eyes were blazing. There was a curious red glow in their olive depths. "Well, listen to me: You are not going to do this thing, although I really believe you'd like to do it as a sort of

penance. She could not prevent such a monstrous sacrifice if she would, but I can. Just bear that in mind. If you come forward with any such insane proposition, I will make a fool of you before all the world. If Mrs. Balfame is acquitted, well and good; but if she is not, then I'll betray a confidence and run the risk of killing some one myself—but I'll get the truth. Just remember that, and keep off the witness-stand."

"What do you mean?"

"I mean that I know where to get the truth."

"You mean that Dr. Anna thinks Mrs. Balfame did it—that Mrs. Balfame confessed to her and that you can make the poor woman betray her friend while she is still too weak to resist. Well, you are all wrong. I know that Mrs. Balfame did not kill Balfame. If you want the reason for my knowledge,—and I know I can trust you,—Mrs. Balfame was out that night, and she did take a revolver and fire it. I found it in the house on the night following her arrest. It was a thirty-eight. There was one bullet missing. It was found in the tree. Balfame was killed by a forty-one. She did not go out to shoot Balfame, but because she thought she saw a burglar in the grove. Her revolver went off accidentally—and she is the best shot out at the Club. But you will readily understand my reasons for suppressing these facts."

Alys had turned her profile and was staring at a tree whose limbs creaked now and again with their weight of snow, sending down a powdery shower. Her thick short lashes were almost together before a gleaming line of olive.

"Oh! Who was her confederate?"

"She hasn't the least idea as to the identity of the person beside her. It was dark, and she was too much excited. Naturally, she would be very glad to know."

"Well, suppose we dismiss that part of it. We should never get anywhere. Only—don't take the stand and make a dramatic confession."

"Dramatic?" Once more the red tide rose. His blue eyes snapped.

"Melodramatic would perhaps be the better word. Sarah and I are hot on the trail of the right word. But tell me honestly—shouldn't you feel rather a

fool? It is such a very theatric—stagey—thing to do."

"Oh!" He wheeled about and kicked a fallen log. "Do you suppose I have given a thought to that aspect of it?"

"No, more is the pity, but as you have a good sense of humour, I rather wonder at it. However—these are not the only things I followed you into the woods to say."

"You had it in your mind, then, to find out if what Mrs. Balfame told Mrs. Cummack was true—that I purposed to free her one way or another?"

"Yes. I merely waited for the lead. I told you in the beginning that I did not care what I might confess to, or how angry I made you. What does it matter?"

"You cannot make me angry, although there are some things I cannot discuss with you."

"Of course not. Let us ignore Possible Sacrifice Number Two, and assume that Mrs. Balfame is acquitted,—which no doubt will be the case; few are worrying; and further assume that you will marry her; that she will marry you is the way she put it, not being an artist in words. Once more we will dismiss both subjects. Yes?"

She was stooping to recover her muff, and he noticed that her hands were shaking and that the dusky pink was in her cheeks for the first time.

"I am only too ready. But—there is little else for us to talk about!"

"Yes, there is! When people are on their deathbeds they can afford to be truthful, and you have dug your grave and mine."

She was erect once more and she looked at him steadily, although her breath was short and her cheeks blazing.

"What do you mean by that?" His eyes no longer looked like blue steel. They were flashing, and a curious wave of mobility passed over his face.

"I mean that you love me now. I think you always loved me—when we spent so many hours together in perfect companionship—when you found

so much in me that responded to so many of your own needs. But for the time being this was only a surface impression. It was unable to strike down to—to your soul, because between your outer and inner vision was the delusion. You had cherished some sort of ideal since boyhood, and when for the first time in your busy life you met a woman who seemed to materialise it—you never once had a half-hour's conversation with her!—you automatically rose to the opportunity to discharge a youthful obligation. Isn't that true?"

He would not answer, and she continued:

"You passed me over because you had to be rid of the delusion first, bag and baggage. There is only one way to get rid of an old delusion like that, and unconsciously you took it! The pity of it is, in our case, that you compromised yourself so promptly, instead of waiting—well, for ten weeks!"

"I had already asked Mrs. Balfame to get a divorce and marry me."

"Oh! That night you walked home with her from Dr. Anna's cottage?"

"You saw us? Yes, that was the time."

"The first time you had ever talked alone with her? I know that you dined there often, but didn't Dave usually do the talking?"

"Yes."

"And Mrs. Balfame smiled like St. Cecilia and attended to your wants."

"Oh!"

"It was like you to think you couldn't go back on even an Elsinore Avenue flirtation. But once more—it is a terrible pity that you did not delay your formal offer for ten weeks. Then you would have buried the last and the supreme folly of your youth—with a sigh perhaps, but you would have buried it. Isn't that true?"

"It is true that something incredibly youthful seems to have persisted in me beyond its proper limits, and then to have died abruptly. God knows I have no youth in me to-day."

"That may well be, but it need not have been. Youth does not die with the earlier illusions. If all had gone well, you would have been reborn into a saner and more conscious youth. Tell me—" Her voice trembled, but she moved forward resolutely and laid her muff against his chest; he could feel the working of her hands, and eyes and cheeks betrayed the excitement that pride still suppressed. "Tell me,—if you had waited, if you could have decently buried that old illusion and forgotten—and—and married me,—should you have felt very old?"

"I should have felt immortal."

He caught her hands from her muff and flung them about his neck and lifted her from the ground and kissed her as if they both stood on the pinnacle and had but a moment before plunging down to mortal death.

When he released her a trifle, his face was illuminated. It no longer looked preternaturally strong; neither did it look as young as she had seen it look in moments of mental relaxation.

"Ah!" she whispered. "This is the fusing, not when that old illusion died."

The deep flush ebbed out of his face, leaving it grey, but he did not relax the hard pressure of his arms. "Of what use," he asked bitterly, "when we have only to-day?"

"It is something to realise all of oneself if only for an hour. And you have given me my supreme hour. That was my right, for I went down into such depths as you have no knowledge of; and if I struggled out of them alone, and always in terror of surrender and demoralisation at the last moment, I have my claim on your help now, for the future is something I have never dared to face. I guessed before Polly told me—oh, I guessed! I knew you so well. In dreams, perhaps,—who knows?—our minds may have become one. When I came up out of—got past the worst, it seemed to me that I came into an extraordinary understanding of you. I can bear anything now. In a way, you will always be mine. The life of the imagination must have its satisfactions. There are worse things than living alone."

She drew down his head, but this time she put her lips to his ear.

"Now I am going to tell you a terrible secret," she said.

CHAPTER XXXV

There had been a crowd on the day of Frieda's and young Kraus' testimony, but on Monday morning there was a mob. The road as well as the open space before the Courthouse was as solid a mass of automobiles as the police would permit, and within, even the wide staircase was packed with people, many from New York City, waving cards and demanding entrance to the Court-room, or at least the freedom to breathe.

The sheriff and his assistants, soon after the doors were opened, succeeded in forming a lane, and dragged the women reporters to the upper landing. They found the young men at their tables, cool, imperturbable, having entered through the library at the back of the Court-room. All doors were closed before ten o'clock, and the crowd without, save only the few that were fortunate enough to have come early and obtain a vantage point against the glass, gradually dwindled away, to renew the assault after luncheon. It was not only the brilliant winter day that had enticed the curious over from New York, but the rumour that Mrs. Balfame would take the stand.

The morning droned along peacefully. Cummack and several others, including Mr. Mott, were recalled and questioned further. Rush made no interruptions whatever. The Judge yawned behind his hand. The women reporters whispered to one another that Mrs. Balfame looked lovelier than ever—only different, somehow. Even Mr. Broderick looked at her uneasily once or twice and confided to Mr. Wagstaff that he believed she and Rush had something up their sleeves; she no longer looked like a marble effigy of herself, but like a woman who was sure of getting what she wanted—much too sure. Her cheeks were almost pink. That was as close as he could get to the upheavals and revolutions that had taken place in Mrs. Balfame of Elsinore; and their causes.

Immediately after luncheon, Rush showed the jury Defendant's Exhibit A: the suitcase that Mrs. Balfame had packed for her husband after his telephone message from the house of Mr. Cummack. He demonstrated that

it must have been packed by a firm hand guided by a clear head, a head as far as possible from that cyclonic condition technically known as "brainstorm." When he read them the explicit directions Mrs. Balfame had written for the velvet handbag her generous husband had offered to bring from Albany, the jury craned its neck and puckered its brows. This suitcase had been examined on the night of the crime by police and reporters, the cynical men of the press characterising it later as a grand piece of bluff. But it looked very convincing in a court-room, and its innocent appeal was thrown into high relief by the indisputable fact that the murder had been committed at least half an hour later.

On the other hand, there was reason to believe that Mrs. Balfame had deliberately planned the shooting and in that case it was quite natural for her to prepare something in the nature of an alibi—that is, if a woman, and an amateur in crime, could exercise so much foresight. The jury looked at the defendant out of the corner of its eye. Well, she, at least, looked cool enough for anything.

Then came the great moment for which the spectators had braved discomfort, indignities, and even hunger. The counsel for the defence asked Mrs. Balfame to take the stand.

Everybody in the court-room save the Judge, the jury, and the cool young reporters half rose as she walked rapidly behind the jury-box, mounted the stand, took the oath, bowed to the Court and arranged herself, with her usual dignified aloofness, in the witness-chair. She felt but a slight quiver of the nerves, no apprehension whatever. She knew her story too well to be disconcerted even by the sudden wasp-like assaults of the district attorney, and she was sensible of the moral support of practically all the women in the room.

Rush asked her to tell her story in her own way to the jury, and for a time the district attorney permitted her to talk without interruption. Rush had warned her after the interview with the women reporters against delivering herself with too tripping a tongue, and his assistant had spent several hours with her in rehearsal of certain improvements upon a too perfect style. In consequence, she told a clear coherent story, in the simplest manner possible, with little dramatic breaks or hesitations now and again, but with

nothing stronger than a quaver in her sweet shallow voice. When she had reached the episode of the filter and had explained to the inquisitive district attorney why she had made no mention at the coroner's inquest of the somewhat complicated episode of which it was the pivot, so to speak, she gave the same credible explanation the newspaper women had already offered to the public; and then, quite unexpectedly, she related the story of Frieda's attempt to blackmail her, and her indignant refusal to give the creature a dollar. Mr. Gore shouted in vain. The Judge ordered him to keep quiet and permitted the defendant to tell the story in her own way.

Mrs. Balfame apologised to the jury for relating this incident out of order, and then went on with her quiet plausible story. Her reason for not running out at once was simplicity itself. She must have been in the kitchen when the shot was fired; she had not made a point of regulating her movements by the clock as some of the witnesses for the prosecution appeared to have done, so that she was quite unable to give the jury positive information upon the subject of the exact number of minutes she had remained in the kitchen. She had washed and put away the glass, of course; she was a very methodical woman. Then she had gone upstairs, leisurely, and it was not until she was in her bedroom that she became aware of some sort of excitement out in the Avenue. Even that conveyed nothing to her, for it was Saturday night—she curled her fastidious lip. But when she heard voices directly under her window, inside the grounds, she threw it open at once and asked what had happened. Then of course she ran downstairs and out to her husband. That was all.

Even the district attorney was not able to interject a hint of the lemonade story, and so, naturally, she ignored it.

"Gemima!" whispered Mr. Broderick to his neighbour, "but she is a wonder! I never heard it better done, and I've seen some of the boss liars on the stand. She looks like an angel on toast, a poor, sweet, patient, martyr angel. But I'll bet five dollars to a nickel that she was just about three degrees too plausible for that jury. If she didn't do it, who did? That's what they'll ask. And who else wanted him out of the way? Have you given any thought to that proposition?" His voice was almost as steady as his keen grey eyes, and he looked straight into the wise and weary orbs of a brilliant but too inabstinent member of the crack reporter regiment who had been

missing for several days. The man raised his sagging shoulders and dropped them listlessly. Then his heavy eyes were invaded by a sudden gleam.

"Say," he whispered, "that Rush is a good-looking chap—and she—I don't like those ice-boxes myself, but some men do. It's crossed my mind more than once to-day that he's got something on his—what's the matter?"

"For God's sake, hush!" Broderick's low voice was savage, his face white. "They're always likely to say that about a young lawyer when his client is handsome enough and their imaginations are excited by a mysterious murder case. He's a friend of mine, and I don't want him to get into trouble. He might not be able to prove an alibi. But I know he didn't do it because I happen to know that he is in love with another woman. I was in the same trolley with them yesterday when they came back from the woods. There was no mistaking how the land lay."

"Oh! Just so!" The other man's eyes were glittering. He looked like a hunter glancing down his gun-barrel. "I see he *is* a friend of yours and you've got his defence pat—well, I'm not going to bother my poor head until Mrs. B. is acquitted or convicted. Ta! Ta!" And he slid gently to the floor, laid his head against the infuriated Broderick's knee and went to sleep.

"I say," whispered Wagstaff, "she almost involved young Kraus, all right. He's never been quite so close to the bull's-eye before. The very fact that she didn't trump up a yarn—or Rush wouldn't let her—that she saw him when she opened the door, or that he had turned the handle, is one for her and one on him."

The Judge, who had taken a few moments' rest, re-entered, and conversation ceased. Conrad and Frieda were called in rebuttal, and encouraged to fix the time of Mrs. Balfame's departure and return as accurately as might be. Frieda asserted that Mrs. Balfame, after closing the outer door, had not remained below-stairs for more than three minutes, and Conrad declared that her exit must have been made three or four before Mr. Mott left Miss Lacke's. Of course—with quiet scorn—he had not looked at his watch. How could he in the dark? As he did not smoke he had no matches in his pocket.

That closed the day's session. The jury filed out, and no man could read aught in their weather-beaten faces save the conviction that the Paradise City Hotel was a haven of delights after a long day in the box, and they were quite equal to the feat of enjoying the dinner served there, with minds barren of the grim purpose behind this luxurious week.

CHAPTER XXXVI

It was nearly six o'clock. The court-room with its round white ceiling looked like a crypt in the soft glow of the artificial light, and the Judge, in his black silk gown, with his handsome patrician face, clean-cut but rather soft and flushed with good living, might have been an abbot seated aloft in judgment upon a recalcitrant nun. Mrs. Balfame in her crêpe completed the delusion—if the imaginative spectator glanced no further. The district attorney, who was summing up, looked more like a wasp than ever as he darted back and forth in front of the jury-box, shouting and shaking his fists. Occasionally he would hook his fingers in his waistcoat, balance himself on his heels and with a mere moderation of his rasping tones, demonstrate a contemptuous faith in the strength of his case.

It is to be admitted that his arguments and expositions, his denunciations and satirical refutations, were quite as convincing as those of the counsel for the defence had been, such being the elasticity of the law and of the legal mind; but although an able and powerful speaker, he lacked the personal charm and magnetism, the almost tragical enthusiasm and conviction, alternating with cold deliberate logic, that had thrilled all present to the roots of their beings during the long hours of the morning. Rush, whether he lost or won, had made his reputation as one of the greatest pleaders ever heard at the bar of New York State. He had finished at a quarter to one. Immediately after the opening of the afternoon session Gore had darted into the breach, speaking with a dramatic rapidity for four hours. He sat down at six o'clock; and Mrs. Balfame felt as if turning to stone while the Judge, standing, charged the jury and expounded the law covering the three degrees of murder: first, second, manslaughter. It was their privilege to convict the prisoner at the bar of any of these, unless convinced of her innocence.

He dwelt at length upon the degree called manslaughter, as if the idea had occurred to him that Mrs. Balfame, justly indignant, had run out when she heard her husband's voice raised in song, and had fired from the grove by way of administering a rebuke to an erring and inconsiderate man. The

second bullet had been made much of by Rush, as indicating that two people, possibly gun-men, had shot at once, but the district attorney held no such theory and had ignored the bullet found in the tree. It was apparent, however, that the Judge had given to this second bullet a certain amount of judicial consideration.

The jury filed out, not to their luxurious quarters in the Paradise City Hotel, a mile away, but to a stark and ugly room in the Court-house where they must remain in acute discomfort until they arrived at a verdict. The Judge had his dinner brought to him in a private room adjoining theirs, and even the reporters and spectators snatched a hasty meal at the Dobton hostelry, so sure were they all that the jury would return within the hour. Mrs. Balfame did not take off her hat with its heavy veil, but sat in her quarters at the jail with several of her friends, outwardly calm, but with her mind on the rack and unable to share the dinner sent over from the Inn by Mr. Cummack for herself and her guests.

The hours passed, however, and the jury did not return. Once the head of the foreman emerged, and the sheriff, misunderstanding his surly demand for a pitcher of ice water, rushed over for Mrs. Balfame, the Judge was summoned, and the reporters, men and women, raced one another up the Court-house stairs. Mrs. Balfame, schooled to the awful ordeal of hearing herself pronounced a murderess in one form or other, but bidden by her friends to augur an acquittal from a mere three hours' deliberation, walked in with her usual quiet remoteness and took her seat. She was sent back at once.

Rush paced the road in front of the Court-house. He had little hope. He had studied their faces day by day and believed that several, at least, were persuaded of Mrs. Balfame's guilt. Mrs. Battle, Mrs. Gifning and Mrs. Cummack sat with Mrs. Balfame, who found the effort to maintain the high equilibrium demanded by her admiring friends as rasping an ordeal to her nerves as waiting for that final summons whose menace grew with every hour the jury wrangled. Finally she took off her hat and suggested that they knit, and the needles clicked through the desultory conversation until, after midnight, they all attempted to sleep.

The Judge extended himself on a sofa in the private room devoted to his use; he dared not leave the Courthouse. He told the district attorney (who told it to the sheriff, who told it to the reporters) that the jury quarrelled so persistently and so violently that he found it impossible to sleep, and that the language they used was appalling.

Midnight came and passed. The sob-sisters, worn out, went home. Miss Sarah Austin and Miss Alys Crumley had not returned to the Court-house after dinner. The sheriff appeared at the entrance of the courtroom and announced that the last trolley would leave for Elsinore and neighbouring towns within five minutes. Most of the spectators filed sleepily out. A few of Mrs. Balfame's less intimate but equally devoted friends remained in their seats near her empty chair, and shortly after midnight the warden's wife brought them over hot coffee and sandwiches.

The reporters, having long since consumed all the chocolate and peanuts on sale below, strolled back and forth between the Court-house and the bar of the Dobton Inn. They were bored and indignant and sought the only consolation available. They returned periodically to the court-room, growing, as the hours passed, more formal, polite, silent. One lost his way in the jury-box and was steered by a court official to the sympathetic haven of his brothers.

The room itself, its floor littered with tinfoil, peanut-shells, and newspapers, its tables and chairs out of place, looked like a Coney Island excursion boat. Finally two reporters laid their heads down on a table and went to sleep, but the rest continued to address one another at long intervals, in distant tones, obeying the laws of etiquette, but with a secret and scornful reluctance.

Broderick, who was reasonably sober, had wandered in and out many times. Occasionally he walked the road with Rush, and more than once he had endeavoured to get Miss Crumley on the telephone. He had even telephoned to the hospital to ascertain if she were there. A week ago only he had accidentally discovered that Dr. Anna had been summoned by Mrs. Balfame shortly after the murder and had passed many hours alone with her; "it being the deuce and all to extract any information from that closed corporation of Mrs. Balfame's friends." Broderick had surprised it out of a group at the Elks' Club in the course of conversation and then had set his

phenomenal memory to work, with the result that he was convinced Alys Crumley held the key to the whole situation. He had gone to her house and pleaded with her to take him out to the hospital and obtain a statement from the sick woman before it was too late, representing in powerful and picturesque language the awful peril of Rush.

"I've reason to know," he had concluded, "that Cummack and two or three others have their suspicions, and there isn't a question that if the jury brings in a verdict of guilty in any degree—and they're a pigheaded lot—Rush will be arrested at once. These devoted friends of Mrs. Balfame have accumulated enough evidence to begin on. He may have gone to Brooklyn that night, but he was seen to get off the train at Elsinore about a quarter of an hour before the shooting. They've been doing a lot of quiet sleuthing, but if Mrs. Balfame is acquitted they'll let him off. They don't want any more scandal, and they like him, anyhow. But I have a hunch she won't be acquitted; and then, innocent or guilty, there'd be no saving him. So for heaven's sake, stir yourself."

But Alys had replied: "I have besought my aunt, and she will not permit Dr. Anna to be disturbed. She says her only chance for life is a tranquil mind, and that the shock of hearing that Enid Balfame was on trial for murder would kill her—let alone asking her to do her best to send her to the chair. I've done *my* best, but it seems hopeless."

This conversation had taken place on Thursday. To-day was Tuesday. They were very reticent at the hospital, but he had reason to believe that Dr. Anna had taken a turn for the worse. Could Alys Crumley be out there, and could she have taken that minx Sarah Austin with her? It would be just like a girl to go back on a good pal like himself and hand a signal triumph over to another girl, who would get out of the game the minute some fellow with money enough offered to marry her. He ground his teeth.

He was standing near the doors of the court-room and staring at the clock whose hands pointed to a quarter to one. Suddenly he heard his name called from below. He sauntered out and leaned over the balustrade. A weary page was ascending when he caught sight of the star reporter.

"Brabant Hospital wants you on the 'phone," he announced, with supreme indifference.

Broderick leaped down the winding stair and into the booth. It seemed to him that his very ears were quivering as he listened to Alys Crumley's faint agitated voice. "Come out quickly and bring a stenographer," it said. "And suppose you ask Mr. Rush to come too. Just tell the sheriff—to—to postpone things a bit if the jury should be ready to come in before you return. Hurry, Jim, hurry."

CHAPTER XXXVII

It was two o'clock and ten minutes. The eleven remaining spectators, one of them a woman in evening dress, were sound asleep. The sheriff was pacing up and down with his hands behind his back, his perturbed glance ranging between the clock and the door leading into the jury-room. Occasionally he slipped on a bit of the debris and kicked it aside. The reporters slumbered at their tables or stared moodily ahead. One gnawed his pencil; another tore leaves of copy paper into morsels and laboriously built something that looked like a child's house of blocks. Outside it was deathly still. The snow was falling softly. It was too early for a cock-crow. Occasionally some one snored. The footfalls of the sheriff made no noise.

Suddenly every reporter present sat up with the scent of blood in his nostrils. Their ears twitched. The fumes blew out of their highly organised brains like mist before a bracing wind. An automobile was dashing down the road, its horn shrieking a series of brief peremptory notes, which sounded like "Wait! Wait! Wait!"

It came to an abrupt halt before the Court-house door, and almost simultaneously Wagstaff, who had wandered forth once more, ran up the stairs and into the court-room.

"There's something in the wind, boys," he cried, smoothing his hair and steering carefully for his chair. "Rush, Broderick, three other men, Sarah Austin and Alys Crumley, were in that car. They've all gone straight to the Judge. Something big is going to break, as sure as death."

The sheriff retired hastily to the region behind the court-room.

The young men adjusted their chairs, arranged their copy-paper neatly, and sharpened their pencils. Mrs. Balfame's friends went forward to the door behind the jury-box which led to the tunnel. Even the sleepy spectators sat up nervously.

Ten minutes passed. Then the sheriff, his face now stolid and important, bustled in and across to the jury-room, opened the door and summoned the occupants. In every stage of dishabille they filed sullenly in; the sheriff went through the tunnel for Mrs. Balfame.

The Judge, without his gown and his hair ruffled, was in his seat when the prisoner entered. She came hurriedly, her great repose broken, her face grey. Rush, who had entered behind the Judge, met her and whispered:

"You are free. But you will need all your self-control. Don't let them have a story in the morning papers of a breakdown at the last moment."

Mrs. Battle, Mrs. Gifning and Mrs. Cummack, who were far more excited than she, took heart at his words, patted their dishevelled hair and motioned to their husbands, summoned from the Dobton Inn, to draw closer. Whatever the issue, they felt the need of masculine support, albeit they scowled at the obvious form that masculine needs had taken.

Mrs. Balfame had looked dully at Rush as he spoke. Between fatigue and the nervous strain of maintaining the superwoman pitch for the benefit of her friends, her mind was confused. She could only mutter, "I'll try. Is—is—it really—all right?"

"You'll be free and for ever exonerated in half an hour."

Mrs. Balfame sank back in her chair, thinking that half an hour was a long time, a terribly long time. How long did it usually take a jury to pronounce a prisoner not guilty?

Sitting before the table in front of her were two men whom she vaguely recognised. Behind them was the man she hated most now that her husband was dead, the reporter Broderick. And beside him were Alys Crumley and Miss Austin. What did it all mean? She drew a sigh. It didn't matter much. She was so tired, so tired. When it was over she would sleep for a week and see no one—not even Dwight Rush.

The district attorney was on his feet, his face as black as if in the first stages of a poisonous fever. Neither he nor any one in the court-room threw Mrs. Balfame a glance. All eyes were on the Judge, who rose and made a short address to the jury.

"New evidence has just been brought to the notice of the court," he said. "It is of sufficient importance to warrant its immediate consideration, and the case is therefore reopened for this purpose. It is for you, however, to pass upon its worth. Mr. Rush will take the stand."

"May it please your honour," shrieked Mr. Gore, "I protest that this case has already been submitted to the jury, and that it is altogether out of order to reopen it."

"That is a matter within the discretion of the court," replied the Judge sharply; he had slept but fitfully and was not in his accustomed mood of remote judicial calm. "Mr. Rush will take the stand and proceed without interruption."

Rush ascended to the witness-box and was sworn. Mrs. Balfame half rose, dropped back into her chair with another sigh. There could be but one explanation of this strange procedure. Rush had discovered that the jury was hostile and was about to incriminate himself. She could do nothing. She had brought up the subject only yesterday, and he had replied curtly that he had taken the pistol from his safe and hidden it elsewhere. And she was too tired to feel that anything mattered much but the prospect of a week's rest. Later she could exonerate him in one way or another.

The newspaper men were as sober and alert as if the hour were ten in the morning. With their abnormal news-sense they anticipated a complete surprise. To do them justice, they were quite indifferent to the possibility of Mrs. Balfame's release. If it were news, Big News, that was all that mattered.

As Rush took the witness-chair, the lines in his pallid face looked as if cut to the bone, but he addressed the jury in strong clear tones. He told them that two days since he had been informed by Miss Alys Crumley that Dr. Anna Steuer had positive knowledge bearing upon the crime for which Mrs. Balfame had been unjustly arrested and thrust into jail, but that they were afraid to tell her of her friend's tragic situation lest it shatter her slender hold on life. She was very ill again after a relapse, although quite conscious, and their only hope was in perfect peace of mind.

If she recovered, Mrs. Dissosway, in whom alone she had confided, had felt sure she would give the testimony which must set Mrs. Balfame at liberty if the jury convicted her. On the other hand, Mrs. Dissosway had promised her niece that if the doctors agreed that Dr. Steuer's death was but a matter of hours and there was a real danger of Mrs. Balfame's conviction, she would tell the dying woman the truth and take the consequences.

Shortly after the case had gone to the jury, Miss Crumley and Miss Sarah Austin had gone out to the hospital, satisfied that Dr. Anna had but a few hours to live. But it was not until Miss Crumley had persuaded her relative that the delayed verdict of the jury meant conviction for Mrs. Balfame that the superintendent, who was a lifelong friend of Dr. Anna Steuer, had given Miss Crumley permission to send for a stenographer and the witnesses she desired. Miss Crumley had therefore telephoned at once to Mr. Broderick, as she knew he would be sure to be in or near the courtroom, and asked him to bring the witness and a stenographer.

They had reached the hospital in fifteen minutes. Dr. MacDougal had met them at the door of Dr. Steuer's room and informed them that the news of her friend's predicament had been broken to the patient, after administering stimulants, and that she had consented immediately to make a statement.

"It took her some time to make this statement," continued Mr. Rush. "She was very weak, and stimulants had to be given repeatedly. But in due course it was completed, signed, and witnessed by Mr. Broderick and the two physicians present. I shall read it to you with the permission of the court."

He then read them the ante-mortem statement of Dr. Anna Steuer:

"I shot David Balfame.

"I make this statement at once lest I prove to be unable to add the explanation of my motives, and I herewith sign it."

Signed and witnessed.

The statement continued:

"I had known for a long time that my beloved friend's life with this wretch was insupportable, but although I urged her repeatedly to divorce him and

she refused, it never entered my head to kill him nor any one else. I had spent my life trying to heal, and to give comfort where my patient's sufferings were of the mind as well as of the body. I had carried Balfame through several gastric attacks, caused by his disreputable life, with as much professional enthusiasm as if he had been the best of husbands. To have removed him during one of these would have been a simple matter.

"But that day out at the Country Club when he insulted the loveliest and most nearly perfect being on this earth, with the deliberate intent to ruin her position—the little all she had in the world that mattered—something snapped in my head. I almost struck him then and there. And when, during the ride home, Enid for the first time told me the hideous details of her life with that man all the blood in my body seemed to surge up and through my brain. He deserved death, and only death could free her. But how could this be accomplished? Too proud and too obdurate in her principles for the divorce-court, she was also too gentle and good and fastidious, in spite of her remarkable will, to strike him down herself.

"While waiting for a summons to the Houston farm, I paid several calls, and the last was at the Cumacks', one of the children being ill. As I came downstairs from the nursery I heard the conversation at the telephone—Balfame's drunken compliment to his wife. He said he would walk home. It was then that the definite impulse came to me, and I acted without an instant's hesitation. I always carried a revolver, for I was forced to take many long and lonely rides in my country practice. I drove straight to the lane behind the Balfame place, left the car, put out the lights, and climbed the back fence. It was very dark, but I had been familiar with the grounds all my life and I had no difficulty in finding the grove. I waited, moving about restlessly, for I wanted to have it over and go out to the Houston farm.

"He came after what had seemed to be hours of waiting, singing at the top of his voice. Mr. Rush tells me there is talk of two pistols having been fired that night, and that a bullet from a thirty-eight-calibre pistol entered a tree just to the left of the gate. I heard no one else in the grove. My revolver was a forty-one and can be found in the drawer of my desk at home. I fired at Balfame the moment he reached the gate. I vaguely remember seeing another figure almost beside him, but as Balfame fell I ran for the lane and my car. I had no intention of giving myself up. I knew that the crime would

be laid to political enemies, who, no doubt, could produce alibis. This proved to be the case, and when I broke down and was carried to the hospital it was with the assurance of public belief in gun-men as the perpetrators of the crime. That Enid Balfame, that serene and splendid woman, whose life has been a miracle of good taste and high sense of duty, would be accused never crossed my mind.

"No, it is impossible for me to say with truth that I repent. I might have, once. But these last six months! Millions of men in the greatest civilisations of earth are killing one another daily for no reason whatever save that man, who seeks to direct the destinies of the world, is a complete and pitiful failure. Why, pray, should a woman repent having broken one of his laws and removed one of the most worthless and abominable of his sex, who had made the life of a beloved friend past enduring? Moreover, I have saved hundreds of lives at the risk of my own. I die in peace.

"This statement is made with full knowledge of impending death and without hope of recovery."

"This ante-mortem statement," concluded Mr. Rush, "was taken down in longhand by the stenographer who sits below, and signed by Anna Steuer, M.D., of Elsinore, Brabant County, State of New York. It was witnessed by Drs. MacDougal and Meyers, who accompanied me from the hospital to the Court-house. Mr. Broderick of the *New York News*, as I mentioned before, also heard the confession and affixed his signature."

He handed the sheets to the jury and stepped down. For a moment there was no sound but the scratching of pencils on the opposite side of the room and the faint rustle of paper in the jury-box. Mrs. Balfame had drawn her veil across her face and sat huddled in her chair.

The two doctors and Broderick took the stand briefly, the former testifying that Dr. Steuer had been of clear and sound mind when she made and signed her statement. Then the district attorney stood up, and in lifeless tones—Dr. Anna had been his family's most cherished friend—asked if there was any prospect of the self-confessed criminal being examined further. Rush went over to Mrs. Balfame and pressed his hand hard upon her shoulder.

"May it please your honour," he said, "Dr. Anna Steuer expired before we left the hospital."

Again there was a furious scratching of pens. Not a reporter glanced at Mrs. Balfame. They had forgotten her existence. The Judge asked the jury if they wished to retire once more for deliberation. The foreman faced about. The other eleven shook their heads with decision.

The Judge dismissed them and congratulated the defendant, who had risen and stood clutching the back of her chair. The reporters raced one another down the stairs to the telegraph-offices and telephone-booths.

It was physically impossible for Mrs. Balfame to faint, or to lose self-control for more than a moment at a time. She drew away from the friends that crowded about her, one or two of the women hysterical.

"I shall ask Mr. Rush to take me over to the jail for a few moments," she said in her clear cold voice. "I must put a few things together, and I wish to have a few words alone with Mr. Rush." She turned to the dazed Mr. Cummack. "Take Polly home," she said peremptorily. "Mr. Rush will drive me over later."

"All right, Enid." He tucked Mrs. Cummack under his arm. "Your room's been ready for a week."

As Rush was about to follow his client he turned abruptly and exchanged a long look with Alys Crumley. Both faces were pallid and drawn with fatigue but their eyes for that swift moment blazed with resentment and despair.

CHAPTER XXXVIII

When Rush and Mrs. Balfame reached the jail sitting-room she mechanically removed her heavy hat and veil and sank into a chair.

"Is it true that Anna is dead?"

Her voice was as toneless as the district attorney's had been.

"Yes—and we can only be grateful."

"And she did that for me—for *me*. How strange! How very, very strange!"

"It has been done before in the history of the world." Rush too was very tired.

"But a woman—"

"I fancy you were the romance of poor Anna's life. She indulged in no dreams of the usual sort, with her plain face and squat figure. No doubt she had centred all her romantic yearnings and all her maternal cravings on you. She thought you perfect—unequalled—"

"I! I!"

She sprang to her feet and thrust her head forward, her eyes coming to life with resentment and wonder.

"What—*what* am I that two people—two people like you and Anna Steuer—should be ready to die for me? Why, I have never thought of a mortal being but myself! Anna must have been born with dotage in her brain. She knew me all my life. She saw me organise charities, give to the poor what I could afford, find work for the deserving now and again, and she heard me read absurd compositions before the Friday Club upon the duty of Women to Society; but she must have known that all were mere details in my scheme of life and that I was the most selfish creature that ever breathed."

Rush shrugged his shoulders, although he was watching her with a quickened interest. "Why try to analyse? The gift to inspire devotion—fascination—is as determinate as the gift to write a poem or compose a symphony. It has existed in some of the worst men and women that have ever lived. You are not that—not by a long sight—"

"Oh, no! I am not one of the worst women that have ever lived. Do you know what I am, how I see myself to-night? I am merely a commonplace woman everlastingly anxious to do the 'right thing.' That is the beginning and the end of me, with the exception of a brief aberration—a release under stress of those anti-social instincts that are deep in every mortal and exhibited by every child that ever lived. Oh, I am one of civilisation's proudest products, for I never had the slightest difficulty with those inherited impulses before. Nor will they ever rise again. I've even 'improved' during my long hours of solitude in this room, but it's all of a piece. I've not changed. We none of us do that. I shall live and die a commonplace woman trying to do the 'right thing.'"

"Oh—let us go now. You must rest. You are very tired."

"I was. But it has passed. The shock of Anna's statement and death brought me up standing. I shall sail for Europe to-morrow, if there is a boat. It was Anna's constant regret that she could not go to the battlefields and nurse, but she would not leave those that depended upon her here. In some small measure I can take her place. They give a first course in London I am told. And I am strong, very strong."

She paused abruptly and moved forward and took his hand.

"Good night and good-bye," she said. "I shall sleep here to-night. And please understand that you are free."

"What do you mean?" Rush's face set like a mask, but the colour mounted. The grip of his hand was merely nervous, and when she withdrew hers his unconsciously went to his hip and steadied itself.

"I mean that so far as lies in my power I shall harm no one again as long as I live. Moreover, I have seen how it was with you for some time, although I would not admit it, for I intended to marry you. Perhaps I should have done so if it had not been for Anna. It took that to lift me quite out of myself and

enable me to see myself and all things relating to me in their true proportions—for once. It is my moment—If I am ever to have one. You no longer love me, and if you did I should not marry you. I say nothing of the injustice to yourself—I could not take the risk of disillusioning you." She laughed a little nervously. "I fancy I have done that already. But it does not matter. Go and marry some girl near your own age who will be a companion, not an ideal with heart and brain as well as feet of clay."

"You are excited," said Rush brusquely, although his heart was hammering, and singing youth poured through his veins. "I shall leave you now—"

"You will say good-bye to me now, and that is the last word. I'll telephone my plans to Cummack in the morning. There is no reason for us to meet again. To me you will always be a very wonderful and beautiful memory, for it is something—be sure I appreciate just what it does mean—to have embodied a romantic illusion if only for an hour. Now good-bye once more; and find your real happiness as quickly as you can."

She had opened the door. She pushed him gently out into the corridor, closed the door and locked it. Mrs. Balfame was alone with the crushing burden of her soul.

*** END OF THE PROJECT GUTENBERG EBOOK MRS. BALFAME:
A NOVEL ***

Updated editions will replace the previous one—the old editions will be renamed.

Creating the works from print editions not protected by U.S. copyright law means that no one owns a United States copyright in these works, so the Foundation (and you!) can copy and distribute it in the United States without permission and without paying copyright royalties. Special rules, set forth in the General Terms of Use part of this license, apply to copying and distributing Project Gutenberg™ electronic works to protect the PROJECT GUTENBERG™ concept and trademark. Project Gutenberg is a registered trademark, and may not be used if you charge for an eBook, except by following the terms of the trademark license, including paying royalties for use of the Project Gutenberg trademark. If you do not charge anything for copies of this eBook, complying with the trademark license is very easy. You may use this eBook for nearly any purpose such as creation of derivative works, reports, performances and research. Project Gutenberg eBooks may be modified and printed and given away—you may do practically ANYTHING in the United States with eBooks not protected by U.S. copyright law. Redistribution is subject to the trademark license, especially commercial redistribution.

START: FULL LICENSE

THE FULL PROJECT GUTENBERG™ LICENSE

PLEASE READ THIS BEFORE YOU DISTRIBUTE OR USE THIS WORK

To protect the Project Gutenberg™ mission of promoting the free distribution of electronic works, by using or distributing this work (or any other work associated in any way with the phrase “Project Gutenberg”), you agree to comply with all the terms of the Full Project Gutenberg License available with this file or online at www.gutenberg.org/license.

Section 1. General Terms of Use and Redistributing Project Gutenberg electronic works

1.A. By reading or using any part of this Project Gutenberg electronic work, you indicate that you have read, understand, agree to and accept all the terms of this license and intellectual property (trademark/copyright) agreement. If you do not agree to abide by all the terms of this agreement, you must cease using and return or destroy all copies of Project Gutenberg electronic works in your possession. If you paid a fee for obtaining a copy of or access to a Project Gutenberg electronic work and you do not agree to be bound by the terms of this agreement, you may obtain a refund from the person or entity to whom you paid the fee as set forth in paragraph 1.E.8.

1.B. “Project Gutenberg” is a registered trademark. It may only be used on or associated in any way with an electronic work by people who agree to be bound by the terms of this agreement. There are a few things that you can do with most Project Gutenberg electronic works even without complying with the full terms of this agreement. See paragraph 1.C below. There are a lot of things you can do with Project Gutenberg electronic works if you follow the terms of this agreement and help preserve free future access to Project Gutenberg electronic works. See paragraph 1.E below.

1.C. The Project Gutenberg Literary Archive Foundation (“the Foundation” or PGLAF), owns a compilation copyright in the

collection of Project Gutenberg electronic works. Nearly all the individual works in the collection are in the public domain in the United States. If an individual work is unprotected by copyright law in the United States and you are located in the United States, we do not claim a right to prevent you from copying, distributing, performing, displaying or creating derivative works based on the work as long as all references to Project Gutenberg are removed. Of course, we hope that you will support the Project Gutenberg mission of promoting free access to electronic works by freely sharing Project Gutenberg works in compliance with the terms of this agreement for keeping the Project Gutenberg name associated with the work. You can easily comply with the terms of this agreement by keeping this work in the same format with its attached full Project Gutenberg License when you share it without charge with others.

1.D. The copyright laws of the place where you are located also govern what you can do with this work. Copyright laws in most countries are in a constant state of change. If you are outside the United States, check the laws of your country in addition to the terms of this agreement before downloading, copying, displaying, performing, distributing or creating derivative works based on this work or any other Project Gutenberg work. The Foundation makes no representations concerning the copyright status of any work in any country other than the United States.

1.E. Unless you have removed all references to Project Gutenberg:

1.E.1. The following sentence, with active links to, or other immediate access to, the full Project Gutenberg License must appear prominently whenever any copy of a Project Gutenberg work (any work on which the phrase “Project Gutenberg” appears, or with which the phrase “Project Gutenberg” is associated) is accessed, displayed, performed, viewed, copied or distributed:

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project Gutenberg™ License included with

this eBook or online at www.gutenberg.org. If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

1.E.2. If an individual Project Gutenberg electronic work is derived from texts not protected by U.S. copyright law (does not contain a notice indicating that it is posted with permission of the copyright holder), the work can be copied and distributed to anyone in the United States without paying any fees or charges. If you are redistributing or providing access to a work with the phrase “Project Gutenberg” associated with or appearing on the work, you must comply either with the requirements of paragraphs 1.E.1 through 1.E.7 or obtain permission for the use of the work and the Project Gutenberg trademark as set forth in paragraphs 1.E.8 or 1.E.9.

1.E.3. If an individual Project Gutenberg electronic work is posted with the permission of the copyright holder, your use and distribution must comply with both paragraphs 1.E.1 through 1.E.7 and any additional terms imposed by the copyright holder. Additional terms will be linked to the Project Gutenberg License for all works posted with the permission of the copyright holder found at the beginning of this work.

1.E.4. Do not unlink or detach or remove the full Project Gutenberg License terms from this work, or any files containing a part of this work or any other work associated with Project Gutenberg.

1.E.5. Do not copy, display, perform, distribute or redistribute this electronic work, or any part of this electronic work, without prominently displaying the sentence set forth in paragraph 1.E.1 with active links or immediate access to the full terms of the Project Gutenberg License.

1.E.6. You may convert to and distribute this work in any binary, compressed, marked up, nonproprietary or proprietary form, including any word processing or hypertext form. However, if you provide access to or distribute copies of a Project Gutenberg work in a format other than “Plain Vanilla ASCII” or other format used in the official

version posted on the official Project Gutenberg website (www.gutenberg.org), you must, at no additional cost, fee or expense to the user, provide a copy, a means of exporting a copy, or a means of obtaining a copy upon request, of the work in its original “Plain Vanilla ASCII” or other form. Any alternate format must include the full Project Gutenberg License as specified in paragraph 1.E.1.

1.E.7. Do not charge a fee for access to, viewing, displaying, performing, copying or distributing any Project Gutenberg works unless you comply with paragraph 1.E.8 or 1.E.9.

1.E.8. You may charge a reasonable fee for copies of or providing access to or distributing Project Gutenberg electronic works provided that:

- You pay a royalty fee of 20% of the gross profits you derive from the use of Project Gutenberg works calculated using the method you already use to calculate your applicable taxes. The fee is owed to the owner of the Project Gutenberg trademark, but he has agreed to donate royalties under this paragraph to the Project Gutenberg Literary Archive Foundation. Royalty payments must be paid within 60 days following each date on which you prepare (or are legally required to prepare) your periodic tax returns. Royalty payments should be clearly marked as such and sent to the Project Gutenberg Literary Archive Foundation at the address specified in Section 4, “Information about donations to the Project Gutenberg Literary Archive Foundation.”
- You provide a full refund of any money paid by a user who notifies you in writing (or by e-mail) within 30 days of receipt that s/he does not agree to the terms of the full Project Gutenberg™ License. You must require such a user to return or destroy all copies of the works possessed in a physical medium and discontinue all use of and all access to other copies of Project Gutenberg™ works.
- You provide, in accordance with paragraph 1.F.3, a full refund of any money paid for a work or a replacement copy, if a defect in the electronic work is discovered and reported to you within 90 days of receipt of the work.

- You comply with all other terms of this agreement for free distribution of Project Gutenberg™ works.

1.E.9. If you wish to charge a fee or distribute a Project Gutenberg™ electronic work or group of works on different terms than are set forth in this agreement, you must obtain permission in writing from the Project Gutenberg Literary Archive Foundation, the manager of the Project Gutenberg™ trademark. Contact the Foundation as set forth in Section 3 below.

1.F.

1.F.1. Project Gutenberg volunteers and employees expend considerable effort to identify, do copyright research on, transcribe and proofread works not protected by U.S. copyright law in creating the Project Gutenberg™ collection. Despite these efforts, Project Gutenberg™ electronic works, and the medium on which they may be stored, may contain “Defects,” such as, but not limited to, incomplete, inaccurate or corrupt data, transcription errors, a copyright or other intellectual property infringement, a defective or damaged disk or other medium, a computer virus, or computer codes that damage or cannot be read by your equipment.

1.F.2. LIMITED WARRANTY, DISCLAIMER OF DAMAGES - Except for the “Right of Replacement or Refund” described in paragraph 1.F.3, the Project Gutenberg Literary Archive Foundation, the owner of the Project Gutenberg™ trademark, and any other party distributing a Project Gutenberg™ electronic work under this agreement, disclaim all liability to you for damages, costs and expenses, including legal fees. YOU AGREE THAT YOU HAVE NO REMEDIES FOR NEGLIGENCE, STRICT LIABILITY, BREACH OF WARRANTY OR BREACH OF CONTRACT EXCEPT THOSE PROVIDED IN PARAGRAPH 1.F.3. YOU AGREE THAT THE FOUNDATION, THE TRADEMARK OWNER, AND ANY DISTRIBUTOR UNDER THIS AGREEMENT WILL NOT BE LIABLE TO YOU FOR ACTUAL, DIRECT, INDIRECT, CONSEQUENTIAL, PUNITIVE OR INCIDENTAL DAMAGES

EVEN IF YOU GIVE NOTICE OF THE POSSIBILITY OF SUCH DAMAGE.

1.F.3. LIMITED RIGHT OF REPLACEMENT OR REFUND - If you discover a defect in this electronic work within 90 days of receiving it, you can receive a refund of the money (if any) you paid for it by sending a written explanation to the person you received the work from. If you received the work on a physical medium, you must return the medium with your written explanation. The person or entity that provided you with the defective work may elect to provide a replacement copy in lieu of a refund. If you received the work electronically, the person or entity providing it to you may choose to give you a second opportunity to receive the work electronically in lieu of a refund. If the second copy is also defective, you may demand a refund in writing without further opportunities to fix the problem.

1.F.4. Except for the limited right of replacement or refund set forth in paragraph 1.F.3, this work is provided to you 'AS-IS', WITH NO OTHER WARRANTIES OF ANY KIND, EXPRESS OR IMPLIED, INCLUDING BUT NOT LIMITED TO WARRANTIES OF MERCHANTABILITY OR FITNESS FOR ANY PURPOSE.

1.F.5. Some states do not allow disclaimers of certain implied warranties or the exclusion or limitation of certain types of damages. If any disclaimer or limitation set forth in this agreement violates the law of the state applicable to this agreement, the agreement shall be interpreted to make the maximum disclaimer or limitation permitted by the applicable state law. The invalidity or unenforceability of any provision of this agreement shall not void the remaining provisions.

1.F.6. INDEMNITY - You agree to indemnify and hold the Foundation, the trademark owner, any agent or employee of the Foundation, anyone providing copies of Project Gutenberg™ electronic works in accordance with this agreement, and any volunteers associated with the production, promotion and distribution of Project Gutenberg™ electronic works, harmless from all liability, costs and expenses, including legal fees, that arise directly or indirectly from any of the following which you do or cause to occur: (a)

distribution of this or any Project Gutenberg work, (b) alteration, modification, or additions or deletions to any Project Gutenberg work, and (c) any Defect you cause.

Section 2. Information about the Mission of Project Gutenberg

Project Gutenberg is synonymous with the free distribution of electronic works in formats readable by the widest variety of computers including obsolete, old, middle-aged and new computers. It exists because of the efforts of hundreds of volunteers and donations from people in all walks of life.

Volunteers and financial support to provide volunteers with the assistance they need are critical to reaching Project Gutenberg's goals and ensuring that the Project Gutenberg collection will remain freely available for generations to come. In 2001, the Project Gutenberg Literary Archive Foundation was created to provide a secure and permanent future for Project Gutenberg and future generations. To learn more about the Project Gutenberg Literary Archive Foundation and how your efforts and donations can help, see Sections 3 and 4 and the Foundation information page at www.gutenberg.org.

Section 3. Information about the Project Gutenberg Literary Archive Foundation

The Project Gutenberg Literary Archive Foundation is a non-profit 501(c)(3) educational corporation organized under the laws of the state of Mississippi and granted tax exempt status by the Internal Revenue Service. The Foundation's EIN or federal tax identification number is 64-6221541. Contributions to the Project Gutenberg Literary Archive Foundation are tax deductible to the full extent permitted by U.S. federal laws and your state's laws.

The Foundation's business office is located at 41 Watchung Plaza #516, Montclair NJ 07042, USA, +1 (862) 621-9288. Email contact

links and up to date contact information can be found at the Foundation's website and official page at www.gutenberg.org/contact

Section 4. Information about Donations to the Project Gutenberg Literary Archive Foundation

Project Gutenberg™ depends upon and cannot survive without widespread public support and donations to carry out its mission of increasing the number of public domain and licensed works that can be freely distributed in machine-readable form accessible by the widest array of equipment including outdated equipment. Many small donations (\$1 to \$5,000) are particularly important to maintaining tax exempt status with the IRS.

The Foundation is committed to complying with the laws regulating charities and charitable donations in all 50 states of the United States. Compliance requirements are not uniform and it takes a considerable effort, much paperwork and many fees to meet and keep up with these requirements. We do not solicit donations in locations where we have not received written confirmation of compliance. To SEND DONATIONS or determine the status of compliance for any particular state visit www.gutenberg.org/donate.

While we cannot and do not solicit contributions from states where we have not met the solicitation requirements, we know of no prohibition against accepting unsolicited donations from donors in such states who approach us with offers to donate.

International donations are gratefully accepted, but we cannot make any statements concerning tax treatment of donations received from outside the United States. U.S. laws alone swamp our small staff.

Please check the Project Gutenberg web pages for current donation methods and addresses. Donations are accepted in a number of other ways including checks, online payments and credit card donations. To donate, please visit: www.gutenberg.org/donate.

Section 5. General Information About Project Gutenberg electronic works

Professor Michael S. Hart was the originator of the Project Gutenberg concept of a library of electronic works that could be freely shared with anyone. For forty years, he produced and distributed Project Gutenberg eBooks with only a loose network of volunteer support.

Project Gutenberg eBooks are often created from several printed editions, all of which are confirmed as not protected by copyright in the U.S. unless a copyright notice is included. Thus, we do not necessarily keep eBooks in compliance with any particular paper edition.

Most people start at our website which has the main PG search facility: www.gutenberg.org.

This website includes information about Project Gutenberg, including how to make donations to the Project Gutenberg Literary Archive Foundation, how to help produce our new eBooks, and how to subscribe to our email newsletter to hear about new eBooks.